Routledge Research on Social and Political Elites

GOVERNMENT FORMATION AND MINISTER TURNOVER IN PRESIDENTIAL CABINETS

COMPARATIVE ANALYSIS IN THE AMERICAS

Edited by
Marcelo Camerlo and Cecilia Martínez-Gallardo

ROUTLEDGE

Government Formation and Minister Turnover in Presidential Cabinets

Portfolio allocation in presidential systems is a central tool that presidents use to deal with changes in the political and economic environment. Yet, we still have much to learn about the process through which ministers are selected and the reasons why they are replaced in presidential systems.

This book offers the most comprehensive, cross-national analysis of portfolio allocation in the Americas to date. In doing so, it contributes to the development of theories about portfolio allocation in presidential systems. Looking specifically at how presidents use portfolio allocation as part of their wider political strategy, it examines eight country case studies, within a carefully developed analytical framework and cross-national comparative analysis from a common dataset. The book includes cases studies of portfolio allocation in Brazil, Chile, Colombia, Costa Rica, Ecuador, the United States, Peru and Uruguay, and covers the period between the transition to democracy in each country up until 2014.

This book will be of key interest to scholars and students of political elites, executive politics, Latin American politics and more broadly comparative politics.

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To Teresita and Oscarcito, por las cocoas de ayer y los mates de ahora

To Emilia and Tomas, for keeping it real and making it fun

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This book is the result of a long (too long, of course) collective process. It is the first product of what we hope will be a long-term project on presidential cabinets. Like other projects of its kind, this one has evolved in ways we did not expect when we first hatched it in a coffee shop in Mainz, Germany in 2013. At its core, however, the central goal remains the same—generating a dataset and book informed by theory and supported by deep knowledge of specific country cases. In the process of compiling this book, we have learned a lot about portfolio allocation, but we have also learned quite a bit about the value of team work and we are very thankful to the many people who contributed to make this book possible.

The first and largest debt of gratitude is to our contributors. At the very heart of this project was the idea that the knowledge of local experts is essential in understanding cabinet politics and portfolio allocation in particular. We were incredibly lucky to secure the contributions of a hugely talented group of people—every one of them an expert in the politics of cabinets their country and all of them first-rate political scientists. We are grateful to them for sharing their deep knowledge, for tolerating our bumbling editorial efforts, for their good cheer in the face of deadlines and fastidious changes to tables and figures and, mostly, for engaging our ideas with thoughtfulness and a spirit of inquiry.

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1 Portfolio allocation in the Americas

Marcelo Camerlo and Cecilia Martínez-Gallardo

The systematic study of portfolio allocation in the Americas—the hiring and firing of cabinet ministers and their consequences for the composition of the government—started at the end of the 1990s, motivated, at least in part, by a desire to examine the extent to which (Latin American) presidentialism could work as (European) parliamentarism.[1] Challenging the traditional notion that presidential regimes were prone to instability, this research built on analytical tools developed in the context of parliamentarism, generated data on portfolio allocation, and developed explanations specific to presidentialism. Progressively, as the propositions on the perils and deficiencies of presidentialism were refuted or moderated, attention turned to *how* presidential democracy actually works. Hence, contemporary work has shifted attention from the similarities and differences between constitutional regimes to the differences among presidential regimes, including the organization of the executive.

In the first section of this chapter we discuss the three main research agendas that have dominated the study of presidential government formation: the study of *coalitional presidentialism*, that is, the formation and duration of governing coalitions; research on *minister turnover*, or the hiring and firing of individual ministers during the lifetime of a government; and work on *minister recruitment*, which looks at the composition of the cabinet from the point of view of the traits of individual ministers such as gender or professional background. For each of these broad research agendas we identify a set of shortcomings and, in the second section of the chapter, we propose an analytical framework that seeks to address them. This framework is premised on the idea that portfolio allocation is a central tool that presidents use to manage their political support, to recruit ministers with the necessary technical skills to govern effectively, and to deal with internal alignments. Our main argument is that presidents' strategies for using this tool vary from cooperative to unilateral, and that the use of either strategy is conditional on the president's political and institutional strength. In the last section of the chapter we describe a set of analytical steps and operational definitions that guide the case studies that follow.

The three research agendas

Most research on portfolio allocation in presidential systems has focused on three main themes: coalitional presidentialism, ministerial recruitment, and minister turnover. In this section we review each of these agendas and identify the issues we think need to be reconsidered in order to provide a comprehensive analytical frame for the study of portfolio allocation in presidential democracies.

Coalitional presidentialism agenda

Some of the first and most developed studies of portfolio allocation in the Americas sought to explain a rather counter-intuitive phenomenon. Although traditional work on presidential democracy had long argued that presidential institutions did not provide political actors with incentives to form coalitions (Linz 1990; Stepan and Skach 1993), empirical work showed that coalitions were common in the region. For instance, Dehesa (1997) looked at nine countries between 1958 and 1994 and identified more coalition than single-party governments; this finding was reproduced in studies that looked at the region over the years (e.g., Amorim Neto 2006; Chasquetti 2008; Martínez-Gallardo 2012).

Based on this new data, a group of scholars turned its attention from the comparative study of constitutional design to the study of patterns of coalition formation and durability. The arguments developed in this research offered compelling evidence to challenge the notion that presidentialism provides weak incentives to build and sustain cooperative dynamics and naturally tends toward inter-branch conflict and democratic instability (Linz 1990; Lijphart 1994; Sartori 1994). Instead, these scholars developed models based on the premise—borrowed in part from the literature on parliamentary coalition formation—that presidents build legislative support for their policy agenda by building coalition governments. Like much of the research on parliamentarism, this work seeks to answer the broad question of which parties get into the government by looking at the characteristics of parties themselves (their size and ideology, for example) and at the institutional and political features that shape the incentives of presidents and parties (Abranches 1988; Altman 2000; Cheibub 2002; Cheibub and Limongi 2002; Lanzaro 2003; Cheibub *et al.* 2004; Amorim Neto 2006; Negretto 2006; Chasquetti 2008; Mejía Acosta 2009; Alemán and Tsebelis 2011; Martínez-Gallardo 2012).

Despite important similarities between these research agendas, however, institutional differences between parliamentary and separation-of-powers systems have shaped how coalition formation is studied in each type of regime. In terms of government formation, perhaps the most important of these differences is that, unlike prime ministers, presidents have fixed terms and do not need to maintain a majority in the legislature to survive in office. This means, first, that in presidential systems the president can decide whether to include or exclude other parties from the government largely at will, regardless of the size of their party in the legislature. It also means that the president is always the *formateur* or first mover in government formation, and that any government that forms will include the president's party. Lastly, a fixed mandate gives presidents ample leeway in replacing ministers in response to changing circumstances during their term in office, without the requirement that these changes preserve a supporting majority in the legislature. In practice, these institutional features mean that although they form at high rates (Cheibub 2002), coalitions in presidential systems do tend to represent the president's party beyond its legislative size (Cheibub and Limongi 2002) and they tend to be on average less stable than in parliamentary systems (Martínez-Gallardo 2012).

This work has greatly advanced our understanding of the circumstances under which coalitions form and survive in presidential systems. However, this approach has three crucial limitations.

Limits of the partisan expectation. The main assumption underlying the dominant view of coalition formation in presidentialism is that government coalitions express specific legislative coalitions.[2] This assumption implies that: (a) partisan ministers respond to, and are supported by, a legislative party, and (b) these supporting parties behave as coherent actors in the legislature. In this view, partisans in the cabinet are assumed to be perfect agents of their party in the legislature and the ties between the executive and legislative parties can be severed by removing partisan ministers from the cabinet. This assumption is largely based on the literature on government formation in parliamentary systems where the existence of a parliamentary vote of confidence ties the survival of the executive to a parliamentary majority. However, as we have described, in presidential democracies the executive and the legislature do not depend on each other to survive in office, party discipline tends to be lower, and, as a consequence, the link between partisan ministers and their legislative parties is much weaker.

A consequence of weaker partisan attachments is that reliable and accurate data on individual party affiliation are scarce or fragmentary for most Latin American countries. Given the lack of reliable data on partisan affiliation, current research has defined partisanship loosely. In some countries the level of partisanship has tended to be overestimated. In Argentina, for instance, while public opinion and several scholars describe most ministers as belonging to a party (usually the president's), more careful analysis shows that cabinet members with effective strong partisan links do not exceed, on average, 47 percent of the cabinet (Camerlo 2013). In other cases partisanship is fluid and hard to determine and numbers on party affiliation do not necessarily reflect political alliances in the executive and the legislature (e.g., Mejia Acosta 2009). Consequently, the data that we have used to date to study the number and legislative weight of partisan ministers may not characterize the legislative and coalition status of Latin American presidential governments reliably.

Governments as units of analysis. In most work on coalitions in presidentialism the relevant unit of analysis is a government.[3] Although there is some variation, the most common way to determine when a government has ended (and a new one has started) is by looking at the party affiliation of cabinet ministers;

basically, any change in the cabinet's partisan composition, whether through elections or party defections/additions, results in a new government. This way of defining a government mirrors research on parliamentary politics, where events such as a vote of no confidence or an election that prompt a change in the party composition of the government are considered to trigger the end of a government. However, defining *presidential* governments in this way leads to a problem, closely related to the issue described above. Given the limited data on the party affiliation of ministers it is hard to establish whether the exit of a particular minister translates in practice into a change in the partisan makeup of the government. Frequently, so-called partisan ministers are just sympathizers without substantial political leverage within their party and their exit does not have any effect on their party's relationship with the government. Conversely, although this approach ignores non-partisan ministers, in some political systems non-party ministers might have substantial political backing. In sum, it is not always clear to what extent cabinet changes actually produce a new government (i.e., one supported by a different legislative coalition).

Non-legislative supports. As we have noted, most literature on coalitional presidentialism sees the effort to secure legislative support for the president's agenda as the main goal of portfolio allocation. However, executives may also rely on support from groups other than political parties to enact their agenda, especially under separation-of-power systems. Hence, presidents that have the support of, for instance, extra-parliamentary organized groups, technocratic elites, or public opinion should be more likely to use unilateral portfolio allocation strategies, that is, strategies that favor the appointment of the chief executive's "own" people. To date, however, extra-parliamentary support for presidents has typically been subsumed in the all-inclusive "non-partisan" category. One of the goals of the case studies in this book is to explore the extent to which presidents use portfolio allocation to secure these kinds of "extra-partisan" political support.

Minister recruitment research

The third research agenda in the study of portfolio allocation focuses on elite recruitment and circulation. This research examines how the selection of ministers with specific personal profiles or belonging to particular social groups affects issues such as policymaking, political inclusion, and representation.

This research agenda has a long tradition in the study of European democracy. The analysis of systematic data gathered during the 1980s showed the relevance of legislative and party backgrounds for aspiring cabinet ministers in these countries (Blondel 1985; Dogan 1989; Blondel and Thiébault 1991) and determined that the recruitment of experts or "specialists" was mostly restricted to ministers with responsibility over economic policy (Blondel 1991; Larsson 1993). More recent research has shown an increase in the proportion of "outsider" (ministers without political experience) in the cabinet. This deviation from the traditional career path has been explained as a function of the need for technical skills to face the growing complexity of governments, the organizational decline of political parties, and the "presidentialization" of politics (Bermeo *et al.* 2004; Poguntke and Webb 2005; Blondel *et al.* 2007; Dowding and Dumont 2009). This new research has produced an important number of in-depth case studies, based on exhaustive and sophisticated datasets (for examples, see http://sedepe.net/).

In Latin America, studies of political recruitment surged in the 1990s when several presidents appointed technocrats without political experience but with outstanding political power to implement structural reforms. Through the years, scholars developed a remarkable number of studies on the profile of these ministers, their performance, and the impact of their recruitment on the region's politics and policy (e.g., Dominguez 1997; Centeno and Silva 1998; Babb 2001; Teichman 2001; Silva 2008; Dávila Avendaño 2010). More recently, a new wave of case studies has explored the profile of individual ministers based on original new data on gender (Escobar-Lemmon and Taylor-Robinson 2016), and the educational, professional, and biographical background of ministers (see América Latina Hoy 2013).

Most work on political recruitment in presidential systems has been based on one-country studies. More recently, Escobar-Lemmon and Taylor-Robinson (2005, 2009) provide some of the first systematic comparative studies of minister recruitment in presidential democracies. The authors examine the conditions that favor the inclusion of women in Latin American cabinets and their placement in prestige positions. Borrowing from the literature on political recruitment in consolidated democracies, they examine factors that shape the supply of female ministers (such as women's level of education, work experience, and presence in the legislature) and the demand for female ministers (such as the president's ideology and legislative support, partisan competition, or the level of education in society). Another contribution of the study is the introduction of a categorization of portfolios based on policy prestige and budget size. Although there is still wide disagreement about the validity and usefulness of particular coding schemes even in parliamentary studies (see Druckman and Roberts 2008), their classification is an important first step.

In sum, research on ministerial recruitment takes portfolio allocation as an instrument for drafting cabinet members with specific profiles (e.g., male or female), career backgrounds (e.g., technical expertise or elected office), or as representatives of different groups in society (e.g., associated to unions, business groups, etc.). The unit of analysis is the minister, and the particular emphasis on individual background and personal traits is encouraging the generation of interesting new data in the region. Despite these advances, we see the following main areas where this work can be improved.

Classifying ministers' profiles. A first shortcoming of current work on recruitment is that much of it relies on rigid dichotomies such as outsider/insider, specialist/generalist, or politician/amateur (e.g., Verzichelli 2010; Yong and Hazell 2011). The binary taxonomies elaborated by the early European literature (Blondel 1985; Blondel and Thiebaut 1991) have for the most part remained unchallenged in later studies (Beckman 2006; for exceptions see Bakema and

Secker 1988). In Latin America, research has tended to focus on a very specific kind of outsider—"technopols" with technical expertise and some political experience—overlooking other possible non-partisan profiles and their relationship with partisans ministers. Furthermore, most of these taxonomies have been developed with regards to economic portfolios. A second shortcoming has been empirical. Detailed biographical information is very hard to get and the data that are available are typically gathered at very disaggregate levels. In this book we use an intermediate strategy that integrates disaggregated data on personal traits into a trichotomous typology of minister profiles that includes partisans, technocrats, and outsiders.

Non-partisan ministers. In the literature on portfolio allocation in both presidentialism and parliamentarism, non-partisan ministers have typically been considered individuals without political affiliation who are recruited to the highest executive posts when there is a crisis or regular politics are suspended and non-party experts are needed. In this book we argue, however, that the recruitment of non-partisan ministers should be analyzed as one of the possible strategic choices that heads of the executive have when facing political or contextual crises (e.g., Martínez-Gallardo and Schleiter 2015). Instead of considering *non-partisan* as a residual category, the chapters in the book make a concerted effort to distinguish between technocrats and other outsiders that might be recruited to the government for strategic and political reasons, very much like their partisan counterparts.

The ministerial turnover agenda

A second research agenda grew out of the observation that focusing on changes in the partisan makeup of governments masked a different type of change that can have significant consequences for policymaking: the hiring and firing of individual ministers. From this perspective, changes to the cabinet are significant even when they don't lead to the dissolution of the government, because they can signal a policy conflict within the cabinet or the need for the head of the executive to make adjustments to his or her political coalition.

Two analytical perspectives dominate this field. A first group of scholars has studied the relationship between presidents and their ministers from the perspective of principal-agent theory (e.g., Strøm 2000; Strøm *et al.* 2003; Dowding and Dumont 2015). As in other relationships, the delegation of authority from presidents to ministers is marked by agency problems, in particular adverse selection problems (which arise when potential ministers hide information about their true qualifications) and moral hazard problems (which arise because, once appointed, ministers are hard to monitor and they might take action contrary to the principal's goals).[4] Empirical work in this research tradition has mostly looked at the factors, structural or political, that increase the risk of agency loss. Huber and Martínez-Gallardo (2008), for example, argue that ministerial stability in parliamentary democracies is a function of the conditions under which party leaders identify and keep "desirable" ministers in office. These conditions include features of the party system and the institutional context that affect the uncertainty party leaders face when selecting ministers, as well as their ability to replace unsuccessful ministers once they are in office. From a similar perspective, in Indridason and Kam (2008) portfolio reallocation is conceived as a tool that party leaders use not only to select good agents but also to remove those who behave opportunistically. In both cases portfolio allocation helps mitigate agency problems between prime ministers and cabinet ministers.

Recent work on presidential democracies also looks at cabinet appointments from the perspective of principal–agent relations. Although this work borrows important insights from the parliamentary literature, this research reflects important differences in the nature of delegation in presidential systems. Martínez-Gallardo and Schleiter (2015), for example, argue that presidents appoint non-partisan ministers to limit agency loss when party-affiliated ministers are not reliable agents. In their work, appointments are crucial tools presidents use in minimizing the potential agency costs of appointing partisan ministers who are beholden to two principals: the president and their own party in the legislature.

A second, related analytical perspective observes ministerial changes as tools that presidents use to face unexpected events or changes in the policy or political environment. From this perspective, cabinet changes can be seen as "safety valves" that allow heads of government to deal with crises and preserve the integrity or credibility of the government—sometimes by scapegoating a minister or by appointing someone with certain skills or expertise. This perspective has a long tradition in the parliamentary literature where government terminations are conceived as related to exogenous shocks that might precipitate bargaining failures (Browne *et al.* 1984) and compel the head of the executive to reshuffle the cabinet (Diermeier and Merlo 2000). Although most of this work looks at *government* terminations, more recent work looks at how changes in the environment shape patterns of *ministerial* turnover. Dewan and Dowding (2005), for example, argue that portfolio allocation allows prime ministers to face declining popularity after a policy failure or a scandal. Their results suggest that portfolio allocation, when used to face serious issues that have received significant media attention, corrects and even enhances government popularity.

From a similar perspective, Berlinsky *et al.* (2010) conceive portfolio allocation as a prime minister's tool to incentive better performance, removing incompetent ministers and keeping competent ones. By distinguishing minister performance (individual calls for resignation) from government performance (cumulative number of individual calls), they show that a minister's tenure depends not only his own performance but also on his or her colleagues' performance, indicating that ministers share collective responsibility "in a real sense." Dewan and Myatt (2007) develop a formal model where scandals are positively related to policy activism. In the model active ministers create the risk of a resignation call, which in turn can discourage action by ministers in order to preserve their jobs. Prime ministers may use portfolio reallocation to protect their ministers from such calls and to incentive them to take risks (for case studies in Europe see Dowding and Dumont 2009).

Martínez-Gallardo (2014) and Camerlo and Pérez-Liñán (2015a) use this approach to study turnover in presidential systems. Martínez-Gallardo (2014) develops a theory for presidential systems, where minister turnover assumes a critical role in the bargaining between the executive and the legislative over policy. Basically, portfolio reallocation is conceived as one of the tools that presidents use to deal with unexpected shocks and to adjust their government through their term. This tool is more likely to be used when presidents have weak formal authority, legislative support, and public support. Camerlo and Pérez-Liñán (2015b) deal directly with the impacts of different types of political shocks. Based on a formal model that also includes the electoral calendar and constitutional term limits as key explanatory factors, social protests and corruption scandals are treated as critical events with different political dynamics. The study shows that, at the beginning of their mandates, presidents choose to protect activist ministers in order to deliver successful policies but choose to remove ministers involved in a scandal to keep the cabinet "clean." In turn, presidents discount long-term electoral payoffs when elections are close or reelection is forbidden.

In sum, recent literature on minister turnover sees portfolio reallocation as a tool to deal with changes in the political and policy environment, and not only as a tool to build legislative support. Changes may be motivated by the behavior of individual ministers and/or external pressures, and are mainly ways in which presidents seek to maintain their political coalition and their public support. In this book we address the following shortcomings in this literature.

Specifying the unit of analysis. The existence of fixed terms means that in presidential systems ministerial turnover occurs simultaneously within governments and within presidential administrations. So far the literature has overlooked this distinction, relying in practice on administrations as the unit of analysis. However, although these frames may coincide (in single-party governments like those found in the U.S. or Mexico, for example), they are different analytical dimensions that need to be distinguished (especially when studying multiparty coalition governments like those typical in Brazil or Chile). We describe these frames with more detail below.

Types of exits. To date, most work on ministerial turnover has looked at whether and when individual ministers leave office. However, not all cabinet changes are the same. Cabinet reshuffles can be forced by external or internal crises or can be voluntary, decided by mutual agreement or based on private personal circumstances. Although some work has distinguished between "good" and "bad" exits, it has tended to mix different things such as the cause of the exit (e.g., the type of conflict) and the destiny of the minister after leaving office (e.g., whether it is a promotion or demotion).

Reappointments. Another aspect of cabinet politics that has received little attention is the reappointment of ministers. Most work to date has considered cabinet changes as defined by the exit of the minister from the cabinet. However, in many cases ministers do not leave but are instead moved to a different portfolio in order to adjust the president's political coalition or reallocate expertise or loyalty *within* the cabinet. More work is needed to understand the role of these cabinet *changes* and how it differs from cabinet *exits*.

Clearly, great strides have been made in the study of portfolio allocation in presidential systems. In particular, the last decades have seen a clear effort to develop theories and empirical tests that take into account the specific institutional features of presidential democracy. Nevertheless, as we see it, there are four additional issues that affect current research on portfolio allocation as a whole that we seek to address in this book.

The three research agendas are disconnected. The study of coalition politics in presidential countries has largely ignored patterns of individual ministerial turnover, except when the exit of a minister modifies the partisan composition of the cabinet (or the basis of the political agreement between parties). The ministerial turnover agenda, in turn, has not explored the link between individual exits and previous patterns of individual appointment—a critical conditioning factor. Moreover, most research on ministerial turnover uses a presidential term as the frame of reference and so it has not considered the connection between government terminations—i.e., individual exits that alter the party composition of the cabinet—and ministerial turnover—i.e., any change to the cabinet. In turn, the literature on cabinet recruitment has not integrated the relationship between recruitment patterns and both government formation (for example, are governments composed of certain types of ministers more stable?) and individual cabinet changes (are certain types of ministers more or less stable than others?).

Portfolio importance. Not all portfolios are equally valuable for the president or for the ministers who occupy them. In practice portfolios differ across countries and over time in their size and budgets, as well as their prestige and saliency, and this variation should affect the value of portfolios for parties and, consequently, their incentives to join the government. The extent to which the budget, size, or jurisdiction of cabinet portfolios is fixed or can be freely manipulated by the president varies considerably across countries, but in general the structure of the cabinet tends to be relatively sticky; a core of portfolios that include economic affairs, foreign affairs, health, education, and labor exists in practically all cabinets and although there are some exceptions, presidents tend to make minimal changes to the structure of the cabinet.[5] Moreover, although in practice presidents do sometimes change the jurisdiction of cabinet portfolios, it is harder to change their budgets and to change the public's perception of their importance and influence. Portfolios also vary in their importance to the president at given times—during economic crises, for example—or over time—as elections approach, for example—and this variation might affect the president's portfolio allocation strategies. Although most work implicitly assumes that differences exist among portfolios, there is no work that we know of that proposes a comprehensive strategy for dealing with them.

Data availability. Research on portfolio allocation in presidential systems has been hampered by a dearth of data. Moreover, the data that have been gathered have relied on individual efforts, leading to different datasets, each with a different set of cases, criteria, and structure. This fragmentation affects the ability of researchers to merge different datasets, to compare results, and to develop new theory. To deal with these problems, this book provides a comprehensive dataset, based on a transparent set of criteria, and gathered and updated by teams of country experts.

Case selection bias. The significant advance of the study of portfolio allocation in presidential regimes has been based almost exclusively on the Latin American cases. This book tries to compensate this deficit by including the United States, the first and oldest presidential democracy.

Presidential cabinet management

At the core of presidential politics is the relationship between presidents and cabinet ministers. Presidents rely on ministers to help them get their agenda through Congress and to implement a wide range of policies. Consequently, in selecting their cabinet presidents need to balance the need for partisan allies that bring with them the backing of their legislative party and the need for loyal or capable agents that will help the president execute his or her policy goals (Martínez-Gallardo and Schleiter 2015). Most existing work recognizes the importance of portfolio allocation in helping presidents achieve their legislative goals by recruiting partisan agents to the cabinet (Amorim Neto 2006; Martínez-Gallardo 2014), but with few exceptions (Samuels and Shugart 2010; Martínez-Gallardo and Schleiter 2015) work to date has ignored the importance of cabinet politics for policy implementation. This omission is especially surprising given the substantial policymaking authority that presidents delegate to ministers in presidential systems and the considerable resources they invest in assuring that ministers act according to the president's goals.

In the parliamentary literature the delegation of policymaking authority from the prime minister to his or her ministers has been widely studied (e.g., Huber and Martínez-Gallardo 2008; Indridason and Kam 2008; Strøm *et al.* 2008; Martin and Vanberg 2011; Dowding and Dumont 2015). From the perspective of principal–agent theory, the study of delegation relationships between heads of government (as principals) and ministers (as agents) is based on three main assumptions (Berlinsky *et al.* 2012). First, the incentives of the principal and his or her agents are never perfectly aligned. Differences over policy or conflicting incentives between the head of government and his or her ministers are unavoidable and give rise to the risk of agency loss—that is, actions by the agent that may go against the interests of the principal. Second, ministers are career politicians motivated by the desire to obtain public office. Once they have reached high-level positions, they aspire to remain there. Third, the delegation relationship is characterized by informational asymmetries; principals cannot perfectly observe the capabilities or incentives of potential agents and cannot monitor their every action once they are appointed to their post. These asymmetries give rise to the risk of agency loss, which the head of the executive will seek to minimize. Among the strategies they have to keep agency loss at a minimum, "the crudest, but also most effective" tool is the power to name and dismiss ministers (Berlinsky *et al.* 2012: 19; see also Samuels and Shugart 2010). The ability to name the members of the cabinet allows prime ministers to choose the "right" agents for the job and the power to fire them helps them keep the ambitions of their agents in check and agency loss to a minimum.

The relationship between presidents and cabinet ministers in separation of power systems can be described in similar terms. Like their counterparts in parliamentary systems, presidents delegate substantial authority to ministers in order to achieve their legislative and policy goals, and invest considerable resources in minimizing the risks involved in delegation. The nature of these delegation relationships, however, will be shaped by the institutional environment and vary considerably *between* constitutional systems, but also *within* them (Dowding and Dumont 2015). In parliamentary systems the survival relationship between the executive and parliament makes the cabinet collectively responsible to parliament; in presidential systems, by contrast, cabinet ministers are directly responsible to the president, who has almost unimpeded authority to name and dismiss cabinet members.[6] In both types of constitutional regimes, however, ministers often have to deal with the conflicting demands of two principals, especially in coalition governments where the interests of the head of the executive might clash with the interests of the leader of the minister's own party (Dowding and Dumont 2015; Martínez-Gallardo and Schleiter 2015). In fact, although the potential for incentive divergence between the head of the executive and his or her ministers—and thus, the risk for agency loss—has been widely studied in the context of parliamentary democracy, it can also be substantial in separation of power systems where separate elections "break parties into two separate branches" with potentially incompatible goals (Samuels and Shugart 2010: 38). As in parlamentarism, we argue that portfolio allocation is a—if not *the*—main tool presidents use in managing the risk of agency loss.

Portfolio design and allocation in presidential systems

Portfolio allocation refers to the hiring, firing, and replacement of ministers and may take place at three levels—personnel, partisan, and presidential administration (see Table 1.1). The first level at which we observe portfolio allocation is the *personnel* level or the choice of individual cabinet ministers. At this level, personnel decisions express the agreement/disagreement between the principal (president) and the individual agent (minister). At moment t_0 a minister is appointed to a specific portfolio in a given administration. T_1 marks the minister's exit, indicating that the agreement between the principal and the agent has been terminated or modified. Although the minister's exit might result in his or her exit from the cabinet, this is not necessarily the case as ministers can also be appointed to other government posts or promoted to other positions within the cabinet. A new appointment necessarily follows at t_2, unless the portfolio itself is eliminated altogether at the time of the minister's exit.

Beyond the level of individual cabinet membership, we can also observe portfolio allocation at the *partisan* level, that is, the inclusion (or exclusion) of parties other than the president's party in the cabinet. In presidential systems, governments are typically defined by a given partisan configuration (e.g., Amorim Neto 2006; Martínez-Gallardo 2012) and end when a party defects from the coalition or a new party enters the government. Thus, at the partisan level, portfolio allocation expresses a collective agreement between the president and political parties, and can proceed through the collective or individual entry or exit of cabinet ministers. At t_0, a party joins the government through the appointment of one or more party members to the cabinet. These appointments are the result of a bargaining process between the president and political parties. T_1 indicates an interruption or modification of the collective agreement that results in a government termination (i.e., a change in the partisan composition of the cabinet). Finally, at t_2 a new government is formed. In presidential systems the president need not leave his or her position if there is a change of government.

The third level at which we observe portfolio allocation is the *administration*. An administration starts when a president takes office and ends when that president steps down. So, at this broad level, t_0 indicates the beginning of the presidential administration, t_1 is the constitutional end of the mandate or the premature exit of a president, and t_2 applies only for presidents who are nominated to complete administrations that end prematurely. At t_0 the president is sworn into office with a cabinet that he or she has selected. This cabinet is bound to change throughout the president's term but ministers in office when the president ends his or her mandate most commonly will also step down. On some rare occasions (as when parties of the same stripe follow each other), ministers will stay beyond the end of the administration in which they originally served. When a president steps down prematurely, the interim president might keep some ministers, select them all anew, or change the structure of the cabinet to meet the new circumstances.

As administrations involve at least one government, and governments require ministers, overlaps are frequent and even inevitable. A single-party government with no minister removals represents the improbable case of complete overlap among the three levels: personnel, partisan, and administration. However, (a) portfolio allocation occurs also within each of these levels, (b) overlap may not be

Table 1.1 Modalities of PAD in presidential systems

	t_0 *Selection*	t_1 *De-selection*	t_2 *Substitution*
Personnel (within government)	Minister appointment	Minister removal or change	Minister substitution
Partisan (within administration)	Party joins cabinet	Party defection	New government
Administration	Administration begins	Administration ends	Completing administration

perfect (for instance, a government can end before the administration ends), and (c) even under situations of complete overlap, each level potentially entails different dynamics. Figure 1.1 illustrates the possible situations of overlap and instability within a single administration. *Situation A* shows the case of a stable minister at the administration level that survives instability at the government level, i.e., that remains in her or his post for the entire administration, despite government changes. *Situation B* shows three stable ministers at the government level, that is, ministers that are in their post for the length of a government but leave the cabinet when the government changes. *Situation C* shows cases of minister instability within governments and a premature end of the president's term (represented by the grey vertical line). *Situation D* shows the creation and elimination of a portfolio at the government level, i.e., portfolio instability. One such example is the creation of the Ministry of the Coast in Ecuador, which existed between 2007 and 2010, during president Rafael Correa's administration.

In this book we see portfolio allocation as a *strategic tool that presidents use to achieve their goals through the management of different political resources.* Like others (e.g., Strøm 1990; Altman 2000; Samuels 2002), we assume that presidents and their parties make tradeoffs between office, policy, or vote-seeking goals, depending on the circumstances. To achieve these goals, presidents have several tools available that include their institutional authority, budgetary resources, and portfolio allocation (Raile *et al.* 2011; Martínez-Gallardo 2012). The power to appoint cabinet ministers, in particular, allows presidents to build a government that will balance the resources they need to achieve their goals: the political support that they need to build a majority legislative coalition, and the loyalty and expertise they need to implement their policy agenda. Although these attributes are not mutually exclusive, they are not often found in a single individual so presidents will select a cabinet that reflects the political support, technical expertise, and loyalty they expect to need in office. On one extreme, we can think of presidents choosing a purely legislative strategy and forming governments with

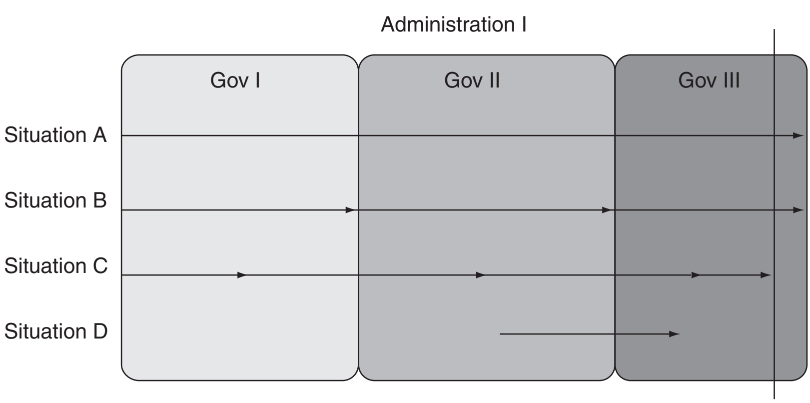

Figure 1.1 Situations of instability within one administration.

strictly partisan ministers that help them sustain their legislative coalition. On the opposite extreme, we can think of presidents foregoing interaction with Congress and ruling instead through executive decree (Amorim Neto 2006). In this instance presidents might be inclined to name loyal agents with preferences close to theirs and/or technical experts who can effectively implement policy. More typically, presidents choose mixed strategies and form a cabinet that combines ministers with different attributes and reflects a tradeoff between the need for political support, expertise, and loyalty.

Specifically, our framework builds on the following three propositions.

a Portfolio allocation implies the managing of multiple political resources

Whatever the ultimate goals of the president are—electoral success, policy, or legacy—in order to achieve them they must name a government that balances three main resources: the political support they need to negotiate and achieve legislative majorities, the technical skills that they need to design and implement policies in a complex environment, and the internal alignment or loyalty that protects them from political challenges.

First, to secure political support presidents must appoint members of political groups outside the executive branch. The appointment of partisan ministers to craft coalition cabinets with majority support in the legislature is the most common and best studied instance of this use of portfolio allocation, both in parliamentary (see Laver and Shepsle 1990; Strøm *et al.* 2003) and in presidential systems, but this is not the only possible strategy. Presidents may also secure political support through the appointment of members from other organized groups such as business associations, trade unions, the military, or religious groups.

Second, technical skill is maximized through the appointment of agents with expertise in the area of their respective portfolios. The presence of *specialists* within the cabinet has been a classic concern in the parliamentary literature (Blondel 1985), with a particular emphasis on economic portfolios (see Larsson 1993; Beckman 2006), and has been related to the increasing presence of non-partisan ministers (Bermeo *et al.* 2004). In the presidential context, as we have mentioned, the role of technocrats gained particular attention in the 1990s in the context of market-oriented structural reforms (see Dominguez 1997; Centeno and Silva 1998). We claim that the concern for individual competence affects all cabinet positions, no matter the area of the portfolio or the ideological context (Escobar-Lemmon and Taylor-Robinson 2009, 2016).

Third, internal alignment is maximized through the appointment of agents whose individual preferences are close to the president's. This aspect of portfolio allocation has been considered by studies underlining adverse selection and moral hazard problems (Huber and Martínez-Gallardo 2008; Indridason and Kam 2008; Martínez-Gallardo and Schleiter 2015). Although preferences have most often been thought of in terms of ideological proximity, there are other measures of proximity—such as the personal connection between the principal and the agent—that are relevant. These ministers can be old classmates, close advisors, or even blood relatives that help presidents balance the appointment of partisan ministers with the appointment of loyalists that do not represent a political challenge and that can act as brokers. A good example of such an individual is Adán Chávez, the brother of former president Hugo Chavez, who was the president's close political ally and occupied the Ministry of Education (among other top level positions) during president Chávez's administration.[7]

Political support, technical skills, and internal alignment need not be mutually exclusive and may even coexist within a single agent. More typically, however, different types of individuals—with different career trajectories, different political networks—will provide the president with different resources and presidents will name a cabinet that balances these resources according to the specific circumstances. Partisan ministers who command strong political affiliations, for example, are uniquely positioned to deliver political support; technocrats who command expertise will bring to the cabinet technical competence; ministers without strong party ties but with a strong personal connection to the president will be selected to be loyal agents of the chief executive (Camerlo and Pérez-Liñán 2015a). As we have argued above, thinking of the tradeoffs that presidents face in these terms underscores the importance of going beyond dichotomous classifications that describe ministers as partisan or non-partisan, and recognizing that to the extent that technical skills and loyalty may present particular tradeoffs, the appointment of non-partisan ministers by the head of the government may in fact serve quite distinct purposes.

b Portfolio allocation can be implemented through cooperative and unilateral strategies

The dominant view of government formation in presidential systems sees cabinet appointments as reflecting the president's legislative strategy (Amorim Neto 2006; Martínez-Gallardo 2014). Amorim Neto (2006) argued that presidents can implement their policy agendas through a "statutory" strategy, which follows the standard legislative procedure, or through a strategy based on executive prerogative, which relies on the executive's unilateral authority and circumvents the legislature. Each model has important implications for the composition of the cabinet, particularly in multi-party systems. While the first strategy requires the formation of coalitions with a proportional selection of partisan ministers, the second strategy allows for the formation of single-party minority cabinets populated by cronies, technical experts, or members of organized groups.

We extend this approach by broadening the definition of a *cooperative strategy* to include any appointment strategy oriented towards the inclusion of "other" individuals, parties, or social actors in the cabinet; *unilateral strategies*, by contrast, include any appointment strategy oriented towards the inclusion of the chief executive's "own" people.

The concrete content of these strategies (the meaning of "others" and "own") will depend on the specific scenario and historical circumstances for each particular case. This approach allows us to observe unilateral and cooperative decision-making styles beyond more conventional assumptions that relate specific strategies to specific types of governments. For instance, in our view presidents of single-party governments who appoint rival partisans are implementing a cooperative strategy, while the recruitment of outsiders personally loyal to a president to a coalition cabinet is an instance of a unilateral appointment strategy. Upon being sworn into office, Argentinean president Menem for example, formed a single party cabinet that included a distant partisan as well as members from the labor and the business sectors (Camerlo 2013). Brazilian presidents Lula and Cardoso, in turn, used a unilateral strategy based on the recruitment of an important number of loyal outsiders, as a way of controlling internal spaces within multi-coalition (Inácio 2013).

c The choice between unilateral and cooperative portfolio allocation strategies depends on the power of the president and the level of conflict in the environment

Previous literature on coalitions would suggest that politically strong presidents should be more likely to pursue unilateral strategies of portfolio allocation and weak presidents more prone to engage in cooperative strategies. There are multiple sources of presidential strength but two have been particularly prominent in the literature on presidentialism. The first is the legislative support of the government, which is determined by the size of the president's party in congress, the ideological distance between parties, and party discipline. The second is the institutional authority of the executive, including different levels of reactive and proactive powers. Both types of power shape the ability of the president to make policy by providing him or her with backing in the legislature or with the ability to move their agenda forward unilaterally. However, although a president's legislative support can change from one election to the next—if a coalition partner defects, for example—institutional authority mostly reflects constitutional rules that rarely change during a given government or administration.

There are other sources of presidential power, however, that we consider important, especially if we want to capture changes in the presidents' ability to implement their agenda during their time in office. Two such sources of presidential authority are particularly important: the direct support of citizens expressed through approval rates (e.g., Martínez-Gallardo 2014), and the discretionary use of fiscal resources by presidents (e.g., Pereira and Muller 2004; Raile *et al.* 2011). The president's approval rate is an indicator to the president's potential allies of the benefit (or costs) of supporting the president's political agenda. Moreover, high approval rates reinforce the credibility of the cabinet's expertise and create incentives for alignment within the cabinet. In turn, the president's influence over the budgetary process determines his or her ability to "distribute political and financial resources" and "render legislative behavior extremely dependent on loyalty to a party and presidential preferences" (Pereira and Mueller 2004: 785).

In sum, we should expect presidential strength to condition the ways in which rulers employ portfolio allocation to balance the amount of political support, technical expertise, and loyalty in the cabinet. In good times (i.e., under politically strong presidents and stable contexts), presidents should be able to avoid delegating authority to other parties or groups and should favor unilateral strategies of portfolio allocation. Under these circumstances, presidents secure political support by appointing partisans or group members with similar preferences, and by appointing experts, who are critical to sustaining the successful policies that reinforce presidential strength.

By contrast, in bad times (i.e., under politically weak presidents and/or turbulent contexts), we should expect presidents to engage in cooperative strategies by looking for backing outside their inner circle, through the involvement of other parties, factions, or groups. When possible, presidents will appoint and protect experts or loyalists in order to counterbalance cooperative concessions and keep areas of control within the cabinet.

Plan for the book

In line with the view of portfolio allocation we have presented, Chapters 2 through 9 apply the framework to eight presidential democracies in the Americas: the United States, Costa Rica, Uruguay, Chile, Brazil, Colombia, Peru, and Ecuador. These country cases have been selected to reflect differences in the design and functioning of cabinets, patterns of government formation, and the institutional environment. They include countries like Chile or Brazil, where coalition cabinets have been the predominant form of government, as well as others, like the United States and Costa Rica, where every government has been based on a single party. The countries vary in their patterns of partisanship—from an average of 67 percent of non-party ministers in Ecuador to only 2 percent in Uruguay (Martínez-Gallardo and Schleiter 2015)—as well as the institutional authority of their presidents—the strong powers of Brazilian presidents, for example, contrast starkly with the weak formal powers of presidents in the U.S. (Shugart and Carey 1992).

The case studies proceed in four steps. The first step is an introduction to the basic structure of cabinets in each country, including their organization and functioning. The next three steps of the analysis correspond to the three levels at which we observe portfolio allocation—a presidential administration, a government, and an individual portfolio.

First, authors examine how the organization and functioning of cabinets affect the use of portfolio strategies by presidents. The analysis begins by characterizing the place and role of the cabinet within the structure and the decision-making process of the executive branch. This section includes a discussion of the authority of presidents and other political actors over the organization and operation of the cabinet.

Second, authors explore portfolio allocation at the level of an *administration*, focusing on the president's "inaugural" and "closing" cabinets—that is, the cabinet that takes office when the president is sworn in and the one in place when the president steps down and a new administration begins. We consider a new administration to begin every time a new president is sworn into office.[8] Although presidential terms are fixed, elected presidents may be forced to step down prematurely and non-elected presidents may be selected to rule until the next election. At this step of the analysis, chapters characterize administrations according to whether they reached the end of the constitutional term or not, and with regards to the pattern of alternation (whether the president was reelected, the party was reelected, or there was alternation in power). Case studies then describe the dynamics of inaugural cabinets and examine the use by presidents of cabinet design as a political tool.

The third step of the analysis tackles the question of how presidents use portfolio allocation and design (PAD) for managing their *governments*. Here the analysis aims to explore the dynamics and nature of government formation and change within administrations. Elaborating on Chasquetti (2008) we consider that there is a government when there is a defined programmatic accord between different political parties. If we do not observe an explicit accord, we assume that there was an implicit agreement and that the details of that agreement are given by the president's policy goals and his or her legislative strategy (see the notion of expected equilibrium bargaining in Martínez-Gallardo 2014). We use the same assumption for non-coalitional governments.

Based on the idea of a tradeoff between the goals of political support, technical skills, and internal alignment, this section looks at government formation from the perspective of individual ministers' profiles. We code ministerial profiles in the following way. The political affiliation of ministers is captured through a set of dummy variables that indicate whether ministers were well-known members of any political party or organized group (*Partisan*). But we also consider the level of partisanship of ministers, coding it as follows: 0 for individuals with no political party affiliation; 0.5 for individuals with a declared or known preference for a specific party but without active membership in that party, or just recently affiliated to the party; and 1 for strictly partisan individuals. In terms of *Expertise*, we code ministers' level of technical skill for a specific portfolio. This variable is coded as follows: 0 for ministers with no skills specific to his or her portfolio area; 0.5 for ministers with some specific experience or academic formation; and 1 for ministers with substantial experience in the portfolio's area. Based on this information, the variable *Profile* distinguishes ministers as "partisans," "experts," "partisan-experts," and "others."

To capture political alignment, the variable *Own* registers whether the minister was in the president's area of influence, understood as any area of life (including party, interest groups, family connections) in which the president exercises considerable influence. Finally, the variable *Strategy* integrates all previous data to distinguish appointments that contribute to a president's unilateral strategy, from those that contribute to a cooperative strategy.

At this stage of the analysis, case studies elaborate on: (a) government formation; (b) the causes and types of government shuffling; and (c) the modalities of government reshuffling. Our profile variables allow us to test more accurately the impact of partisan affiliation and to explore the appointment of expert and outsider ministers.

The fourth, and last, step of the analysis concerns the level of individual *ministers* and focuses on PAD within governments. In contrast to other levels, instability at the level of the individual minister is not necessarily a negative indicator as it could involve, for example, the promotion of a minister to another position within or outside the government. Furthermore, minister turnover might not coincide with the use of PAD at the aggregate level, as, for example, in situations of individual demotions despite stability in the government and the administration. In order to capture these alternatives, this section explores whether the exit of individual ministers was based on a conflict with the president or other members of the government, and the type of conflict involved (*within the cabinet, with the congress, or external—social protests, media scandals*) and whether the exit of the minister was a promotion, a lateral move, or a demotion. Based on this information we distinguish between instability that might affect the cabinet positively or negatively.

Chapters conclude by discussing presidents' choice of portfolio allocation strategy in each country. In particular, authors assess the political and institutional strength of presidents and consider whether it conditions presidents' use of a more or less cooperative portfolio allocation strategy. We close the book in Chapter 10 with a broad look at patterns of portfolio allocation across the Americas and a discussion of the main contributions of this book.

Notes

1 Our use of the term "portfolio allocation" differs from most work on parliamentary government formation where "portfolio allocation" is used to refer to the "allocation of cabinet portfolios between political parties" (Laver and Shepsle 1996: 49). As we discuss further below, when we talk of portfolio allocation in this book we include the appointment of the president's initial cabinet as well as changes to the cabinet that happen at any point during the president's term, regardless of whether they alter the partisan composition of the government or not.

2 For an exception, see Freudenreich (2016). He argues that coalitions in presidential systems reflect promises made in the period before a presidential election to parties in the president's electoral coalition.

3 Although most of the work on government formation uses the word *cabinet* to describe what we call a *government*, we will use the formal definition of cabinet as a body of advisers of a head of state that serve as heads of government departments. In the Americas, heads of departments are called ministers in some countries (*Ministros*) and secretaries in others (*Secretarios*). To avoid confusion, we will refer to them throughout the book as ministers.

4 Dowding and Dumont (2015) distinguish between moral hazard, adverse selection, and agency rent. For them, agency rent emerges because "the agent can observe more closely what he is doing than can his principal" and he or she might not put in the effort necessary to perform the job (shirk) or might take actions contrary to the principal's interests (shift) (Dowding and Dumont 2015: 5). They reserve the term *adverse selection* for cases where potential ministers "with some characteristics that the principal does not want are most likely to be the ones to come forward" for the job (2015: 7). Going back to its original use (Arrow 1963), they reserve the term *moral hazard* for

cases where the agent takes risks that the principal does not approve of, but will defend.

5 With few exceptions (Ecuador, for example), the number of portfolios and their jurisdiction is defined by law, which means that a change requires the (variably reliable) approval of the legislature.

6 Limits to the president's appointment powers exist in some countries. Presidents sometimes need legislative approval for some cabinet positions (the Secretary of State in the U.S., for example) and in Uruguay the cabinet requires legislative approval. In most cases, however, presidents can dismiss ministers at will.

7 President Chavez's inner circle also included another relative: his son-in law, Jorge Arreaza, who occupied the Science portfolio between 2011 and 2013.

8 We exclude acting presidents that stay in office less than one week.

2 I did it my way

Portfolio allocation in the United States (1969–2013)

Maria C. Escobar-Lemmon, MaryAnne Borrelli and Michelle M. Taylor-Robinson

The U.S. Constitution of 1789 simultaneously empowered and constrained the president: Separation of powers established the president as chief of government and chief of state; checks-and-balances limited the president legislatively and judicially. It is in this institutional context that we assess the cabinet-building strategies of modern U.S. presidents. The power to nominate cabinet members is constitutionally reserved to the president—empowerment. Yet the Constitution requires each person nominated for a cabinet post to be confirmed by the Senate—constraint. Under these circumstances, one might expect that presidents would pursue a conciliatory or collaborative strategy, nominating individuals attractive to their partisan opponents and correspondingly assured of confirmation. In addition, presidents might be expected to have an incentive to use cabinet nominations to build bridges to the opposing party and construct a legislative majority, since the president's party often lacks a majority in at least one chamber of Congress. Yet while presidents have vetted their cabinet nominees carefully, and while those nominees have diligently courted Senate support, U.S. presidents have primarily employed a unilateral strategy in selecting their cabinet members. In this chapter, we consider the evidence in support of this somewhat counterintuitive finding and weigh its consequences for our understanding of presidential power.

As demonstrated by the data, U.S. presidents do not select cabinet secretaries to build a coalition with the opposing party, even when that party controls one or both congressional chambers.[1] Presidents do consistently consider the potential for a confirmation battle in selecting their nominees, and senators do regularly challenge and delay confirmations. But, it is expected that all cabinet secretaries will be in the president's party, will endorse the president's political ideology, and will share the president's policy priorities. And, delays and critiques notwithstanding, the Senate confirms the vast majority of the president's cabinet nominees. In other words, the Senate implicitly endorses presidents' unilateralism.

Examining and contextualizing these practices, we conclude that the U.S. two-party system, which has become more polarized during the modern presidency, has given presidents strong incentives to pursue a unilateral strategy. The constitutional, statutory, and procedural allocation of powers ensures that the presidents' legislative actions can be blocked by their partisan opponents—even if the opposing party does not control either legislative chamber. Therefore, while some presidential *candidates* have applauded the idea of the cabinet as "a team of rivals," presidents *in office* have nominated the mix of experts, loyalists, and partisans—almost exclusively from the president's party—who will advance their political ideologies, policy goals, and reelection strategies. Once confirmed and appointed to office, cabinet secretaries are expected to act on the decisions of their president, and to stand firm against competing legislative and departmental demands. The power of cabinet secretaries is largely in administering their department and advocating for the president's policies with Congress.

Institutional background

The U.S. system of checks-and-balances leaves presidents constitutionally weak; partisan politics have further limited modern presidents, especially when confronting legislative majorities of the opposing party. But, despite what would appear to be strong incentives to build bridges with Congress through cabinet appointments, U.S. presidents have largely pursued a unilateral strategy in their cabinet nominations.

The political system

The U.S. political system is characterized as one of separate institutions sharing powers; checks-and-balances and the separation of powers define relations among the three branches. This is especially evident in regard to cabinet nominations. The president has the constitutional power to nominate cabinet secretaries and the Senate, the upper chamber in the legislative branch, has the power to confirm or to reject the nominees. The U.S. is a two-party system and partisanship also plays a powerful role: When the government is unified and the president's party holds a majority of seats in the Senate, nominations are less likely to be delayed or rejected. Yet, despite the frequency with which presidents have confronted opposing partisan majorities in the Senate, the chief executive has very rarely used cabinet nominations to build coalitions or even to reach out to the other party.

The executive

There are few debates more vibrant in U.S. politics than those about the extent of presidential power. Some, such as Dickinson and Gubb (2016), argue that presidents are neither empowered nor constrained, but instead create their own strategic advantages or disadvantages. Those who see the office as empowered note the potential for a chief executive to circumvent the legislative branch by acting unilaterally. Presidents have selectively implemented statutory laws, invoked executive privilege to resist congressional and judicial subpoenas, issued executive orders to make law for the duration of their term, and used

Table 2.1 Institutional background in the United States (1969–2017)

President	*Starts*	*Ends*	*President's party*	*Other parties in government*	*Cabinet size*	*Total ministers*	*President's legislative support*	*Type of government*	*President selection*	*President mandate*
R. M. Nixon I	January 20, 69	January 20, 73	Republican	None	12	20	Minority (4 yrs)	Minority single-party	Elected	Completed
R. M. Nixon II	January 20, 73	August 9, 74	Republican	None	11	21	Minority (4 yrs)	Minority single-party	Elected	Interrupted
G. R. Ford	August 9, 74	January 20, 77	Republican	None	11	23	Minority (4 yrs)	Minority single-party	Succession	Completed
J. Carter	January 20, 77	January 20, 81	Democratic	Republican	13	21	Majority (4 yrs)	Majority single-party	Elected	Completed
R. Reagan I	January 20, 81	January 20, 85	Republican	None	13	18	Minority (4 yrs)	Minority single-party	Elected	Completed
R. Reagan II	January 20, 85	January 20, 89	Republican	Democratic	13	28	Minority (4 yrs)	Minority single-party	Elected	Completed
G. Bush	January 20, 89	January 20, 93	Republican	Democratic	14	22	Minority (4 yrs)	Minority single-party	Elected	Completed
W. J. Clinton I	January 20, 93	January 20, 97	Democratic	None	14	18	Majority (2 yrs), Minority (2 yrs)	Majority (then minority) single-party	Elected	Completed
W. J. Clinton II	January 20, 97	January 20, 01	Democratic	Republican	14	22	Minority (4 yrs)	Minority single-party	Elected	Completed
G. W. Bush I	January 20, 01	January 20, 05	Republican	Democratic	15	17	Minority/Majority (2 yrs), Majority (2 yrs)	Minority (then majority) single-party	Elected	Completed
G. W. Bush II	January 20, 05	January 20, 09	Republican	Democratic	15	30	Majority (2 yrs), Minority (2 yrs)	Majority (then minority) single-party	Elected	Completed
B. H. Obama I	January 20, 09	January 20, 13	Democratic	Republican	15	17	Majority (2 yrs), Minority (2 yrs)	Majority (then minority) single-party	Elected	Completed
B. H. Obama II	January 20, 13	January 20, 17	Democratic	Republican	15	23	Minority (4 yrs)	Minority single-party	Elected	Completed
D. J. Trump	January 20, 17	January 20, 21	Republican	None	15	15	Majority (2 yrs)	Majority single-party	Elected	Ongoing

Historical notes:

1 When Nixon resigned, to avoid impeachment proceedings, Ford succeeded to the presidential office.

2 Though Clinton was impeached by the House of Representatives during his second term, he was acquitted by the Senate and served his full second term.

3 The 107th Congress (2001–2003) opened on January 3, with the 100 Senators split 50/50 between the Democratic and Republican Parties. Because the vice president was the president of the Senate, and therefore broke tie votes, a Democratic majority was declared while the Democrats held the presidency. When Republican President George W. Bush and Vice President Richard Cheney were sworn into office on January 20th, the chamber changed to a Republican majority. Then, on June 6th, Republican Senator Jim Jeffords declared himself an Independent and stated that he would caucus with the Democrats. The Senate again had a Democratic majority, which was sustained for the remaining eighteen months of the Congress. Legislative-executive relations were dramatically affected, as the Republican president now confronted divided government.

Terminology notes:

"Other parties in government" indicates whether any cabinet members do not belong to the president's party; if so, the party is identified. In the Obama and the Trump administrations, however, there were cabinet members that chose not to claim membership in any party.

"President's legislative support" indicates whether there were changes in the partisan balance in the legislative branch during the four-year presidential term, as legislative elections occur every two years.

"Type of government" refers to whether the president's party has a majority of seats in both houses of Congress or not, and whether the president has formed a formal coalition with an additional party to create majority support. Because in U.S. politics the president has never formed a formal coalition government with another party we always list type of government as single party, but it varies between "majority" and "minority" single party.

"President mandate" indicates whether each president completed the four-year presidential term.

executive agreements to forge international commitments (Howell 2003; Hathaway 2009; Barilleaux and Kelley 2010; Rozell 2010; Evans 2011; Morgenstern *et al.* 2013; Belco and Rottinghaus 2014; Pfiffner 2015; see also Schlesinger 1973; Moe and Howell 1999).[2]

Although the U.S. president is still popularly described as "the most powerful person on the Earth," many scholars find the office profoundly limited (see, for example, Neustadt 1960, 1980; Edwards 2003). The president's only constitutionally granted legislative power is the veto[3] and, in contrast to many Latin American presidents, U.S. presidents have no power to initiate legislation, no decree authority, and no means of accelerating the legislative process (Shugart and Mainwaring 1998). Congress is constitutionally empowered to "lay and collect Taxes" (Art. I, Sec. 8) and to make all appropriations (Art. I, Sec. 9), and the Congress has substantially revised presidential budget proposals, especially in peacetime (Howell *et al.* 2013, 107–141). Moreover, Congress, and also the states, can challenge a president's decisions and actions in court, where a decision favoring the president is far from certain. While some state constitutions contain a direct democracy provision, the U.S. Constitution gives no such plebiscitary power to the president. Further, public opinion often acts as a check on the president, with issue networks mobilizing the grassroots. In short, U.S. presidents are weak in terms of budget and plebiscitary powers, especially when compared to their Latin American counterparts (Neustadt 1960, 1980; Edwards 2003; Fisher 2004; Fiss and Sutton 2015; Pfiffner 2015).

In recent decades, polarization within the two-party system has strained legislative-executive relations and raised new questions about presidential power. As the ideological differences between Democratic and Republican partisans have grown, compromise has become more difficult (Binder 2003). Decentralized and weak party organizations, combined with a volatile electorate, have provided officeholders with less support in campaigning or governing (Kernell 1997; Pious 2000). Presidents, in response, have exercised unilateral power to advance their policy agenda and win popular support (Rottinghaus and Warber 2015, but see Ostrander and Sievert 2013). Legislators, in turn, have challenged the chief executive (Sinclair 2006). Rather than facilitating consensus, separation of powers and checks-and-balances have evidently empowered polarized partisans on the right and the left (Bond *et al.* 2015; Theriault 2015). In this context of polarization, the president is called upon to be simultaneously a partisan loyalist, a force for bipartisanship, and the chief of state, but attempts at bipartisanship rarely occur through cabinet appointments (see Table 2.1).

The cabinet

Unlike Latin American constitutions, there is no specific mention of the cabinet in the U.S. Constitution and only brief reference to an executive bureaucracy (Art. II, Sec. 2). The cabinet has no constitutional authority to meet or to make decisions. In the words of the *U.S. Government Manual*, "The Cabinet, a creation of custom and tradition … functions at the pleasure of the President." It consists of the vice president and the department secretaries.[4] The number of cabinet-level departments, and thus cabinet secretaries, has varied over time, although the president cannot reorganize or create cabinet departments without congressional approval (see Figure 2.1).

Vice presidents are chosen by presidential candidates to "balance the ticket" in regard to intra-party loyalties, region, religion, or political experience in Washington (Borrelli and Goren 2016). Once elected, the vice president's constitutional responsibilities are to succeed the president (if the chief executive is incapacitated, dies, or is removed from office) and to serve as president of the Senate (breaking tie votes). The vice president's statutory responsibilities include membership in the cabinet and in the National Security Council (NSC).[5] Informally, since the Carter presidency (Democratic, 1977–1981), presidents have often relied on their vice presidents to strengthen their Senate relationships and to lead major initiatives, particularly in foreign policy (Warshaw 2009; Baumgartner with Crumblin 2015; Goldstein 2016).

Department, or cabinet, secretaries are nominated by the president and require Senate confirmation before they can be appointed to their posts. Presidents typically anticipate confirmation battles, nominating individuals who will win at least some support from their partisan opponents. During confirmation hearings, Senators press the nominees to support the Senators' policy priorities. As the secretaries' tenure lengthens, they regularly develop relationships with departmental careerists and constituents. A president needs cabinet members who are loyal and who have proven abilities to collaborate with the president's party, and with issue networks, career civil servants in their departments, and legislators (Pfiffner 1990; Mackenzie 1996; Krutz *et al.* 1998; Neustadt and Jones 2000: 63–69; Edwards 2001; Hess 2001; Loomis 2001; Borrelli 2002; Bond *et al.* 2009; Dull *et al.* 2012).

Each department includes members of the subcabinet—deputy secretaries, undersecretaries, and assistant secretaries, among others—who are nominated by the president and confirmed by the Senate. The subcabinet (which is not analyzed here) provides the policy, political, and administrative expertise requisite to implementing the president's policy priorities. Like cabinet members, subcabinet members are typically in the president's party. In more recent administrations, subcabinet members have been selected by the White House rather than by the secretary for whom they work, which reinforces their loyalty to the president (see Weko 1995).

Though all departments are formally equal, there is tremendous variation in their subunits, employees, and budgets; and in the secretaries' access to the president. When a department's issue jurisdiction is connected to a president's campaign promises, policy agenda, or electoral constituencies, that department's secretary has been more likely to encounter higher scrutiny from, and have greater access to, the Oval Office. The secretaries of state and defense, for example, gain access through their service on the National Security Council, a congressionally established unit to advise the president on matters relating to foreign policy. Yet while some presidents have established less formal cabinet

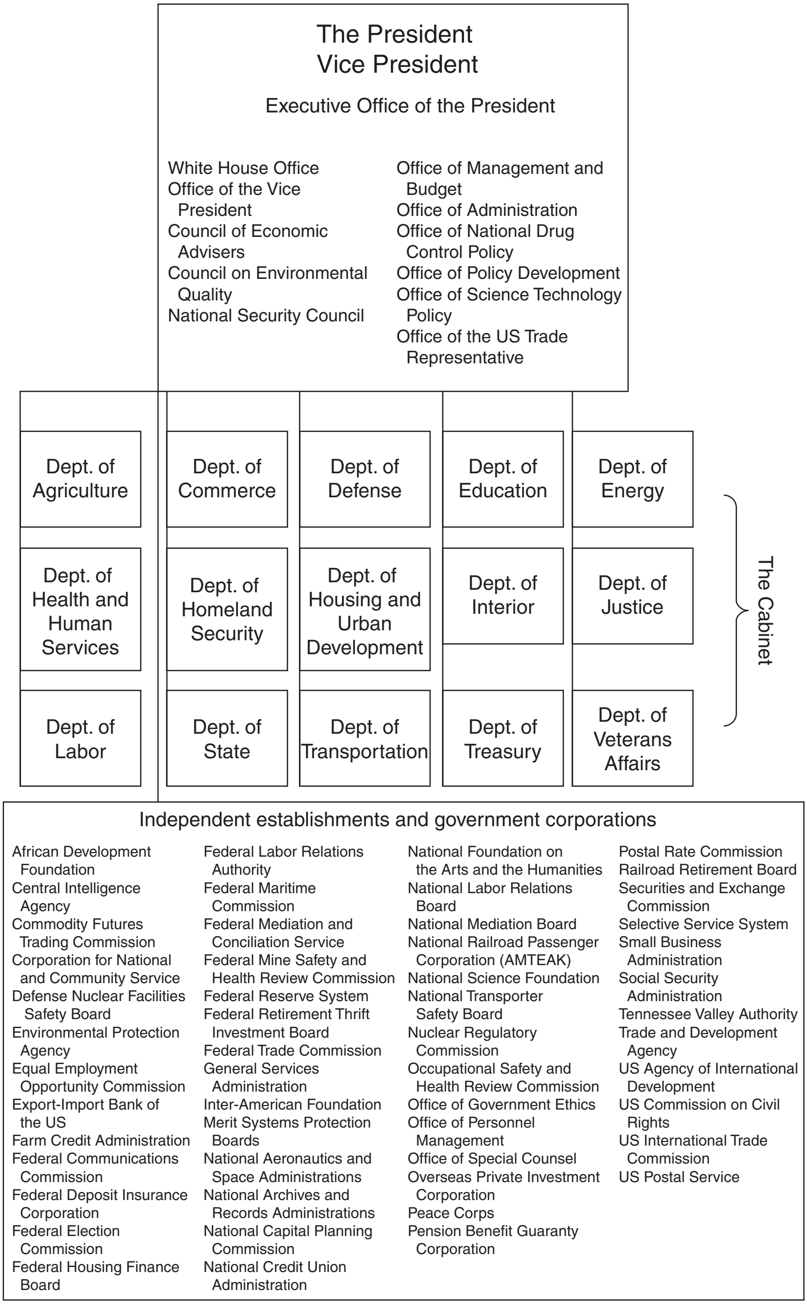

Figure 2.1 The structure of executive power in the United States (2017).

Source: *US Government Manual*.

councils to facilitate coordination among departments with overlapping policy interests, this collaborative approach has not been the norm, and indeed the U.S. cabinet has no formal subunits.

Since the Franklin D. Roosevelt administration (Democratic, 1933–1945), the White House staff, more formally known as the White House Office, has become more influential than the cabinet in decision-making (Thrush 2013; see also Kassop 2013). (The White House staff is unilaterally appointed by the president—it is not confirmed by the Senate—and its reorganization does not require congressional approval.[6]) The White House Office has developed policies (charging cabinet secretaries with securing legislative authorizations and appropriations), conducted oversight (confirming the departments were properly implementing the president's programs), and policed constituent relations (ensuring that cabinet secretaries were strengthening the president's electoral chances) (Mayer and Weko 2000; Rockman 2000; Kumar and Sullivan 2003; Sullivan 2004).

Notwithstanding the centralization of decision-making in the White House, which has lowered the policy-making influence of cabinet secretaries, the cabinet has continued to stand for the president's electoral and governing commitments, and has negotiated with the Senate and with presidential constituents (Weko 1995). Cabinet secretaries lead departments with extraordinary policy expertise, providing the executive with an information advantage in political negotiations (Rudalevige 2002). Cabinet members also forge constructive relationships with constituents throughout the electorate, demonstrating the president's commitment to representation, accountability, and transparency (Borrelli 2002, 2010). Because cabinet secretaries advance the chief executive's policies and serve as liaisons to his partisan base, a president has little incentive to name secretaries from the opposing party; a unilateral appointment strategy is too advantageous.

Using Portfolio Allocation and Design (PAD) strategies

What are the main strategies of cabinet post allocation used by U.S. presidents? Do they vary by party or over time, for example, as the seat share of the president's party in Congress changes? The overall pattern that we observe in the U.S. case is "unilateral" and this strategy is maintained throughout a president's four or eight (if reelected) years in office.

A newly elected president's transition team typically prioritizes White House appointments first, cabinet nominations second. The goal is to avoid confirmation controversies, presenting the new administration as ready to lead. When a president is reelected, the administration continues and department secretaries remaining in the same post are not subject to another Senate confirmation. Cabinet members are, however, expected to submit their resignations, easing presidential personnel changes. The end of the first term is also a natural time for cabinet members to leave the government, to move into the private sector or to retire. Yet there is a high degree of continuity. Across the five presidents reelected to a second term in the modern presidency examined in this chapter, 45 percent of Nixon's, 61.5 percent of Reagan's, 50 percent of Clinton's, 40 percent of George W. Bush's, and 46.7 percent of Obama's secretaries continued in their post in the second term.

PAD at government formation

Timing and nature of government crafting. New presidents are expected to announce their cabinet nominees during the weeks between the election in November and the January inauguration so that the Senate can begin confirmation hearings in the relevant standing committees. At least some nominees have been confirmed immediately following the inauguration.

Typically, almost all nominees are from the president's party, but not all are strong partisans. Figure 2.2 illustrates that in most administrations less than half those appointed meet the threshold of being categorized as strictly partisan.[7] In seven of the twelve presidential terms, less than half the cabinet at any point in the term meets the strictly partisan criteria. The proportion of cabinet members who rise to the higher threshold of strictly partisan ranges from a low of 22–25 percent for Presidents Carter and Reagan to a high of 45–52 percent for Presidents Nixon (first term), G. H. W. Bush, and Obama (first term).

In U.S. politics, the selection of cabinet members is not a collective agreement; the president does not seek support or cooperation from additional parties to form a majority governing coalition. As the dotted line in Figure 2.2 illustrates, the proportion of cabinet members from other parties is frequently zero.[8] Overall, only 13 of the 257 cabinet members we study belonged to the party opposing the president. While some of these nominees from the opposing party did not hold their post for the entire term, some did, and in one case, cabinet members from the opposing party succeeded one another in office. Overall, the patterns illustrated in Figure 2.2 reinforce the fact that cabinets are not used to build cross-party coalitions as the percentage of partisans is relatively low.

Management of political resources. Newly elected presidents recruit cabinet members for personal, policy, and ideological loyalty (Weko 1995; Edwards 2001; Auer 2008; Lewis 2008).[9] Cabinet secretaries may also be recruited because they have connections to a particular issue network, which will facilitate the president's relationship with that constituency (Borrelli 2010). Cabinet nominees, therefore, often "signal" which groups will have the president's ear. As the president's policy agenda is enacted into legislation, and executive implementation becomes more important, management ability becomes a key trait (Mann and Smith 1981; Cohen 1988: 113–116; Wyszomirski 1989: 47; Nicholls 1991; Borrelli 2002: 42). This means that while presidents rarely use cabinet nominations to build coalitions with the opposing party, they have often selected nominees to build relationships with other important constituencies.

Organized groups (distinct from political parties) lobby throughout the cabinet selection and confirmation processes. What varies is which groups are consulted in the cabinet nomination process, and which groups gain the reward of having a cabinet member receptive to their policy priorities. Republican

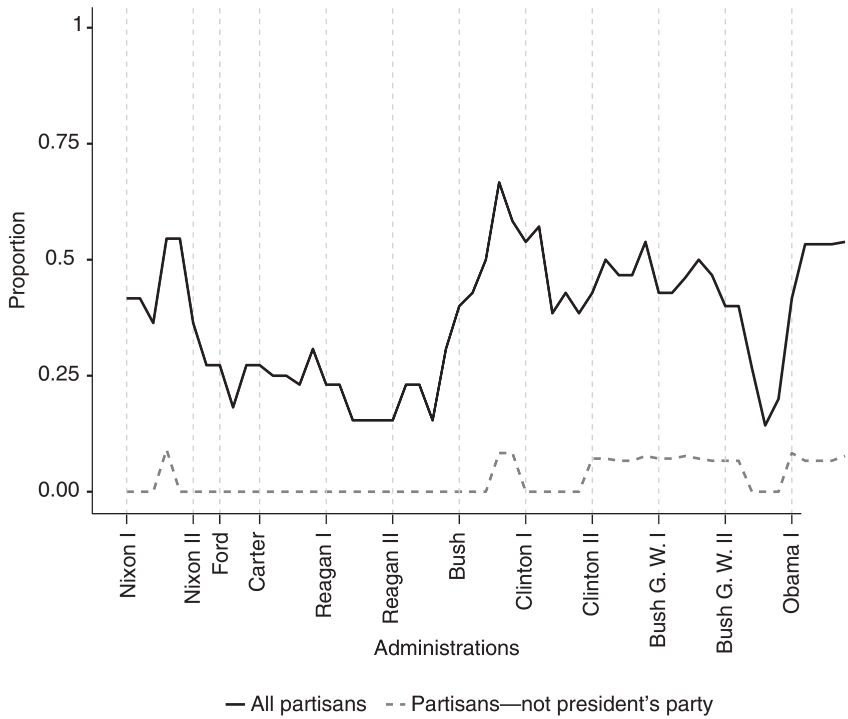

Figure 2.2 Cabinet membership by partisanship (United States 1969–2013).

presidents have been more attentive to business groups, while Democratic presidents have courted labor unions. Women's organizations have pressed for the incorporation of women into cabinets of both parties.

As evidence of the unilateral strategy in cabinet formation, U.S. presidents nominate many of their "own" people even when there is no partisan change. For example, when the Republican Party retained the White House under George H. W. Bush (1989–1993), he still nominated new cabinet members. It is even uncommon for presidents to select cabinet members from rival factions within their parties though there are exceptions, as when President Obama (Democrat, 2009–2017) selected his strongest opponent in the 2008 presidential primary season, Hillary Rodham Clinton, to be Secretary of State.

In addition to incorporating members of their own parties into the cabinet, presidents often appoint experts, some of whom might also be partisans. James Baker, George H. W. Bush's Secretary of State, exemplifies this multiplicity: A longtime Republican, Baker had been influential in Ronald Reagan's 1984 campaign and managed Bush's 1988 campaign; he was a widely respected businessman, with foreign policy expertise acquired as Reagan's chief of staff and Treasury Secretary; and he had been Bush's friend for decades. He was thus personally known to the president, in addition to being a partisan-expert.

From 1969 to 2013, 257 secretaries served under eight presidents. Experts outnumber partisans or partisan-experts as 45.5 percent of all secretaries (43.9 percent of the initial cabinet) were coded as experts. And partisan-experts outnumber pure partisans by a three to one margin (29.6 percent are partisan-experts compared with 8.6 percent pure partisans). This fits with Burstein's (1977) conclusion that cabinet secretaries need to be highly qualified for their post, typically with education and work experience that make them appear well-qualified (see also Escobar-Lemmon and Taylor-Robinson 2016: Chapter 4). Figure 2.3 shows how common each of the four possible profiles is by presidential term. (Each category is mutually exclusive.) Some presidents—such as Bill Clinton in both his terms—nominated a relatively large number of pure partisans, but that appears to have offset a small number of secretaries who were neither partisans nor experts. In contrast, President Ford, making cabinet nominations following the partisan excesses of the Watergate scandal, eschewed pure partisans and relied heavily on experts.[10]

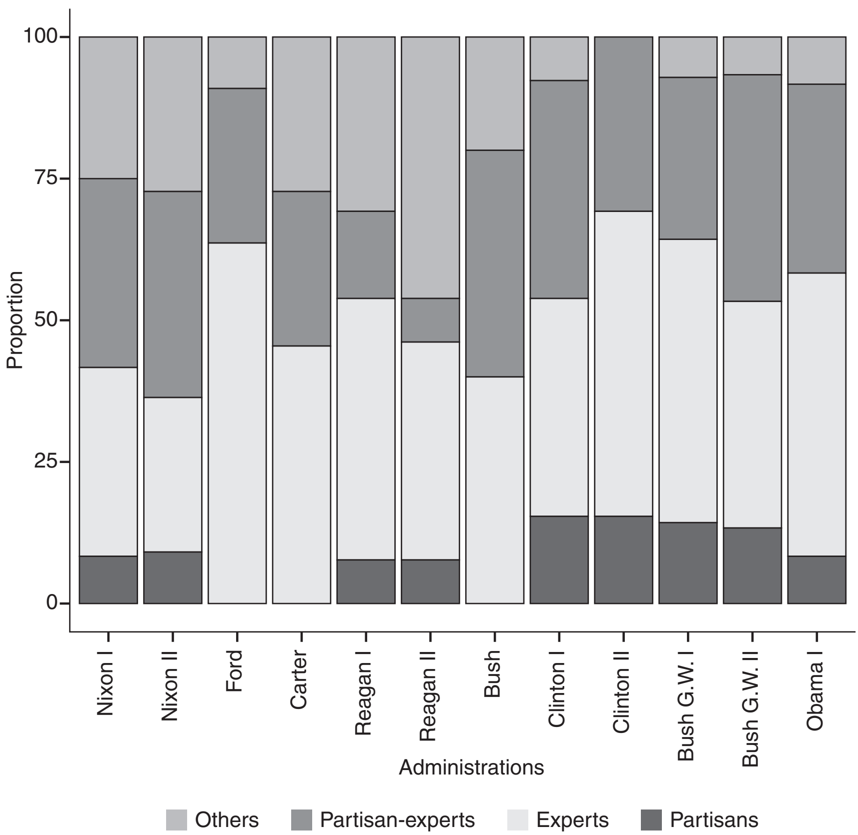

Figure 2.3 Secretarial profiles in initial cabinets (United States 1969–2013).

As Figure 2.3 also shows, there are presidents who rely on the nomination of secretaries who are not partisans or experts. In most cases, these are people with whom the president has some kind of personal connection.[11] Almost all presidents had a connection with the majority of individuals they nominated, including 100 percent for President Reagan (second term). Only three presidents had initial cabinets in which less than half the secretaries were personally loyal, namely, Presidents Clinton (first term 50 percent), Reagan (first term, 46.1 percent), and Obama (33 percent). Yet, as the example of Secretary James Baker above reminds us, not all individuals with whom a president has a personal connection are unqualified non-partisans. Quite the opposite—in many cases individuals personally loyal to presidents are partisans, experts, or both.

In summary, the PAD strategy of U.S. presidents in selecting their initial cabinet is unilateral. As we see in Figure 2.4, only two presidents, Ronald Reagan and Barak Obama in their first terms, meet the editors' criteria for cooperative, with 62 percent of Reagan's and 58 percent of Obama's initial first term secretaries identified as cooperative. On the other end of the spectrum, six of the twelve presidential terms we examine contained less than one-quarter of initial secretaries who could be identified as cooperative (Nixon's first term, Ford, Reagan's second term, both Clinton's first and second terms, and George W. Bush's second term). Highly valued traits in nominees are loyalty and skill to

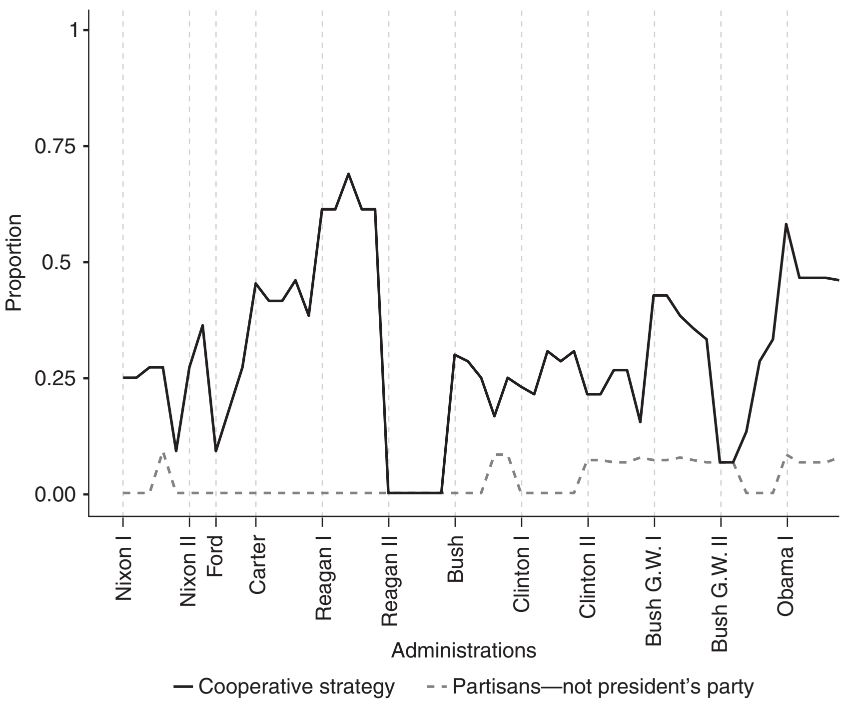

Figure 2.4 Portfolio allocation strategy (United States 1969–2013).

implement legislation. That said, it is important to point out that while cooperative secretaries may be appointed, that does not mean that presidents are appointing strong partisan opponents. Building bridges to the other party—by formally bringing representatives of the opposing party into government or by appointing a large number of secretaries without personal ties to the president—is not done in the U.S., even when the other party controls Congress. This is evidenced by the fact the dashed line in Figure 2.4, which plots the strict partisans from the opposing party, is zero for many presidents and below 15 percent in all cases.

PAD during the government

Stability in personnel is a hallmark of U.S. presidential cabinets. Across the twelve presidential terms we study, the average number of secretaries per post ranges from one to two for any given administration. There is, however, variance in how long cabinet members hold their posts, with average duration in post varying somewhat across presidents. Nixon and Ford are extraordinary cases: Nixon's resignation to avoid impeachment shortened his second term (1973–1974); Ford only served the remainder of this term (1974–1977). Among presidents serving a full four-year term, average days in post vary from 719 (Reagan's second term) to 1277 (Obama's first term). Among the presidents serving a full term, the differences that we observe in average secretarial duration across presidential administrations are only significantly different from zero (based on a Bonferroni Multiple-Comparison test) for Reagan's second term and George W. Bush's first term, for Reagan's second term and Obama's first term, and for George W. Bush's second term and Obama's first term.

Some posts appear more stable than others, with secretaries on average serving longest in Education, Homeland Security, Housing and Urban Development, and State (foreign affairs) posts (averages of 1089, 1014, 988, and 936 days respectively), and for the shortest amount of time in the Commerce post (657 days).[12] Patterns in volatility are more evident across presidential terms than posts. For example, there was high turnover in the Treasury post during Nixon's first term, but this post was not volatile under Ford (Nixon's successor), Reagan (first term), George H. W. Bush, or Obama (first term). There are, however, two exceptions. First, Commerce, typically, has high turnover. Second, there is more turnover in the second term, with cabinet secretaries exiting while they are able to secure attractive posts in the private sector—and before the president's lame duck status undermines their accomplishments. So the exit decision may be made by the secretary, and it is often not the result of the president using PAD to help manage relations with Congress.

In examining secretarial exits we code secretaries' terms as ending in one of three ways following the editor's coding scheme. Secretaries who serve until the end of term are classified as having stable exits, because they provide stability for the president. In light of the low turnover in cabinet membership discussed above, it is not surprising that in Figure 2.5 we see a large degree of stability

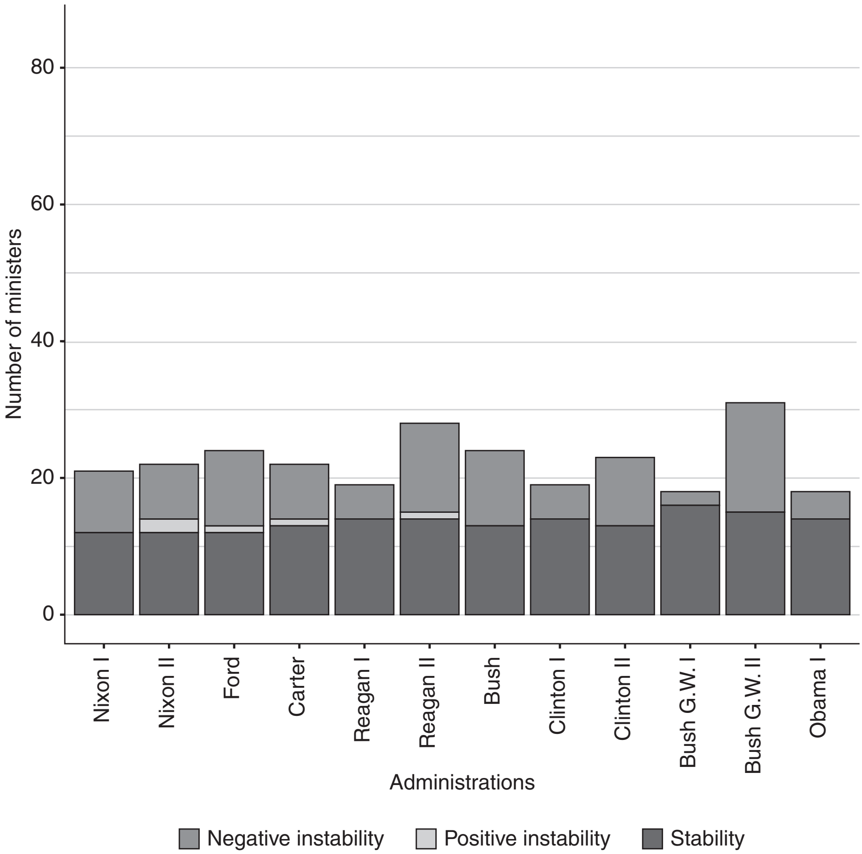

Figure 2.5 Ministerial turnover by type of exit (United States 1969–2013).

among secretarial exits with on average 60 percent of a president's cabinet members being classified as having stable exits.

The editors also identify two other types of turnover: those which create positive and negative instability. Instances in which secretaries move to a similar post, a more valuable post, or survive a reshuffle, and the secretary is not involved in any kind of conflict, are generally positive kinds of turnover and hence create positive instability. Just five secretaries in the dataset (less than 2 percent) met the conditions of "positive instability" in exiting their cabinet post. This is largely a function of the fact that the U.S. case provides no examples of major cabinet shuffles. The conspicuous exception occurred in 1979, when President Carter requested the resignations of all cabinet officers, seeking to demonstrate his commitment to strong and cohesive government; the president accepted resignations from the five secretaries who had most consistently disagreed with the White House. Though the president insisted this would improve the executive policy process, media coverage was unfavorable and the president's public approval ratings suffered. A White House staffer reportedly declared, "We've burned the house down to roast the pig" (quoting Charles Lamb; see Califano 1981: 444). No other modern president has followed Carter's example; even transitions from the first to the second term, following a presidential reelection, have been framed more in terms of continuity than change. Even the president with the highest amount of positive instability—Richard Nixon in his second term—only had two secretaries (of twenty-two) make an upward or lateral move in the cabinet.

During the administrations studied, roughly 38 percent of secretaries exited in a way that suggests negative instability. Consistent with other chapters we code secretaries' exits as a source of negative stability if the secretary was involved in conflict in the cabinet, conflicts over policy, or institutional conflict, regardless of whether they were promoted, demoted, moved to another post, or simply left the cabinet. We also code secretaries as causing negative stability if they were demoted or otherwise left the cabinet before the end of the term, even if they were not involved in a public conflict. Negative instability is lowest (11 percent of secretaries) in George W. Bush's first term and thus overall stability highest (89 percent). Reflecting a dramatic reversal of fortunes in his second term, negative instability is the highest (52 percent of secretaries) and stability the lowest (48 percent). There is no apparent pattern relating the congressional seat share of the president's party to the stability or instability of the cabinet, and thus no indication that these nominations are a systematic strategy to reach out to the other party. The one instance, Carter's administration, in which we have unified government for the entire term, is near the median in terms of secretarial stability (59.1 percent) with seven presidents having lower and five higher levels of stability.

The ongoing use of a unilateral strategy is particularly interesting in light of the frequency with which presidents confront divided government, and the regularity with which the president's party loses congressional seats in the midterm elections, both of which are discussed below. In two of the three instances in which presidents lost control of the Congress in the mid-term elections (Clinton's first term and Obama's first term), we have some of the highest instances of stability and consequently *lowest* frequencies of negative instability (only 25 percent of Clinton's secretaries and 26 percent of Obama's secretaries exited in ways that meet the criteria for creating negative instability). The U.S. is an outlier: There does not seem to be evidence that allocation strategies respond to legislative-executive relations as they appear to in other presidential countries, since these midterm legislative defeats would seem precisely the instances where cabinet reshuffles might occur. Yet, in none of those three instances do we see turnover that meets the positive instability criteria.

Profiles and turnover during government. We do not observe a statistically significant difference in the length of time in office for cabinet secretaries who are strictly "partisans" and those who are not (829 days versus 824 days) or between those who come with a lot of post-related expertise and those who do not (808 days versus 880 days). It is not surprising, then, that when we break the dataset into four mutually exclusive categories—partisans, experts, partisans-and-experts, and none—we do not find statistically meaningful differences in the length of time in office. As is revealed in Figure 2.6, while the median length of time a partisan spends in office (1053 days) appears to be higher than that for an expert (746 days) or for a partisan-expert (708 days), it is important to look not only at the median values but also at the distribution. The near uniformity in the size of the box for partisans, experts, and expert-partisans reveals that in all three the range of cases between the 25th and 75th percentiles is identical. Additionally, we note that the average duration length across these four categories is very similar: 806 days for experts, 811 days for partisan-experts, 872 days for none, and 892 days for partisans. Given the visual similarity in these numbers it is not surprising that the difference between them is not statistically different from zero.[13]

While there may not be differences in the time in post based on whether a secretary is a partisan, expert, both, or neither, it is possible that a secretary's service may be affected by personal connections and loyalty to the president. We find that secretaries who are "own," personally loyal to the president, or have been deeply involved in the campaign, serve shorter rather than longer terms (739 days on average compared with 930 days, a difference that is statically different from zero [$p>0.0027$]).[14] While this last point might seem counter-intuitive, it fits with the conclusion in the U.S. politics literature that presidents value loyalty less as the term progresses and place more emphasis on managerial expertise over time (Mann and Smith 1981; Cohen 1988; Wyszomerski 1989; Nichols 1991; Borrelli 2002).

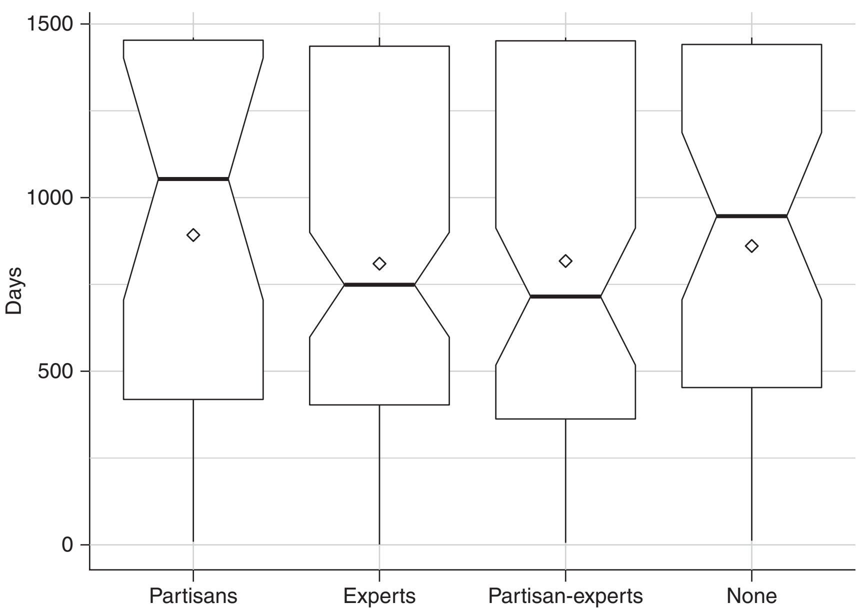

Figure 2.6 Minister duration by profile (United States 1969–2013).

One trend that is worth commenting upon is the shift in strategy pursued by presidents elected to a second term. Four of the presidents in our dataset won a second term, and in all four cases there was an appreciable increase in the proportion of secretaries who were “own” in the second term, increasing from 50 percent to 76 percent for Nixon, from 39 percent to 93 percent for Reagan, from 26 percent to 64 percent for Clinton, and from 41 percent to 73 percent for George W. Bush. This is interesting because the partisan composition of the Congress varies across these four cases, suggesting that this element of strategy may be invariant to the partisan configuration.

Portfolio design during the government. U.S. presidents rarely reorganize cabinet departments as part of their strategy to manage the government. Presidents cannot unilaterally add, replace, or combine departments; Congress must pass a law to make such changes. None of the presidents studied here announced a major reorganization before entering office, in connection with cabinet nominations, though several had promised such reorganizations during their campaigns. Moreover, change during the president’s term is very rare. Cabinet design changes generally have occurred during periods of great social, economic, or political change, when the salience of particular issues pushed the president and Congress to take organizational action.[15]

There has been incredible stability of cabinet departments over time, though the size of the cabinet has expanded since 1789. As indicated in Table 2.2, expansions during the modern presidency resulted from reorganizing agencies into an Energy Department (1977), in response to the energy crisis sparked when OPEC raised the price of oil; dividing the Health, Education, and Welfare Department into a Department of Education and a Department of Health and Human Services (1979), in response to calls for greater national attention to education policy; elevating the Veterans Administration to a cabinet department (1988), in recognition of veterans’ needs and electoral influence; and reorganizing agencies into the Department of Homeland Security (2002) in response to the 9/11 attacks. Cabinet size ranged from eleven posts (1973–1977), to a high of fifteen (2001 onward). These changes were made to highlight policy attention on a newly created topic, but not to build a coalition to govern. Consequently, redesigning or expanding the number of cabinet departments does not appear to be a part of the U.S. president’s PAD tool kit.

Cooperative/unilateral strategy. Overall the U.S. cabinet experiences little turnover during an administration. Since change is rare and we do not observe presidents bringing more representatives of the opposing party into the cabinet if the opposition gains control of Congress at midterm elections, our conclusion is that presidents follow a unilateral PAD strategy throughout their administration.

In general, if we look at the cooperative strategy for presidents, captured in Figure 2.4, we notice that for most presidents there is no significant change in strategy during their term. In part this reflects the fact that turnover is rare in the U.S.—many secretaries do serve a full term (“stability,” as discussed above). But there are several instances worthy of comment. First, we notice that roughly halfway through Ronald Reagan’s first term there is an upward tick in cooperation—

Table 2.2 Evolution of U.S. cabinet departments (United States 1969–2017)

Nixon I (1969–1973)	*Nixon II (1973–1974)*	*Ford (1974–1977)*	*Carter (1977–1981)*	*Reagan I (1981–1985)*	*Reagan I (1985–1989)*	*G. H. W. Bush (1989–1993)*
State	State	State	State	State	State	State
Treasury	Treasury	Treasury	Treasury	Treasury	Treasury	Treasury
Defense	Defense	Defense	Defense	Defense	Defense	Defense
Justice	Justice	Justice	Justice	Justice	Justice	Justice
Interior	Interior	Interior	Interior	Interior	Interior	Interior
Agriculture	Agriculture	Agriculture	Agriculture	Agriculture	Agriculture	Agriculture
Commerce	Commerce	Commerce	Commerce	Commerce	Commerce	Commerce
Labor	Labor	Labor	Labor	Labor	Labor	Labor
Health, Education, and Welfare	Health, Education, and Welfare	Health, Education, and Welfare	Health, Education, and Welfare			
			Health and Human Services	Health and Human Services	Health and Human Services	Health and Human Services
			Education	Education	Education	Education
Housing and Urban Development	Housing and Urban Development	Housing and Urban Development	Housing and Urban Development	Housing and Urban Development	Housing and Urban Development	Housing and Urban Development
Transportation	Transportation	Transportation	Transportation	Transportation	Transportation	Transportation
Post Office						
			Energy	Energy	Energy	Energy
					Veterans Affairs	Veterans Affairs

Clinton I (1993–1997)	*Clinton I (1997–2001)*	*G. W. Bush I (2001–2005)*	*G. W. Bush II (2005–2009)*	*Obama I (2009–2013)*	*Obama II (2013–2017)*	*Trump (2017–2021)*
State	State	State	State	State	State	State
Treasury	Treasury	Treasury	Treasury	Treasury	Treasury	Treasury
Defense	Defense	Defense	Defense	Defense	Defense	Defense
Justice	Justice	Justice	Justice	Justice	Justice	Justice
Interior	Interior	Interior	Interior	Interior	Interior	Interior
Agriculture	Agriculture	Agriculture	Agriculture	Agriculture	Agriculture	Agriculture
Commerce	Commerce	Commerce	Commerce	Commerce	Commerce	Commerce
Labor	Labor	Labor	Labor	Labor	Labor	Labor
Health and Human Services	Health and Human Services	Health and Human Services	Health and Human Services	Health and Human Services	Health and Human Services	Health and Human Services
Education	Education	Education	Education	Education	Education	Education
Housing and Urban Development	Housing and Urban Development	Housing and Urban Development	Housing and Urban Development	Housing and Urban Development	Housing and Urban Development	Housing and Urban Development
Transportation	Transportation	Transportation	Transportation	Transportation	Transportation	Transportation
Energy	Energy	Energy	Energy	Energy	Energy	Energy
Veterans Affairs	Veterans Affairs	Veterans Affairs	Veterans Affairs	Veterans Affairs	Veterans Affairs	Veterans Affairs
		Homeland Security	Homeland Security	Homeland Security	Homeland Security	Homeland Security

Notes

1 Because a department can only be created or reorganized with congressional approval, cabinet changes occur after a president has entered office, submitted a reorganization plan to the legislative branch, and received approval for that action. The departmental changes indicated in the table above all occurred after the president had appointed the initial cabinet. This is also the reason why the Department of Health, Education, and Welfare, which was reorganized into the two departments of Health and Human Services and of Education, appears to overlap in the Carter presidency.

2 As this chapter goes to press, President Donald J. Trump has not yet submitted or announced his intention to submit any formal reorganization plans to Congress.

this reflects the pressures of the reelection campaign, with the president reaching out to previously unrepresented constituents, including women. This is then followed by a very sharp downward trend in cooperative strategy at the end of his term and a move to near perfect unilateralism that characterized almost his entire second term, with the cabinet nominees having strong connections to the president and vice president. Having started out semi-collaboratively, George W. Bush also moves sharply downward in collaborativeness near the end of his first term, but midway through his second term is forced to abandon that strategy and become slightly less unilateral. In each instance, a change in cabinet personnel signaled a significant shift in policy, as the administration either held firm to its priorities or gentled its commitments. For example, during George W. Bush's second term, growing opposition to the wars in the Mideast, contributing to the loss of a Republican majority in both legislative chambers, precipitated the resignation of the controversial Defense Secretary Donald Rumsfeld and the nomination of the more measured (but still firmly Republican) Robert Gates. Otherwise, it is not clear that the bumps between terms in Figure 2.4 reflect more than the replacement of a single secretary, which does not suggest a re-orientation of strategy.

PAD at government termination

With few exceptions in the U.S., government termination coincides with the end of the president's constitutional four-year term. In no case in the U.S. has a government terminated due to a rupture in a collective agreement that established a multi-party cabinet. When the opposing party has a majority in one or both congressional chambers, it gains the constitutional power to block the president and to advance its own policy agenda. A few cabinet posts, each with limited control over a specific policy arena, would be a poor bargain for an opposition party with the legislative power to enact its own wide-ranging priorities. And for the president, sacrificing these cabinet posts would further limit opportunities to fulfill campaign promises and enact policy priorities through administrative action. Constitutional checks-and-balances, combined with separation of powers and only two parties, gives the president and the Congress strong incentives to oppose one another and weak incentives to build coalitions.

Explaining Portfolio Allocation and Design

In this section, we examine how U.S. presidents have allocated cabinet offices in different economic and political contexts. During the fifty years under study, presidential power in institutional, budgetary, and plebiscitary terms has remained virtually unchanged, which allows us to assess the effect of changes in partisan power and popularity on PAD in both favorable and unfavorable economic environments. Our analysis sheds light on the way in which, while generally pursuing a unilateral strategy, presidents have varied the composition of their cabinets in response to these changing conditions. In contrast to other cases, the response to environmental turbulence in the U.S. has often been to “circle the wagons” and decrease cooperative secretaries (while increasing loyalists).

Presidents and their environments

We observe regular change in the political environment during a presidential term in three areas. First, presidents gain (or lose) partisan support in the legislature. Increasing partisan polarization between the two major parties has decreased bipartisanship in the U.S. Congress. When different parties control the executive and the legislative branches, which occurred in eleven of the twelve presidential terms that we study, the chief executive confronts a single opposing party with few incentives to enter into a traditional coalition-style agreement. Moreover, the congressional midterm elections, less than two years into the president’s term, provide opponents with an opportunity to mobilize voters disappointed by the president’s early performance or angered by the president’s electoral win. Five of the twelve presidential terms began with the president’s party in the majority in both legislative houses; in four of those terms, midterm elections cost presidents that majority in one or both houses. Presidents’ partisan power thus changes across the term, oscillating between strong and weak based upon the electoral success of their party in Congress. Yet the rarity of cabinet secretary change during the terms in our database, and only one incidence of what could be called a cabinet shuffle occurring during Jimmy Carter’s term, which is the only case where the president kept a majority throughout his entire term, indicates the U.S. president does not make cabinet concessions to the opposition party to try to gain their cooperation after midterm elections.

Second, the political environment changes in response to presidential approval ratings, which may be affected by scandal. Presidential popularity varies within a president’s term, sometimes in predictable ways. First-term presidents enjoy a “honeymoon” with the voters and the Congress, which typically lasts three months; in the second year, midterm campaigns and elections often cost the president’s party seats in both congressional chambers and cut the president’s approval ratings; and the presidential reelection campaign, which begins late in the third year of the term, leads to an increase in partisan attacks. Additionally, domestic, economic, and international events beyond the president’s control, as well as White House scandals, affect popular approval. In September 2001, after the 9/11 attacks, George W. Bush had approval ratings of 90 percent; by October 2008, as the Great Recession deepened and the wars in the Mideast continued, his approval rating had dropped to 25 percent. Similarly, Jimmy Carter’s perceived mishandling of the Iran hostage crisis and the oil crisis contributed to a sharp decline of 54 points in his approval ratings.

Certainly, individual scandals can create a troubling political context that affects presidential popularity. Although these almost always have the effect of lowering presidential approval ratings, the magnitude of the decrease can vary. Richard Nixon’s approval ratings tumbled 43 points during his second term as he confronted impeachment proceedings over the Watergate break-in. On the other hand, public approval decreased far less for Bill Clinton despite multiple investigations, his 1998 impeachment by the U.S. House of Representatives, and his trial and acquittal by the U.S. Senate.

Third, the political environment shifts as a result of economic conditions. Since the late 1960s, the U.S. economy has varied tremendously, from periods of high growth, low inflation, and low unemployment to the Great Recession and high unemployment. As a way of considering the overall economic context in the U.S., we look at the "misery index," which is the sum of the inflation rate and the unemployment rate; lower levels are more desirable, though the index may underestimate the negative effects of some economic trends. There is, of course, a likely interactive effect between approval, management of scandal, and economic crisis. Economic improvement is sometimes correlated with a rise in approval ratings, even in the case of political scandal (e.g., Bill Clinton).

Testing the PAD argument

Our measure of PAD is the cooperative index (Figure 2.4). For each president, we are interested in assessing whether they became more or less cooperative over the course of their term based on changes in the share of cooperative secretaries between the beginning and end. Positive numbers indicate an increasing share of cooperative secretaries (cooperative strategy); negative numbers reflect fewer cooperative secretaries (unilateral strategy).

To evaluate the extent to which context induced presidents to change their PAD across the term, we sorted presidents by the elements of their environment which vary across their term: partisan powers, popularity, and economic environment. We assessed partisan powers according to whether the president's party had a congressional majority. We assessed popularity by comparing the president's approval rating at the start and end of the term: "increasing popularity" signified that the approval rating was higher at the end than at the beginning, "decreasing popularity" indicated the rating was lower at the end of the term. To assess the economic environment, we compared the misery index at the start and end of term: If the misery index rose, the economy deteriorated across the term; if the misery index decreased, the economy improved. See a summary of this scheme in Table A2.1 in the Appendix.

The editors suggest that strong presidents are more likely to act unilaterally in cabinet formation than are weak presidents. Our previous analysis indicated that, except for President Obama, U.S. presidents have used a unilateral strategy more than might be expected, given the power of the office. The U.S. presidents included here have governed in good times (i.e., with their own party controlling the Congress, with high approval ratings, and good economic conditions) and bad times (i.e., their party in the minority in Congress, falling approval ratings, and worsening economic conditions). Thus, we assess changes in cooperative strategy in response to overall conditions, as well as the impact of particular environmental factors. Changes in the cooperative index are summarized in Figure A2.1 in the Appendix.

Based on previous literature, the editors suggest that in good times presidents are able to act unilaterally and to avoid needing to cooperate. This suggests that in good times we ought to see fewer cooperative secretaries being appointed since, if conditions are improving, a president's hand is strengthening and thus fewer cooperative secretaries will be nominated. However, in bad times presidents will need to reach out and recruit cabinet members from other parties, leading them to engage in cooperative strategies. For our analysis this implies that as a president's environment changes negatively they will increase the share of cooperative secretaries.

We find minimal support for these expectations in the U.S. context, although our evidence suggests that certain aspects of context may be more salient than others. Across the twelve terms we study, we find few patterns among the constellation of powers and conditions that consistently correlate with presidents increasing or decreasing the percentage of cooperative secretaries in their cabinet. Three of our twelve presidents governed in what might be viewed as all-around worsening conditions (their party was in the minority or became minority, their approval ratings declined, and the economic situation worsened). In response, as the argument predicts, President George W. Bush in his second term pursued a more cooperative strategy (with a large increase in the proportion of cooperative secretaries). President Nixon (second term) also increased the proportion of cooperative secretaries, but only about 9 percent. However, President Obama in his first term responded to worse conditions by becoming *increasingly unilateral* and decreasing the proportion of cooperative secretaries.

The gap between theoretical predictions and our data is likely due to the fact that U.S. presidents typically do not respond to divided government by negotiating with cabinet appointments. As discussed above, cabinet personnel change is rare in the U.S. and cabinet shuffles are virtually absent. The absence of such negotiations helps explain why, among the four presidents who lost their congressional majority in the midterm elections, two (Clinton in the first term and G. W. Bush in the second term) increased cooperative secretaries, but the other two (G. W. Bush in his first term and Obama in his first term) decreased them. This suggests a defensive strategy, with presidents "circling the wagons" in anticipation of difficulties. After all, George W. Bush, who nominally increased his number of cooperative secretaries, began with the second-lowest share of cooperative secretaries (7 percent) in his initial cabinet.

Similarly, economic deterioration also appears to push U.S. presidents toward unilateralism and away from cooperation. Among the seven presidents for whom economic conditions were worse at the end than at the beginning of their term, five decreased the proportion of cooperative secretaries. This decrease is substantial for Nixon's first term, though it is small for George H.W. Bush. Of the two who became more cooperative (as the theory would predict) the gain is rather large for George W. Bush in his second term—but again his administration started with almost no cooperative secretaries. Likely because U.S. presidents tend to prefer unilateralism, we find modest support for the idea that in good economic times presidents are unilateral. Only two of the five who governed during improving economic conditions increased the share of cooperative secretaries. While Reagan held constant the proportion of cooperative secretaries, it is worth noting that his second term was characterized by zero cooperative secretaries—which is highly unilateral. Additionally, Clinton in his second term decreased them.

Again, there is limited evidence that presidents behave as expected in response to declining popularity. Half the presidents who left office with lower approval ratings than when they started increased the proportion of cooperative secretaries, while the others held constant or decreased their share. Even in cases of unpopular presidents increasing the percentage of cooperative secretaries, there is not a wholesale cabinet reshuffle, and no pattern of reaching out for external backing from the opposing party or from organized groups outside the key constituencies to which the president had already built bridges during his campaign. Again, though, where unilateralism is expected we do find it. Four of the six presidents who were more popular at the conclusion of their term than the start decreased the share of cooperative secretaries, which is what theory predicts. In short, at most we find modest evidence that increased popularity is associated with increased unilateralism (and less cooperation), but, beyond that, U.S. presidents do not respond consistently to changes in the partisan or economic environment and only respond to popularity in limited ways.

Concluding remarks

On balance, we find little indication that presidents in the United States behave in ways consistent with the expected behavior of weak or strong presidents. On balance, most U.S. presidents use unilateral rather than cooperative cabinet building strategies. Thus, we find little to no evidence that U.S. presidents use cabinet nominations to build coalitions with the opposing political party, regardless of partisan powers, economic conditions, or popularity. Very few members of the opposing party are appointed to U.S. presidential cabinets. Thus, the appointment or removal of these individuals has no implications for cross-party agreements as there are none to break or modify.

As we have highlighted repeatedly, the two-party system in the U.S. discourages coalition government. If the party opposing the president controls one or both chambers of Congress, they have considerable legislative power. Partisan opponents can sometimes force a president to negotiate policy, but that potential also means that there are few incentives for these partisans to forge a lasting coalition with the president. Negotiation on an individual bill is possible, but the nature of checks-and-balances in an increasingly polarized two-party system means that the incentives are to build and use resources, not build coalitions, because the president will not often benefit from the coalition (or the compromise). A president acknowledging the constitutionally granted confirmation power of the Senate is very different from a president engaging in direct negotiations with partisan opponents or coalition partners about a particular candidate for a particular office.

The cabinet is also not used to build coalitions because, unlike many presidents in Latin America, neither U.S. presidents nor cabinet secretaries can directly propose legislation; all bills originate in the legislative branch. Secretaries play a different role in the U.S. making policy through the implementation of law, not by drafting legislation. Moreover, cabinet secretaries are often less involved in formulating broad policy as that task is often reserved to the White House Office. Overall, because of the way separation of powers has evolved in the U.S., the institutional value in coalition building through the cabinet is absent. Although lacking decree power, U.S. presidents attempt to work around the Congress through executive orders, regulation, and enforcement rather than building a coalition, which also reflects a certain level of unilateralism. This suggests that traditional explanations of portfolio allocation in presidential systems may fit less well in strong two-party systems, especially those with high levels of polarization, where there is simply no viable alternative coalition partner for the president. Additionally, since cabinet departments are responsible for the implementation of legislation, presidents may reserve their cabinet nominations for loyalists—not cooperative secretaries—in order to advance their policy and programmatic agendas.

Thus, expectations about when presidents use different PAD strategies are less well-suited to the U.S. case not because of U.S. exceptionalism but because of three particular institutional features: (1) a strong two-party system (including the virtual absence of third parties or independents); (2) the required Senate confirmation of nominees; and (3) the use of secretaries to implement, not formulate, laws and policy. These institutional rules give presidents few incentives to use cabinet nominations to build cross-party coalitions. Instead, presidents work to form bipartisan congressional agreements around individual pieces of legislation. Cabinet secretaries then lobby on behalf of the president's priorities, and implement the congressionally approved and funded programs.

The role of secretaries in implementing legislation likely further contributes to the preference for experts or partisan-experts among U.S. presidents. As we discussed above, relatively few pure partisans are appointed to presidential cabinets. Where partisans (e.g., former legislators or governors) are appointed, they also commonly bring expertise in that policy area. Additionally, presidents fill between a quarter and half of their cabinets with experts without strong partisanship. This suggests they value the ability to implement policy, rather than the ability to play a political game with Congress. Because presidents do not use secretaries to build a coalition with Congress, it means they can change strategy without cabinet reshuffles. U.S. presidents pursue a unilateral strategy in selecting cabinet secretaries simply because chief executives who do not want to abandon their agenda have few options but "to do it their way."

Appendix

Table A2.1 Classification of U.S. presidents by partisan control and changes in economic conditions and popularity

Panel A: economic conditions			*Panel B: presidential popularity*		
	Economy improved across term*	Economy worsened during term*		Higher end of term approval than start†	Lower end of term approval than start†
Majority in both houses across term		Carter	Majority in both house across terms		Carter
Lost initial majority in one or both house as midterm elections	Clinton I	Bush I Bush II‡ Obama I	Lost initial majority in one or both house as midterm elections	Clinton I Bush I	Bush II Obama I
Minority in one or both houses across term	Ford Reagan I Reagan II Clinton II	Nixon I Nixon II GHW Bush	Minority in one or both houses across term	Nixon I Reagan I GHW Bush Clinton II	Nixon II Ford Reagan II

Notes
* Economic improvement is defined as a falling misery index and economic worsening as a rising misery index.
† Rising approval indicates a higher approval rating at end of term than at start; falling indicates negative net change.
‡ Net change in the misery index for Bush II is positive because of zero inflation in 2008. He is coded as negative because of the Great Recession of 2008.

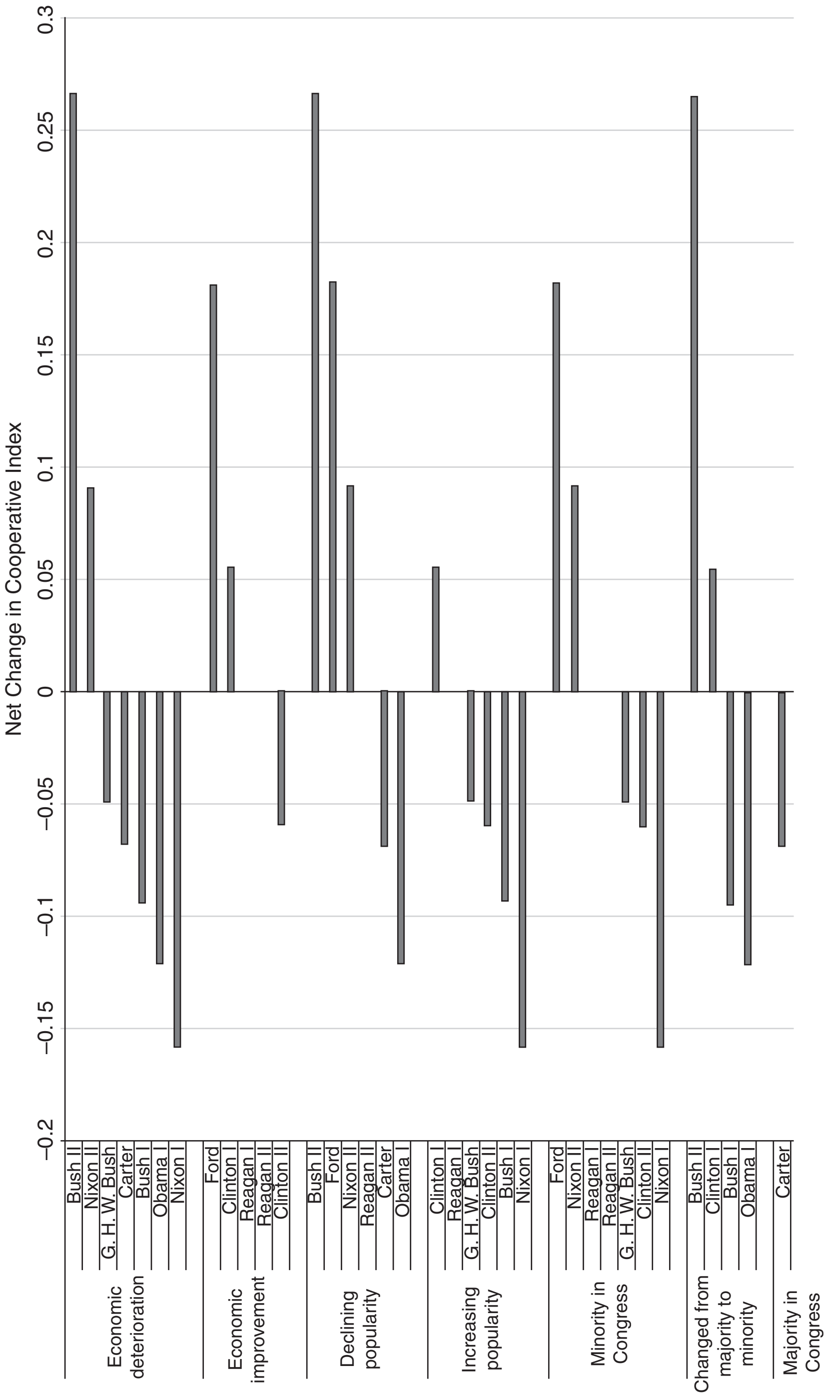

Figure A2.1 Use of cooperative and unilateral strategies during good and bad times.

Notes

1 In conducting this analysis, we join other scholars in defining the modern U.S. presidency as beginning with the Richard M. Nixon administration (Republican, 1969–1974) (Ragsdale and Theis 1997; Hult and Walcott 2004). Our dataset extends through the first term of the Barack H. Obama (Democrat, 2009–2017) presidency, which concluded January 20, 2013. All of the presidents in this dataset were elected to four-year terms, except Gerald R. Ford who succeeded to the presidency following Nixon's resignation in response to the Watergate crisis.
2 See Morgenstern *et al.* (2013) for an analysis of how presidents have used implied and informal powers to "reinforce" their formal legislative powers.
3 The U.S. presidential veto is strong; a veto override requires a two-thirds majority in both chambers. A president is constitutionally required to veto the entire bill, but chief executives have approximated "partial vetoes" through their signing statements.
4 Presidents have designated some officeholders (for example, the White House chief of staff) as having cabinet rank. This analysis, however, defines the cabinet solely as department secretaries.
5 A highly influential foreign policy advisory unit in the Executive Office of the President, the statutory members of the National Security Council are the president, the vice president, and the secretaries of state, defense, and energy. This is not considered a subdivision of the cabinet, its membership notwithstanding.
6 Presidents have supplemented their White House staff by creating task forces or commissions, or appointing White House "czars" to address particular issues. These organizational innovations provide support for policies to which the president is already committed, without the need for Senate confirmation and often without the possibility of congressional oversight (see, for example, Sollenberger and Rozell 2012).
7 Secretaries who are coded as strictly partisan are those who had previously held or run for office because they were required to declare their party identification to do so. All others are coded as not strictly partisan.
8 The dotted line in Figures 2.2 and 2.4 captures the proportion of people who meet the criteria for strict partisan, but who belong to a party other than the president's.
9 Campaign support (particularly campaign donations) is often a greater consideration in appointments to posts other than the cabinet, such as ambassadorships (Burstein 1977; Cohen 1998: 462–463).
10 Modern U.S. presidents have strengthened their vetting of potential nominees, in a process referred to by U.S. scholars as politicization. Reagan's initial cabinet nominees, for example, were Republicans who had supported the president since he had been a California governor, a decade earlier, and were committed to his partisan and ideological priorities. The close connection was intended to make cabinet members more resilient to pressures from Senators, departmental careerists, and issue networks.
11 A person would be in this category for the following reasons: friend of the president or vice president, family member of the president, longtime working relationship with the president (including people with whom the president previously served in the executive or legislative branch), played a major role in the president's campaign (campaign advisors, endorsed the president during the campaign, raised funds for the campaign), or the secretary was reappointed from the president's first term (or in the case of President Ford retained from the Nixon cabinet).
12 Long and short duration posts are the same if we remove Nixon (second term) and Ford from the calculation of averages.
13 We say this based on the Bonferroni, Scheffe, and Sidak Multiple Comparison tests.
14 Personally loyal secretaries (those who are friends or family members of either the president or vice president, those with whom he has longtime working relationships,

those who played a major role in the campaign, those reappointed to a post, or with whom the president previously served in government) as well as those who served as campaign advisors, raised funds, or endorsed them during the campaign are coded as "own."

15 The first departments were established during the first presidential administration (George Washington, 1789–1797), with other departments established as the country was settled and industrialized, waged a second world war, developed its infrastructure, and saw the emergence of politically influential issue networks and electoral cohorts.

3 Diverse profiles within single-party cabinets

Portfolio allocation in Costa Rica (1978–2014)

Gerardo Hernández Naranjo and Jesús Guzmán Castillo

Since the 1948 Civil War and the promulgation of the 1949 Constitution, Costa Rica has had one of the most stable democratic political systems in Latin America. Presidential, legislative, and municipal elections have been held without interruption and elected officials have assumed office and completed their terms since 1953.

Considering the existence of a presidential system which is thought to be institutionally weak, a political culture that usually does not promote the formation of coalitions, and a recent fragmentation of the party system that has led to divided governments, this chapter explores the case of Costa Rica on the basis of the following theoretical premise: *Presidential power conditions the way in which political leaders use portfolio allocation in order to manage political support, technical expertise, and internal alignments in the cabinet. Strong presidents are able to avoid cooperative strategies that force them to cede positions to members of the opposition and, instead, use unilateral portfolio allocation strategies.*

The chapter examines the nine administrations that took place between 1978 and 2014. The first section describes Costa Rica's institutional framework, including the Executive Branch, the cabinet, and the powers of the president to appoint ministers. We also describe the party system and discuss the level of electoral and parliamentary support that presidents have counted on. The second section analyzes the strategies of portfolio allocation and design at the beginning, middle, and end of each administration. The third section explains these strategies. The main findings and conclusions of the study are presented in the fourth section.

Institutional background

This section describes some elements of the institutional context related to the formation of cabinets. We first describe the general characteristics of the political system and the changes experienced by the party system during the period of study; we then describe the main features of the executive, especially those related to the cabinet.

The political system

Costa Rica has a presidential form of government, with a single legislative chamber and two levels of government (national and municipal). All positions elected through a popular vote are established for a four-year term and are obtained through direct election. Specifically, the following positions are elected through a direct, popular vote: (a) the president and two vice-presidents of the republic (b) 57 representatives that make up the Legislative Assembly; and (c) 6,069 municipal level posts.[1]

With regards to the constitutional authority to form the cabinet, the president has full and exclusive power to appoint and remove ministers without any endorsement from parliament or any other state power. The Legislative Assembly may summon ministers or even issue a vote of censure (which is not binding), but it cannot appoint or dismiss ministers by itself. The president's considerable power to appoint a cabinet is nonetheless accompanied by weaknesses in other institutional dimensions. In that regard, the Costa Rican presidential system has been described as weak due to a lack of legislative assertiveness, since it cannot produce unilateral decrees or convene plebiscites or referendums directly (Shugart and Carey, 1992; Mainwaring and Shugart, 1997; Cubillo, 2007). Furthermore, although the President may veto certain laws, matters pertaining to the budget are exclusively the purview of the Legislative Assembly.

In addition, during the period covered by this chapter (1978–2014), the dynamics of electoral competition and the party system have undergone several changes which denote a political weakening of presidentialism in Costa Rica. The main change has stemmed from a party system with bipolar competition between 1978 and 1998 to one with greater fragmentation (moderate multiparty system) from 2002 until today. As a consequence, since 1994, none of the parties which have won the presidential elections has won an absolute majority (at least 29 seats) in the Legislative Assembly (see Table 3.1). During this period, governments with a parliamentary minority have predominated: only three of the nine governments considered in this study obtained parliamentary majorities (Monge, Arias, and Calderón). Since 1998 there has also been an increase in electoral abstention, which is why governments have won in contexts of a lower electoral participation level. It has even been necessary to hold a second round of elections on two occasions (2006 and 2014), since none of the parties reached the 40 percent of valid votes necessary for an outright win in the first round.

To sum up, institutionally speaking, in the case of Costa Rica, presidential appointment powers are strong, but presidents are weak when it comes to governing and they have weakened even more in recent years, in terms of electoral support (since 1998) and the parliamentary strength of the ruling party (since 1994).

The executive branch

The executive branch is exercised by "*the president and government ministers as necessary collaborators*" (Article 130 of the Political Constitution). Along

Table 3.1 Institutional background in Costa Rica (1978–2018)

President	*Starts*	*Ends*	*President's party*	*Cabinet size*	*Total ministers*	*President's legislative support*	*Type of government*	*President selection*	*President mandate*
Carazo	1978	1982	CU	14	23	Minority	Minority coalition	Elected	Completed
Monge	1982	1986	PLN	16	28	Majority	Majority single-party	Elected	Completed
Arias I	1986	1990	PLN	19	29	Majority	Majority single-party	Elected	Completed
Calderón	1990	1994	PUSC	20	29	Majority	Majority single-party	Elected	Completed
Figueres	1994	1998	PLN	20	35	Minority	Minority single-party	Elected	Completed
Rodriguez	1998	2002	PUSC	19	40	Minority	Minority single-party	Elected	Completed
Pacheco	2002	2006	PUSC	19	38	Minority	Minority single-party	Elected	Completed
Arias II	2006	2010	PLN	19	33	Minority	Minority single-party	Elected	Completed
Chinchilla	2010	2014	PLN	22	40	Minority	Minority single-party	Elected	Completed
Solís	2014	2018	PAC	22	30	Minority	Minority single-party	Elected	In course

with the president, two vice-presidents are elected, who are called to replace the president in case of temporary or definite absences, and they can also be in charge of ministries (Article 143 PC).

The Constitution establishes the duties and exclusive attributions of the president, among which is the authority to freely appoint and remove cabinet ministers (Article 139 PC). The Legislative Assembly can only make a vote of censure, which is not binding. Additionally, the constitution establishes a much greater number of joint responsibilities for the president and ministers, such as sanctioning and enacting laws approved by the Legislative Assembly; taking the initiative in drafting laws and the right to veto; directing international relations; convening regular and extraordinary sessions of the Legislative Assembly; submitting the proposed national budget to the Legislative Assembly; among others (Article 140 PC).

Furthermore, the Constitution establishes the figure of the *Governing Council*, composed by the president and the heads of the ministries. The Council has powers and duties that include requesting the Legislative Assembly to declare a state of national defense; exercising the right to grant pardons; appointing and removing diplomatic representatives; appointing directors of autonomous institutions which are part of the Executive Branch; and resolving matters submitted by the president (Article 147 PC). In that sense, the Executive Branch is collegial in nature.

In organizational terms (Figure 3.1), the executive is made up of two main areas: on one hand, the centralized sector is comprised of ministries and attached agencies which are administrative bodies created by law with specific functions within the area of public policies that correspond to a ministry or *autonomous institution*; on the other hand, the decentralized sector is made up of various entities such as social security institutions, state banks, public universities, and public companies (MIDEPLAN, 2010). Although, in constitutional terms, they are not part of the executive, they conduct administrative and executive activities, and are linked to it in different ways. For example, in the case of the so-called *autonomous institutions*, the executive appoints part of their boards of directors and their executive presidencies; has coordination and planning powers, and can issue budgetary guidelines (Hernández, 2003). Both areas are articulated through sectoral coordination councils led by the relevant minister. For the purposes of this chapter, what is relevant is that these entities are similar to cabinet ministries, since the president has strong powers to appoint some of its members and to exert political influence over them.

The cabinet

The cabinet consists of all ministers (with or without a portfolio) who are appointed or removed directly by the president and are accountable to him. The vice-presidents are part of the cabinet if they have ministries and/or sector coordination under their charge. Each ministry has two vice-ministries, whose top positions are also appointed by the president. Additionally, the minister of

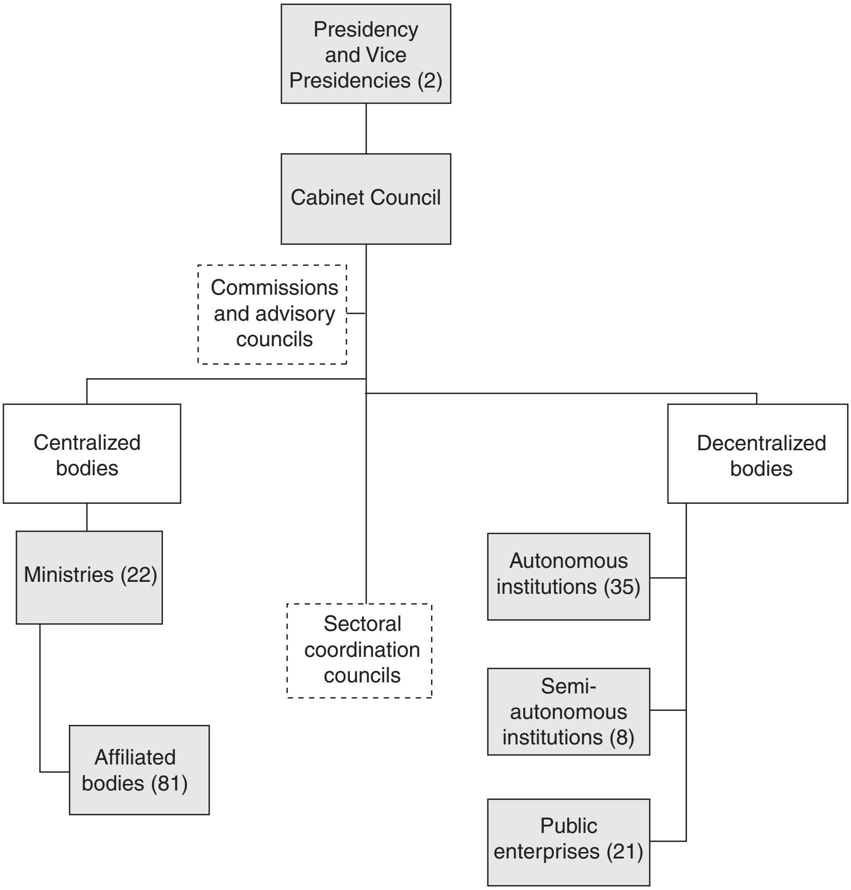

Figure 3.1 The structure of the executive power in Costa Rica (2017).

Source: Ministry of National Planning and Economic Policy (2016).

the presidency is a part of the cabinet. He has the responsibility to coordinate Executive-Legislative relations; advises the president on legal and administrative matters; and coordinates the work of cabinet members.

The formal creation of a ministry must be done by law. However, there is a fairly regular practice of opening "ministries without portfolio" by executive decree, in order to give greater weight to specific areas or policies of each administration. One of the usual ways to do this is when the president grants the rank of minister to the person who holds the executive presidency of an autonomous institution. This is currently the case of the minister of the Status of Women, who is the executive president of the *INAMU* (National Women's Institute); the tourism minister, which is the head of the *ICT* (Costa Rican Tourism

Institute); and the human development and inclusion minister, who is in charge of *IMAS* (Social Aid Institute). The three of them have been appointed "ministers without portfolio" as they are not in charge of a ministry created by law, but do have agencies, staff, and resources that allow them to develop public policies.[2]

Although all ministries are governed by the same general rules and all ministers participate as equals in the Governing Council, there are significant differences in the size and resources they handle. To cite one example, in 2014 the Ministry of Education managed more than half of the corresponding regular budget for all the ministries.

In terms of coordination and decision-making, the highest place in the hierarchy belongs to the Government Council, formed by the president and his or her ministers, which has a set of responsibilities and powers as collegiate body, different from those that correspond to each of its members.

Using portfolio allocation and design (PAD) strategies

In this section, we analyze the cabinets in the nine administrations included in the study, in order to determine the predominant type of portfolio allocation strategy that presidents have used. The analysis is divided into three subsections, corresponding to the beginning of each government, the changes that occurred during the government, and the situation of the cabinets at the end of the term.

We start by noting one of the central features of cabinets in Costa Rica: the vast majority of ministers have belonged to the president's party (Figure 3.2)

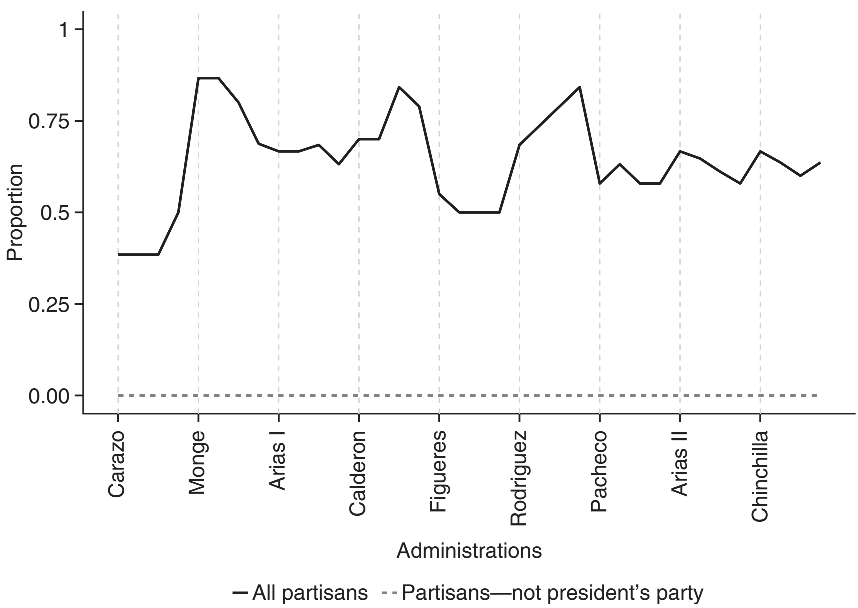

Figure 3.2 Cabinet membership by party (Costa Rica 1978–2014).

and only in a few, exceptional cases has there been a minister of a different party. Despite the lack of multiparty coalitions that convey explicit agreements between parties, the following sections look at portfolio allocation in more detail in order to determine whether presidents have used collaborative strategies that seek to incorporate other social actors in the government. For that, it is important to go beyond a dichotomous perspective (partisan/non-partisan) and look at the different profiles of ministers.

PAD at government formation

In Costa Rica, the formation of cabinets is marked by some general features which need to be considered before analyzing the specific conformation of each cabinet. First, given the strong authority of the president in making cabinet appointments, there is no political culture or institutional arrangements that promote the formation of party alliances or cabinet coalitions (Vargas Cullel, 2007), even in cases of governments with little parliamentary support from their own party.

Second, negotiation, alliances, or coalitions between parties happen routinely in the Legislative Assembly, but their purpose is to build support for specific laws, approve the federal budget, and perform other legislative functions. The recent fragmentation of the party system has further reinforced these practices, but they have occurred quite regularly since 1949 (Lehoucq, 1996). That is to say, in the context of divided government, it has been common practice to seek parliamentary alliances for specific legislative purposes (Vargas Cullel, 2007), but these alliances have not translated into a multiparty configuration of cabinets.

Third, the formation of cabinets is done through informal negotiations and agreements, mostly within the party or the electoral coalition that wins the elections, and to a lesser extent with groups outside the party or experts. The president and his closest group of collaborators propose and negotiate the positions of ministers, vice-ministers, executive presidencies of autonomous institutions, amongst others (Rojas Bolaños, 1995). At the same time, some persons are taken into consideration on the basis of their experience (experts) or their relation with economic groups (Sojo, 1995; Blanco, 2010; Ramírez, 2012). These negotiations take place in the period between the election and the beginning of the mandate. Ministers begin to exercise their position on the same day as the president.

These elements constitute the general, institutional, and political framework within which cabinets are formed. But beyond these general trends in the partisan composition of cabinets, there is considerable heterogeneity in the profiles or characteristics of cabinet ministers, including their partisan attachments, but also their expertise, and their relationship to economic or other interest groups. Moreover, many ministers have a combination of characteristics such as being experts with a strong partisan trajectory, being linked to an economic group, or having experience in the field corresponding to a portfolio. They can also be related to a group and a party at the same time.

As Figure 3.3 shows, the partisan criterion predominates in the appointment of the inaugural ministers, since most of the cases are grouped in the categories *partisan* and *partisan-expert* (*P* and *PE* from now on). Nevertheless, the presence of a significant group of *experts* (*E*) as well as *others* (*O*)—which consist mainly of ministers related to economic groups—show a complex and diverse conformation of the cabinets that could indicate other types of collaborative strategies within the same party or with groups or people related to it. However, combinations of profiles vary among administrations in terms of the relative weight of each category.

The first case (Carazo 1978–1982) varies considerably with respect to the general trend since expert ministers had the greatest weight in this administration. There are several important elements to note: (a) *Coalición Unidad*[3] was a group formed by four parties which had not had any previous government experience either together or individually; (b) they won the presidential elections after two consecutive administrations of the *Partido Liberación Nacional* (PLN) (1970–1974, 1974–1978) and although some of their leaders had had previous political experience or occupied public positions, the previous administration held by a party which was not the PLN had happened eight years before (1966–1970); (c) in its electoral campaign, *Coalición Unidad* had established a public administration renewal discourse that pressured to incorporate new authority figures in different ministries. For this reason, the president appointed

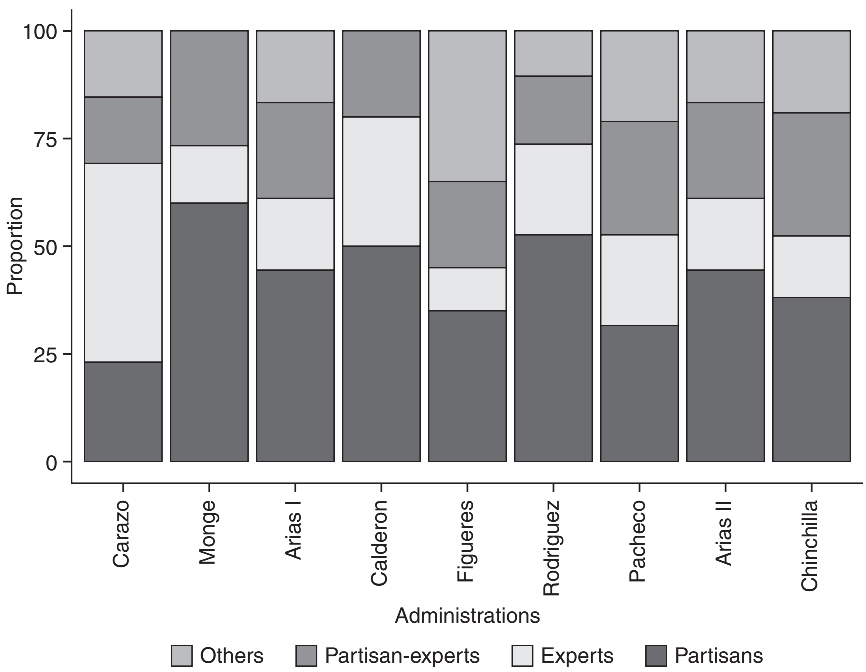

Figure 3.3 Minister profiles at inauguration (Costa Rica 1978–2014).

a considerable group of ministers who were academically or professionally recognized, but who did not have an important partisan trajectory or career in government. The second largest group was partisan, including strict partisans and partisan-experts, most of whom were close to the president and the parties that formed the winning coalition.

In contrast, the initial conformation of the cabinet varied substantially in the next administration (Monge 1982–1986). The PLN won a large majority in both the presidential and legislative elections, propelled by a strong economic crisis that had started during the previous administration and had hurt the popularity of *Coalición Unidad*, its main contender. On the other hand, the PLN was the party with the greatest electoral trajectory at that time, since it had participated in all the elections celebrated as far back as 1953 and with the triumph of 1982 got to control the executive for the fifth time. In that sense, the party had accumulated the greatest experience and party cadres for governmental management. In that context, the initial design of the Monge administration's cabinet was mainly concentrated on ministers with a partisan profile (*P*) followed by the group that combined partisan and expert characteristics (*PE*). The group of experts had a lower weight compared to the Carazo administration.

In 1986, the PLN again won the presidential elections, extending its control over the executive, now under the presidency of Óscar Arias, also gaining a legislative majority at the same time. But in spite of the continuity of the party, none of the ministers from the previous administration remained in the new cabinet. The initial predominant profiles (*P* and *PE*), however, did not vary much although they had a lower weight and the *O* and *E* categories had a greater weight, forming a more diverse cabinet than that of the Monge administration. This relates to the fact that the Arias administration marked a generational change within the PLN, so some new professional and young cadres were incorporated into different positions, including some that did not have a strong political trajectory within the party (Rojas Bolaños, 1995). In that sense, the initial conformation of the cabinet showed a broader political process that has been characterized by having a greater participation of "technocrat-politicians" (Doryan, 1990) in the government.

In 1990 and in his third campaign as a candidate (he had also been a candidate in 1982 and 1986), Rafael Ángel Calderón Fournier, the candidate of *Partido Unidad Social Cristiana* (PUSC),[4] won the presidential election. The initial formation of the Calderón administration's cabinet shows a strong weight of ministers with a partisan profile. After the three campaigns led by Calderón and a process of party structuring, the PUSC had by then many supporters who were incorporated into the cabinet. The second place was occupied by a group of experts, giving some continuity to the presence of ministers with that profile with respect to the previous administration. The third place was occupied by the group *PE*, reinforcing the partisan criterion in the general conformation of the cabinet. The PUSC also obtained a majority in the Legislative Assembly. In fact, this was the last administration that had a legislative backing during the period of study.

The next administration was Figueres Olsen's (1994–1998) of the PLN. In the initial conformation of the cabinet, a reduction in partisan weight is shown in comparison with the previous administrations, although if the categories *P* and *PE* are considered together, the weight of the party remains predominant. The group of experts is also reduced and the group of ministers with other profiles strengthened. This administration also shows a process of generational change within the PLN in partisan cadres, other profiles, and experts, the latter being assigned to posts related to economic and social policy (Sojo, 1995).

The administrations of presidents Calderón and Figueres—sons of ex-presidents Rafael Ángel Calderón Guardia (1940–1944) and José Figueres Ferrer (1948–1949, 1953–1958, 1970–1974)—constituted the end of a long-term political cycle which began in the 1940s. At the same time, after these two administrations, the weakening of bipartisanship and party identifications began: since the 1998 elections, we see a greater presence and weight of other parties in the system and, above all, a strong increase in electoral abstentionism that went from an average of 18 percent to 30 percent (Sánchez, 2002; Raventós *et al.*, 2005, 2013).

The next two administrations, Rodríguez (1998–2002) and Pacheco (2002–2006) were in charge of the PUSC, which for the first time won two consecutive elections. In Rodríguez's administration there were more partisan ministers than in the previous administration, and the same was the case for experts. The number of partisan-expert ministers stayed roughly the same. Rodriguez's triumph also meant the triumph of a faction within the PUSC with a more neoliberal orientation, which had some differences with ex-president Calderón's closest allies. Partly because of this, his initial cabinet had a more diverse conformation than Calderón's, expressed in the greater presence of ministers classified here as "other," mainly related to economic groups.

In 2002, the PUSC won the presidential elections again, although less decisively. In fact, it was necessary to hold a second round since none of the parties reached 40 percent of valid votes. In addition, the party had strong conflicts around the internal process to define its candidacy. Also, the weight of the PUSC parliamentary bench was lower. Considering this context, the initial conformation of the cabinet shows some changes compared to the previous one in terms of the representation of different minister profiles: the partisan group was reduced, while expert and other ministers increased. This could indicate the presence of a more collaborative strategy compared to the previous administration. However, if partisan and partisan-experts categories are considered together, the weight of partisanship continues to be substantial. The partisan weight was also expressed in the continuity of several ministers of Rodriguez's administration, although in charge of different portfolios.

The following administrations were led by the PLN, which took control of the government again in 2006 with Óscar Arias and in 2010 with Laura Chinchilla, the latter being the first female president in Costa Rica's history. Both administrations had a very similar structure to that of Pacheco's, in terms of a balanced distribution between the profiles of ministers in their cabinets. With some small variations among them, the partisan criterion seems to be the predominant one in

Table 3.2 Evolution of ministerial offices (Costa Rica 1978–2014)

Ministers	*Carazo (1978–1982)*	*Monge (1982–1986)*	*Arias I (1986–1990)*	*Calderón (1990–1994)*	*Figueres (1994–1998)*	*Rodríguez (1998–2002)*	*Pacheco (2002–2006)*	*Arias II (2006–2010)*	*Chinchilla (2010–2014)*
Presidency	=	=	=	=	=	=	=	=	=
Public Health	=	=	=	=	=	=	=	=	=
Public Education	=	=	=	=	=	=	=	=	=
Foreign Affairs and Worship	=	=	=	=	=	=	=	=	=
Treasury	=	=	=	=	=	=	=	=	=
Public Works and Transportation	=	=	=	=	=	=	=	=	=
Labor and Social Security	=	=	=	=	=	=	=	=	=
Economy, Industry, and Commerce	=	= (–Industry)[a]	=	=	=	=	=	= [b]	=
Agriculture and Livestock	=	=	=	=	=	= [c]	=	= [d]	=
Culture, Youth, and Sports	=	=	=	=	=	=	=	=	MCJ[e]
Justice and Grace	=	=	=	=	=	=	=	=	JP[f]
Public Security	Public Security + Interior and Police	Public Security	=	=	Public Security + Interior and Police	=	=	=	=
Interior and Police		Interior and Police	=	=					
Science and Technology			= (Non-Portfolio)	=	=	=	=	=	= (+ Telecomunicaciones)[g]
National Planning and Economic Policy	= (Non-Portfolio)	=	=	=	=	=	=	=	=
Housing and Human Settlement	= (Non-Portfolio)		=	=	=	=	=	=	=

Energy and Mining/ Environment	=	= (+Industry)	MIRENEM	=	MINAE	=	=	= (+ Telecomunicaciones)	MINAE
Foreign Trade		Expotaciones (SC)	MCOMEX	=	=	=	=	=	=
Information/ Communication	C	I	I	I				C	=
Tourism				=	=	=	=	=	=
Status of Women						=	=		=
Other Non-Portfolio		Advisory in Financing and External Debt		State Reform	State Reform, Rural Development, Regional Coordination, Specific Issues, Special Issues			Interinstitutional Coordination	Sports, Social Welfare, Decentralization, and Local Development

Notes

a In 1982, under the Law No. 6812, the competence of the industrial sector was transferred to the newly created Ministry of Industry, Energy, and Mines, a situation that persisted until 1987.

b During the first phase of the Arias administration, the ministry was in charge of Alfredo Volio, who was also the hierarch of the Ministry of Agriculture and Livestock. Arias appointed Volio as Minister of Production to lead both ministries, but without a formal merger or reform of any of them.

c During the Rodríguez administration (1998–2002) the Ministry of Science and Technology passed from its merger with the Ministry of Economy, Industry, and Commerce formed during the Figueres administration (1994–1998), to a merger with the Ministry of Agriculture and Livestock, from the start of the administration until the year 2000. At that year both ministries separated into two distinct entities.

d The Ministry of Production was formed at the start of the second administration of Óscar Arias (2006–2010) from the merger of the Ministry of Agriculture and Livestock and the Ministry of Economy, Industry, and Commerce. However, in October 2007 both ministries were once again separated.
This was not a formal (via law) but a practical merger as part of the Arias cabinet organization. But formally both ministries continued to function as such.

e From 2002 onwards, the ministry became Culture and Youth, while the Ministry of Sport opened without a portfolio.

f In 2009, through Law No. 8771, the Organic Law of 1982 (No. 6739) was reformed to change the name to the Ministry of Justice and Peace.

g Law No. 9046, of 2012, transferred the Telecommunications area of MINAET to the Ministry of Science and Technology.

the two administrations. Also during Laura Chinchilla's government (who had been vice-president and minister during Arias' administration) some ministers continued in their positions.

In general, in regard to the profiles of inaugural ministers, the data show a predominance of the partisan criterion in the formation of the cabinets, which in the Costa Rican context indicates a general orientation towards unilateral strategies. The only administration that shows a different behavior is Carazo's, where the proportion of experts and others is greater than that of the remaining two categories. More generally, the participation of groups of expert ministers or ministers with other profiles in most cabinets indicates the existence of a tendency to collaborate in all administrations, even if it is not predominant.

With respect to portfolio design, there are no major changes between administrations that point to changes in the strategies followed by the presidents when forming their cabinets. The most outstanding aspect is the practice of expanding the cabinet with one, two, or even three positions through the so-called "ministers without portfolio" or through the functional union of two ministries under one hierarch. These specific variations happened due to the emphasis given to different areas of public policy in different administrations, within the framework of a fairly stable structure of the ministries, so they cannot be considered indicators of collaborative or unilateral strategies (Table 3.2).

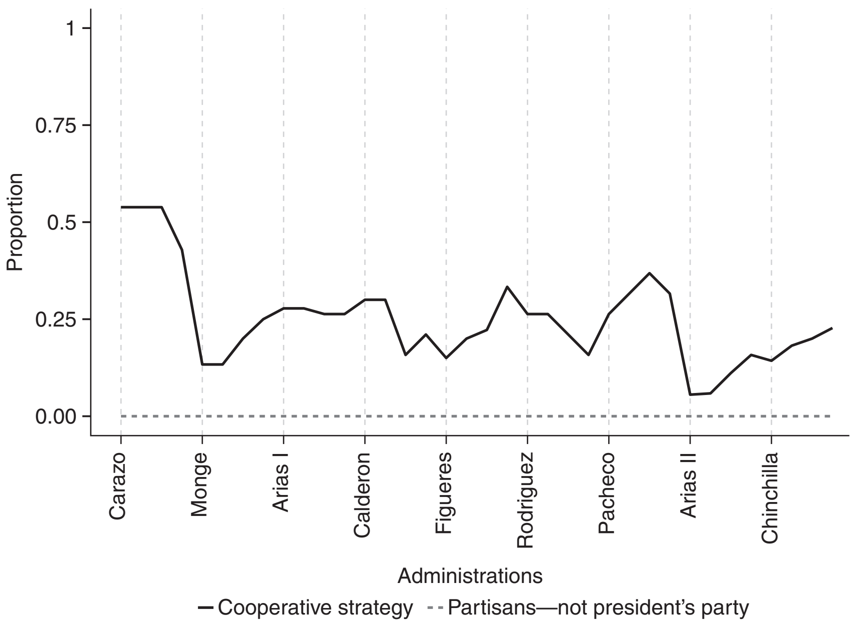

Figure 3.4 Portfolio allocation strategy (Costa Rica 1978–2014).

PAD during the government

This section analyzes the stability/instability of cabinets, as well as the profiles of ministers appointed in the course of a government's term. It seeks to identify whether these changes indicate variations in the collaborative or unilateral strategies followed by presidents over the course of their term.

First of all, it should be noted that the departure of ministers who joined the cabinet at the beginning of each administration is quite frequent. During the period we cover, 60.74 percent of the inaugural ministers left their positions before the end of the presidential term, but there are differences across administrations. The governments of Carazo, Arias I, and Calderón were more stable, as 53.8, 61.1, and 55 percent of the inaugural ministers, respectively, served for the entire four-year term. On the other hand, in the administrations of Pacheco, Monge, and Chinchilla, only 21.9, 26.7, and 28.6 percent of the inaugural ministers, respectively, lasted the entire term. The administrations of Figueres, Arias II, and Rodríguez occupy an intermediate position.

Pooling all ministers (inaugural and non-inaugural), the first Arias administration, Carazo's, and Calderón's are also the most stable, since more than 60 percent of their ministers stayed in government for a full presidential term. Monge, Arias II, and Chinchilla's administration follow them at an intermediate point. At the other end, the governments of Figueres, Rodríguez, and Pacheco were the most unstable because they were close to or below 50 percent (Figure 3.5).

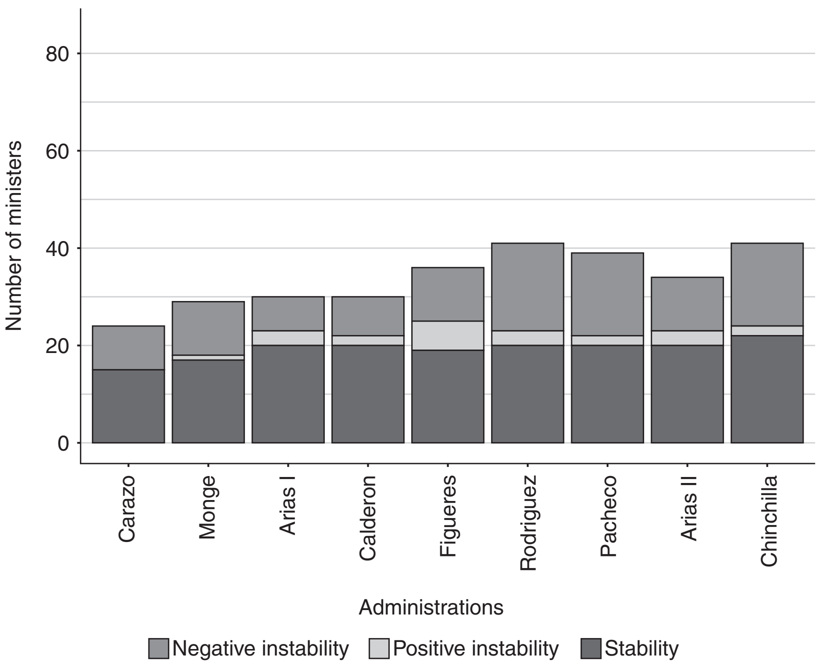

Figure 3.5 Minister turnover by type of exit (Costa Rica 1978–2014).

As a general feature, we note that the first four administrations (during the period 1978–1994) were the most stable and that during the period between Figueres and Chinchilla (1994–2014), there is less stability within the cabinets, except in the case of the second Arias administration, which has similar levels to those of the previous period.

As for the type of instability, negative instability predominates, in other words, ministers left mainly because of conflicts within the cabinet, temporary political conflicts, or institutional conflicts. Rodríguez and Pacheco's administrations had the greatest proportion of exits from office due to negative instability. In the Rodríguez government, there were a total of 18 exits, of which eight were related to institutional or external conflicts. During the Pacheco administration, there were 17 exits, of which 15 were related to conflicts. Behind these administrations are those of Carazo, Monge, and Chinchilla in regard to the weight of negative instability. At the other end, those of Arias I, Calderón, Figueres, and Arias II were the ones that had the slightest presence of this type of instability.

Figure 3.6 looks at exits from office by minister profile. Partisan ministers or those related to economic groups, stayed in office for a shorter period than the groups of experts and partisan-experts. It seems that partisan ministers or those who are part of economic groups represent a better target of attacks and questionings (i.e., a cause of conflict) than those with an expert profile. On the other hand, it is also true that among the partisan group there are exits from office owing to cabinet reshuffles and electoral calculations when there's a new campaign at the end of each administration.

Whatever the specific reason, it seems clear that *experts* and *partisan-experts* are more stable than *partisan* and *other* profiles, although there are small differences across administrations.

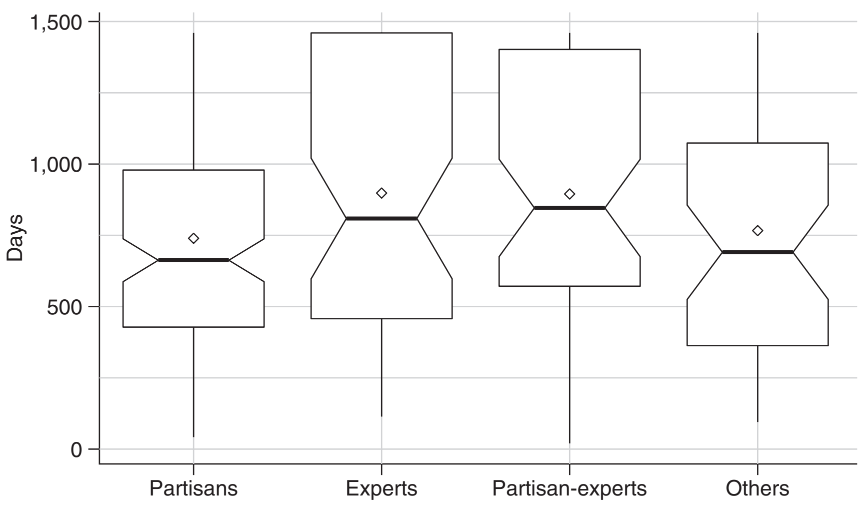

Figure 3.6 Minister duration by profile (Costa Rica 1978–2014).

On the other hand, looking at the closeness of ministers to the president, there is no clear trend throughout the period, although there are some variations between the different administrations: in Calderón, Arias I, and Chinchilla's governments, the ministers closest to the presidency (categorized as *own* for this research) had a greater stability compared to *others*. Conversely, the Monge, Carazo, Rodríguez, and Pacheco administrations had very high negative instability. On the other hand, *other* ministers have a high stability with Arias (I and II) and Monge and negative instability with Chinchilla and Rodríguez. In other words, the closeness with the president is not an important explanatory factor of the stability or instability of the cabinet.

However, in order to cover the exits from office during the governments or appoint ministers to newly created portfolios, presidents opted primarily for unilateral strategies, since 49.24 percent of those who entered the government had a *partisan* profile, and 17.42 percent had a *partisan-expert* profile. The other categories (*experts* and *others*) had a weight of 17.42 percent and 15.91 percent, respectively, throughout the period. In addition, when comparing the profiles of the ministers who entered with those of the ones who left, there were no significant changes found, so that the overall composition of the cabinets throughout the period was not altered by the new ministers who joined the cabinet throughout the term.

As a consequence, there are no significant changes in the type of cooperative or unilateral strategy followed by presidents over the entire term. However, variants can be observed according to each party (Figure 3.4). The PLN's administrations (Monge, Arias I and II, Figueres, and Chinchilla) showed some increase towards cooperation, while in the administrations of the PUSC (Calderón, Rodríguez, and Pacheco), in addition to Carazo's administration, there was a decrease in this strategy and an emphasis on unilateral strategies.

PAD at government termination

As we noted above, there is no record of government coalitions during the period under study. Also, there is no more than one government within each administration, nor early interruptions of presidential mandates.

Regarding the use of collaborative or unilateral strategies, there was little change in the termination of the governments with respect to the initial cabinet. In other words, the composition of the cabinets according to profiles at the end of each government shows some variations from the initial one but not enough to indicate a drastic change in portfolio allocation strategy.

There were three cases which presented relatively higher variations in comparison with the rest. In Carazo's administration, the *P* and *O* categories gained ground throughout the term, while the *E* and *PE* categories lost it. On the other hand, in Figueres' administration, the proportion of *E* and *P* ministers increased, to the detriment of the weight of *O* and *PE* ministers. In the case of the second Arias administration, the turn in favor of *E* and *PE* was clear, to the detriment of *P* ministers.

Across all administrations, the only thing that stands out is that the proportion of *experts* increased in six of the nine cabinets, while those of *partisan* and *partisan-experts* decreased in five. The proportion of *others* varied negatively in four cabinets, positively in two, and had no change in three. All this could indicate that presidents moved towards a greater collaborative orientation as the term progressed, but there's not enough evidence to call this a pattern. On the other hand, as noted above, variations between the configuration of the initial cabinet and the final cabinet were not strong enough to alter the partisan dominance in the composition of the cabinets.

Explaining portfolio allocation and design strategies

In institutional terms, Costa Rican presidentialism is weak in regard to the possibility of issuing decrees, in terms of the budget and the possibility of calling for plebiscites. At the same time, presidentialism can be considered strong in terms of the president's ability to appoint members of his cabinet without those decisions having to go through any kind of consideration from the legislative branch. In addition, the Legislative Assembly does not have the possibility to dismiss ministers and the vote of censure is not binding. Furthermore, in political terms, presidentialism has been weakened in recent decades by the fact that, since 1994, no president has had a parliamentary majority, since 1998 there has been an increase in electoral abstention, and since 2002 the party system went from bipartisan to moderate pluralism. This has been the main political contextual change, which points to a political weakening of governments under the same institutional framework.

This institutional duality (weakness in terms of governing matters/strength in terms of the power of appointment) is expressed in the way presidents form their cabinets. In partisan terms, there have been no coalitions, alliances, or agreements to appoint the ministers to the cabinet from parties different than the president's. Thus, Costa Rica can be described as a case of weak presidentialism with unilateral strategies, which results in cabinets formed by a single party. At this general level of analysis, the evidence contradicts the theoretical premise that weak presidents will tend toward cooperative rather than unilateral strategies.

However, considering the internal composition of the cabinets according to profiles, we find a much more complex and diverse situation. The strong predominance of the partisan criterion in shaping the cabinets, at the beginning, during, and at the end of each government, also suggests the presence of unilateral strategies in the formation of the cabinets. But although the partisan criterion is predominant, it is not the only criteria. In all the administrations, there is an important part of the cabinet which is formed by ministers of other profiles (experts and related to economic groups), which points to cooperative strategies with non-partisan actors. In general, there is a duality in institutional terms (weakness in resources to govern/strength in resources to appoint) which coincides with a combination of strategies (unilateral and non-partisan cooperation) that results in cabinets with a diverse conformation, but with a predominant role for the governing party.

This dual trend in capabilities is apparent in some other aspects analyzed in this chapter. A first one is the presence of a variable but important group of *own* ministers, who were close to the president in all administrations, which together with partisan ministers point to a unilateral portfolio allocation strategy. A second feature is that the continuity of ministers between administrations is very infrequent, actually rare, even between governments of the same party, and there is no record of a minister's continuation in an administration of a different party. Even if it is the same party, those who win the presidency are in charge of forming a cabinet with different people, appointed by them, probably to ensure loyalty and articulation of the government team, instead of giving continuity to ministers appointed by the former president. In regards to changes that happen during a president's term, the most common trend was to include expert ministers, since in six of the nine administrations their final weight was greater than the initial one. In contrast, the decrease of partisans and expert-partisan ministers was a fact at the end of five administrations. This is consistent with the trend we observe whereas partisans tend to last less in their positions than experts. In general, this could indicate that presidents use experts to reorganize their cabinets throughout their term and thereby resort to cooperative strategies.

As for the change in the party system, it has compounded presidents' institutional weakness, as they haven't counted on a parliamentary majority since 1994. However, that does not seem to become evident upon a change in the predominance of the strategies for the design and the conformation of the cabinets, although it does seem somehow to have affected their stability. In that sense, in governments without a legislative majority (since 1994) and in the period of moderate multipartyism, there is a higher instability than under a bipartisan party system, where the president's party also counted with a parliamentary majority. This instability has been predominantly negative and has been evident in a greater rotation of ministers with partisan profiles and those related to economic groups. Nonetheless, it does not seem that the stability of ministers is associated with significant changes in appointment strategies, since incoming and outgoing ministers typically have the same profile.

Concluding remarks

According to the evidence analyzed in this chapter, the case of Costa Rica generally points in a different direction than that of the theoretical premise that guided this research. In other words, taking into account that we are talking about weak governments in institutional terms, which have also been politically weakened during the period under study, there are no formal partisan coalitions or interparty agreements for the establishment of cabinets, thus resulting in monochromatic cabinets in partisan terms. A group of ministers who have a strict partisan profile and those who have a partisan-expert profile predominates in its internal conformation at the beginning, during, and at the end of each administration. From this, one can conclude that, despite being weak governments, unilateral strategies predominated in the conformation of the cabinets.

However, the analysis model followed in the research, which seeks to go beyond dichotomous visions (own-other, partisan-other), showed that single-party cabinets are diverse in their internal composition, as a result of presidents' use of a combination of prevailing unilateral strategies and complementary cooperative strategies, although the latter are not directed at other parties. That is, cooperation is not limited to a relationship between parties and may include experts or people related to economic groups who do not necessarily have a strong bond with a party.

Costa Rica raises the question of which political factors may influence the strategies of the formation and design of cabinets in presidential systems. Pertaining to institutional power, for example, we have suggested differentiating the powers to govern (decree, budget, plebiscite) from the power to appoint members of the cabinet. In the case of Costa Rica, the president has weak powers to govern, but strong powers to appoint his ministers, without any institutional counterbalance. This could be one of the aspects to be considered in future research on the subject. Regarding political power, the Costa Rican case shows that, despite the political weakening of the parliamentary power of governments since 1994, there has been no trend towards greater cooperative practices between parties for the formation of cabinets. In addition, cases of continuity of ministers from one government to another are very rare, even if they are from the same party. Therefore, other political elements such as a political culture of elites or an electoral competition centered on the presidential figure, could be influencing the predominance of unilateral practices. Those elements, together with the institutional power to appoint, favor the formation of cabinets which are predominantly configured by members who have a strong partisan bond.

Notes

1 The number of municipal posts corresponds to the elections held in February 2016.
2 This study has included the ministries without portfolio that have budgetary resources and administrative bodies of some autonomous institution as a part of the cabinet. The cases of "ministers without portfolio" that do not have these characteristics have been excluded.
3 It should be noted that *Coalición Unidad* was an electoral coalition prior to the formation of the cabinet; its purpose was not the formation of it. Although the coalition won the presidential elections, it did not obtain a majority in the Legislative Assembly.
4 The PUSC had been formally constituted in 1983, as a result of the merger of the parties which formed *Coalición Unidad* that participated in the elections of 1978 and 1982.

4 Parliamentary style

Portfolio allocation in Uruguay (1967–2015)

Daniel Chasquetti and Daniel Buquet

The 1967 Uruguayan Constitution—adopting almost the same institutional design used between 1934 and 1952—established the requirement that one or more ministers sign off on the president's decisions, that ministries can only be created by law, and ministers are accountable to the legislature. Likewise, the Constitution gave Congress the prerogative to call ministers to testify (interpellation), as well as the possibility of a vote of no confidence. For this reason, the Constitution recommends to the president that he select ministers that have support in Parliament—as Congress is often called in Uruguay. However, this precept does not mean that the cabinet should receive a confidence vote as in parliamentary regimes. It supposes that if the ministers do not have support, they will be at risk of receiving a vote of no confidence (Chasquetti *et al.* 2013).

In this chapter, we show that Uruguayan presidents tend to use portfolio allocation as a tool to build legislative support. The design of the Uruguayan presidency strongly links the appointment of ministers to the building of majorities in Congress. The appointment of ministers was conceived as a tool to negotiate support among the legislative parties with the aim of approving the government's agenda.

Even though the president's institutional power remained unchanged during the period between 1967 and 2015, we find different patterns of portfolio allocation. For that reason, we argue that some contextual factors can influence the strategy of cabinet formation, such as the size of presidential party in Congress, the popularity of government, or the evolution of the economy.

This chapter is divided into four parts. The first section presents an overview of the Uruguayan political system and its institutional features since the constitutional reform of 1967. The second part analyzes presidential strategies for cabinet formation at the beginning, during, and at the end of the government term. The third section analyzes some explanations for the use of cooperative strategies by Uruguayan presidents. The last section discusses the applicability of this volume's theoretical expectations to the study of the formation of cabinets in Uruguay.

Institutional background

Politics in Uruguay has been strongly conditioned by the features of its particular institutional design. This section analyzes the main features of Uruguayan institutions, focusing on the prerogatives and functioning of the executive branch and the cabinet.

The political system

Uruguay is a presidential regime, although some parliamentary institutions have been introduced over time. Despite academic debates regarding the status of Uruguayan institutions,[1] at present there seems to be a consensus that the regime meets the two requirements proposed by Lijphart (1994) to qualify as presidential: (i) popular election of the chief executive; and (ii) fixed and independent mandates for both the president and the legislature.

In 1997, a constitutional reform replaced the plurality system used to elect the president with a majority runoff (*ballotage*).[2] Since then, legislative elections take place simultaneously with the first round of presidential voting. The legislature is bicameral, with each of the chambers sharing similar prerogatives. The Senate is composed of thirty members—plus the vice president—elected from a single national district through proportional representation. The Chamber of Representatives is composed of ninety-nine deputies elected in nineteen multimember districts.[3] Party faction leaders are usually Senate members, and they control the careers of most legislators thanks to their power to select and sort the list of candidates, and to assign legislators to standing committees (Moraes 2008; Chasquetti 2014). Following Cox and Morgenstern (2001), it could be said that the Uruguayan Congress is a reactive legislature, whose principal function is to analyze, modify, reject, or approve the Executive's initiatives. However, almost a third of Uruguayan legislation is initiated by legislators, who exert some influence on the orientation of executive activity (Chasquetti 2014). Congress can also call ministers to the floor to answer questions (interpellation), including the possibility of censoring them. These procedures are used often but they never lead to the actual dismissal of the censored minister.[4]

In terms of executive-legislative relations, the president's constitutional powers favor his influence over the legislative agenda: total and partial veto, exclusive initiative in strategic areas (budget, taxation, pensions, etc.), the ability to declare bills urgent, and the prerogative to appoint and dismiss cabinet members (Buquet *et al.* 1998).

Until the 1970s, the Uruguayan political scene was dominated by two main parties: the *Partido Colorado* (Red Party, PC) and the *Partido Nacional* (National or White Party, PN). After the emergence of the *Frente Amplio* (Broad Front, FA) in 1971, the two-party system evolved into a moderate multiparty system with three main parties (Buquet and Chasquetti 2008). Following the 1971 election, the traditional parties began to lose votes systematically in favor to the leftist opposition, which went on to win the 2004 general election with a majority of the votes and is still in office.

Uruguayan parties have factionalized structures where internal groups are well-institutionalized organizations with powerful leaders, executive committees with regular functioning, and programmatic orientations (Buquet *et al.* 1998). As faction leaders control the discipline of the faction, party decisions are the result of internal negotiations between those leaders. Therefore, when presidents seek support for their legislative agenda, they have to deal with a large number of agents, even though the fragmentation of the party system has been moderate in the long run.

Table 4.1 shows a brief description of the governments in Uruguay between 1967 and 2015, taking into account presidential terms, types of government, features of the cabinet, and their legislative support.

The Executive

The Executive in Uruguay is exercised by the president, acting jointly with one or more ministers or directly by the *Consejo de Ministros* (Council of Ministers), the official name of the cabinet.[5] The president has the power to appoint and dismiss ministers, like in other presidential regimes. The president must choose individuals "which, by their parliamentary support, will ensure their tenure" (art. 174). This requirement assumes that if the legislature does not support the minister, it can call him to the floor and start the procedure of a vote of no confidence (censorship). Moreover, the constitutional reform of 1996 included an amendment—never applied—that gives the president the ability to ask the *Asamblea General* (General Assembly, the joint house of the legislature) for a vote of confidence for the members of the Council of Ministers (art. 174), as well as to declare that the cabinet lacks legislative confidence (art. 175). In both cases, the decision of the General Assembly has only symbolic value because it does not generate legal consequences such as usually happens in parliamentary regimes if the government falls.[6]

Even when presidents have sufficient legitimacy to promote their own political initiatives, the institutional rules constrain him by requiring an agreement with the relevant ministers. Under this decision-making structure, the Council of Ministers and individual ministers play an important role, especially when the composition of the cabinet reflects a strategic decision of the president to ensure legislative support.[7] In this case, cabinet positions typically belong to political factions or parties that are members of the government coalition. If the faction or party of the minister is in opposition to the president's initiative, the president must negotiate with that faction or party to reach an agreement or assume the risk of breaking the governing coalition. The link between the cabinet and Parliament is reinforced by other rules that favor their interaction. The Constitution does not prohibit legislators to assume the position of minister (art. 122), which encourages the designation of influential legislators, and guarantees the possibility that ministers can attend the sessions of both

Table 4.1 Institutional background in Uruguay (1967–2015)

President	*Starts*	*Ends*	*President's party**	*Other parties in government*	*Cabinet size*	*Total ministers*	*President's legislative support*	*Type of government*	*President selection*	*President mandate*
Ó. Gestido	1967	1967	PC	–	11	19	Majority	Majority single-party	Elected	Interrupted
J. Pacheco Areco	1967	1972	PC	–	11	51	Minority	Minority single-party		
J. M. Bordaberry	1972	1973	PC	PN	11	25	Majority	Majority coalition	Succession	Completed
J. M Sanguinetti I	1985	1990	PC	–	11	21	Minority	Minority single-party	Elected	Completed
L. A. Lacalle Herrera	1990	1995	PN	PC	12	32	Majority	Majority coalition	Elected	Completed
J. M Sanguinetti II	1995	2000	PC	PN	12	25	Majority	Majority coalition	Elected	Completed
J. Batlle	2000	2005	PC	PN	13	32	Majority	Majority coalition	Elected	Completed
T. Vázquez I	2005	2010	FA	–	13	27	Majority	Majority single-party	Elected	Completed
J. Mujica	2010	2015	FA	–	13	21	Majority	Majority single-party	Elected	Completed
T. Vázquez II	2015	…	FA	–	13		Majority	Majority single-party	Elected	In course

Notes

* PC = Colorado Party; PN = National Party; FA = Broad Front.

1 President Gestido passed away in office.

2 Pacheco became president because he was the vice president.

3 On June 27, 1973, President Bordaberry led a self-coup with the support of the Armed Forces.

chambers or the standing committees and take part in its deliberations (art. 180).

The cabinet

The Constitution (arts. 162–166) states that the Council of Ministers is a collective body composed of the president, the ministers, and the *secretario* and *prosecretario de presidencia* (secretary and assistant secretary, both appointed by the president). For that reason, presidents tend to nominate for these positions trusted politicians with solid legal knowledge.

While the vice president is not formally a member of the Council of Ministers, since the democratic restoration in 1985 the incumbents have been active in this organism. The vice president is elected in the same ballot as the president, he is president of the General Assembly and president of the Senate and his main function is to coordinate the relationship between the Executive and the legislature.[8] Additionally. the director of the *Oficina de Planeamiento y Presupuesto* (OPP, Planning and Budgeting Bureau), who is designated by the president, is usually part of the Council of Ministers. While her participation is not prescribed by the Constitution, presidents have incorporated the OPP director to the cabinet given the strategic functions of that office (e.g., economic development) and the legal attributes of this post which are similar to those of a minister (art. 230).[9]

In each ministry, there is a *subsecretario* or vice minister. According to the Constitution, the vice minister may participate in cabinet meetings if the minister cannot attend. In some ministries, this position is very important because the incumbent is responsible for a specific public policy.[10] Under the minister and the vice minister, there is the *director general de secretaría* and further down the hierarchy are the *directores nacionales*. The number of these positions varies according to the skills and magnitude of each ministry (Figure 4.1).

The number of ministries cannot be easily altered in Uruguay since the Constitution states that the creation or elimination of ministries should be adopted by law with the vote of a majority of the legislature (art. 174). In the past five decades only three new ministries have been created, but one was eliminated three years after its creation. Since 2005, there have been thirteen ministries.

Under the jurisdiction of nine of the thirteen ministries there are a dozen *entes autónomos* (autonomous entities) and seven *servicios descentralizados* (decentralized agencies), different public bodies that fulfill a variety of functions such as education, utilities, and regulatory agencies, which enjoy autonomy from the executive branch. The relationship between the ministry and these organisms is not hierarchical but one of supervision. Each organism has a *directorio* (directory) with three or five members appointed by the Senate (with the vote of three-fifths of members). Due to the super-majority required for the appointment, these directories usually have the participation of politicians of different parties, according to a parliamentary agreement.[11]

In sum, at least since 1985, the Council of Ministers has been composed of eighteen members: president, vice president, thirteen ministers (or their respective

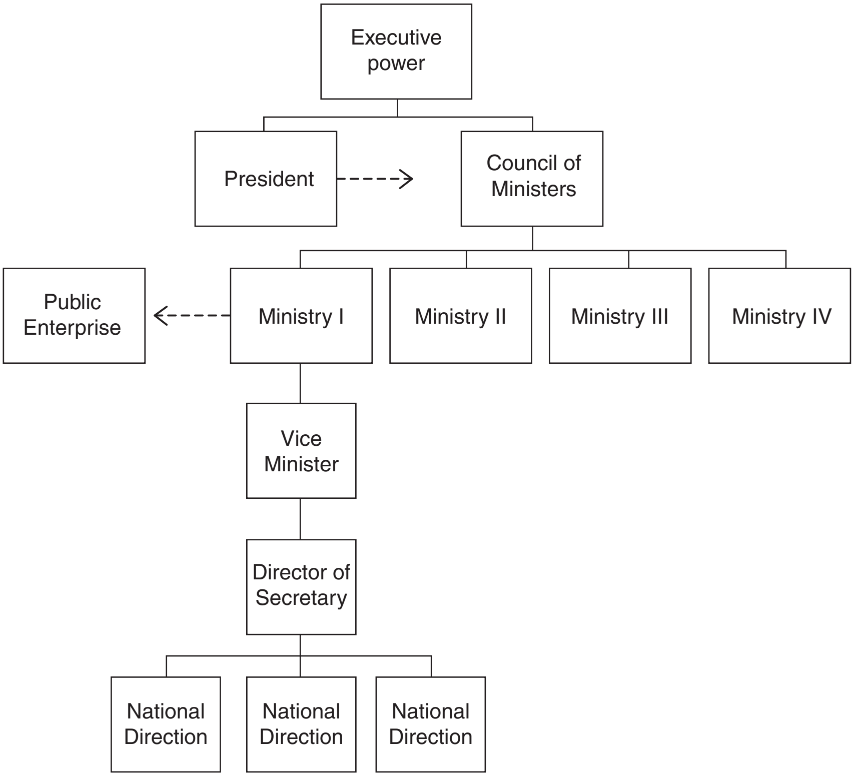

Figure 4.1 The structure of the executive power in Uruguay (2017).

vice ministers), the *secretario* and *prosecretario* of the presidency, and the OPP director.

Formally, the cabinet's internal rules shape a collective decision-making process where the president and ministers can give their views on each issue and decide by a majority vote. When a vote is tied, the president has the final say. The Council of Ministers is called by the president and can be convened at the request of one or several ministers. The quorum for meetings is a majority of members. The council can revoke any decisions taken by the president and ministers (arts. 160–167). However, it is extremely unusual that the council make decisions by vote. Normally, the president and ministers make decisions by consensus.

During the administration of President Vázquez, important institutional innovations related to the functioning of the cabinet and the planning of certain public policies occurred.[12] These new structures all involve the participation of the *Ministerio de Economía y Finanzas* (Economy and Finance Ministry), which plays a crucial role in the decision-making process. The influence of this portfolio has increased since the late 1980s, when many public policies were conditioned by the country's commitments signed with multilateral organizations such as the International Monetary Fund or the World Bank. The strong support of presidents and the tight control of budget expenditures are the keys that explain why this ministry is able to impose its preferences, regardless of which party is in government.

In sum, decision-making in the Council of Ministers is more or less as follows: the president controls the agenda by presenting relevant issues to discuss and decide. Decisions usually involve bills to be sent to legislature or decrees that the president will sign with his ministers. Also, ministers often include in the agenda some critical issues of their respective portfolios or promote projects that they want to see implemented in the future.

Using portfolio allocation and design (PAD) strategies

This section analyzes the pattern of portfolio allocation during three stages: during government formation, throughout the government's term, and at the end of the government. We argue that the legislative needs of the president determine the president's portfolio allocation strategy. As the president lacks important legislative powers and the constitution gives Congress a great power of supervision over the executive branch, cabinets are usually composed of politicians who have parliamentary support. This scenario favors negotiations between the Executive and Congress in the stage of government formation, and for that reason several presidents during the period 1967–2015 formed coalition governments, leading to majority support in the legislature.

PAD at government formation

Normally, Uruguayan presidents organize the government during the five- or six-month period between the presidential election and inauguration day. As discussed previously, presidents tend to use cabinet appointments as a strategic tool to ensure legislative support. In this way, government formation in Uruguay is very similar to a typical parliamentary coalition government, even in cases when the president has majority party support. More than half a century ago, before the possibility of winning the elections and beginning a new period of government, former President Luis Batlle Berres stated:

> the elected executive must look at the political geography of the chambers and according to the number of seats obtained by each party factions, we must to distribute the cabinet. There is nothing to invent; there is nothing to innovate; there are no new ways; only to repeat those that the democratic life of the country has taught us.[13]

The factionalized nature of Uruguayan political parties increases the number of actors involved in the government formation process. Presidents interested in building coalitions often create programmatic commissions to negotiate the agreement. Assuming that their interlocutors are not only office-oriented actors, they offer to negotiate some issues of their government agendas. Therefore, transactions revolve around cabinet portfolios, amendments to the government's program, and support in the legislature.

The size of the presidential party seems to be the central variable to understand the president's appointment decisions. When presidents have majority support, they do not need to search for other parties as partners in Congress, but when they don't have a majority, they must find supporters to ensure legislative support for the president's agenda. Additionally, as we stressed before, this is an imperative for presidents because if their cabinet lacks majority support, Congress can promote a vote of no confidence and this is a risk that all incumbents try to avoid.

The eight initial cabinets formed in the period between 1967 and 2015 reveal this kind of strategic behavior, but with different outcomes. Three presidents got the support of a majority legislative party (Gestido, Vázquez, and Mujica); two had to settle for the support of their own minority party (Bordaberry and Sanguinetti 1); and three reached the support of a majority coalition (Lacalle, Sanguinetti 2, and Batlle). However, one of the minority party governments (Bordaberry) was transformed during a few months into an ephemeral majority coalition.

All five presidents who lacked legislative majorities at the beginning of their period, tried to build a coalitional agreement. Four were successful and only one failed in this aim.[14] The process of government formation was different in all cases, although all of them involved the same players: Colorado presidents negotiated with National Party leaders or vice versa. While President Bordaberry closed negotiations on his coalition three months after taking office (June 1972), Presidents Lacalle, Sanguinetti, and Batlle negotiated their agreements before inauguration day. The coalition formed by Bordaberry was focused on a few specific items in his agenda that he needed Congress to approve (budget; national security; and the appointment of Public Enterprises Directories). The agreement of Lacalle's coalition was vague or imprecise because the partners accepted a very general document about some policies which were not later supported in Congress. Sanguinetti's government agreement was based on four main reforms (pensions, public security, fiscal deficit, and constitutional reform) that were passed by Congress without problems during his term. Finally, Batlle's coalition was based on a precise and well-articulated program with nineteen items signed by the leaders of the two traditional parties (Chasquetti 1999). In all four cases, presidents reserved certain portfolios (economy and interior) for politicians of their own party who were usually people close to them. Also, they were willing to concede portfolios to their partners linked to social policies such as health, education, housing, etc.

Figure 4.2 shows the evolution of the participation of partisan ministers in the inaugural cabinet. The solid line represents the proportion of strictly partisan ministers in the cabinet. As we can see, these ministers are a majority, but this tendency has been strengthened since redemocratization in 1985. The dotted line indicates the proportion of ministers that belonged to parties other than the president's. The significant increase of this kind of minister since 1990 (President Lacalle) coincides with the beginning of the period of formation of multiparty

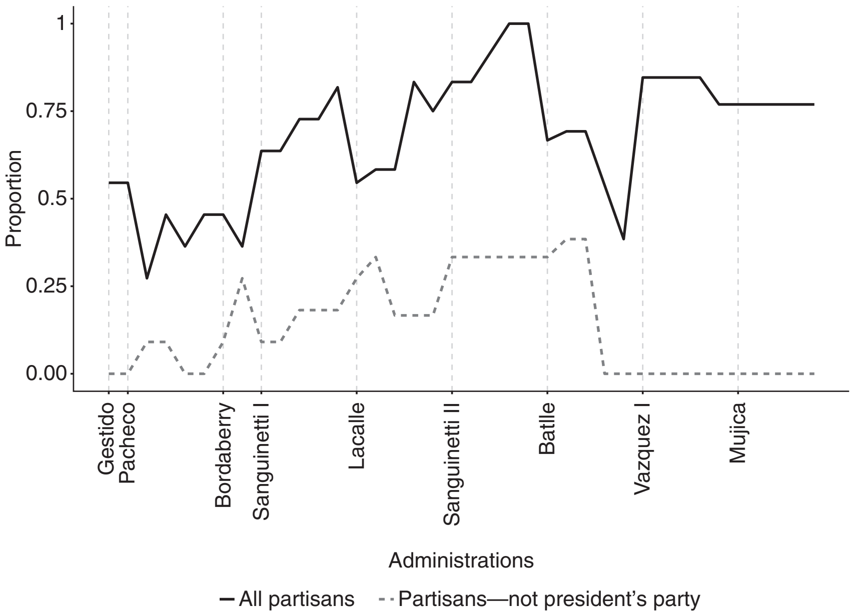

Figure 4.2 Cabinet membership by party (Uruguay 1967–1973; 1985–2015).

governmental coalitions. However, the dotted line also shows a slight increase during the previous periods (Pacheco and the first Sanguinetti administration) and that is because both PC presidents developed strategies of cooperation with Congress, appointing PN politicians that joined the cabinet without the explicit confidence of their own parties. In 2005, FA took office with majorities in both chambers and therefore the need to appoint ministers of other parties vanished.

Figure 4.3 shows the same information classified according to the profile of ministers (partisans, partisan-experts, experts, and none). The sum of strict partisans and partisan-experts represents 66 percent of all ministers. Considering only ministers appointed after 1985, partisan ministers amount to 72 percent. Expert ministers are 30 percent and ministers without a party and who are not experts are only 5 percent. Likewise, after 1985, there was a decline of expert ministers and an increase of partisan-expert ministers. This trend gives strong support to claims about the partisan character of Uruguayan cabinets.

As indicated in the first section of this chapter, in Uruguay the creation or elimination of ministries needs to be adopted by law with the vote of a super-majority of members. This rule has made the design of the cabinet rigid and made it difficult for the president to strategically change the size of the cabinet. The number of ministries has been very stable since the mid-twentieth century: in 1934, the cabinet had nine ministers; in 1967, it grew to eleven; and since 1990, it has been comprised of thirteen portfolios. Even so, in a few cases some presidents have

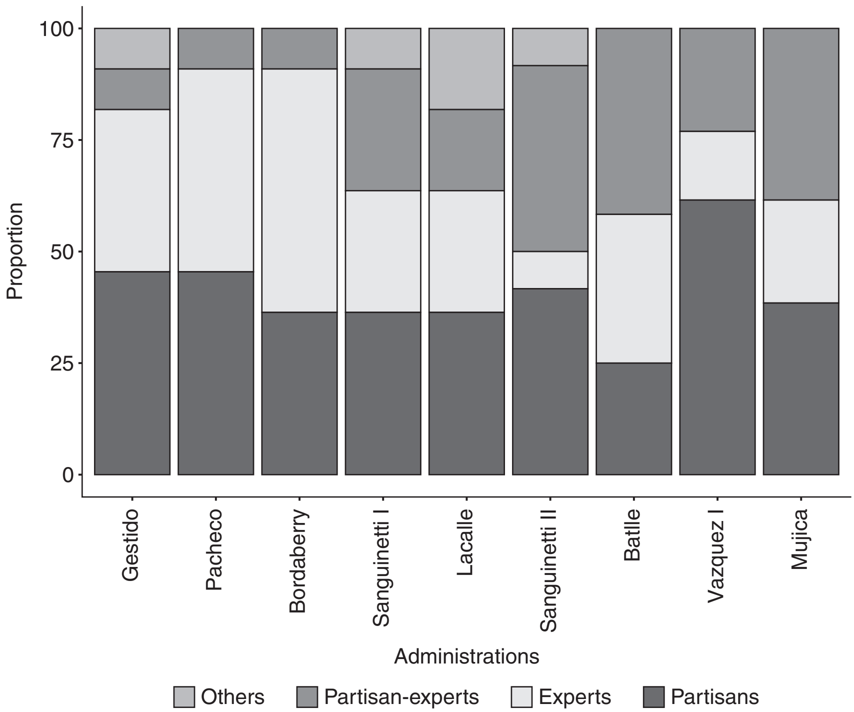

Figure 4.3 Minister profiles at inauguration (Uruguay 1967–1973; 1985–2015).

encouraged the creation of ministries to reward their potential coalition partners. In 1990, President Lacalle proposed to Congress the creation of the *Ministry of Housing, Territory, and Environment*, with the purpose of appointing a PC minister belonging to the faction led by Jorge Batlle. In 2000, President Batlle proposed the creation of the *Ministry of Sports* with the intention of designating a PN minister belonging to the faction led by Lacalle. However, when in 2002 the country faced a severe economic crisis and the PN withdrew from the cabinet, Batlle requested Congress to eliminate that ministry. In 2005, President Vázquez proposed the creation of the *Ministry of Social Development* with the purpose of giving relevance to the social policies of his government. However, some experts asserted that President Vazquez needed to create a new portfolio to include a member of the communist faction of his party and ensure the discipline of his legislative supporters. In all three cases, the creation of ministries was linked to the formation of the government and the president's need to expand the number of portfolios to be negotiated with its coalition partners. Table 4.2 shows the evolution of ministries in Uruguay during the period 1967–2015.

As noted above, the appointments of ministers have been conditioned by presidents' need to reach agreements that assure them a majority in Congress.

Table 4.2 Evolution of ministerial offices (Uruguay 1967–2015)

Gestido (1967)	*Pacheco (1968–1972)*	*Bordaberry (1972–1973)*	*Sanguinetti I (1985–1990)*	*Lacalle (1990–1995)*	*Sanguinetti II (1995–2000)*	*Batlle (2000–2005)*	*Vázquez (2005–2010)*	*Mujica (2010–2015)*
Economy and Finance (1967)*	Economy and Finance	Economy and Finance	Economy and Finance	Economy and Finance	Economy and Finance	Economy and Finance	Economy and Finance	Economy and Finance
Interior (1907)	Interior	Interior	Interior	Interior	Interior	Interior	Interior	Interior
National Defense (1933)	National Defense	National Defense	National Defense	National Defense	National Defense	National Defense	National Defense	National Defense
Foreign Affairs (1828)	Foreign Affairs	Foreign Affairs	Foreign Affairs	Foreign Affairs	Foreign Affairs	Foreign Affairs	Foreign Affairs	Foreign Affairs
Cattle and Agriculture (1935)	Cattle and Agriculture	Cattle and Agriculture	Cattle, Agriculture, and Fishing (1986)*	Cattle, Agriculture, and Fishing	Cattle, Agriculture, and Fishing	Cattle, Agriculture, and Fishing	Cattle, Agriculture, and Fishing	Cattle, Agriculture, and Fishing
Industry and Trade (1967)*	Industry and Trade	Industry and Trade	Industry and Energy (1974)*	Industry, Energy, and Mining (1991)*	Industry, Energy, and Mining	Industry, Energy, and Mining	Industry, Energy, and Mining	Industry, Energy, and Mining
Transport, Communication, and Tourism (1967)†	Transport, Communication, and Tourism	Transport, Communication, and Tourism	Transport and Public Works (1974)‡	Transport and Public Works	Transport and Public Works	Transport and Public Works	Transport and Public Works	Transport and Public Works
Public Works (1907)	Public Works	Public Works						
			Tourism (1986)†	Tourism	Tourism	Tourism Sports (2000)†	Tourism and Sports‡	Tourism and Sports
Culture (1967)*	Culture	Education and Culture (1970)*	Education and Culture	Education and Culture	Education and Culture	Education and Culture	Education and Culture	Education and Culture
Public Health (1933)	Public Health	Public Health	Public Health	Public Health	Public Health	Public Health	Public Health	Public Health
Labor and Social Security (1967)*	Labor and Social Security	Labor and Social Security	Labor and Social Security	Labor and Social Security	Labor and Social Security	Labor and Social Security	Labor and Social Security	Labor and Social Security
				Housing, Territorial Management, and Environment (1990)†	Housing, Territorial Management, and Environment	Housing, Territorial Management, and Environment	Housing, Territorial Management, and Environment	Housing, Territorial Management, and Environment
							Social Development (2005)†	Social Development

Notes
In parentheses is the year of creation, reform, or change in the name of the ministry.
* Name change but portfolio remains virtually the same.
† New portfolio.
‡ Fusion of two ministries.

Presidents without majorities have been more inclined to develop cooperative strategies than those supported by a majority party. Cooperative strategies are those in which the president appoints ministers that are non-president partisans or belong to some economic or social organization. Figure 4.4 shows that the cooperative component of the strategies in the stage of government formation (solid line) was frequent, although the unilateral component almost always prevailed with the only exception of the first two years of Batlle's government (solid line is above 0.5).

The dotted line indicates the proportion of ministers from other parties. The presidents who built coalitions gave positions in the cabinet to other parties, generating higher levels of cooperation (solid line). The presidents who ruled supported by a minority party show low levels of cooperation, since they reserved the majority of portfolios for members of their own party. Batlle was the most cooperative president of the time series as he ceded several ministries to the PN and appointed some non-party experts as ministers. Vázquez and Mujica were the less cooperative presidents at the beginning of their governments because they only appointed ministers of their own party.

PAD during the government

When we look at how the cabinets function throughout the president's term we find two very different patterns. Before the military coup of 1973, cabinet

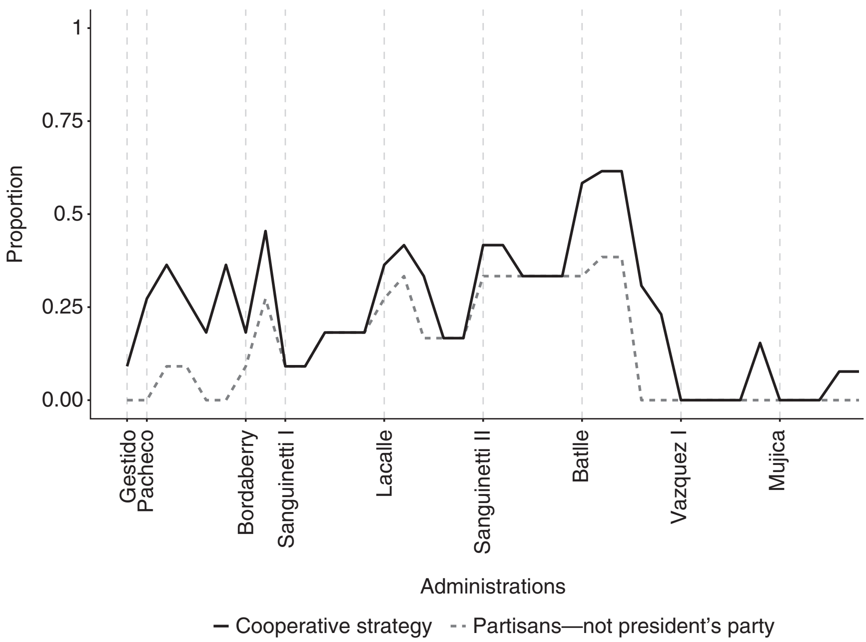

Figure 4.4 Portfolio allocation strategy (Uruguay 1967–1973; 1985–2015).

instability was very high; most ministers left the cabinet before the end of the presidential term. That instability is closely linked with the economic and political crisis that the country underwent and that led to the breakdown of democracy. The situation drastically changed with the recovery of democracy in 1985. Since then, cabinets became more stable and the minister's replacements basically responded to the breakdown of coalitions or the decision of ministers to return to Congress in time to prepare for the next election campaign.

Figure 4.5 clearly shows this trend. Between 1967 and 1973, the number of ministerial exits before the end of the administration was thirty-five per president (excluding President Gestido who died in the first year of his term). Between 1985 and 2015, that number drops to twenty-eight.

Once parties negotiate the cabinet's composition, the president cannot change the ministers without altering the political conditions of his government. Behind every minister there are legislative seats belonging to the parties or factions that support the government. This political imperative, combined with the internal rules of the cabinet, imposes a strong constraint to the president to make unilateral changes in the Council of Ministries. As we have said, despite presidents holding the key of entry and exit to the cabinet, legislative chambers have constitutional prerogatives to interrupt or complicate the survival in office of

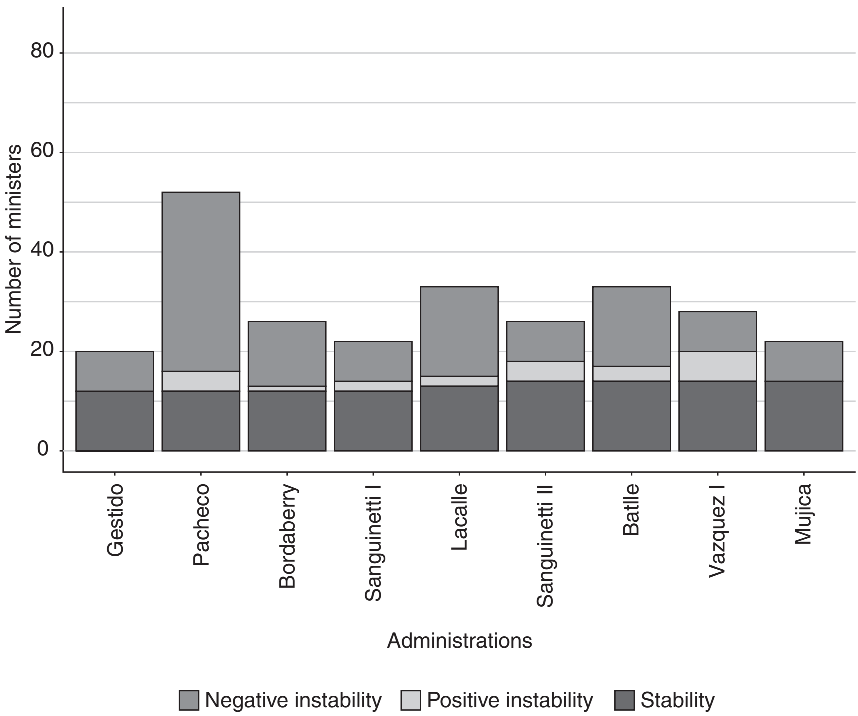

Figure 4.5 Minister turnover by type of exit (Uruguay 1967–1973; 1985–2015).

ministers. That reason may have influenced the design and maintenance of the cabinets after the recovery of democracy. Political party leaders seem to have learned the lesson and were very careful in selecting the political staff for the ministries.

In the pre-coup period, when the current Constitution was still young, this pattern of behavior was not so clear. The presidents had problems building legislative majorities even though they used the allocation of portfolios as a strategy to reach their political goals. In this regard, different contextual factors appear to have been dramatically influential in the decisions made by political actors. Among them, we can mention the economic crisis that the country underwent since the mid-1950s; the intense mobilization of trade unions and social organizations; the emergence of an armed group inspired by the Cuban revolution (*MLN-Tupamaros*) that contributed to increase the political polarization; the change of citizen preferences in the search for a government that could face the critical situation; and the growth of factionalization and fragmentation of the party system.[15] Thus, incumbents' strategies in the second half of the 1960s ranged from the adaptation to the historical pattern of ministerial appointment—parliamentary style—to the development of new forms of cooperative action that sought to accumulate resources around the president.

While the three presidents prior to 1973 built five cabinets in only seven years, presidents elected after 1985 appointed nine cabinets in thirty years. The political instability before 1973 has its correlation in Congress's attitude towards ministers. During the first administration (1967–1972), ministers had to face thirty-eight parliamentary interpellations. Throughout the fifteen months of President Bordaberry's government—which ended with the coup of June 27, 1973—his ministers received eleven interpellations. These numbers are quite different from those after 1985, when Congress held four calls to the floor on average per year.

Between 1967 and 2015, Uruguay had four government coalitions with different outcomes. The coalition of President Sanguinetti (1995–2000) was the only one that lasted the entire period. Bordaberry's coalition (1972) lost one of its main partners four months after it was formed. Lacalle's coalition (1990–1992) suffered two great ruptures (one in the second year and the other one in the third year of the mandate). And Batlle's coalition (2000–2002) was broken in the middle of the presidential term. The ruptures of the Bordaberry and Lacalle cabinets were motivated by the departure of one or several party factions, but the rupture of Batlle's coalition took place when the National Party defected (all factions agreed on that). In no case did the rupture lead to the formation of a new majority coalition; in fact, it inevitably led to minority governments.[16]

The average length of ministers in their posts is fairly high (662 days), especially if we compare this record with other countries in the continent. And figures are even greater during the post dictatorship period: while ministers appointed before 1973 remained in office for only 282 days (on average), those appointed after 1985 lasted three more times on average (884 days). The difference between both periods is an excellent indicator of the current level of political stability in Uruguay.

But not all types of ministers show the same record of permanence in their positions: partisan-expert ministers last in office 997 days on average (44 cases); non-partisan experts last 563 days (67 cases); and strictly partisan ministers, 556 days (122 cases). This data can be seen in Figure 4.6. In all administrations, strictly partisan and expert ministers remain in office almost the same time. Nevertheless, while the former account for almost half of the sample (49 percent), the latter are just one-fourth (25 percent). The ones who remain for longer in office are the partisan ministers who are also experts.

This type of ministerial profile flourished after the democratic recovery of 1985. In the previous period, only 5 percent of the appointed ministers (5 in 95) were party experts (5 percent), but in the subsequent period, this proportion increased to 27 percent (39 of 147). The data show that party expert is the more successful type of minister in terms of survival, and this is because they are better adapted to the institutional features and political needs of the Uruguayan government. Party affiliation guarantees the minister the necessary parliamentary support, while expertise makes her more adequate for the task and its legitimacy.

Following the theoretical framework of this book, we can say that the most common portfolio allocation strategy in Uruguay is unilateral, because presidents have commitments with their political parties. When designing the cabinet, they tend to appoint ministers that belong to the different factions of their own party. This strategy is used whenever the presidential party controls a legislative majority. But when presidents do not have a majority and need to negotiate a coalition with other parties, the unilateral component of the strategy is weakened, whatever the outcome of the negotiations. If a coalition is formed, the president must give some portfolios to the parties associated with the government. If coalition negotiations

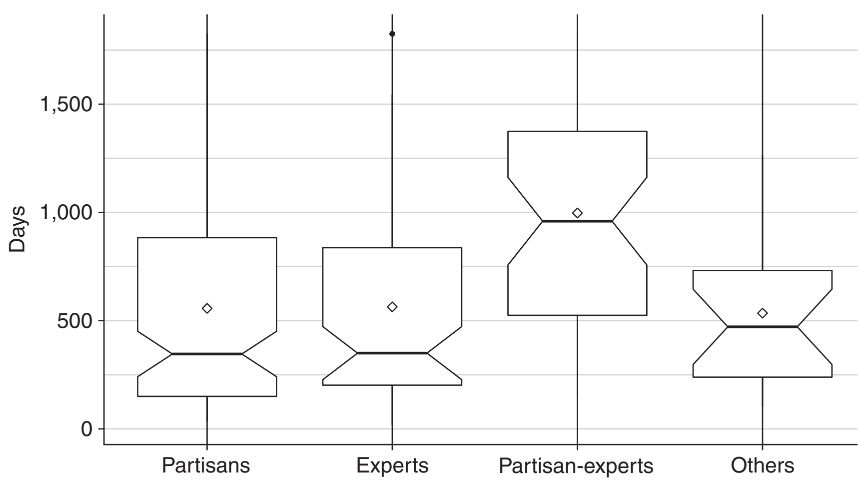

Figure 4.6 Minister duration by profile (Uruguay 1967–1973; 1985–2015).

fail, the president will try to strengthen his position anyway, either by appointing some politicians from other parties—who enter the cabinet without representing their parties—or by designating representatives of social or economic groups. In this way, there is a very powerful link between the lack of legislative majorities and the cooperative strategies of the presidents.

The data show that the most cooperative presidents were those who formed coalitions and the less cooperative those who built single-party governments. However, both types of strategies allow the president a margin of discretion to choose trusted allies. That is, presidents are not totally tied to political agreements with other parties or with the factions within their party; they also appoint political personnel who respond directly to them.

Approximately 36 percent of the ministers appointed between 1967 and 2015 were trusted staff of the president (ninety-one out of 253). Of this group, approximately half belonged to the president's own party (forty-four) and one-third were experts without party (thirty). These ministers, whether from the president's party or not, are often appointed to important portfolios. Half of the ministers appointed to the Ministries of Interior, Defense, and Economy, were politicians of the president's personal confidence (forty-four in eighty-seven).

PAD at government termination

The PAD strategies of presidents at the end of the government in Uruguay are strongly dependent on the president's strategy at the beginning of the term. Coalitional governments often terminate before the end of the term, so presidents are forced to redesign their cabinets without assuring majority support in Congress. The government crisis of October 1972, caused by the arrest of the PC leader Jorge Batlle by the Armed Forces, provoked the breakdown of the coalition government of President Bordaberry. The government crises of February 1991 and December 1993 forced President Lacalle to make major changes in his cabinet. In the first case, the PC's factions led by Jorge Batlle and Julio Sanguinetti left the cabinet; and in the second, two factions of his own party broke with the government. The government crisis of October of 2001 was originated by the withdrawal of the PN from the government, so President Batlle had to reshuffle the cabinet with members of his own party. While President Bordaberry appointed 2.3 ministers per portfolio for a short period of fifteen months, Lacalle and Batlle designated 2.4 ministers per portfolio for the entire five years of their terms.

The only major coalition that did not suffer defections was that of President Sanguinetti (1995 and 2000), who substituted only one minister based on public policy concerns (Public Health) and some others during the last two years of the term promoting them to run in the upcoming congressional election. President Sanguinetti appointed only 1.9 ministers per portfolio during his five-year term. As mentioned earlier, broken coalition governments became minority governments, generally composed by party expert ministers, since presidents were never able to rebuild the lost parliamentary support. In all four cases of coalition breakdown, presidents had lost popularity and many of their policies were heavily questioned by Congress.

Majority party governments faced fewer problems than coalition governments at the end of their mandates.[17] President Vázquez (2005–2010) made only one ministerial change based on public policy concerns (Ministry of Interior), and President Mujica made changes in four portfolios (Ministries of Social Development, Tourism and Sports, Public Health, and Housing). The major changes in this kind of cabinet occurred in the last years of the mandate when the cabinet's most popular ministers left to run in the next electoral campaign. While Vázquez appointed 2.1 ministers per portfolio, President Mujica appointed only 1.6.[18]

Explaining portfolio allocation and design strategies

The argument suggested in this book is that the institutional strength of presidents conditions the way they allocate portfolios. Powerful presidents can avoid cooperative strategies that force them to grant positions in cabinet to the opposition parties, and instead can use unilateral strategies that favor the appointment of members of their political party or their own trusted staff. In this sense, the Uruguayan case is particularly interesting because the institutional strength of the president remains constant during all the studied period, but the designation strategies vary according to political conditions. As we will show below, some political factors related to the situation of the presidential party in Congress, the popularity of the government, and the evolution of other variables linked to public policies (in particular, economic policy), are important to understand the portfolio allocation strategies in Uruguay.

Presidents and their environment

Comparatively, the 1967 Constitution gives the Uruguayan president moderate institutional powers that Mainwaring and Shugart (1997) have characterized as reactive legislative authority. The president can appoint and dismiss ministers, has a strong veto power, and exclusive legislative initiative in areas of public policy such as budget, taxes, public debt, job creation, and pensions. These prerogatives are not relevant to pass the president's agenda in Congress but can be crucial in avoiding passage of legislation different from their preferences. On the other hand, Congress has important oversight authority. Since 1967, Congress has called 209 ministers to the floor, eighty-six before 1973 and 123 after 1985. Congress also approved many votes of no confidence, causing the fall of some ministers (especially before 1973) but never creating the possibility in which the president could dissolve the legislature. The power of ministerial censure is important because it requires the president to carefully select their ministers, particularly when they do not have a disciplined legislative majority.

Although the rules governing the relationship between powers have been stable since 1967, the political, economic, and social contexts of democracy in Uruguay have varied substantially. We can identify three different scenarios, corresponding with three consecutive periods, since the adoption of the current Constitution.

The first period extends from March 1967 to June 1973 and was characterized by economic crisis and political polarization. The president Óscar Gestido—elected in 1966—passed away before the end of the first year of his mandate, when the vice president, Jorge Pacheco Areco, took office. From then on, the administration was characterized by permanent "states of exception" voted by Congress (*Medidas Prontas de Seguridad*), social protests, divisions inside political parties, and the confrontation between the government security forces and the insurgent guerrillas (*MLN-Tupamaros*). At the end of the period, President Pacheco tried to get reelected. Although the reform to allow his reelection was not approved, the president's *dauphin*, Juan Maria Bordaberry, was elected. The new president took office in March of 1972 and had to face great difficulties during the fifteen months of his government. In the middle of that year, upon request of the Executive, Congress approved the law of the State of War, which mobilized the Armed Forces to fight against the guerrillas. The transformation of the military into a powerful political actor led the president to build an alliance with them and jointly promote a self-coup in June 1973. The military dictatorship would last for almost twelve years.

The second period took place between 1985 and 2005 and was characterized by the alternation and co-government of the traditional parties. During those years, the country consolidated its democracy, implemented important structural reforms, and faced a severe economic-financial crisis in 2002. Along that period the FA was—slowly but continuously—increasing its electoral support, which in turn raised the fragmentation of the party system and led to the election of minority presidents. For those reasons, in 1997, traditional parties promoted a constitutional amendment modifying the electoral formula for presidential election (switching from plurality to majority runoff) and tested various forms of coalition government.

The third period extends from 2005 to the present and corresponds to the three leftist governments of the FA. During this last period, the country enjoyed sustained economic growth, a continuous improvement in different social indicators, and a strong political stability. Presidents counted on majorities in Congress, which allowed them to approve an ambitious social-democratic reform program.

Therefore, while the institutional power of the president remained unchanged, other political, economic, or social factors change over the three periods. These variations are relevant to understand the different portfolio allocation strategies developed by presidents.

Given that the institutional strength of the president is a constant factor, we argue that the pattern of portfolio designation in Uruguay is determined by other factors such as the minority/majority position of the president in Congress; the popularity of government; and the economic situation of the country. In short, we expect that when a president controls a legislative majority; enjoys popularity among the citizenry; and has a favorable economic context (a growing economy), they are unlikely to develop cooperative strategies in the design of the cabinet.

When a president enjoys the backing of a legislative majority, there is no need to seek partners to approve their government agenda. In that situation, the president will be more inclined to appoint ministers of their own party or trusted people. When a president is popular, they do not need to coopt leaders of economic or social groups to strengthen their public policies, nor to turn to the appointment of politicians of other parties to avoid the criticism of the opposition. In turn, when the economy grows, the president can increase public spending to benefit their constituents, and under these conditions, they will ensure that the credit that provides the outcomes of expansive policies is obtained by ministers of their party or of their personal trust.

To demonstrate this hypothesis, we ran a regression, using as a dependent variable the proportion of cooperative ministers appointed to the cabinet—that is, those ministers who do not belong to the party of the president, who are experts without a party, or who represent economic or social groups. The variable is called *STRATEGYprop* and reports thirty-eight observations in each year of government during the period 1967–2014.

As independent variables we used legislative support, popularity, and economic growth. Legislative support (*SUPPORT*) measures the proportion of seats controlled by the presidential party in the lower house. Popularity (*POP*) measures favorable government assessment. In the absence of pre-1973 surveys, we have chosen to use inflation rate as a proxy variable. Several studies show that in Uruguay, at least between 1985 and 2010, inflation rates evolution correlates negatively with the popularity of governments (Luna 2002: 143; Zubieta 2010; Selios 2011). Finally, the variable economic growth (*GDP*) refers to the variation of GDP in the year prior to the observation. Our expectation was that the greater the legislative support, the lower the inflation and the greater the economic growth, the lower the proportion of cooperative ministers.

The results of the regression are shown in Table A4.1. All three coefficients report the expected signs and SUPPORT and GDP variables show a significant level of association. We do not discard that the POP variable does not offer relevant results due to the type of operationalization we have done. In any case, we cannot establish a strong link between presidential popularity and the cabinet design strategy, as is the case of the other factors.

The significant coefficients show that: (i) for each percentage point of increase of the legislative share of the president's party in the lower house, the proportion of cooperative ministers in the cabinet drops by 1.018 percent, and (ii) for each percentage point that the economy grows, the proportion of cooperative ministers in the cabinet decreases by 0.015 percent.

Therefore, it is possible to think that some contextual factors matter when appointing cabinets. As indicated in the first section, Uruguayan institutional rules force presidents to consider the distribution of seats between parties when they decide the characteristics of their governments. Presidents without legislative majorities tend to build coalitions with other parties or, alternatively, allocate portfolios to people who come from economic or social groups to increase the strength of their government. On the contrary, presidents with legislative majorities will be free to designate ministers of their own party or people they trust. When economic growth is added, the unilateral strategies are even more likely. Since they do not need extra partners in Congress, presidents will ensure that the government is led by politicians of their own party who can control the policies and claim credit from the successes before their voters.

Concluding remarks

Uruguayan presidentialism is a worthwhile case to study to test the arguments advanced in this book. During the period 1967–present, Uruguay went through different political conjunctures maintaining the same institutional framework. Before 1973, it lived the deterioration and breakdown of democracy; after 1985 it consolidated its democratic regime and processed a set of structural reforms; and in 2002, Uruguay suffered the most severe economic crisis in the last 100 years. Nowadays, its political regime is considered by international political and academic observers as a full democracy which stands out for its stability and results.

The constitutional reform approved in 1966, abolished the peculiar collegiate government regime and set up an executive power led by a president and a council of ministers. During the first seven years of the Constitution, government performance was extremely complicated. The country was immersed in a deep economic crisis and its political system suffered unprecedented levels of polarization. Elected presidents developed strategies of cooperation with parties in Congress, and sometimes appointed people of their personal trust or representatives of economic or social groups. Ministers lasted a brief time in office on average, and often came under attack from Congress.

With the return to democracy in 1985, the political system adopted quite stable patterns of functioning. The fragmentation of the party system found a balance around three parties, and the elected presidents accepted the incentives and restrictions imposed by the institutional framework. The ministers' tenure was three times higher than in the period before 1973. In response to highly fragmented party systems, traditional parties used cabinet allocation as a key resource in negotiations over government formation. This period shows the highest level of cooperation between presidents and parties in Congress. Our data show that cooperation strategies depended mainly on the legislative size of the presidential party and the level of economic growth.

This chapter also shows that the profile of ministers is important to understand their role and duration in office. Partisan experts are the ministers that most successfully remain in office. This may be due to the fact that they have two important features: they are partisans, which allows them to have support in Congress; and they are specialists, which allows them to fulfill their functions efficiently. The appointment of such ministers is recorded particularly after the recovery of democracy in 1985. It is likely that such a profile has been found as a result of the transactions that led to coalition governments. Since presidents must legitimate their appointments, the designation of an expert shows the public that the agreement is not just for political positions. However, after 2005, when party government came back, this ministerial profile continued to prevail perhaps because of its better performance.

Therefore, the Uruguayan case clearly illustrates the importance of the political and institutional context for understanding portfolio allocation design. The institutional strength of presidents does not determine by itself the strategy to appoint ministers. It is necessary to consider other contextual factors, such as their legislative status in the chambers and the economic and social conditions.

Appendix

Table A4.1 Determinants of cooperation strategies in the design of the cabinet (simple linear regression)

	Coef.	*Std. Err.*	*T*	*P>|t|*
SUPPORT	–1.018	0.2401	–4.24	0.000
POP	–0.0001	0.0005	–0.33	0.746
GDP	–0.0159	0.0058	–2.75	0.009
Constant	0.6767	0.0987	6.85	0.000

Notes

VD = STRATEGYprop (proportion of cooperative ministers in cabinet).

Number of obs = 38; F(3, 34) = 13.77; Prob > F = 0.000; Adj R squared = 0.5087.

Notes

1 For instance, Gross Espiel and Arteaga (1991) characterized the regime as a "semi-presidentialism"; Sanguinetti and Pacheco Seré (1970) as a "neo-parliamentarism"; Gonzalez (1993) and Sartori (1994) as "quasi-presidentialism"; Lanzaro (1993) as a "neo-presidentialism" and Pérez (1989) as an "attenuated presidentialism."

2 Between 1922 and 1997, Uruguay used the plurality system to elect the president or the executive collegiate (1952–1966).

3 Even though the allocation of representatives is made through nineteen constituencies, the share that corresponds to each party depends proportionally on the national share of votes of each party.

4 A third of the members of any of the chambers may summon one or more ministers to the floor in order to question him. The Congress can also promote a motion of no confidence which must be voted on in one of the chambers by a majority of its members, so that the *Asamblea General*—the joining of both chambers—considers and votes the censorship. If the support of the vote of no confidence is less than two-thirds of the members of the General Assembly, the president can reject it for a new parliamentary consideration. If in this new instance, the vote exceeds two-thirds of the Congress members, the minister must leave office; but if the vote of no confidence reaches a majority below two-thirds, the president can maintain the minister and dissolve the Assembly calling to early legislative elections.

5 The Council of Ministers is the institutional heir of the collegiate government that was in force between 1919 and 1933. The Constituent Assembly of 1934 adopted a

new formula that reestablished the classic presidential regime but with a collective body of ministers which conditioned the president free performance (Chasquetti 2002).

6 Neither institutional devices were used in this way.

7 For example, in November 2013, President Mujica wanted to sign a decree annulling the legal actions of the "Department of Revenue" against a large private company. The president thought that the government would lose the case in court so it was convenient to leave his claim aside. However, Finance Minister Fernando Lorenzo, belonging to a faction different from that of Mujica, thought otherwise. After more than a month of meetings and discussions, the Economy minister granted the president's request and signed the decree.

8 During the legislative process, the vice president receives government bills and distributes them to the chambers for deliberation and vote. The vice president assumes the role of monitoring the legislative process by acting as the main agent of the government within the legislative assembly.

9 The *Oficina de Planeamiento y Presupuesto* directly depends on the Presidency of the Republic. It is headed by a committee with representatives from the ministries involved in the development and the director is appointed by the president. The director must meet the attributes required for being a minister. The main function of the *Oficina* is to assist the Executive in policy making, as well as in planning decentralization programs.

10 For instance, in the *Ministerio de Trabajo y Seguridad Social* (Ministry of Labour and Social Security) the minister deals with issues related to labor policies while the vice minister deals with pension policies.

11 Since 1917, the Uruguayan political system has used three ways of appointing the directors of the *entes autónomos*. The first has been the most common, known as *coparticipación*, where the ruling party agrees with opposition parties to include directors whose main function is to oversee the majority performance. The second was that of the Constitution *colegialista* (1952–1966) which clearly stated that three directors must be for the majority party and the other two for the second party. The third way was used between 1990 and 2005, when presidents tied the appointment of directors to the coalition formation process, establishing that these positions only could be taken by parties or factions which participate in government. The constitutional reform of 1996 recognized this standard, giving the president the power to remove the directors of the partner parties, with the goal to rebuild the government coalition, as a consequence of a declaration of lack of legislative support for the cabinet (art. 175).

12 In 2005, he built the *Gabinete de la Innovación* with the participation of four ministries (*Educación y Cultura*; *Economía y Finanzas*; *Industria, Energía y Minería; y Ganadería Agricultura y Pesca*). In 2007, the *Gabinete Social* was created which comprised seven ministries (*Desarrollo Social*; *Economía y Finanzas*; *Educación y Cultura*; *Trabajo y Seguridad Social*; *Salud Pública*; *Turismo y Deportes*; and *Vivienda*), the *Oficina de Planeamiento y Presupuesto*, and the Chief of Congreso de Intendentes (Majors Congress). In 2009, Vázquez launched the *Gabinete de la Producción* consisting of five Ministries (*Economía y Finanzas*; *Industria, Energía y Minería*; *Trabajo y Seguridad Social*; *Ganadería, Agricultura y Pesca*; and *Turismo y Deportes*). These structures were kept under President Mujica's administration.

13 Speech pronounced by Luis Batlle Berres on March 27, 1954 in the city of Mercedes, at the beginning of the electoral campaign (Rompani, 1965: 235).

14 In 1985, President Sanguinetti offered to the other parties participation in the cabinet in order to strengthen the new democracy, but both the PN and the FA rejected that possibility.

15 Several of these factors were crucial to boost the reform of the collegial Constitution of 1952, which was seen as a text that could not guarantee the prevalence of a strong government. The reform was a programmatic attempt of the traditional parties to

concentrate power around the figure of the president, maintaining at the same time the balance and institutional constraints that the Uruguayan presidentialism had developed throughout the twentieth century.

16 The cabinet designated by Batlle after the cabinet crisis (2002) was composed exclusively by politicians of his own party. Bordaberry and Lacalle continued to govern with the partners that remained in cabinet. In both cases, the negotiation processes to rebuild the agreement were fast and based on the desire of partners to continue supporting the presidential program.

17 President Pacheco's administration (1968–1972) was the only case of a majority party cabinet that did not conform to the overall pattern of stability. His government lost popularity very quickly in a context of a severe economic crisis and an intense social mobilization. Under such conditions, President Pacheco developed cooperative (but non-partisan) strategies, replacing strictly partisan ministers with experts who had the support of economic groups or the Armed Forces. President Pacheco appointed 3.6 ministers by portfolio during the four years of his government.

18 The difference between both presidents was that Vázquez had more ministers willing to be candidates in the following elections and for that reason had to relieve them in the position.

5 Together we govern

Portfolio allocation in Chile (1990–2014)[1]

Octavio Avendaño and Mireya Dávila[2]

This chapter analyzes presidential strategies of portfolio allocation in Chile between 1990 and 2014. In the Chilean political system, presidents have been responsible for organizing their cabinets in such a way as to preserve a political balance between their coalition partners. Since the first democratic government of Patricio Aylwin, presidents have mostly governed using party members, with very few independents and a modest number of experts. This was true of the four *Concertación* governments (*Concertación de Partidos por la Democracia*, 1990–2010). The center-right president, Sebastián Piñera (2010–2014), governed with many more independents; in this respect, he was comparable with the earlier rightwing president, Jorge Alessandri Rodríguez (1958–1964). The *Concertación* presidents followed several informal rules in distributing power among coalition party members; these originated during the Aylwin administration as a means of increasing coalition governability and, given their success, there was an incentive to stick to these informal rules.

As shown in this chapter, presidents had substantial powers, as guaranteed under a constitution that aimed to strengthen the presidential regime. However, we will show that presidents, nevertheless, had to safeguard the partisan balance within each cabinet. This did not involve a dynamic of negotiations between the president and the parties who made up the government coalition, but rather the presidents themselves opted for balance in the coalition in exercise of their autonomy. This was the tone of the *Concertación* governments, and it contrasted with the criteria and strategies that came into play during the administration of Sebastián Piñera, from the center-right coalition, Coalition for Change (*Coalición por el Cambio* 2010–2014).

This chapter begins with an overview of the Chilean political system since the return to democracy in 1990 and its institutional features. We will discuss some of the characteristics of the cabinets in this period, including the finance minister's power over the other ministerial departments. In the second section, we analyze the formation of cabinets in the five administrations between 1990 and 2014. We note, in particular, some differences between the four *Coalición* cabinets and the government of Sebastián Piñera from March 2010 onwards. In the third section, we examine the strategies used by the presidents to organize their different cabinets.

Institutional background

In this section, we briefly present the main institutional characteristics of the Chilean political system, which has been presidential since the country's independence from Spain. This institutional design survived the changes introduced by the military between the coup in 1973 and the return to democracy in 1990. Nevertheless, the military also introduced rules that favored the preservation of a protected democracy that over-represents its political and social constituencies.

The political system

Except for the so-called Parliamentary Republic between 1891 and 1924 (which was really a semi-presidential system), Chile has always had a presidential regime, with political power divided between the executive branch, a bicameral legislature and the judiciary. In practice, however, the president has been a key actor since the very beginning of the Republic (Faúndez, 2011).[3] The president has certain powers in relation to appointments at a national and subnational level (Altman, 2006). The president also has important legislative powers. Considering the nature of the political process since 1990 and especially up to 2005, presidents and ministers have played an active role in the process of negotiating and creating agreements with the opposition (Toro, 2007; Siavelis, 2009).[4]

Much of Chile's democratic institutional design is a legacy of the political and economic visions of the dictatorship that held power between 1973 and 1990 (Garretón, 1995, 2012; Huneeus, 2000, 2014). Its aim was to reduce the role of state in the economy; create a private sector in areas like health, education and pensions; and implement a 'protected' democracy. One of the chief mechanisms of the latter was an electoral system that favored parties that supported the military's agenda. During his rule, Augusto Pinochet established a binomial system with the aim of avoiding political fragmentation and the proliferation of political parties, as well as political polarization (Gamboa, 2006). For more than 15 years, this electoral system tended to over-represent the second political majority, made up of center-right political parties. The system was one of the factors that helped maintain democratic institutions during the 1990s, since it forced different political parties to negotiate political agreements and coalitions. However, until 2006 there was little political competition outside the two major coalitions: the *Concertación* from the left and the *Alianza* from the right. Consequently, the stability of the political system was more apparent than real (Altman and Luna, 2011; Huneeus, 2014) because it did not reflect or express the Chilean electorate's increasing disaffection and loss of party identification; nor was it capable of representing critical opinions of the economic and social model established by the military during the 1970s.

Other institutions favored this protected democracy. First, the 1980 Constitution established several restrictions on more reformist actors. Second, it gave the armed forces the role of protecting institutions and introduced special quorums to change important political and economic aspects. Third, it established a

Constitutional Tribunal to analyze the constitutionality of laws approved by Congress. The composition of this tribunal affected the balance of power established in Congress. Finally, until the reforms of 2005, the constitution provided for designated senators.[5]

Since 1990, the most important actors in the presidential system have favored an incremental policy change. This was possible because of the willingness of some political actors to negotiate away some of their preferences to obtain possible change. In this same vein, some of the most important reforms involved changes to the military-inspired 1980 constitution, changes that came into effect in 2005 during the Lagos administration (Garretón, 1995; Huneeus, 2000; Siavelis, 2009). The reforms effectively eliminated the so-called 'authoritarian enclaves' that weakened democratic representative institutions and prevented the occurrence of more profound democratic reforms, a demand of important social sectors. The reforms approved in 2005 included eliminating the designated senators, strengthening the Chamber of Deputies' supervisory attributes and reducing the presidential term from six to four years. Despite these important changes, other problematic topics, in particular the binomial electoral system, were left untouched.

As Table 5.1 shows, there were five governments between 1990 and 2014, four led by the *Concertación* and one by the Coalition for Change (*Coalición por el Cambio*). While the *Concertación* presidents had a majority in the Chamber of Deputies, Piñera's government did not. It is interesting to observe that cabinet size was stable throughout the period. In the case of the *Concertación*, the coalition's size (its number of parties) reduced to four main parties. There were several explanations for this: some of the parties that formed this coalition in the 1990s were small movements like the *Partido Alianza de Centro* (PAC); other small parties (like the *Partido Humanista* [PH]) had ideological differences with the *Concertación*; and some parties merged, like the Radicals and the Social Democrats, creating the *Partido Radical Social Demócrata* (PRSD). The first four governments were able to maintain the original coalition, although the number of parties from 1990 onwards declined due to fusions between some smaller parties, like the Radical Party (PR) and the Social Democrats (SD), or the Christian Left (IC), and the Socialist Party (PS). The Humanist Party (PH), which had no ministerial positions and little electoral representation, was the only party to withdraw from the original coalition.

The Chilean right is formed mostly by political parties that were formed during the dictatorship. The Independent Democratic Union (*Unión Demócrata Independiente*, or UDI), a conservative Catholic party, was created in 1983 by a small group of political leaders with links to the Catholic University.[6] The National Renovation Party (*Renovación Nacional*, or RN) was created in 1987 and had a more liberal and secular stance than the UDI.[7] Both defended the dictatorship and the social, political and economic changes introduced in those years.

Table 5.1 Institutional background in Chile (1990–2014)

President	*Date*	*President's party*	*Other parties*	*Cabinet size*	*Total ministers*	*Type of gov. (deputies)*	*President appointment*	*President mandate*
Patricio Aylwin	1990–1994	PDC	PPD, PS, IC, PH, PRSD	19	27	Majority	Elected	Complete
Eduardo Frei	1994–2000	PDC	PPD, PS, PRSD	21	54	Majority	Elected	Complete
Ricardo Lagos	2000–2006	PS-PPD	PDC, PRSD	20	53	Majority	Elected	Complete
Michelle Bachelet	2006–2010	PS	PDC, PPD, PRSD	21	46	Majority	Elected	Complete
Sebastián Piñera	2010–2014	RN	UDI	22	52	Minority	Elected	Complete

The executive branch

In Chile, the executive branch consists of the president, ministries, regional governments (*intendencias*), governors (provinces), municipalities (local governments), the Office of the Comptroller General, the armed forces, the police, the Central Bank, the National Television Council and public enterprises[8] (Figure 5.1). Agencies have different relationships with the executive depending on whether they are centralized or decentralized.[9] For example, the president nominates the Comptroller General for appointment by Congress, which implies prior political negotiations. The same occurs with the members of the National Television Council. Decentralized public agencies have their own budget, while centralized ones do not. In general, the climate among public agencies is more one of competition than cooperation.

In Chile, appointments and dismissals to cabinet posts and at the undersecretary level are an exclusive presidential prerogative. In comparison to the period before 1973, since 1990 political parties have had less influence on cabinet appointments (Dávila, 2011). Before 1973, to gain ministerial appointment politicians had to have permission from their parties (a "party pass," or *pase partidario*). After 1990, this informal rule no longer applied. While presidents may consider the opinions and proposals of party leaders, they have complete autonomy to appoint cabinet

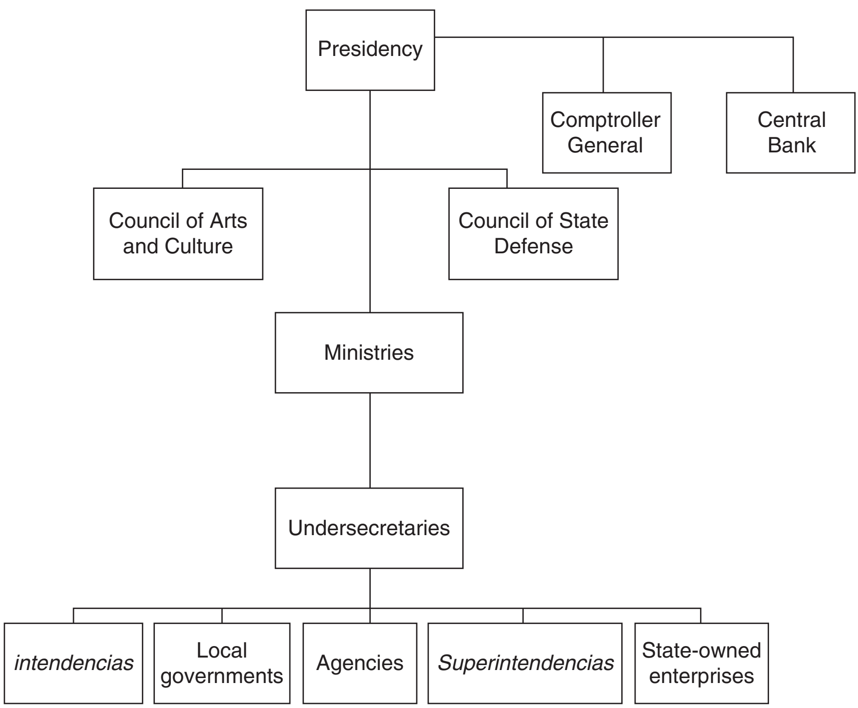

Figure 5.1 The structure of the executive branch in Chile (2017).

members. In this system, presidents create an inter-party balance among coalition party members.

Despite the powers of the presidency, reforms have given Congress some authority to oversee the process. A 2005 constitutional reform increased the regulatory capacity of the Chamber of Deputies by allowing it to impeach ministers if they exceed their mandate, break the law or neglect their duties. Between 2006 and 2013, impeachment proceedings against two ministers—Yasna Provoste, Minister of Education during Bachelet's first administration, and Harald Beyer from the same ministry under Piñera—were approved, leading to their ouster from the public sector for the next five years.

To promote the government's political agenda, ministers are in constant communication with members of Congress. They regularly attend specific committees in which senators and deputies discuss the bills proposed by the executive. They may also be invited to present a specific bill to the Chamber of Deputies or to the Senate. The Ministry of the Secretary General of the Presidency is in charge of coordinating the government's legislative agenda with the different areas of ministries as needed.

Cabinets

The president has the power to appoint and dismiss the cabinet and other positions within the executive at will. Although the number of ministries itself is fixed by law and can only be changed with the approval of Congress, elected governments have created new ministerial portfolios that reflect the emergence of new issues (see Table 5.2). An example of this is the National Women's Service, which has ministerial rank, and the Ministries of Energy and the Environment. Moreover, there are ministries that have no portfolio, but are state agencies or public services with senior officials in charge who hold ministerial rank. Until they became ministries, this was the case in the 1990s of the Development Corporation (*Corporación de Fomento*, or CORFO), the National Women's Service (SERNAM) and the National Environment Commission (CNMA), among others.

In terms of decision-making, there are several ways in which the president coordinates with the cabinet. One type of meeting is the Cabinet Council (*Consejo de Gabinete*). These cabinet meetings are held when the president chooses, not necessarily on a regular basis, and every minister must attend. Their main purpose is as a means of communicating to the public that the government is dealing with one or more of the specific issues on its agenda. Another type of meeting is the so-called Ministers' Council (*Consejo de Ministros*) that a ministry organizes to deal with a specific public policy issue. The main purpose is to coordinate the work of different ministers involved in specific policy areas.

A regular and weekly meeting—the Political Committee (*ComitéPolítico*)—is held as a means of coordination, made up of the president, the so-called political ministries (the Ministry of the Interior, the Ministry of the Secretary General of the Presidency and the Ministry of the Secretary General of the Government) and the Minister of Finance.[10] This meeting is held on a weekly basis and its

Table 5.2 Evolution of ministerial offices (Chile 1990–2014)

Aylwin (1990–1994)	*Frei (1994–2000)*	*Lagos (2000–2006)*	*Bachelet (2006–2010)*	*Piñera (2010–2014)*
Agriculture	Agriculture	Agriculture	Agriculture	Agriculture
Defense	Defense	Defense	Defense	Defense
Development Corporation (CORFO)	Development Corporation (CORFO)			
Development and Planning	Development and Planning	Development and Planning	Development and Planning	Development and Planning/ Social Development
Economy	Economy	Economy	Economy	Economy; Development and Tourism
Education	Education	Education	Education	Education
			Environmental National Commission	Environment
Finance	Finance	Finance	Finance	Finance
Foreign Relations	Foreign Relations	Foreign Relations	Foreign Relations	Foreign Relations
General Government Secretary	General Government Secretary	General Government Secretary	General Government Secretary	General Government Secretary
General Secretary of the Presidency	General Secretary of the Presidency	General Secretary of the Presidency	General Secretary of the Presidency	General Secretary of the Presidency
Health	Health	Health	Health	Health
Housing and Urbanism	Housing and Urbanism	Housing and Urbanism	Housing and Urbanism	Housing and Urbanism
Interior	Interior	Interior	Interior	Interior and Public Security
Justice	Justice	Justice	Justice	Justice
Labor	Labor	Labor	Labor	Labor
Mining	Mining	Mining	Mining	Mining
National Energy Commission	National Energy Commission	National Energy Commission	National Energy Commission	National Energy Commission
National Territory	National Territory	National Territory	National Territory	National Territory
		National Council of Culture	National Council of Culture	National Council of Culture
			National Environmental Commission	
Public Works	Public Works	Public Works	Public Works	Public Works
Transportation and Telecommunications	Transportation and Telecommunications	Transportation and Telecommunications	Transportation and Telecommunications	Transportation and Telecommunications
Women's National Service	Women's National Service	Women's National Service	Women's National Service	Women's National Service

Source: own elaboration.

purpose is to coordinate the government's agenda for the following week. All of these organizational structures are informal and have been traditionally linked to each president's decision-making style. In 2000, for example, President Lagos created the so-called *Segundo Piso* (Second Floor) on which he established two units, one dedicated to government strategy and the other to daily public policies. In fact, some authors have highlighted the paradox that, although Chilean presidents have had a great influence on the political system, their presidencies have been weakly organized (Rehren, 1998).

One of the specific features of Chilean cabinets is that, although ministries are specialized in subjects or areas, not all of them are equally important from a political point of view. The Ministry of Finance is the most important, since it has the power to define budgetary policies to be channeled through other portfolios. In this respect, the Minister of Finance has become a key actor with the power to veto, decide and implement public policies. While formally all cabinet posts have the same weight, in practice the Minister of the Interior, who takes over as vice-president when the president is out of the country, and the Minister of Finance are of particular strategic importance to the country's financial and political stability. Several authors (Silva, 2008; Dávila, 2011; Arana Araya, 2013) attribute the importance of the Ministry of Finance over the rest of public administration and its policies to the Chilean economic model, to which macroeconomic policies and ordered public finances are key.

In terms of cabinet composition, between 1990 and 2010, the majority of cabinet appointments went to politicians who belonged to parties in the governing coalition. President Bachelet introduced gender criteria into the appointment of ministers, while Piñera attached most value to technical expertise (Avendaño and Dávila, 2012; Dávila *et al.*, 2013; Hernández Villalobos, 2016), but most appointments have been partisan. In appointing partisan ministers, the president typically nominates them prior to making agreements with the coalition parties. Moreover, presidents may have to face the parties' rejection of potential candidates, especially when nominations and replacements are being made. When cabinets are mostly partisan, the party composition changes each time a minister leaves the cabinet (Camerlo, 2013: 122).

Partisan cabinets help presidents secure the legislative support they need (Altman and Castiglioni, 2009: 20). Such a condition is of the utmost importance when it comes to unpopular measures, such as the implementation of austerity measures and other structural reforms.

By contrast, with largely non-partisan cabinets, presidents are less vulnerable to pressures from coalition parties, and therefore have broader scope for autonomous decision-making. In non-partisan cabinets, the president does not need to secure a political balance among the parties. This appointment strategy provides an opportunity for independent ministers, since their appointment does not necessarily have a connection to political parties or an established political career. Similarly, in non-partisan cabinets, presidents can include members with a strictly technical and/or professional profile, and even those with previous experience in interest groups such as unions or business associations (as the Piñera administration illustrates).

Apart from the essential element of trust, presidents use other criteria to appoint, replace and dismiss ministers (De Winter and Dumont, 2008; Camerlo, 2013; Martínez-Gallardo, 2014). Sometimes the concern is to maintain a balance between members of the coalition parties if a cabinet member is removed. On other occasions, the appointment of politicians to more salient and influential portfolios is a reflection of the need to give potential presidential candidates or candidates to other elected posts more visibility (Rodríguez Teruel, 2009; Avendaño and Dávila, 2012). Two additional variables that explain how individuals join and survive in the cabinet in Chile are membership in a pre-coup political generation and being close to the inner circles of *Concertación* power (Olivares *et al.*, 2015). Olivares *et al.* (2014) also argue that during the first Bachelet administration as well as that of Piñera, being part of a think tank was a key element in appointment to the cabinet in both political and economic portfolios.

Cabinet positions give politicians the opportunity to develop political careers (Alcántara, 2012). According to Rodríguez Teruel (2009), a career is conceived in terms of a long time-span that includes the phases before and after cabinet membership. Of course, this implies considering previous participation in professional associations, interest groups and other social organizations.

The election of more than one government allows ministers to accumulate experience in several portfolios and can potentially result in political projection and the emergence of new leaders (Avendaño and Dávila, 2012; Dávila *et al.*, 2013). Recent empirical evidence shows that ministerial experience enables former ministers to increase their power and influence in policy advocacy, leadership training and influence in general (Berho, 2015). In fact, many former ministers have become directors on the boards of private companies or simply work in the private sector. Irrespective of the type of ministry, they not only acquire skills and competence in specific subjects in government, but also accumulate experience interacting with influential groups and institutions. In a context in which representative institutions are weakened and party identification lost, cabinets are an excellent opportunity to build a political career.

Using portfolio allocation and design (PAD) strategies

In this section, we will present the presidents' portfolio allocation strategies in terms of the two categories established in this book: cooperative and unilateral. These strategies are related to the proportion of partisan versus independent ministers and the presence of different types of minister (experts, loyalists and partisans). We have divided the PAD into three phases: government formation, duration and termination.

PAD in government formation

Since the return to democracy in 1990 parties have had less influence on cabinet appointments than in the democratic period prior to the 1973 military coup. Parties that participated in electoral coalitions were afterwards incorporated

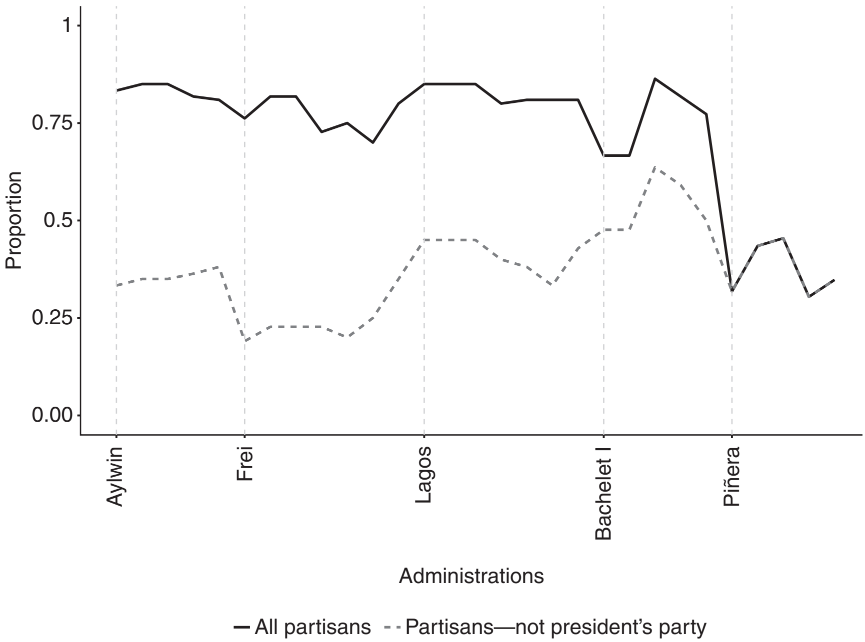

Figure 5.2 Cabinet membership by party (Chile 1990−2014).

into cabinets using different criteria, such as the internal political balance of the coalition (related to the political balance in Congress, the party of the president and other informal rules governing power sharing). It is worth noting that in the case of *Concertación* governments there was not only quantitative power sharing (the balance of coalition party members in the cabinet), but also a qualitative equilibrium among portfolios, some of which were considered more important than others—for example, 'political' portfolios like the Minister of the Interior, the Secretary General of the Government and the Secretary General of the Presidency. *Concertación* presidents appointed *Partido Demócrata Cristiano* (PDC), *Partido Socialista* (PS) or *Parido por la Democracia* (PPD) members to these three ministries, but not Radicals or Independents (Dávila, 2011).

The first democratic government

It is important to note that former political adversaries—the Socialists and the Christian Democrats—formed the first *Concertación* government that came to power in 1990 after 17 years of dictatorship (Garretón, 1995; Boeninger, 1998; Olivares *et al.*, 2015). This fact shaped the creation and management of the coalition during this first administration.

In terms of the balance of power within the *Concertación*, the PDC was notably the largest party, not only for historical reasons[11] but also because compared to the left it was not persecuted under military rule. Many of its leaders stayed in Chile and organized internal opposition to the dictatorship. In fact, a survey carried out by FLACSO-Chile in 1988 found that the party that people felt they might vote for was the PDC, with 14.1 percent, compared to 4.1 percent for the PS, 2.1 percent for the PPD and 1 percent for the PR (Garretón, 1988).

We will briefly describe the process by which a coalition was formed in this first *Concertación* government. On October 5, 1988, the *NO* option won 54 percent of the vote in the plebiscite.[12] According to the schedule established by the constitution, presidential elections would therefore be held the following year. The *Concertación* was made up of 17 member parties: the MAPU, MAPU-OC, PS-Histórico, PS, Mandujano, PS-Núñez, PS-Almeyda, IC, PH, the Greens (*Los Verdes*), the Social Democrats, the PRSD, PPD, USOPO, PR, PDC, PADENA and PAC.

More than two years passed between the creation of the Coalition of Parties Voting NO (*Concertación de Partidos por el NO*) and its victory in the presidential elections in December 1989. *Concertación* politicians used this time to prepare themselves, and the work of the technical teams for the 1988 plebiscite and the presidential elections of 1989 created networks. For example, the team formed for the 1989 presidential elections involved future ministers like Germán Correa (PS), Enrique Correa (PS), Alejandro Foxley (PDC), Enrique Krauss (PDC) and Edgardo Boeninger (PDC). Trust was also generated within educational networks (at the University of Chile) in both parties and personal relationships, like that between Aylwin and Almeyda, leader of the Socialists.

As occurred with the organization of the NO campaign, the presidential campaign involved different parties that united in the *Concertación* in order to improve their representation. Its director was Enrique Silva Cimma (PR), the executive secretary was Enrique Correa (PS-Almeyda) and Enrique Krauss (PDC) was operations manager. In the technical area were Jaime Solari (PS-Almeyda),[13] Gonzalo Martner[14] (PS-Núñez) and Jaime Ravinet (PDC).[15] Two structures were created: one involved the campaign team, led by Silva Cimma and the other involved program development, led by Boeninger with the support of Correa.

The relationship between the president and the parties in the future *Concertación* administration was a permanent concern. Party coalition members signed the Tupahue Agreement[16] which, among other things, established the president's autonomy when governing. The *Concertación* promised to respect this agreement, as well as President's Aylwin's decisions on appointments. The coalition parties rejected the famous *cuoteo* and the *pase partidario*, while President Aylwin promised to act independently.[17]

The result of these decisions was the new balance of power between the executive and the coalition parties that we noted previously. As part of this new relationship, the former gained greater autonomy in both appointments and policies. Yet this new balance of power between the president and party leaders was not a turning point, as the coalition parties continued to control the most important cabinet appointments. In addition, the political use of technocrats from coalition parties allowed improvements in the administration of state resources without generating conflicts with coalition party members—they mostly belonged to the same parties—and the technocrats seemed to guarantee the correct administration of the model. In this same vein, the *Concertación's* success seemed not to lie in a certain technocratic style of managing state affairs but on the contrary, in the balance between political and technical expertise (Dávila, 2011).

During this first *Concertación* administration, political equilibrium among party members was preserved. In the so-called political ministries—the Interior, SEGEGOB and SEGPRES—two PDC members (the Interior and SEGPRES) balanced one Socialist (PS). "Cross-cutting," another informal rule created at this time—according to which the political militancy of the minister and undersecretary must be different—was applied during the other three *Concertación* governments (Dávila, 2011).

The process of government formation occurred between the presidential election in December 1989 and March 1990, when President Patricio Aylwin was sworn in. Between January and February that year, President Aylwin contacted coalition parties to create a cabinet and to make other staff appointments. All cabinet posts were announced on the same day.

In terms of the political resources managed by President Aylwin in forming his government, the profile was one of strictly partisan ministers (83.3 percent).

The formation of the other **Concertación** *governments*

In general, the other three *Concertación* governments maintained the same logic in their portfolio allocations. The same coalition that was reelected in the 1993, 1999 and 2005 presidential elections formed all three governments. As with President Aylwin, the appointment of all cabinet members was simultaneous, and the presidents organized their cabinet between the elections and the date they assumed office.

President Frei (1994–2000) won the election with the same coalition as President Aylwin, formed by the PDC, PS, PPD and PR. During his administration, supra-partisanship was maintained (President Frei was able to decide portfolio allocation and policies autonomously). What changed in comparison to the Aylwin administration was how President Frei managed coalition representation in the cabinet and the selection of appointees. As we have said, the person responsible for structuring the first cabinet was Genaro Arriagada (PDC), a member of the Iron Circle (*Círculo de Hierro*), a closed group formed by Arriagada, Edmundo Pérez Yoma and Carlos Figueroa, all Christian Democrat friends of President Frei's father.[18]

The first cabinet's political ministers included one party member from each of the most important parties: Víctor Manuel Rebolledo (PPD) as Minister of the Secretary General of Government, Genaro Arriagada (PDC) as Minister of the Secretary General of the Presidency, and Germán Correa, a Socialist, as Minister of the Interior. The initial cabinet designed by President Frei failed, and it was replaced in September 1994, after only six months.

Lagos' administration had elements of continuity and change in comparison to Frei's government (Dávila, 2011). The general aspects of the previous administrations were preserved. There were qualitative variations in the timing of cabinet change. The presence of technocrats seemed to be another constant factor, although there were changes in their number and placement. Moreover, in terms of general politics, Ricardo Lagos' arrival in the government palace (*La Moneda*) meant the return of the left, and of all the ghosts and prejudices it conjured up (Dávila, 2011). President Lagos also introduced a new management style by appointing one minister in charge of two or three ministries (*biministros* and *triministros*).

As in the previous administrations, the fourth *Concertación* administration maintained supra-partisanship. There were variations in President Bachelet's manner of administering her relationship with the parties and designing her first cabinet, which, like President Frei, she had to change only a few months after taking office. In terms of renovation and gender parity, the first cabinet came as a shock to the *Concertación* parties, which also criticized its final political balance.[19] In a public declaration, the PPD criticized the lack of 'historical' party leaders in the first cabinet,[20] although the PS supported it.[21] The PDC declared itself satisfied with the seven ministers it had obtained.[22] The PS and PPD—the leftwing *Concertación* parties—agreed that the PDC must be well represented, although this decreased electoral support for their party in Congress, introducing redistribution criteria. Finally, all the *Concertación* parties ended by approving President Bachelet's first cabinet appointments.[23]

In terms of relevant profiles, the three *Concertación* presidents' numbers were similar to those of President Aylwin: Frei's appointments were 76.2 percent strictly partisan; Lagos' 70.8 percent and Bachelet's 82.4 percent.

The right-wing government

In the 2009 elections, Sebastián Piñera beat former President Frei, and for the first time since 1958, a right-wing president took office the following year, ushering into power the *Coalición por el Cambio*, a coalition formed by two political parties—the RN and UDI—both created during the military regime. As Varas (2013: 13) argues

> his victory was the product, among other things, of a long process of political and programmatic preparation to win power. This effort was shown in the Tantauco Groups, an initiative that grouped together 1,200 professionals who, organized in 36 groups, created Piñera's presidential program.

This government proposal was delivered to Piñera on April 3, 2009.

Piñera was sworn in on March 11, 2010, less than two weeks after one of the worst earthquakes in Chilean history, which radically changed his administration's priorities. Government formation under Piñera differed from that of the *Concertación.* Even though the president enjoys autonomy from parties in making portfolio allocations, Piñera went further and resigned from his party, the RN. Moreover, he announced that he would include independents and people who did not vote for him in his cabinet. Piñera also appointed politicians to his cabinet who had lost their seats in the last parliamentary elections. In fact, a third of those who had lost in parliamentary elections ended up in governments posts (Varas, 2013). In his first cabinet, he appointed ministers with little or no political experience. The center of the decision-making process was the Ministry of the Interior (whose minister was an RN member) and the Second Floor.

This process of government formation also differed because of the technocratic nature of President Piñera's first cabinet. In addition, almost half of the first cabinet was independent, and it is noteworthy that most of the cabinet came from the private sector, especially retail. In terms of relevant profiles, 18 percent of President Piñera's appointments were experts.

Government duration

Regarding government duration, *Concertación* presidents used the same strategies and followed the same informal rules to appoint their portfolios: supra-partisanship, proportionality and cross-cutting. During these administrations, the aim was to achieve a balance based on proportioning portfolio allocation to the electoral support coalition parties enjoyed in Congress (under-representing the biggest party—the PDC—and over-representing the smallest—the PR). Also, qualitatively speaking, the Minister of the Interior belonged to the president's party.

On the other hand, the rightwing President Piñera did not change his strategy of appointing independents and ministers from the private sector. He made decisions about portfolio allocation without the RN and UDI, but increasing social protests beginning in 2011—mostly focused on educational demands—made him appoint parliamentarians with more political power, such as Andrés Chadwick (UDI), Evelyn Matthei (UDI)[24] and Andrés Allamand (RN).[25]

In terms of cabinet membership by party, the relation between partisan and non-partisan presidents has tended to diminish since the first Bachelet administration.

Figure 5.3 shows a summary of ministerial profiles at the time of government inauguration. It shows that the proportions of the various profiles remained much the same during *Concertación* administrations. This changed under Piñera, with a marked decrease of partisan ministers.

In relation to the characterization of portfolio allocation strategies during the period analyzed, Figure 5.4 shows that that the highest cooperative index was that of President Lagos and the lowest during the Bachelet administration.

Figure 5.5 shows the minister´s turnover by type of exit (stability and positive and negative instability). The five governments analyzed for the case of Chile had very similar ministerial turnover related to stability. The Aylwin administration

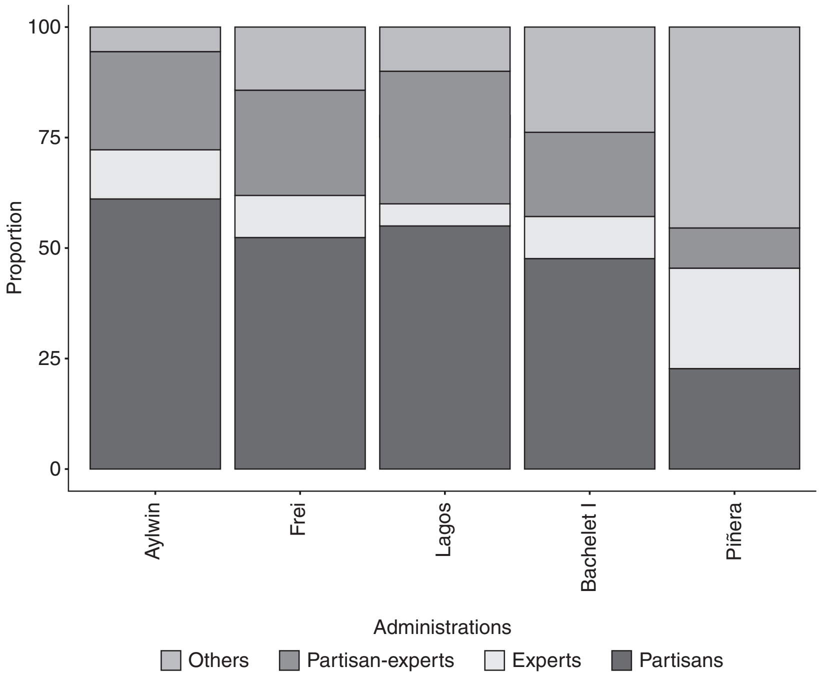

Figure 5.3 Minister profiles at inauguration (Chile 1990–2014).

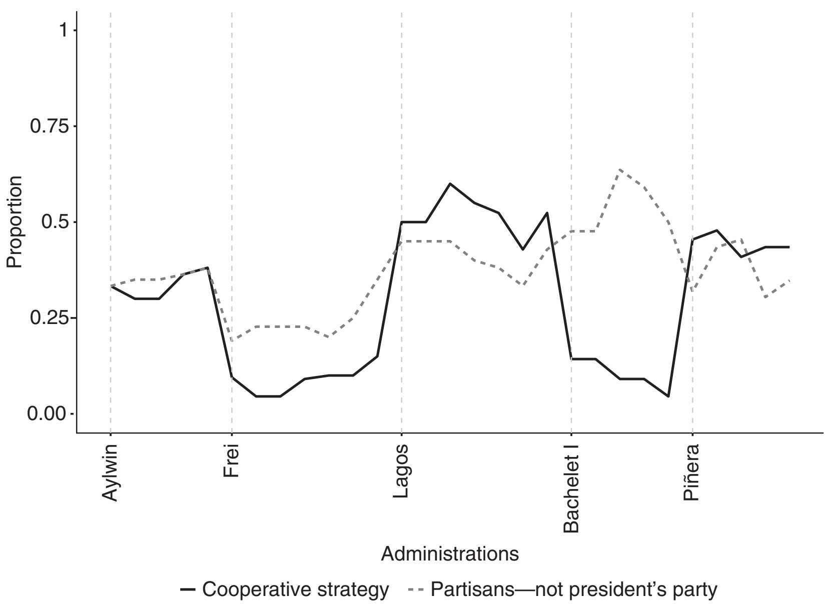

Figure 5.4 Portfolio allocation strategy (Chile 1990–2014).

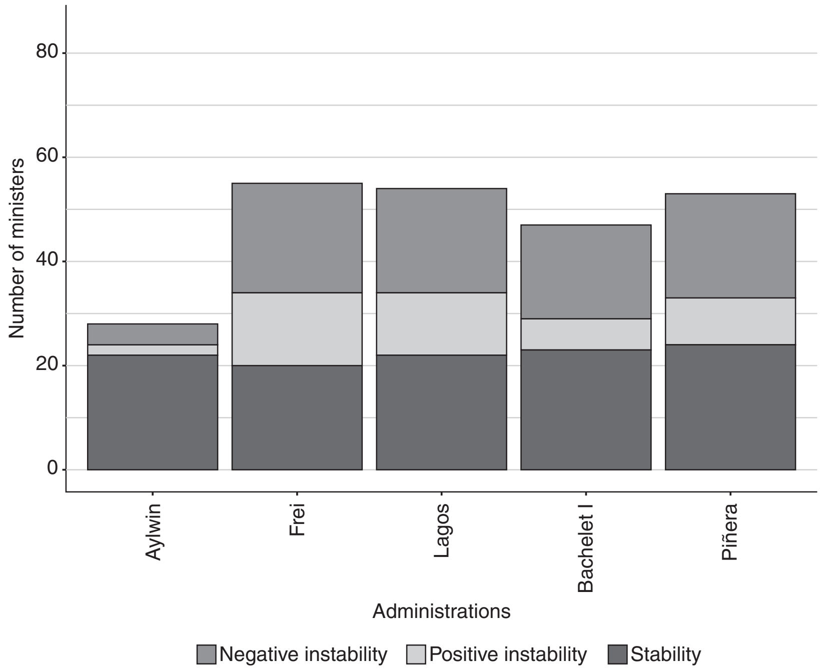

Figure 5.5 Ministerial turnover by type of exit (Chile 1990–2014).

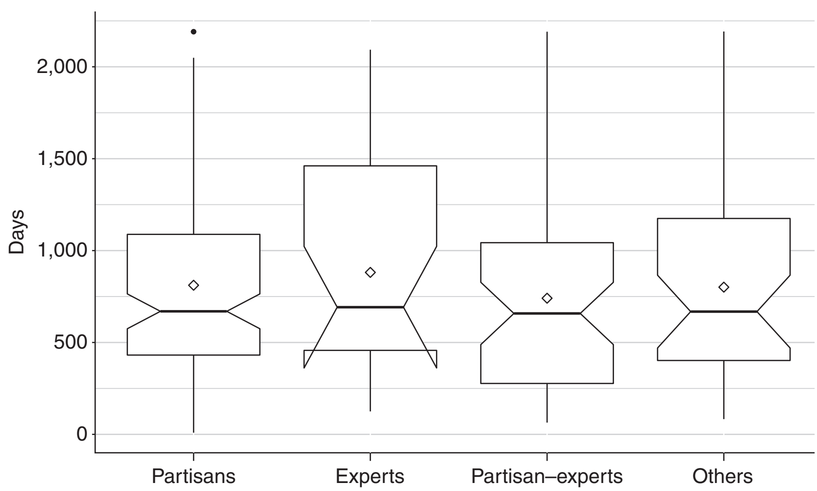

Figure 5.6 Minister duration by profile (Chile 1990−2014).

had low frequency of instability, while instability and ministerial turnover was highest under the Frei Administration.

If we combine the analysis of ministers' duration and profiles (Figure 5.6) we observe that expert ministers stay longer in their posts. Partisan and party expert ministers tend to stay the same amount of time in their ministerial positions.

Government termination

In the case of Chile during the period analyzed, government terminations in this chapter coincided with the end of each presidential term: the coalitions remained in office from the beginning to the end of each period.

There were no major crises when the period of government ended. The main issue the ruling coalition had to resolve in the preceding months was the selection of the next presidential candidate. In the case of *Concertación* administrations, the first and second candidates were from the PDC and the third and fourth from the Socialist Party. The two *Concertación* presidential candidates after Aylwin were chosen in primary elections. The third, Michelle Bachelet, became a presidential candidate after her competitor, Soledad Alvear (PDC), stepped down. On the right, the coalition parties selected Sebastián Piñera as presidential candidate in 2009.[26]

The government coalitions that lost power—the *Concertación* in 2010 and the *Alianza por Chile* in 2014—continued as coalitions in opposition. Afterwards, the *Concertación* became the *Nueva Mayoría*, a coalition that returned to power with President Bachelet as its presidential candidate. This coalition moved to the left by including the communist and other small left parties.

Explaining portfolio allocation and design strategies

In this section, we offer an explanation for the portfolio allocation design strategies used by the five presidents analyzed in this chapter. In particular, we discuss whether it is in fact the case that presidential strength conditions the ways in which rulers employ portfolio allocation.

Presidents and their environment

In the case of Chile, presidents are relatively strong. Presidents have important institutional powers established by law. In certain specific matters, presidents can use decrees or their power of veto. In terms of budgetary powers, presidents in Chile have almost total power because Congress cannot change the budget proposed by the executive. Moreover, in terms of expertise, the executive's (the Minister of Finance's) technical capacity is superior. The Chilean constitution says that the president has the exclusive right to propose laws related to any changes in financial or budgetary administration, including modifications to the Budgetary Law (Article 65). Only the president can create or change taxes. The Congress cannot increase or decrease estimates or income, it can only reduce expenses, except those established by law (Article 67 of the Chilean Constitution).

In terms of partisan powers during this period, Chilean presidents have partisan powers related to their own parties and those that belong to the coalition they represent. In general, presidents have held majorities in the Chamber of Deputies, but not in the Senate. The 1980 Constitution established designated senators. Between 1990 and 2005 (a constitutional reform eliminated them) these nine appointed senators modified popular representation. These senators were former armed forces commanders in chief, former comptroller generals, among others. *Concertación* presidents mostly appointed partisan ministers, a strategy that changed with Piñera.

In terms of popularity, presidents have had, in general, acceptable presidential ratings. President Frei's public opinion approval dropped in his last year in office, as did President Piñera's.

In terms of the social and economic conditions of Chile, we highlight three types of problems or issues: civil-military relations, human rights issues and economic crises. Civil-military relations were an issue, especially during the Aylwin administration. During this time, there were two episodes directly linked to General Pinochet that caused civil-military tension, as well as the publication in 1991 of the Rettig Report, that established the official version of repression in Chile during the dictatorship and specifically the situation of disappeared detainees. The two episodes involved the economic situation of Pinochet's son. Human rights were a permanent issue, starting with the Aylwin administration.

During the Frei administration (1994–2000), the detention of Pinochet in London in 1998 caused political tension in the country. However, in spite of the tension this situation generated, within the coalition itself there were no disagreements regarding the attitude to adopt towards his detention.

As far as the situation of the Chilean economy is concerned, the first years of democratic government were positive, economically speaking. The governments of Frei and Bachelet faced economic crises linked to external factors. Frei had to face the Asian crisis in 1998 and Bachelet the financial crisis of 2008.

Testing the PAD argument

In Chile, the president has autonomy to nominate ministers and members of their cabinets. They can invite parties to their coalition and decide whether to consult with them on portfolio distribution. Even so, presidents' choice of portfolio allocation strategy is not only contingent on their strength. In the case of the *Concertación* governments, the issue has generally been to try to guarantee a balance between the parties belonging to the coalition. Membership in governing coalitions has been stable over time, due to the effects of the binomial electoral system. It is assumed as a fact that all the parties of the coalition will have ministers, although it is the president who defines who and how many.

Aylwin enjoyed a high level of autonomy regarding the parties in his coalition. Nevertheless, he took great pains to preserve the equilibrium of its constituent parties. Frei used a mixed logic, favoring the government over the coalition when exercising his autonomy. He achieved balance by integrating 'emblematic ministries' or key figures of the coalition's parties. Lagos was wholly autonomous and, like Aylwin, safeguarded the inter-party and intra-party equilibrium. Bachelet had a high level of autonomy, putting emphasis more on the government than on the equilibrium of the coalition. Finally, Piñera was able to name ministers without any party intervention. In fact, he made a concerted effort to do so because the members of his first cabinet had made their careers in the private and business sector rather than in politics as such.

Concluding remarks

To understand how presidents in Chile have administered their cabinets since 1990 requires understanding how parties and their leaders have conducted a process of regime change from dictatorship to democracy. From 1990 to 2014—the period of this study—Chile has had five governments: four from the Coalition of Parties for Democracy (*Concertación de Partidos por la Democracia*), the center-left coalition that defeated Pinochet's presidential candidate in 1989, and the Coalition for Change (*Coalición por el Cambio*), the center-right coalition that won power in 2010, after 20 years of *Concertación* rule.

During the *Concertación* administrations, party representation in the cabinet was stable, translating into party equilibrium within the coalition. This coalition was composed of a majority center party—the Christian Democrats—as well as the left (mainly Socialists). Cabinet appointments favored the Christian Democrats both quantitatively and qualitatively. The informal rules of proportionality functioned by favoring smaller parties also. Such was the case of the Radicals, who would have been excluded from the cabinet if none of these rules had been followed. As the Christian Democrats lost votes with the passage of time, *Concertación* leaders protected their majority within the coalition—they were over-represented during the Bachelet administration and qualitatively favored in the last *Concertación* administration.

It is also worth noting that, of these four administrations, President Aylwin's was notably the most stable. In effect, data confirm the extraordinary stability of this first *Concertación* administration. The other three administrations had similar patterns of cabinet stability. The Bachelet administration was the most unstable, with the same number of cabinet changes but during a shorter presidential term. Informal rules of power sharing were created to preserve coalition relations. The rule of proportionality and its derivations (cross-cutting, and inter-party checks) guaranteed the distribution of power. As far as the latter is concerned, it can be seen that, in general, the *Concertación* presidents distributed appointments among coalition party members according to a certain pattern, whose purpose was to increase cooperation among coalition parties. The PDC—the largest party—received the majority of appointments in both quantitative and qualitative terms. The Socialists and PPD members were in a similar situation in terms of portfolio allocation. The smallest party—the Radicals—were generally over-represented.

Cross-cutting was one of the informal rules that the *Concertación* presidents consistently applied. President Aylwin used it to increase coalition governability by fostering coalition cooperation and limiting the monopoly of parties in specific state areas. His success in respecting this rule meant that the other three *Concertación* presidents also applied it. This informal rule created certainty among party leaders.

According to the analysis presented here, President Piñera maintained his presidential autonomy when nominating ministers. Unlike the *Concertación* presidents, however, Piñera used a portfolio allocation strategy characterized by ministers with no militancy or previous political expertise. He tried to promote a different political management strategy by including ministers in his portfolios from the private sector, or trade unions. This probably had an impact on the way the government faced the increase in social protests between 2011 and 2013.

Finally, regarding the relationship between experts, loyalists and partisans, the first two *Concertación* governments between 1990 and 2000 differ from the others, in that the presence of ministers belonging to the president's party in the first two was notorious. During the Lagos and Bachelet administrations, this changed. One explanation is that these presidents needed to secure the PDC's commitment to the government (because its electoral support and thus its participation in portfolio allocation was declining). The presence of partisans in the *Concertación* governments eclipsed that of the Piñera administration, which reflected the belief of rightwing parties and politicians that government management should be depoliticized.

Notes

1 This chapter was partially funded by the Vice-Rectory of Research at the University of Chile (U-Inicia, Central Research Fund).
2 We would like to thank Pablo Valenzuela, our research assistant, for his rigorous work on our database. We also want to thank Alejandro Olivares for his relevant comments.
3 There have been eight constitutions in Chile, all of which established a presidential form of government. In the constitutions of 1818, 1822 and 1833, the president was clearly the dominant actor. Those of 1823 and 1828 and the original version from 1925 (before the reforms of 1943 and 1970) tended to be more balanced, with a more powerful, although still clearly presidential, Congress.
4 According to the 1980 Constitution, Chilean presidents have the following powers: proposing bills; calling for Congressional sessions; calling for plebiscites; declaring a state of exception; appointing and removing ministers, undersecretaries, mayors and governors; appointing ambassadors; appointing the Comptroller General; appointing judges proposed by the judiciary; conducting international relations; appointing and dismissing the armed forces' commanders-in-chief; declaring war; and supervising public taxes. The executive also proposes the national budget. Congress has only limited power to change the budget proposed by the executive.
5 According to 1980 constitution, designated senators were not elected by popular vote. These nine senators were appointed by different institutions: two by the president (one former minister and one former dean); four former commanders-in-chief of the armed forces and police and three by the Supreme Court. www.senado.cl.

6 The UDI was founded by Jaime Guzmán, Pablo Longueira, Sergio Fernández, Javier Leturia, Guillermo Elton and Luis Cordero. Their aim was to found a party based on three elements: being working class—for the poor—and Christian and to support a social market economy. www.udi.cl.
7 Founded by Ricardo Rivadeneira, Sergio Onofre Jarpa and Andrés Allamand among others. www.rn.cl.
8 The Comptroller General and the Central Bank have constitutional autonomy.
9 The first ones operate as a legal body, with treasury assets and resources and dependent on the president, who is represented by a ministry. Decentralized services have legal attributes and their own assets assigned by law; they are subject to presidential supervision, represented by their respective ministry.
10 Occasionally other ministers have been included, like the Defense Minister during the Piñera administration.
11 This was the only party in the twentieth century to govern alone.
12 Approximately 92 per cent of the eligible population registered and voted (Scully, 1995).
13 Future Aylwin undersecretary and Minister of Labor under the Lagos administration.
14 Future Lagos undersecretary.
15 Future Lagos Minister of Housing and of Defense.
16 This agreement was signed because of its communications impact rather than any other, since party leaders had already accepted it. Interview with one of President Aylwin's undersecretaries, which appeared under the headline "*The Concertación agrees to respect Aylwin's decisions*" in *El Mercurio*, October 31, 1989.
17 *Cuoteo* and *pase partidario* are informal institutions. The first one is referred to political allocation of portfolio among coalition parties. *Pase partidario* was the authorization party members must have from their parties to accept a government appointment.
18 President Eduardo Frei Ruiz Tagle is the son of former President Eduardo Frei Montalva. Frei Montalva governed between 1964 and 1970 and was one of the most valued members of the Christian Democratic Party.
19 In general, the *Concertación* parties criticized how the first cabinet was composed. The PPD criticized its lowered participation and the PR complained that it had no representation among the political ministers. The cabinet appointment process was mostly questioned by the PDC, whose president, Adolfo Zaldívar, created a special party commission (in which all party factions were present) to resolve appointment issues. Party dissidents (mainly *alvearistas* and *freístas*) were critical and said that the process was too slow. *La Nación*, January 2, 2006.
20 The president of the PPD, Víctor Barrueto, one of its 'historical' leaders and former president of the party, was the first political leader to declare Bachelet a presidential candidate. He left the Lagos administration to work on Bachelet's election campaign.
21 Interview with Socialist senator Ricardo Núñez. *La Nación*, February 6, 2009.
22 *La Nación*, February 6, 2009.
23 Despite the above, President Bachelet left out the Socialists who had been favorites for appointments—for example, the former budget director, Mario Marcel, who had been the most likely candidate for Minister of Finance and Ricardo Solari, who had left the cabinet during the Lagos administration to work on Bachelet's presidential campaign. *La Nación*, January 31, 2009.
24 Afterwards, Matthei stood as a candidate in the 2013 presidential elections.
25 Although Matthei and Allamand were sector-based ministers they were included in the *Comité Político*, www.biobiochile.cl/noticias/2011/01/20/allamand-y-matthei-se-unen-a-comite-politico-en-la-moneda.shtml.
26 All three, Lagos, Alvear and Bachelet, were ministers during *Concertación* administrations.

6 Presidentially led coalitions

Portfolio allocation in Brazil (1985–2016)

Magna Inácio

Portfolio allocation is a primary concern of presidents, deciding whether to govern alone and how to move the chessboard pieces of cabinet politics. For minority presidents, to form multiparty government may be a decisive step towards their political success, but it could also lead to a less presidentially driven cabinet politics.

A vast literature has been shedding light on these risks of agency loss, looking at presidential needs for party support and how president-party relationships frame the threat of ministerial drift and cabinet instability. Few studies have taken a step back to ask what is known about presidential needs and to what extent the parties meet it. A legislative, success-centered perspective drives the focus on the needs of party support, assuming the main issue in portfolio allocation is the sizable compensation for partisan cohesiveness or discipline. This view neglects whether the parties meet the informational, expertise and loyalty expectations that make government policy proposals more likely to see the light of day. If they don't, presidents have incentives to bring different ministers' profile into their cabinets.

This book offers an avenue to address these questions about presidents' goals throughout the cabinets' lifecycle. The key argument relies on unilateral or cooperative strategies for portfolio allocation that presidents choose for pursuing different goals or facing different constraints. From this framework, portfolios concessions to other parties are contingent on the institutional weakness of the presidents and the exogenous shocks that make them more vulnerable. Thus, we should expect more variation in portfolio allocation decisions (PAD) across presidential mandates than the conventional view anticipates.

In this chapter, I analyze these PADs in Brazilian politics, mostly known by its fertile soil for coalitional presidentialism. The multiparty coalition has been associated with political stability after redemocratization, despite notable ministerial turnover and cabinet reshuffles. I seek to illuminate how these apparently opposite outcomes can be understood in light of the presidents' decisions on cabinet politics. Considering their institutional and partisan strength and the political environment, I look at how Brazilian presidents avoid or maneuver around some crossroads through portfolio allocation strategies.

Institutional background

The political system

The Brazilian political system is a combination of various institutions promoting the dispersion of political power, such as presidentialism, federalism, bicameralism, multipartyism and the proportional system. Some, but not all, of these features were adopted in the transition to the republican regime. This deepened the political fragmentation and made the election of minority presidents in Brazil recurrent.

This institutional power dispersion introduces several barriers to the formation of governments supported by electoral majorities. Currently, the president and vice-president are elected in a single slate, by a majority vote in two "rounds" of voting, for terms of four years. One successive reelection has been permitted since 1997. Although elected in concurrent elections, presidents and legislators may be supported by distinct partisan alliances in the electoral districts. This raises the cost of forming representative (partisan and federative) governments, given that the degree of nationalization of the parties is variable.

The symmetrical and incongruent bicameral system currently is composed of 513 deputies and 81 senators. The personal vote and the persistent, local orientation of the representatives are encouraged by two rules. Senators and deputies are elected in districts which coincide territorially with the states, reinforcing the role of the governors as brokers for the national representatives. The plurality method is used for alternate elections of one-third and two-thirds of the members of the Senate. In the lower house, the deputies are elected by open-list proportional representation in multiparty members' districts.[1] These rules, linked to the flexibility of party organizing legislation, have accentuated partisan hyper-fragmentation, with the effective number of parties ranging from 8.7 (1990) to 13.3 (2014).

However, the effects of this power dispersion are offset by the concentration of powers in the Federal Executive, the main *agenda-setter*. Legislative, budgetary and *appointment* powers were increased during authoritarian periods (1937–1945; 1964–1985), with partial reversal during the democratic phases. In the last democratic transition (1988), the constituents maintained the strong delegation of powers in the Executive, but extended horizontal control by the Legislative. The new conditions of legislative *checks* on presidential decrees (provisional measures), federal budget and vetoes raised the cost of unilateral government action.

The legislative increased its influence in the decision-making process and in the formation of governments endogenously. It gradually adopted an internal organization of the legislature, favoring a centralized decision-making in the hands of the party leaders, even preserving the principles of partisan proportionality (Figueiredo and Limongi, 1999). Consequently, party adherence to competition in the parliamentary arena was strengthened and enlarged the incentives for stable legislative coalitions to drive the legislative business. Partisan coordination of the parliamentary game and the Executive's agenda and veto powers became the pillars of coalition presidentialism. Majority, relatively stable multiparty cabinets have become recurrent since then, increasing the operational capacity of the governments. Only President Collor resorted to a cabinet that could be characterized as *single-party*, given the dominant strategy of selecting technocratic ministers or *cronies* (Amorim Neto, 2002).

In the current democratic period, the governments have been led by six presidents.[2] Four were elected directly (Collor, Cardoso, Silva and Rousseff) and two vice-presidents assumed the office following the impeachment of the duly-elected officials. This period is seen as the most stable in Brazilian democracy; however, two impeachment processes removed the elected presidents, Collor and Rousseff. Their vice-presidents, Franco and Temer, subsequently assumed the office.

Table 6.1, below, shows the composition of the presidential cabinets, ranging from nine to 35 ministries, with oscillations in the total number of ministers reflecting different strategies for allocating portfolios and ministerial turnover.

The Executive

The chief executive in Brazil has one of the most complete presidential toolboxes (Raile *et al.*, 2011). The president may compensate his supporters in a variety of ways, regulating their level of influence on policies and portfolios, providing access to pork and to patronage resources.

Some scholars argue that coalition presidentialism in Brazil operates in a manner similar to parliamentary systems. The main agenda-setter, the president, uses his agenda and veto powers to induce legislative cooperation in the form of coalition government. This control of portfolios, and consequent participation of parties in policy-making decisions, would cement a *power-sharing structure*, with stabilizing effects on the interbranch relationship (Figueiredo and Limongi, 1999; Amorim Neto *et al.*, 2003; Santos, 2003). The main evidence of this conditional cooperation, pointed out by these scholars, is that the more coalescent cabinet the president forms, the more disciplined coalition he/she will have on the legislative floor. However, ministerial compensation, relative to the allocation of ministries to the parties, is not a *package*. On the contrary, it is variable and depends on how the president selectively combines different tools that he controls. The amount of this compensation results from the vector of decisions, called cabinet politics, adopted by each president (Chaisty *et al.*, 2014; Pereira *et al.*, 2016). The proportional allocation of portfolios is part of the story, but does not tell the entire story. Executive centrality and the salience of the portfolios affect the size of the prize in the eyes of the parties.

The executive centrality of the portfolio refers to its position in the structure of the executive branch, organized as direct and indirect public administration. Direct administration, subordinate directly to the president, includes, in addition to the presidential office (EOP), ministries, special secretariats linked to the presidency, and advisory bodies. The size of the budget, the staff and scope of the policies, define the functional and political hierarchies among the ministries,

Table 6.1 Institutional background in Brazil (1985–2016)

President	*Starts*	*Ends*	*President's party*	*Other parties in government*	*Cabinet size*	*Total ministers*	*President's legislative support*	*Type of government*	*President selection*	*President mandate*
J. Sarney	1985	1990	PFL	PMDB- PFL	21	29	Minority	Majority coalition	Appointed	Completed
F. Collor de Mello	1990	1992	PRN	PRN-PLF	9	29	Minority	Single-party	Elected	Interrupted
I. C. Franco	1992	1995	–		20	49	Minority	Majority coalition	Succession	Completed
F. Henrique Cardoso I	1995	1999	PSDB	PSDB-PMDB-PFL-PTB	19	37	Minority	Majority coalition	Elected	Completed
F. Henrique Cardoso II	1999	2003	PSDB	PSDB-PMDB-PFL-PTB-PPB	22	57	Minority	Majority coalition	Elected	Completed
L. I. Lula da Silva I	2003	2007	PT	PL-PPS-PCdoB-PV-PSB-PDT-PTB	27	57	Minority	Majority coalition	Elected	Completed
L. I. Lula da Silva II	2007	2011	PT	PMDB-PSC-PTC-PSB-PDT-PCdoB-PMN-PHS-PRB-PP-PAN-PR	25	62	Minority	Majority coalition	Elected	Completed
D. V. Rousseff I	2011	2015	PT	PT-PR-PCdoB-PSB-PMDB-PDT-PP-PRB	33	71	Minority	Majority coalition	Elected	Completed
D. V. Rousseff II	2015	2016	PT	PT-PR-PCdoB-PMDB-PDT-PP-PRB	35	57	Minority	Majority coalition	Elected	Interrupted

indicating their centrality in the performance of government tasks and the presidential agenda. Thus, the executive centrality of the portfolios depends on the models of cabinet coordination adopted by each president. Indirect administration, highly valued by the parties, is formed by territorially dispersed organizations, such as Federal Independent Agencies, regulatory agencies, public and mixed-capital companies, and foundations.[3] They enjoy greater administrative autonomy and are articulated directly to policy networks and interest groups.

This large and nationally dispersed structure offers broad patronage resources for feeding partisan networks (Praça *et al.*, 2012). This is seen in the volume of positions for political appointment, representing approximately 22,000 Senior Management and Supervisory (SMS)[4] positions.

The salience of the portfolio is another factor that affects the value of portfolios for the parties. The greater the policy adherence to the interests of the partisan networks, the more they can invest in casework and service to their clients. This increases the expected returns on their participation in the government. Thus, the salience of a ministry to the parties is variable, as it depends on the networks or types of electoral connections that they feed. Getting salient portfolios may reduce party members' discontentment with the president's strategies of allocating portfolios, hyper-compensating the president's and/or pivotal parties.

The administrative powers that presidents use to avoid agency losses also define what benefits come from the control of the portfolios. Agency-design and politicization strategies are low cost because the norms relative to internal organization, including the creation, restructuring and extinction of ministries and secretariats, are the exclusive initiative of the Executive. This is one of the few alterations to presidential powers after CF88[5] that expanded presidential discretion to alter the jurisdiction and competencies of the ministries and other agencies by means of autonomous decrees. Given the risks of moral hazard, the allocation of the ministries is offset by measures that define and control the ability of the parties to influence policies and bureaucracies (Inácio and Llanos, 2016).

Centralization of policy-making and cabinet coordination tasks is used to mold the influence of the cabinet parties. However, mechanisms of collective decision-making are not institutionalized. They are defined by the president's discretion, with more or less centralization of those tasks for specific ministries and/or for EOP (Inácio and Llanos, 2016). Experiences with political or party summits were episodic and, since Cardoso, agencies of the presidential office have assumed functions of political coordination.

Presidential office. In Brazil, only the president may initiate legislation, either through provisional measures or ordinary law, regarding the structure of the Executive Office of the President (EOP) and the ministries. Since the 1930s, the EOP has evolved from an organization for personal assistance to the president to a more professional organization, from the 1990s.

To ensure adherence to presidential agendas, the presidents reorganize the presidential office using strategies of the (de)centralization of decision-making in the hands of the presidential staff. A singular experience occurred in the unilateral government of Collor, with the centralization of *policy-making* in the EOP and the simultaneous extinction of the ministries. Under more stable coalitional presidentialism, the coordinating functions of the presidential office were expanded from the different foci of attention: interministerial articulation and policy management, in Cardoso's government; policy-making, coordination and management, in Silva's and Rousseff's governments (Inácio and Llanos, 2012, 2016). In these latter governments, this expansion increased the number of agencies of the EOP from nine in Cardoso's government to 23 units in Rousseff's government.

The fluctuations in presidential staffing are also indicative of the relevance of the EOP for the management of multiparty cabinets in Brazil. Without its own bureaucracy, the presidential staff is assembled from the administrative transfer of servants in the ministries and from political nominees. With 7447 servants in 1995, the presidential staff was reduced drastically in Cardoso's government, reaching 2500 servants in 2000. It was reversed in Silva's and Rousseff's governments and the EOP counted 9151 employees in 2014.

Ministries. The Brazilian president has the prerogative to appoint and to dismiss ministers without parliamentary approval (CF88, Art. 84, I). The ministries act in the formulation and implementation of public policies, as well as in the supervision of the bureaucracies and related entities (CF88, Art. 87), although the president regulates administratively the competencies and independence of the ministers. These appointees, in the uppermost executive posts, are subject to legislative oversight through the parliamentary committees of the Chamber of Deputies and the Senate, and may be tried for the Crime of Responsibility associated with the ministerial position.

In this chapter, I consider only portfolios with a rank of minister, including EOP units. I exclude Central Banks and other EOP units that were created by the Constitution, such as the Federal Attorney General's Office, or that do not have a political role, such as the Comptroller General of the Union. The number of ministries ranged from 12 (Collor) to 35 (Rousseff) since redemocratization, revealing the use of this tool to facilitate the formation and management of government coalitions. Episodically, presidents created extraordinary ministries, with or without portfolios, to implement discretionary policies. More recently, however, special secretariats, with presidential status and subordinate to the presidency, have assumed this role.

The cabinet

In Brazil, the ministries and secretariats with ministerial status form the cabinet, although exceptionally extraordinary ministries (without portfolio) are also included. The units of indirect administration are linked to the ministries and the greater the number of these units, the more valuable the portfolio for both the president and the parties. Figure 6.1 shows the political line of command within the Federal Executive.

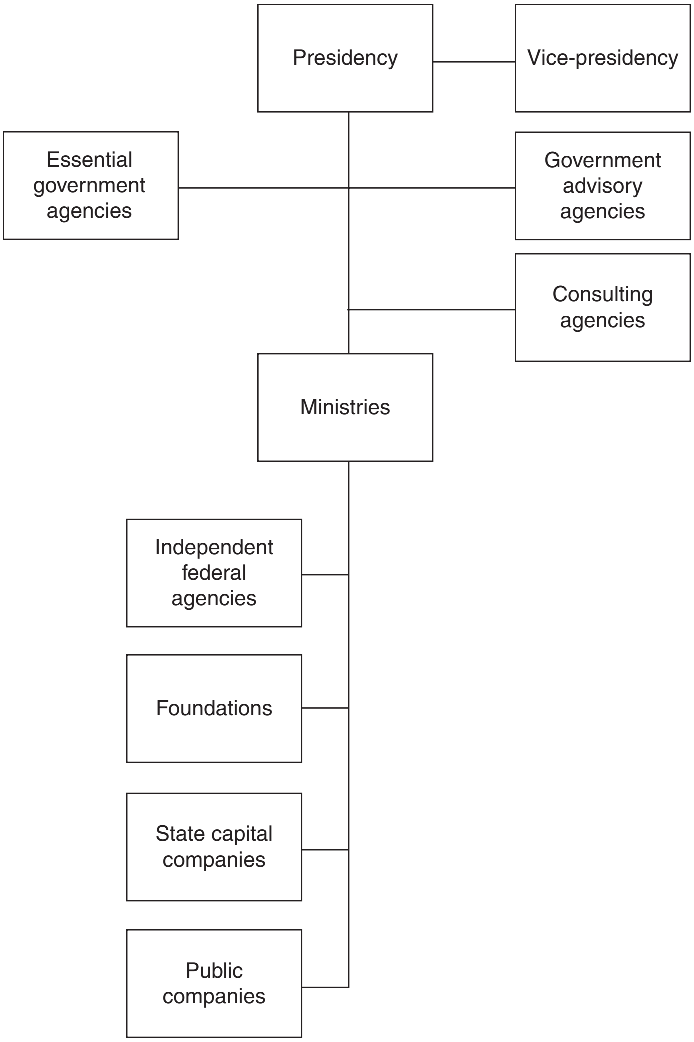

Figure 6.1 The structure of the executive branch in Brazil (2017).

Source: Ministry for Planning, Budget and Management (2016).

A multiparty cabinet changes the conditions for presidential leadership, and its management costs depend on the powers of the president to coordinate his own cabinet.[6] Only the president can sign the legislative proposals authored by the Executive. Then, bargains struck between the ministers and the presidency define the influence of the parties on the governmental agenda in the pre-legislative phase (Inácio, 2012). The ministers formulate, either individually or with co-authors, proposals subject to presidential veto. The principal *gatekeeper* in forming the Executive agenda since the mid-1990s, the *Casa Civil* (CC), evaluates the relevance of legislative proposals from the ministries and their alignment with the government agenda. Mutual monitoring and ministerial vetoes, under the ostensible watch of the *Casa Civil*, shape the process of drafting bills within the Executive. Also the ministries of Finance and Planning exert gatekeeping roles by mandatory endorsement of bills with financial and economic impacts (Batista, 2013; Gaylord and Rennó, 2015). With this increased capacity, the president modifies, when not blocking, legislative initiatives from the ministries before endorsing them as executive initiatives.

Presidential attention to the regulatory power of the ministries, and the alignments of their policies to the government's agenda, grew as the coalition presidentialism stabilized. The growing specialization of the *Casa Civil*, as the horizontal coordinating agent of governmental policies, occurred parallel to the centralization of political articulation activities by different units of the EOP in each government. In the administrations of Cardoso, government coordination was exercised mainly by the Ministry of Finance (MF) and the two EOP units, *Casa Civil* (CC) and the Secretary General (SG). The Council of Government became the relevant mechanism of horizontal coordination in Cardoso's administrations. This structure became organized on two levels, the interministerial negotiation and policy formulation sectors (sectorial chambers). Under Silva's and Rousseff's governments, this coordination was centralized in the presidency, parallel to the budgetary control coordinated by the MF.

Given the risks of ministerial discretion, Brazilian presidents have adopted different mechanisms to maintain the chain of command within the ministries. Examples of this are the strengthening of the role of the executive secretary, a type of *junior minister*, and the parliamentary advisors within the ministries. In addition to the possibility of vetoing the nominations, the presidency coordinates, through its agencies, the activities of these uppermost actors.

Having the authority to dismiss ministers at any time, presidents have introduced Executive internal control mechanisms, centralized in the presidency, to anticipate risks to government performance. Among these mechanisms are the public Ethics Committee (1999), the Ethics Management System of the Federal Executive in 2007 and the Comptroller General of the Union (CGU), which act to keep tabs on the ministers. The congress can convene or invite ministers to provide clarification or information regarding legislative proposals or executed policies,[7] as well as use the "Parliamentary Inquiry Committee" in critical situations. Given the strong delegation of powers to the Executive and the capacity of a governmental majority to bar legislative investigations, these oversight mechanisms are mostly used to pressure for changes or control of his/her discretion on a ministry's policies and resources. Attentive to informational gaps in the management of the cabinet, the presidency, since Cardoso, has taken these "fire alarms" set off by the legislators as alerts for activating its own control of ministers' actions.

Using portfolio allocation and design (PAD) strategies

Under a majority run-off system for presidential election and exacerbated multipartyism, government formation is the result of sequential bargains. The pre-electoral coalition, formed in the context of legislative and presidential elections, is the first round of government formation. It is expanded in the second round of a presidential election, if it occurs, when defeated presidential candidates and legislative parties realign themselves to support the contestants in the final contest. Since the adoption of concurrent elections in 1994, the inaugural government takes shape from negotiations with legislative parties in the post-election context. In general, the cabinet members are announced on the eve of the inauguration. This dynamic was modified following the introduction of reelection in 1997. All reelected presidents, Cardoso, Silva and Rousseff, maintained the core of their coalitions in the transition to the second term. Cabinet changes at the start of the second term are timely and carried out in the first year.

PAD at government formation

Government formation is conducted in a partisan manner, but with a quota of ministers that the president recruits personally. The electoral coalition functions as a government proto-coalition but, with the exception of the electoral program registered with the electoral authority, coalition agreements are not formalized.

Following the election, the president opens negotiations with the legislative leaders' parties. Although partisan, the bargains may target different intraparty groups, reflecting the legislative and regional strength of party caucuses in the Chamber and the Senate. Without the constraint of parliamentary approval of cabinet members, negotiations are strongly centralized by the president and his closest advisors. Even the influence of the president's party in these decisions is variable. The legislative parties exert pressures relative to their ministerial quota in the cabinet and the allocation of salient ministries, considering the nature of policy, patronage and budget resources. These negotiations go beyond the control of portfolios and include the institutional positions in the Congress, notably the roles of the speakers in the two chambers.

In this chapter, I consider only Sarney's last government (1988–1990), taking the promulgation of the new, post-military regime constitution[8] as the starting point. The six presidents have formed 26 governments between 1988 and 2016. The size of the legislative base of each government was calculated considering the start of the government, distinguishing the seat shares of the presidential party and the other coalition members. A new government is formed as a result of presidential elections or changes in party composition (entrance or exit of the parties).

With the exception of Collor, Brazilian presidents have put together surplus majority coalitions. Fragmented and ideologically heterogeneous coalitions are recurrent, stuck between four and nine parties (Inácio, 2006; Pereira *et al.*, 2016). Elected as minority presidents, they used PAD strategies to form legislative majorities. But, what is the latitude of the president's choices?

According to the framework of this book, PAD strategies reflect different presidential choices to unite, via portfolio allocation, legislative support, expertise and loyalty. Since multiparty government raises the political constraints on the make-up of the government, the choice of different ministers' profiles is an alternative way to reach this end. The partisan criteria for minister selection are strongly reinforced in the literature, and little attention is paid to whether, and to what extent, presidents balance these different goals in forming their governments. Who gets what should be analyzed through the lens of presidents' calculations about how to counterbalance these goals and manufacture a more desirable government.

From 1988 to 2016, presidents allocated 448 ministerial positions using different selection criteria. To better understand the multitarget presidential strategies, we classify the profiles of ministers in four types: (a) partisan—only strict partisan ministers, with clear party attachments; (b) expert, with no, or only recent, party affiliation but with expertise in the respective policy areas; (c) hybrids or party-experts, party affiliated with expertise regarding the ministerial jurisdiction; and (d) none of these attributes.

A different government picture emerges when we accept as partisan ministers only those who are active in a political party, differentiating them from partially partisan ministers who might have a party preference but who are not active or recently affiliated with a party. If we consider only these strict partisans, the weight of the partisan component of the government is smoothed. The biggest reductions were in the first term of Cardoso (−10.8 percent) and both terms of Silva (−14 percent). This lower presence of strict partisans suggests that, as the first presidents of their respective parties, they selected ministers recently affiliated or with weak linkage to coalition parties, indicating the entry of new members into the political elite.

Figure 6.2 depicts the evolution of strict partisan members throughout coalitional presidentialism in Brazil. The solid line represents the proportion of strict partisan members out of the total number of ministers each year. The dotted line shows the proportion of strict partisan ministers who are not affiliated with presidential parties, but with other parties in the government. A high proportion of partisan ministers is observed in all administrations, except for Collor's and specific governments. In these cases, a lower proportion of strict partisans reflects the president's strategy to appoint ministers with weak or non-partisan linkage.

Management of political resources at government formation. The first Chief Executive of this period was former vice-president Sarney, who was nominated as president after the unexpected death of Tancredo Neves. Sarney headed an inaugural cabinet with several ministers prior to being selected by Neves from the broad alliance supporting his election by the Electoral College in 1985.[9] Despite its majority status, it was a costly coalition due to the heterogeneous groups under bipartisan coalition (PMDB and PFL). With a strong presence of legislative parties, in a context of increasing loss of confidence in the president, Sarney kept a high proportion of strict partisan ministers. By the end of his

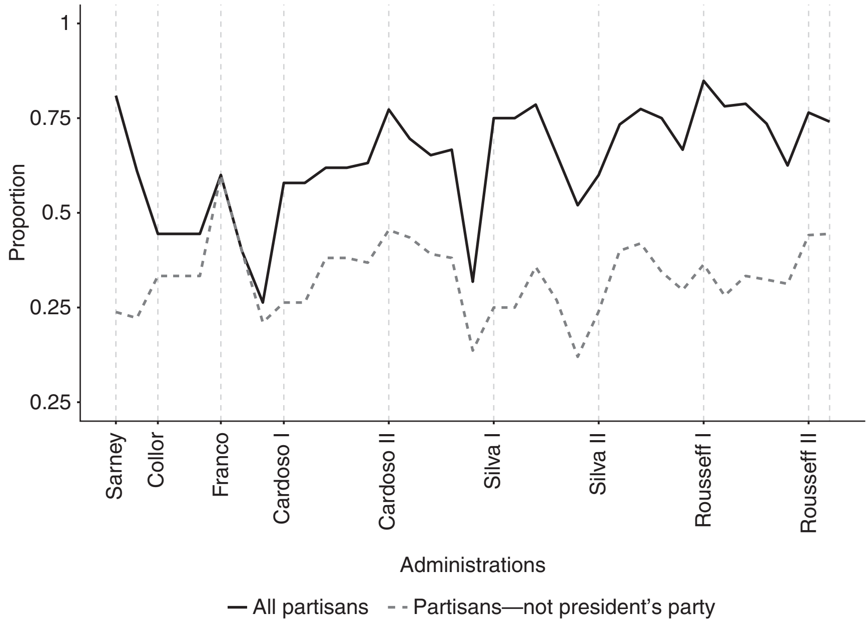

Figure 6.2 Cabinet membership by party (Brazil 1988–2016).

administration, this coalitional bipartisanism had not survived the party system realignment and growing uncertainties about presidential succession.

Facing a non-concurrent election among 20 presidential candidates, Collor was elected by a new party that won only 5.1 percent of legislative seats. After an anti-establishment and personal campaign, Collor governed through unilateral actions led by a cabinet formed from technocrats and crony ministers, with individual participation of some politicians. The lowest proportion of partisans in his administration reflects this PAD strategy. Following Collor's temporary removal by the Senate and the resignation of his ministers, acting president Franco immediately formed a *caretaker cabinet* with the parties supporting impeachment.[10] Calling for a multiparty effort to assure political stability, the president allocated portfolios for five large and mid-size parties, corresponding to 53.3 percent of legislative seats. In fact, an even larger legislative coalition supported Franco's presidential agenda as some parties refused to enter the government, yet voted with it. Having left his party, as an independent Franco dismantled the centralized EOP and delegated policy-making powers to coalition members and loyal aides. A striking example of this strategy was the control of economic policies by ministers affiliated or linked to PSDB, led by Minister of Finance Cardoso. This group implemented a successful plan of fiscal stabilization and inflation control that opened room for Cardoso's candidacy for the presidency. After a long period of hyperinflation, stagnation and several stabilization plans, an economic vote gave a decisive advantage to Cardoso who defeated seven challengers in the first round of the 1994 election.

This election was the starting point for partisan polarization at the level of presidential elections in the current democratic period. It had a strong effect on the party system, reducing the impact of party fragmentation on political competition (Melo and Câmara, 2012). PSDB and PT, leading multiparty alliances, were the most competitive parties in the six presidential elections that have taken place since 1994, which respectively elected Cardoso for two terms, then Silva and Rousseff, each for two terms. It has contributed to stabilizing party alignments, linking less competitive parties to the most competitive pre-electoral coalitions in the presidential race, even through fluid compromises. The high proportions of partisan ministers in every government since Cardoso's, oscillating between 0.60 and 0.84, reflects this dynamic.

Cardoso's inaugural government kept the core of Franco's economic team, while simultaneously accommodating the coalition partners without threatening PSDB's agenda priorities. His electoral coalition turned a surplus majority with the entry of PMDB, the median party in the Congress, and the oscillating participation of other parties during his two mandates. This right- and center-wing coalition allowed the Executive to push forward a broad constitutional reform agenda, proposed by Cardoso and coordinating ministries, most of them controlled by the president's party and his "own" people. The introduction of the reelection rule in 1997, sponsored by Cardoso, modified the cycle of coalition bargains and, consequently, presidential PAD strategies. The presence of the incumbent in the election has inhibited party expectations related to presidential succession and extended the temporal horizon of cabinet politics. Reelected in the first vote, Cardoso faced economic turbulence and intracoalition and interbranch conflicts, resulting in higher ministerial turnover than in his first mandate. The president reshuffled his cabinet twice during each mandate, in addition to dismissing some individual ministers.

The PT victory in 2002 was the first ideological alternation after direct election for the presidency was returned. However, PT achieved this victory backed by an electoral alliance with a center-right party, PL, signaling the ideological heterogeneity of the incoming government.[11] Indeed, it was deepened due to Silva's strategy to form a fragmented coalition, comprising mid-size and small left-wing parties. With the inclusion of the median party, PMDB, the three ideological poles appeared on the presidential table. In addition to pressures for portfolio positions from this fragmented coalition, Silva had to cope with high expectations for space in the government from his own party, and from unions and social movements. The highest proportion of partisans, simultaneously with the expansion of the ministerial positions and reshufflings, were the tools used by this cross-pressured president. The most significant change in his governing coalition occurred in the context of the *mensalão* scandal in 2005.[12] After the fourth cabinet reshuffles in his first term, this new government reduced the legislative gridlocks and came to be the core of the multiparty alliance supporting PT administrations led by Silva and Rousseff.

The survival of Silva's coalition was put at risk on his succession. The *mensalão* trials led to the conviction and suspension of the political rights of several PT leaders, drastically reducing the supply of candidates from this party. In this scenario, Silva personally selected Rousseff, a former minister and technocrat who had never held elective office. Once elected, the president maintained the PAD strategies of her antecessor, although adopting a centralized decision-making style. Silva's former ministers were appointed to Rousseff's inaugural government, but several scandals resulted in their dismissal. This allowed Rousseff to appoint her own people, with less influence of Silva. A fragile relationship with the legislative parties was a persistent source of political tension during her administrations, which culminated in the coalition breakdown at the beginning of her second term.

Figure 6.3 depicts the groups of ministers in the inaugural governments of each president.[13] The shares of the partisan and expert categories vary significantly when we consider the "hybrids," which correspond to a large proportion of ministers. This shows that the selection of party members is not a single shot, because some of the ministers could also meet the expertise demands of the administration (Inácio, 2013). Even in Cardoso's administrations, having a large share of technocrats, the proportion of "hybrid" ministers indicates an effort to

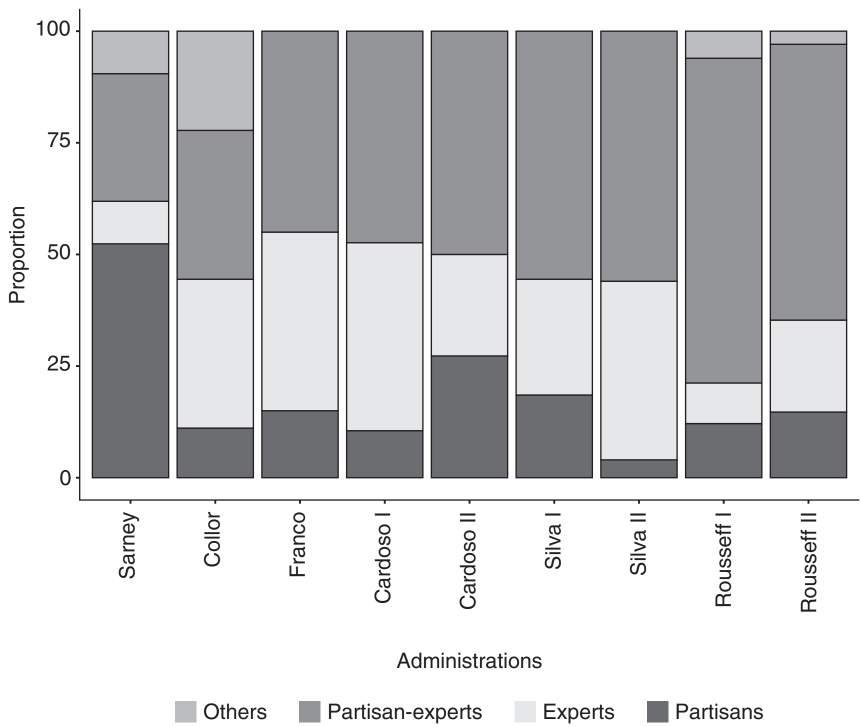

Figure 6.3 Minister profiles at inauguration (Brazil 1988–2016).

balance different selection criteria. Silva's and Rousseff's inaugural governments, seen as strongly politicized administrations, had the largest shares of partisans. However, when we disentangle this partisan component, more diversified cabinets emerge. In Silva's first government, "pure" partisans and experts filled half of the cabinet positions, and "hybrids" the other half. The higher number of experts was due to the permanence of the interim ministers, replacing ministers who left the government to contest the legislative or subnational elections. The president reshuffled his cabinet only four months after the inauguration, reflecting the larger temporal horizon allowed by the second term.

Seeing herself as a technocrat, Rousseff nominated the largest share of "hybrid" ministers in her first inauguration governments, after eight years of PT administration. She counted on a large supply of party members having policy experience, such as former ministers and executive secretaries. This allowed her to expand her contingent of experts without hurting the parties excessively. However, the share of experts without partisan linkage increased in her second term, when she made a policy shift in a polarized political environment. Ministers who have no party attachment or policy expertise seem to form a residual group in ministerial selection, under Brazilian coalition presidentialism. This group was seen only in the inaugural governments of Sarney, Collor, with a notable share of cronies, and Rousseff.

While this view of government composition allows us to understand how presidents pursue different goals by selecting different profiles, it is important to consider that, in doing so, presidents must also balance the influence areas of their own people on the one hand, and the other coalition parties on the other hand. "Their own people" means ministers from the president's party and not party-affiliated selected directly by the president. This concept, own people, refers to the closest circle of the presidents' advisors, composed of their own party members, and those with whom the presidents have personal loyalty and links. Then, it is important to bear in mind that similar levels of "own people" might reflect a different composition.

A cabinet dominated by the president's "own people" is the best definition of Collor's inaugural government. In addition to extinguishing half of the ministerial positions, Collor nominated cronies and experts to almost 80 percent of the ministries. Following Collor as a party independent at that moment, and heading a caretaker cabinet, Franco nominated the lowest proportion of "own people" as ministers after Collor's removal. More balanced inaugural governments, fairly balanced between the president's "own people" and other parties, were built by Cardoso in both presidential terms. In contrast, portfolio allocation bias that hyper-compensated the president's party explains Silva's higher proportion of "own people," mainly in his first term. Keeping weak linkages with her own party, and heading the same coalition formed by Silva, Rousseff reduced her "own people" in her inaugural governments in both terms.

Portfolio design at government formation. Portfolio design has been a primary strategy to enable presidents to meet legislative majority. The most important changes in cabinet size are realized in the inauguration of the government, signaling how the president will establish political and functional hierarchies among ministries, revealing his or her politics of delegation of power among the cabinet partners.

Presidents' portfolio design strategies have been more cautious in case of the institutionalized and the coordinating portfolios, with well-established ministerial structures and jurisdictions and in charge of the imperative policies. On the one hand, there are high costs to its political negotiation with congress, bureaucracies and policy networks; on the other hand, uncertainties about their impacts on the policy performance seem to restrain the president's initiatives in this area.

The most radical redesign of the cabinet, achieving coordinating portfolios, was implemented by Collor, as a clear part of his strategy to govern through unilateral actions. He centralized the policy-making decisions in the strengthened Ministry of Economics; created a super-ministry of infrastructure by merging Transportation, Mines and Energy, and Communications; and extinguished 11 portfolios, transforming part of them into EOP secretariats. The cabinet size was reduced from 22 to 12 portfolios, including the three military ministries (Army, Aeronautics and Navy), while EOP secretariats were created to implement the policies of the extinguished ministries (Science and Technology, Interior and Culture) and of prioritized areas (Environment, Sports, Federal Administration and Strategic Affairs). Seeking to revert the impeachment threats by offering ministerial positions to prominent partisan leaders, he expanded the 16 cabinet portfolios five months before being removed. This cabinet reduction was reversed by Franco, who recreated some ministries to support the cooperative PAD strategies and expand the EOP functions, in charge of his "own people," to offset this power delegation.

Pushing administrative reform as a government priority, Cardoso changed residually the size of the cabinet, putting more energy into the managerial proceedings to boost the coordinating functions of the economic area's ministries. He kept the strategic ministries in the hands of PSDB and his own people, such as the ministries of the economic area, the Administration and State Reform, and more visible social policies (health and education). By creating the Ministry of Planning and Budget, centralized in the EOP, he reinforced the budgetary control of the ministries' policies. The remaining ministries were allocated to coalition partners. However, it is worth mentioning that privatization reforms implemented by Cardoso dried up the spoil system underlying these ministries. In his second term, Cardoso led more structural reforms, such as the extinction of the military ministries, with the creation of the Ministry of Defense and Ministry of Land Policy and Family Farming.

The great expansion of cabinet size took place under PT administrations. By managing their fragmented and heterogeneous coalitions, Silva and Rousseff expanded the number of ministries parallel to the creation of new secretariats within the EOP. These secretariats centralized discretionary policies, mostly addressing demands from unions and social movements historically linked to PT, showing the primary PT concerns with party differentiation. However, this expansionist growth of the cabinet, achieving 39 portfolio positions, was mainly driven by the growth of the EOP, which was controlled by presidents' "own people."

Table 6.2 shows the evolution of ministerial offices that include the EOP units, given its importance for understanding portfolio design strategies led by presidents. It shows some stability of these structures and the fast expansion of EOP in the PT administrations. However, it is important to highlight that presidential administrative powers reduce the costs of micromanaging the access of cabinet members to Executive resources. Discrete redesign of the ministries, by transfer or centralization of their internal agencies and competences, has been a strategy tool for Brazilian presidents.

These foci on the president's "own people," comprising different ministers' profiles, allow us to distinguish PAD strategies proposed in this book. Camerlo and Martínez-Gallardo define cooperative strategy as "any appointment strategy oriented towards the inclusion of 'other' individuals, parties or social actors in the cabinet; unilateral strategies, by contrast, include any appointment strategy oriented towards the inclusion of the chief executive's 'own' people" (Chapter 1). Ministers with weak or no party affiliation and those of the presidential party are counted as the president's "own people," and they represent the proportion of unilateral appointments in the government. On the other hand, the proportion of ministries allocated to other parties denotes a cooperative portfolio allocation strategy.

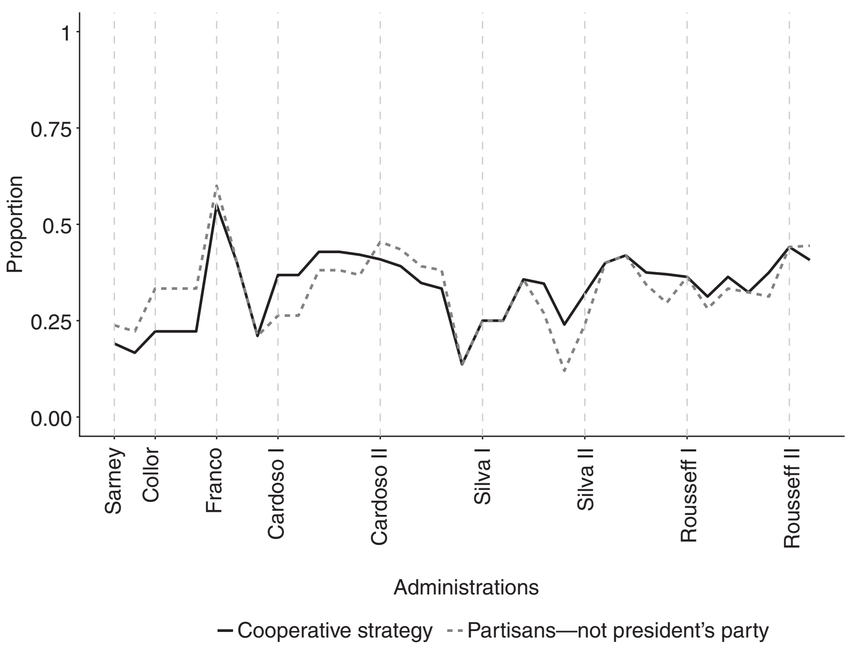

Figure 6.4 Portfolio allocation strategy (Brazil 1988–2016).

Table 6.2 Evolution of ministerial offices (Brazil 1985–2016)

Sarney (1985–1990)	*Collor (1990–1992)*	*Franco (1992–1995)*	*FHC I (1995–1999)*	*FHC I (1999–2003)*	*Silva I (2003–2007)*	*Silva II (2007–2011)*	*Rousseff I (2011–2015)*	*Rousseff II (2015–2016)*
Economics and Finance	Economics, Finance and Planning	Finance	Finance	Finance	Finance	Finance	Finance	Finance
Planning and Coordination		Planning, Budget and Coordination	Planning, Budget and Coordination[1] Planning and Budget[2]	Budget and Management[1] Planning, Budget and Management[2]	Planning, Budget and Management	Planning, Budget and Management	Planning, Budget and Management	Planning, Budget and Management
Justice	Justice	Justice	Justice	Justice	Justice	Justice	Justice	Justice
Foreign Affairs	Foreign Affairs	Foreign Affairs	Foreign Affairs	Foreign Affairs	Foreign Affairs	Foreign Affairs	Foreign Affairs	Foreign Affairs
			Administration and State Reform					
Aeronautics	Aeronautics	Aeronautics	Aeronautics	Defense	Defense	Defense	Defense	Defense
Arms	Arms	Arms	Arms					
Navy	Navy	Navy	Navy					
Agriculture	Agriculture and Agrarian Reform	Agriculture, Food Supply and Agrarian Reform	Agriculture, Food Supply and Agrarian Reform	Agriculture and Food Supply	Agriculture, Livestock and Food Supply	Agriculture, Livestock and Food Supply	Agriculture, Livestock and Food Supply	Agriculture, Livestock and Food Supply
				Land Policy and Family Farming[1]	Agrarian Developments	Agrarian Developments	Agrarian Developments	Agrarian Developments
Communications		Communications	Communications	Communications	Communications	Communications	Communications	Communications
Transportation		Transportation[2]	Transportation	Transportation	Transportation	Transportation	Transportation	Transportation
Development, Industry and Trade		Industry, Trade and Tourism	Development, Industry and Foreign Trade	Development, Industry and Trade Development, Industry and Foreign Trade[2]	Development, Industry and Foreign Trade	Development, Industry and Foreign Trade	Development, Industry and Foreign Trade	Development, Industry and Foreign Trade
Mines and Energy	Mines and Energy[2]	Mines and Energy	Mines and Energy	Mines and Energy	Mines and Energy	Mines and Energy	Mines and Energy	Mines and Energy
Labor	Labor and Social Security	Labor and Administration	Labor	Labor and Employment[2]	Labor and Employment	Labor and Employment	Labor and Employment	Labor and Employment
Science and Technology, Industrial Developments, Science and Technology[2]		Science and Technology	Science and Technology	Science and Technology	Science and Technology	Science and Technology	Science, Technology and Innovation	Science, Technology and Innovation
Social Security and Social Assistance	Social Security[2]	Social Security	Social Security and Social Assistance	Social Security and Social Assistance	Social Security	Social Security	Social Security	Social Security

Notes
1 Created or modified in the inaugural government.
2 Created or modified after inaugural government in the respective administration.

PAD during the government

In Brazilian coalitional presidentialism, the inaugural coalition maintains the core of the government during the administration. However, the exacerbated multiparty system and variations in the strength of president's party make reshuffles common. The high turnover rates in Brazil result from the ebb and flow of satellite parties revolving around the coalition core. This allows presidents to move the pieces on the chessboard and form alternative governing alliances.

Brazilian presidents face no institutional constraint to dismissing a minister; but they are cautious in using this prerogative due the political repercussions on the legislative parties' mood. Considerable amounts of ministerial dismissal by the president are related to policy shifts, pressured by exogenous crises, or events threatening the government image or reputation, such as scandals.

Minister turnover. The persistence of economic instability and several "remedial" plans triggered high ministerial turnover in the coordinating ministries, such as Finance, from Sarney to Franco. After the successful stabilization in the mid-1990s, longer-lasting ministerial tenures are associated with PAD strategies, adopted from Cardoso to Rousseff for the economic policy area, keeping their "own people" in these positions.

However, exits also reflect parties' and ministers' electoral strategies. In Brazil, ministerial positions are seen as opportunities to leverage politicians' careers, making them competitive for senate races and elective offices at the subnational level. Usually ministers, who took a leave from the Chamber of Deputies or the Senate to assume these positions, leave the government to contest a reelection or another elective position, returning to them in case of failure. Then, mayoral elections in the middle of the presidential term and concurrent elections for legislative and gubernatorial offices are critical junctures that could shorten ministerial tenures.

From 1988 to 2016, presidents allocated 448 ministerial positions for 323 ministers. Mostly the ministers were appointed for a unique tenure in a single administration, while 9 percent of them were reappointed to another portfolio by reshuffling. On average, the length of these tenures was 561 days, but it varies across administrations due to short, interrupted mandates and caretaker cabinets.

In order to describe ministerial turnover in the administrations, we distinguish three main types of exit motivations. They are based on the causes and directions of the exits. The first type is stability, when the minister leaves the government with the president. The second type is positive instability, when the minister leaves the ministry due to a promotion, to assume a similar position or a new ministry due to a reshuffle. Finally, the last type is negative instability, when a minister's exit is motivated by cabinet, policy or institutional conflicts and the minister goes out of the government or assumes another position.

The proportion of stable ministers, who left the government with the president, corresponds to 42 percent of the ministers, on average. With the lower number of portfolio appointments, Cardoso's government also had the highest share of stable ministers (49 percent). On the other hand, interrupted and caretaker governments had the lowest share of stable ministers, as seen in Collor, Franco and Rousseff II. As a lame duck president at the end of his mandate, Sarney used PAD strategies. This explains the high proportion of ministers who left the ministry with him.

The high level of ministerial turnover in Brazil is properly captured by positive and negative instability. Jointly, they represent, on average, 57 percent of the exits during the administrations. However, distinct moves underlie these types of exit. Positive instability mainly refers to the minister's circulation in the uppermost positions in political institutions through reappointment to a different ministry, political nomination to judiciary and other agencies, or by election. Like a prize, this exit, corresponding to 15 percent of all ministers, is evidence of success in their political career. Thus, we have to discount this proportion from ministerial turnover rates related to failure.

Negative instability, caused by intracoalition or interbranches conflicts, corresponds to 42.8 percent of ministers' exits. It is an important path for explaining a minister's failure, in all administrations. However, its frequency varies across mandates. Heading a more stable government in his first mandate, Cardoso resorted to PAD strategies in his next mandate by appointing 57 ministers, with five of them reappointments to different positions. This instability was prominent among ministers of Collor (48 percent) and Rousseff II (56 percent), whose governments were shackled by strong cabinets and interbranch conflicts. During his 917 days in office, Collor appointed 29 ministers and used PAD strategy only in the last year. However, several ministers were also dismissed after denouncements for corruption and political scandals. The highest number of appointed ministers (71) was in Rousseff I, but the turnover was more accentuated in her second term. In 491 days, she nominated 57 ministers to her cabinet, ten of them reappointed to different portfolios through two reshuffles made to gain legislative support against her impeachment. Figure 6.5 depicts the proportion of each type of exit.

If multitargeting presidents use PAD to diversify the profiles of the ministers sitting at the cabinet table, we should expect variations in their time in office. Partisan ministers, mostly professional politicians, are cross-pressured by demands from their own parties, such as intraparty competition for a ministerial position, and their own careers plans (Inácio, 2013). Then, there might be pressures for shorter tenures. Indeed, partisan ministers had shorter ministerial tenures across these administrations, staying 474 days, on average. They showed worse performance than hybrids who lasted 584 days, on average. This is slightly longer than that observed for experts (553 days).

The dispersion of the ministerial tenure for each minister is depicted in Figure 6.6. It shows significant intragroup variation, indicating that ministers having the same profiles differ in their time in office. Indeed, this effect of the profile of ministers on the length of the ministerial tenure is not statistically significant, as demonstrated by ANOVA ($F(3, 444) = 1.66$, $p = 0.175$). In other words, longer or shorter ministerial tenures seem not to be associated with a particular profile. It

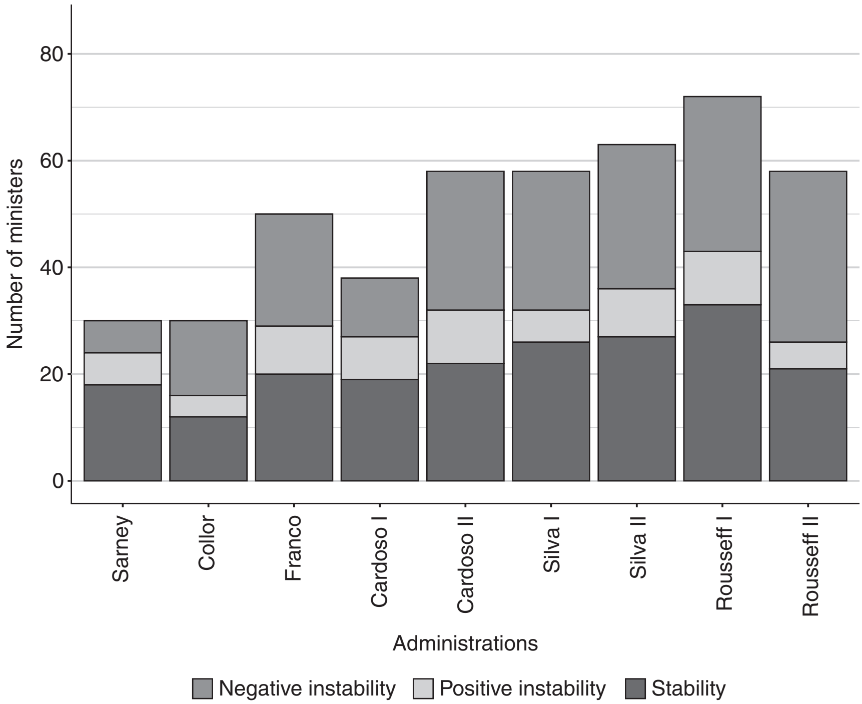

Figure 6.5 Minister turnover by type of exit (Brazil 1988–2016).

suggests that these profiles might refer to heterogeneous groups of ministers, whose survival in the government is affected by other factors, beyond their partisan linkages and expertise.

PAD at government termination

Government termination during a presidential mandate happens when the entry and exit of parties change the party composition of that government. Under Brazilian coalitional presidentialism, this occurred in all administrations, mainly due to cabinet conflicts. Most of them were able to avoid the "reverse outcome" (Cheibub *et al.* 2004) and formed new governments through reshuffles, which took place 2.8 times per presidential mandate. Cabinet reshuffles and ministerial turnover have been the keystone of government stability in Brazil.

The entry and exit of legislative parties in the government reflects both presidential and party calculations. The high number of legislative parties favors their strategic moves in the direction of a government seeking electoral returns from the control of portfolios (Melo, 2003). It might make it easier for the president to maintain workable coalitions through cabinet reshuffles.

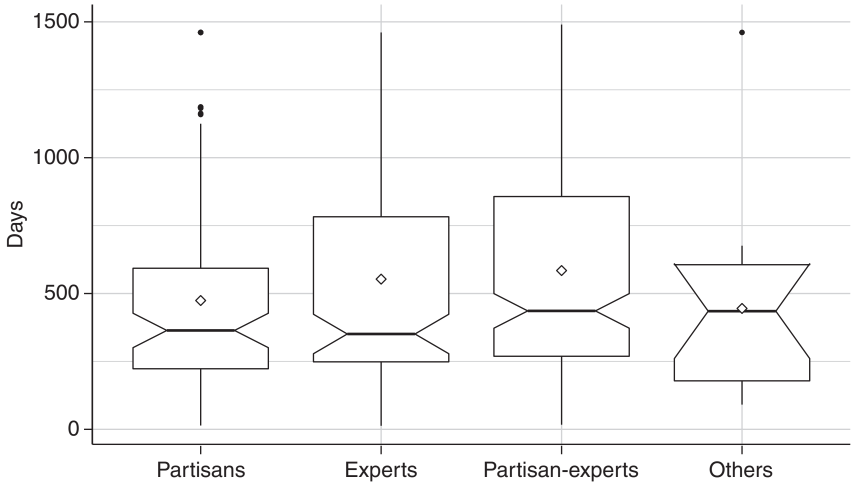

Figure 6.6 Minister duration by profile (Brazil 1988–2016).

Cardoso overcame cabinet conflicts by exchanging partners from the same ideological surroundings. His coalition survived two terms and was broken only in last year of the second term (2002) with the exit of the vice-president's party, PFL. It resulted from pre-electoral battles among coalition members for nomination of candidates to succeed Cardoso.

Leading a heterogeneous and fragmented coalition, Silva formed five governments during his first mandate. Initially, it was provoked by the exit of center-left parties discontented with the maintenance of economic and fiscal policies of the former administration; thereafter, because of the president's moves to overcome the governability crisis blown up by the *mensalão* scandal. Silva reversed his critical risk of coalition break by widening the participation of center-right parties in his coalition. After that, he successfully kept his coalition together, supporting the PT cycle in the presidency. This intracoalition party balance was only changed with the displacement of PMDB to the vice-presidency as part of coalition bargaining to support Rousseff as Silva's successor.

In two situations in which the presidents faced "reversion outcome," lower approval rates and scandals fueling their political isolation, the next step was not a single-party government, but impeachment. An important aspect leading to this result was the timing of the presidents' use of PAD strategies to reshape their coalitions. Collor made concessions to legislative parties and offered ministerial positions on a partisan basis only when denouncements about his participation in a corruption scandal made the impeachment threats highly likely.

The timing to form a new government also affected Rousseff's fate. In the middle of her first mandate, violent street protests in 2013, a rapid drop in Rousseff's approval rating and increasing opposition to the government's economic policies put the coalition members under cross-pressures. The government resisted pressures from economic sector groups and parties, including her own party, for shifts in the economic policies and the ministers in charge of them, before the reelection. She was reelected with the lowest margin between the first- and second-place candidates, in an extremely polarized contest with high volatility of voter preference. Rousseff's policy shift at the inauguration of her second term worsened this situation when she prioritized a fiscal reform agenda, the needs and urgency of which she had denied during the campaign. The "car wash" scandal investigation, begun during the election, showed political nominees' participation in corruption and bribery schemes, deepened the political crisis and raised pressures to remove the president. Increasing government paralysis, vis-à-vis legislative obstructionism, led the president to reshuffle the government at the end of 2015, changing the economic team and making more concessions to allies. This did not block the parties' moves and the impeachment proceedings, a request initiated by citizens, counted on the support of the coalition partners. After the Chamber of Deputies authorized Rousseff's trial for the "crime of responsibility," the centrifugal movement intensified, culminating in the exit of the PMDB, PP and PR from the government. It occurred a few days after the last reshuffle, unsuccessfully attempted by the president, to meet a one-third minority to bar her removal from the presidential office.

Explaining portfolio allocation and design strategies

The basic assumption of this book is that presidential strength conditions the ways in which rulers employ portfolio allocation to manage political support, technical expertise, and internal alignments in the cabinet. Thus, we should expect more unilateral strategies in the good times and more concessions to parties and other actors from weak presidents, particularly when bad times make him or her vulnerable.

In this section, I first discuss factors that strengthen the presidents and enlarge their latitude to choose how to frame their cabinets and agents. Next, I put some contextual information about these decisions into perspective in order to understand the effects of exogenous shocks in forcing concessions to other parties and political groups.

Presidents and their environments

Brazilian presidents are one of the most powerful Chief Executives across presidential systems, counting on a wide array of institutional resources to act as agenda-setters and the pivotal actors in the decision-making processes, as discussed earlier. Agenda and veto powers, appointment powers and budgetary control offer a diversified presidential toolbox. These powers are crucial not only for interbranch negotiations, but also for federative bargains in a decentralized federal system such as Brazil.

The constitutional provisions of these institutional powers were modified in a discrete way throughout this period, most of them signaling a tactical review by the Congress regarding the scope of the delegated powers. Limitations on issuing provisional measures in specific policy areas, such as the confiscation of savings, was adopted after Collor's economic plans were implemented by means of unilateral decisions. The prohibition against the reissue of provisional measures was adopted at the end of Cardoso's administrations, after it had become an ordinary means to change the status quo in order to compel legislative approval of these decisions. Nevertheless, the Executive won more discretion over changes in its own structure. The presidential power of the purse was recently limited with the obligatory budget, that curbs the president's discretionary execution of legislators' amendments. This is their main channel for assuring pork barrel goods for their electoral districts.[14] Discretionary execution of these amendments was an important tool, strategically used by the president in legislative bargains. Congress has not addressed reversal of the appointment powers; but, in 2016, for the first time the Judiciary was called to decide about ministerial nominations.[15]

In contrast, institutional power favored a centralized decision-making process that has reduced the role of subnational governments as veto players. Constitutional reforms and macroeconomic policies that were adopted, mostly during Cardoso's mandates, reinforced the role of the Federal Executive as agenda-setter in decisions about federative issues. With this, the ability of the presidents to use distributive politics in order to boost their political and partisan support on a national basis increased.

Contrary to their institutional strength, the partisan power of Brazilian presidents is their Achilles' heel. Minority presidents are not surprising in any multiparty system, but being a minority president in a highly fragmented one could be challenging. Majority concurrent elections and bipartisanship reduced the effects of political fragmentation and foster electoral coordination at the presidential level. All presidents built pre-electoral alliances in order to get the presidential seat, the best prize. However, the reduction was feasible because these alliances changed the parties' intertemporal expectations about turning an electoral alliance into a governing coalition. Since the 1994 election, giving a hand to an ideologically relatively distant running mate was part of the coordination strategy to nationalize the candidacies and win pivotal constituencies in the first ballot (Blais and Indridason, 2007; Limongi and Guarnieri, 2014). If policy agreements were not the keystone in these pre-electoral pacts in Brazil, the concessions related to subnational disputes were. For electoral coordination, presidential candidates' parties had to forsake the dispute for desirable positions in the state, such as a senate seat, and endorse the allies' candidacies. Even with electoral alliances in first and second ballots, the presidents' shares of the legislative seats ranged from 5 percent to 19 percent in the lower Chamber, since Collor. This also has narrowed the presidents' political support because their legislative caucuses were slightly nationalized, even PSDB and PT in the inaugural governments. Both of these constraints have limited the supply of the president's "own people" able to temper the unilateral PAD strategies with a flavor of partisan and federative support, making the governing coalition attractive.

Another source of presidential leverage, seen as a condition that might motivate unilateral strategies, is the president's approval. It has oscillated significantly across and during presidential mandates in Brazil. Only Franco and Silva ended their mandates evaluated better than at their inaugural governments, although the latter lost support during the *mensalão* crisis. Going public was an additional tool used by Silva to tackle the reputational losses provoked by the involvement of PT and some ministers in the *mensalão* scandal. He was successful in disconnecting his own image from this scandal in order to keep himself competitive for reelection. The presidential leverage of Cardoso decreased in the transition between his administrations, particularly after the policy shift in monetary policies, the negative impact of international finance (1998/1999) and the energy crisis (2001). Collor and Rousseff, elected with the highest approval ratings, respectively 71 percent and 67 percent, saw their popular support vanish during their mandates. Although Rousseff recovered her prestige after the street protests in 2013 and was reelected, her approval quickly fell to 10 percent, to the same level of Collor on the eve of his removal.

Economic instability was a recurrent problem for all Brazilian presidents during this period. It was more intense from Sarney to Franco due to the persistent combination of low rates of economic growth and hyperinflation, resulting in several economic plans and high ministerial turnover in this policy area. The stability experienced by Cardoso was only reversed by the 1997–1999 turmoil, at the end of his first term. This resulted a policy shift, with currency devaluation after his reelection. An energy supply crisis in 2001 led to energy rationing, feeding criticism of government performance. The 2008 global financial crisis, despite its initial negative impact on GDP growth, opened room for the change in Silva's macroeconomic and fiscal policies, in order to expand public and private consumption. The consequent economy recovery benefited Rousseff's election, but the limits of her anticyclical and expanded public expenditure policies, in a context of global drop of commodities prices, were made clear in 2012. Rousseff's economic policies, based on state intervention in the private sector, received increasing criticism from business as the decline of the GDP and rising inflation and unemployment rates worsened on the eve of her reelection. In 2015, in the context of a "perfect storm," with the lowest presidential approval rating and deep stagflation, Rousseff's late policy shift was ineffective to overcome this situation.

Testing the PAD argument

The book's argument offers a productive way to address variations in PAD strategies across governments, including within-country comparisons. Its attention to institutional, political and contextual factors allows testing whether unilateral and cooperative strategies of portfolio allocation are contingent on presidential strength and exogenous shocks.

Coalitional presidentialism is a recurrent way the government works in Brazil, anchored in a cooperative strategy to compensate coalition parties with portfolio allocation, demonstrated extensively in the literature. The partisan linkage is seen as the cement of this cooperation and the presence of technocrats and loyalists is neglected and counted as part of the presidential quota of ministers. In contrast to this view, this chapter shows a more complex picture of the cabinet. Here, we push the line and count as the presidents' "own people" ministers from their own party, as well as loyalists and experts recruited directly by them, independently of party attachments. This group corresponds to 63 percent of 448 nominations, despite variations across governments. Hence, this pro-president bias, indicated by its unilateral strategy of portfolio distribution, should be weighted in to measure the risks of agency losses by the president.

Looking at the presidential "own people," we narrow the focus on partisan linkage of cabinets by disentangling the party attachments of appointed ministers. The selection of ministers with weak partisan attachments might be a strategy to push the concentric circle of the presidential "own people" beyond the parties' fringes, forging greater closeness to the president rather than to the parties' leaders. Backed by this circle, composed of the president's party ministers and the weakly, or non-partisan, ministers, the presidents could lower coalition costs, even in case of fragmented and heterogeneous alliances.

The naïve count of partisan ministers, based only on party affiliation, might overshadow the president's strategy to weaken the bargaining power of parties regarding government decisions on a daily basis. In addition to partisan attachments, expertise is another attribute that might make hybrid ministers less dependent on party support. These appointments correspond to 213 of the 448 ministers, respectively recruited from the president's party (49 percent) and from other parties (52 percent).

The exceptional number of hybrid ministers also calls attention to the basket of the president's needs. Portfolio allocation seems to be multitargeted decisions, at least for some cabinet positions. Studies have pointed out the role of technocrats, such as in economic and coordinating ministries, in contrast to the political role of partisan ministers, paying little attention the selection of ministers who possess both attributes. In an uninterrupted democracy, opportunities for ministerial careers flourish, expanding the supply of these politicians who may value more being closer to the president than to the parties.

However, distinct profiles do not imply different odds of survival. Multitargeted portfolio allocation and ministerial turnover are complementary parts of a PAD strategy to expand the president's leeway in coalition management. Indeed, high ministerial turnover in Brazil is mostly motivated by cabinet or external conflicts. Cabinet reshuffles have worked as a "reversion outcome" in critical situations. But presidents do it differently. Ministerial turnover led by Cardoso was also a party turnover in the control of specific ministries. In other direction, Silva and Rousseff, under vulnerable conditions such as exogenous shocks, opened space for the party leaders to "self-regulate" the replacement of their ministers reassuring the control over their ministry.

This expectation of a longer control of a policy area extends the temporal horizon of party's cabinet membership, preventing its exit even at the cost of its minister's departures. It sheds light as to why ministerial turnover could work as a second best solution to cabinet turnover in Brazil, showing that not only the nomination but also the ministries' exits operate as a safety scape for cabinet politics (Martínez-Gallardo, 2012).

There has been much empirical work done on the use of different executive tools by Brazilian presidents to keep tabs on coalition partners. In this chapter, we also presented evidence of the understudied tools as cabinet design and expansion of the presidency. Cabinet size and changes in portfolios have been fairly associated with PAD strategies, mostly by presidents facing costlier coalition. While the most unilateral PAD was implemented by a radical reduction of the cabinet size by Collor, presidents Silva and Rousseff increasingly accommodated their large share of "own people" in parallel to concessions to coalition partners through the expansion of the portfolios. They did it by strengthening the size and roles of the EOP: centralizing decisions, advisory and policies responsibilities in the hands of presidential staff (Inácio, 2012, 2016). Administrative changes in the cabinet, by splitting or merging portfolios, were adopted by presidents Sarney and Cardoso keeping the larger share of "other" in the cabinet. The caretaker president Franco, who ruled as an independent, deepened the delegation in favor of coalition partners with the transfer of EOP tasks to recreated portfolios.

As discussed before, the weakness of the presidents in Brazil is partisan, not institutional. Except Collor, all presidents handled their minority condition balancing the weight of unilateral and cooperative portfolio allocation strategies in order to build multiparty cabinets, walking away from dichotomous choices. Also, presidents' "own people" are not created equal, as seen by the larger portion of experts in Cardoso's governments and the high number of the president's party members in the Silva and Rousseff administrations.

Exogenous shocks shook this balance in some governments, but not in all of them. Horizontal conflicts among cross-pressured coalition members boosted by parliamentary opposition and voices on the street raised the management costs of the cabinet, declining the presidential leverage. All presidents in this period faced political instability related to economic crisis and political scandals, dropping presidential approval. However, only Collor and Rousseff in her second term changed their PAD strategies in order to contain their partners' defection, but it did not reverse the failure of their governments. To understand why these shocks affected these presidents differently, we have to consider timing as a critical variable. Even in the most important crises, Cardoso (2001) and Silva (2005 and 2009) acted quickly. Using administrative tools to reshape the decision-making and policy implementation processes, they tried to overcome the crises' effects on the government's reliability and performance. In contrast, Collor and Rousseff II poorly managed the rich presidential toolbox and postponed the use of PAD until centrifugal moves of cabinet members made it ineffective (Abranches, 2015).

Concluding remarks

In this chapter, I analyzed PAD strategies in Brazil since the redemocratization. I looked at the cabinet lifecycle in order to show whether portfolio allocation works as a flexible tool making the coalitional presidentialism attractive to the presidents' eyes.

The strategic value of PAD was pointed out by mapping institutional, political and contextual constraints and incentives affecting presidents' decisions about government formation, management and termination. To do that, I departed from the analytical perspective developed in this book, which offers new perspectives on the conceptual measurement levels. A key contribution is a narrow approach of partisan linkage of cabinet politics by distinguishing the presidents' own people and other partners. The degree of unilateral and cooperative PAD strategies is addressed by distinguishing how presidents establish their inner circle of aides and advisors in order to meet the political, expertise and loyalty needs they consider crucial.

Party attachments offer a clear way to dissect cabinet composition and expected returns from presidents and their partners. However, we should do it in a way to map how cabinet politics, particularly PAD strategies, reshapes the linkages among them. The roles and moves of the notable share of ministers meeting partisan and expertise attributes should be addressed by future researches. By identifying if ministerial careers reflect change in the presidential strategies and the interparty bargaining will offer additional evidence of the impacts of PAD on the cabinets politics in the long term.

With evidences from Brazil, I showed how PAD strategies as the first-order decisions and in conjunction to other presidential tools affect the lifecycle of the cabinet. The interconnections among PAD, cabinet design and ministerial turnover suggest that coalitional presidentialism in Brazil operates in a structured way. Although not supported by rules typically associated with formation and functioning of coalition cabinets, this iterated dynamic forged its own institutionality.

The failure and success of these institutionally strong, but weakly partisan, presidents seems to be contingent to both their own strategies and shocks from external environments. Backed by a wide array of powers, presidents cope with political uncertainties using PAD strategies. However, timing makes a difference to the success of PAD strategies. Thus, the effects of exogenous shocks seem to make conditional the presidents' ability to decide which tool to use and when to use it.

The several institutional and administrative tools might make it easier for Brazilian presidents to buy cheaper coalitions. However, a key point is why coalition partners do not walk away when the president adopts less cooperative PAD. It begs the question if portfolio allocation is the presidents' first-order decision, by which they frame the primary influence of parties in the government. The selective use of other executive tools, as second-order decisions, could offer supplementary rewards valued by parties. It has several implications for the empirical studies of the use of executive tools, mostly taken as executive tools as substitutes.

Notes

1 Although district magnitude is defined by the criterion of populational proportionality, the malapportionment of the Chamber of Deputies is a consequence of the Constitutional provision that determines the minimum (8) and maximum (70) number of seats.
2 President Rousseff was removed from her functions during her trial in the Senate for the "crime of responsibility," after being authorized by the Chamber of Deputies in May. She was formally removed from office in September 2016. The Temer government, beginning in 2016, will not be analyzed in this chapter.
3 Indirect administration agencies respond to the provision of public service or exploitation of economic activities. They have administrative and financial autonomy, and are regulated by private law.
4 SMS positions are stratified in six levels, with the lower levels (1–4) relate to assistants, coordinators and division heads. The upper management positions (5–6) are exclusive appointments of the presidency. Cf. D'Araújo, 2009.
5 This constitutional amendment (EC no. 32, 2001) prohibited the reissuing of provisional measures, but increased the autonomy of the Executive in decisions regarding its organization through this new type of decree.
6 The president also intervenes in the composition of the Judicial branch and the agencies of other branches, given that it has the responsibility to appoint, following approval of the federal Senate, the ministers of the federal Supreme Court. This is the highest court, with powers of constitutional review and of the Superior Courts, the Federal Attorney General's Office, the president and directors of the Central Bank (CF88, Art. 84, XIV). In addition, the president appoints one-third of the ministers of the Court of Accounts of the Union and the Federal Attorney General's Office.
7 CF88, Art. 50.
8 For all subsequent analyses, the results refer to this transitional government cabinet, elected by the electoral college prior to the reintroduction of direct election in 1989. This government was atypical by the extension of Sarney's initial mandate, from four years to five years, by decision of the Constitutional Assembly.
9 Democratic Alliance formed by the PMDB and the Liberal Front (FL, after Party of Liberal Front, PFL). This later party, PFL, is a dissident faction of the PDS, supporter of military governments, which joined the oppositionist party PMDB in its presidential candidacy, nominating Sarney as the vice-president.
10 Collor was temporarily given suspension of his president's functions on September 29, after the Chamber of Deputies authorized the impeachment proceedings. His definitive removal occurred on December 30.
11 Vice-president Alencar, from the business sector, was affiliated with a medium sized liberal party (PL). It was Silva's fourth presidential candidacy and this alliance sought to signal the moderation of the PT program and reduce voter and economic sector distrust of Silva.
12 Crisis caused by the scandal known as *mensalão*, triggered by the revelations of the president of the PTB, the governing coalition party, regarding corrupt practices involving members of the government and the National Congress, especially the "vote buying" of the legislators.
13 This does not include the inaugural government of Sarney, as our criteria consider his government only after the promulgation of the democratic constitution of 1988.
14 Constitutional Amendment no. 86, March 2017.
15 It occurred when Rousseff tried to nominate former president Silva as minister of the *Casa Civil* and a member of the *Ministério Publico* as Minister of Justice. The Federal Supreme Court suspended both nominations.

7 Bait and switch?

Portfolio allocation in Colombia (1958–2014)

Luis Bernardo Mejía Guinand and Felipe Botero[1]

Presidents are elected to get the job done. Thus, presidents campaign on particular agendas that they try to implement once they are in office. Ministers are central to this process, but so is Congress. When presidents enjoy majority governments, they have the required party support to approve and implement policies without much negotiation and coordination with other parties. Whenever possible, presidents prefer to act unilaterally because it is less costly and more effective. However, when presidents lack a legislative majority, cooperation and compromise are required to push policy forward. The composition of the cabinet is one of the most salient arenas where such cooperation or compromise can be observed. Colombia is not alien to these processes and portfolio allocation strategies are intertwined with the dynamics of the party system. Therefore, the composition of the cabinet reflects the need—or lack thereof—of presidents to secure a coalition that would allow them to implement their policy agenda.

The political and party dynamics have changed substantially over the past six decades and, therefore, portfolio allocation processes have changed as well. In this chapter, we explore the evolution of cabinet composition in order to explain portfolio allocation and, in particular, explore the role of party dynamics in the cabinet allocation process in Colombia since 1958. In the 1960s, Colombian parties were more robust and disciplined and there were only two of them. The traditional Conservative and Liberal parties had coalesced in a pact (the National Front) that required party cooperation and guaranteed equal representation in Congress and the cabinet. After the pact expired, majority governments were the norm, which provided fewer incentives for presidents to offer cabinet positions to members of other parties. However, party fragmentation increased gradually and by the early 2000s the party system was chaotic and hyper-fragmented. In this new context, presidents found it increasingly difficult to obtain congressional majorities and had to appoint members of other parties in the cabinet. However, the loyalty of these ministers has not always lay with the president, but rather with the party to which they belong—increasing the potential for agency loss in the policy areas where the president appoints ministers from other parties.

In this chapter, we argue that Colombian presidents have responded to the changing nature of party politics by devising ways to reduce agency loss and cope with the trade-off between support and loyalty. Particularly in the recent past, presidents have used the power to change the structure of the presidential office to create parallel offices that curtail the ability of ministers to enact policies contrary to those of the Executive, or to block the president's agenda. By doing so, we suggest that presidents may engage in "bait and switch" tactics inviting other parties to the cabinet, while at the same time limiting the ability of ministers to affect policy. Our detailed description of cabinet politics in Colombia between 1958 and 2014 allows us to show that minority or unpopular presidents are likelier to engage in collaborative portfolio allocation strategies, but also to show that in the past decade presidents have modified the structure of the presidential office as a response to having other parties in their cabinets.

Institutional background

Ministries in Colombia are a key element of the policymaking process and are the agents through which the president shapes policy in order to "get the job done." In this section, we describe the institutional milieu that defines the roles of the president and his[2] ministers.

The political system

Colombia's presidential democracy evolved from a system in which the Executive enjoyed great powers to one in which the 1991 Constitution limited the ability of presidents to govern with few checks. Here we provide a brief description of the political system.

The president and vice-president are elected in national elections to serve a four-year term. Currently reelection is not allowed, although for a ten-year interlude it was possible for the president to be reelected—something of which presidents Uribe (2006) and Santos (2014) took full advantage. A constitutional amendment in 2015 reinstated the ban on presidential reelection.

Legislative elections occur in March, three months prior to the presidential election, which takes place in May. Therefore, executive and legislative elections are neither perfectly concurrent, nor completely non-concurrent. In the presidential election, if no presidential candidate attains a majority of the vote, a run-off election between the top two candidates takes place three weeks after the first round.

Colombia has a bicameral legislature with a 102-member Senate and a 166-member lower House of Representatives. Senators are elected in a single, at-large district with two seats reserved for indigenous minorities. Representatives are elected at the state level in districts with varying magnitudes, according to population size. Districts range from a mandatory minimum of two to a maximum of eighteen. Five seats are reserved for different populations: two seats for Afro-Colombians, one for indigenous peoples and two for Colombians that live abroad.

Table 7.1 below offers a description of the configuration and evolution of the political system in Colombia in the 1958–2018 period.

Table 7.1 Institutional background in Colombia (1958–2018)

President	*Starts*	*Ends*	*President's party*	*Other parties in government*	*Cabinet size*	*Total ministers*	*President's legislative support*	*Type of government*	*President selection*	*President mandate*
Lleras C.	1958	1962	PL	PC, Communist Party	13	60	Majority	Coalition	Elected	Completed
G. L. Valencia	1962	1966	PC	PL, MRL, ANAPO	13	49	Majority	Coalition	Elected	Completed
Lleras R.	1966	1970	PL	PC, ANAPO	13	27	Majority	Coalition	Elected	Completed
M. Pastrana	1970	1974	PC	PL, ANAPO	13	31	Majority	Coalition	Elected	Completed
A. López	1974	1978	PL	PC, ANAPO	13	33	Majority	Single-party	Elected	Completed
J. C. Turbay	1978	1982	PL	PC, Mov. Nacional	13	30	Majority	Single-party	Elected	Completed
B. Betancur	1982	1986	PC	PL, ANAPO, Nuevo Liberalismo	13	39	Minority	Coalition	Elected	Completed
V. Barco	1986	1990	PL	PC, Nuevo Liberalismo, Unión Patriótica	13	44	Majority	Coalition	Elected	Completed
C. Gaviria	1990	1994	PL	PC, ADM-19	13	37	Majority	Single-party	Elected	Completed
E. Samper	1994	1998	PL	PC, Nueva Fuerza Democrática, ADM-19	15	54	Majority	Single-party	Elected	Completed
A. Pastrana	1998	2002	PC	PL, Nueva Fuerza Democrática	16	40	Majority	Coalition	Elected	Completed
Á. Uribe I	2002	2006	Primero Colombia	PC, PL, POLO	13	20	Minority	Coalition	Elected	Completed
Á. Uribe II	2006	2010	Primero Colombia	PC, PL, POLO, PSUN	13	22	Majority	Coalition	Elected	Completed
J. M. Santos I	2010	2014	PSUN	PC, PL, Cambio Radical, Partido Verde	13	36	Majority	Coalition	Elected	Completed
J. M. Santos II	2014	2018	PSUN	PC, PL, Democratic Center	16	18	Majority	Coalition	Elected	In course

The Executive

The Executive is the main agenda setter in Colombia. According to the Constitution, the president and his cabinet are responsible for defining public policy guidelines and prioritizing programs and projects. In order to understand the Executive's role in policymaking, we describe the Executive's centralized power structure, derived both from the Constitution and from the party system itself.

Even though the constitutional reform of 1991 significantly reduced presidential prerogatives, Colombian presidents still enjoy considerable constitutional powers. These powers can be grouped around three dimensions: proactive, integrative and reactive powers.

First, presidents have extensive decree powers. Presidents use decrees to initiate major policy changes, or to prevent them from happening (Rius and Van de Walle 2003). The Executive also has the authority to set the spending limits of the budget as well as estimating the revenues, while the Legislature is not entitled to increase expenditures for any budget item nor introduce any amendments to increase total spending. Congress therefore, can only reduce expenditures or reject them. Presidents also have the authority to set the policy agenda through other mechanisms such as prioritizing bills and urgency petitions. Finally, the Constitution grants the president the exclusive right to initiate bills dealing with foreign trade, foreign exchange, national debt, tariffs and the reorganization of the public administration (Stein *et al.* 2005).

Second, the Constitution bestows the Executive with ample appointment powers. Presidents may nominate, appoint and dismiss government officials, including not only ministers and top level employees at the Executive, but also Foreign Service posts, directors of decentralized institutions and some members of the boards of key autonomous organizations (such as the Central Bank).

Third, Colombian presidents have reactive powers that allow presidents to prevent bills from becoming laws (Mainwaring and Shugart 1997). Presidents can veto laws or parts of laws and have them sent back to Congress to address their objections, but may not promulgate into law the non-vetoed parts of a bill. Additionally, while before 1991 a two-thirds majority in Congress was necessary to override a presidential veto, now simple majority suffices.

In addition to constitutional powers, Colombian presidents have partisan powers that stem in large part from the share of seats controlled by the president's party in Congress and the cohesiveness of the governing party or coalition (Stein *et al.* 2005). Even when the constitutional powers of the Executive are favorable, partisan powers often severely compromise the president's ability to pass legislation. Key dynamics of the party and electoral systems hamper the ability of political parties to attain a majority of legislative seats. Moreover, political parties in Colombia are weak and fragmented. Before 2003, parties were able to present multiple party lists in each district, a feature that exacerbated intra-party competition. A 2003 electoral reform sought to solve this problem. Although the reform gave way to a much less chaotic system, it fell short of creating strong, disciplined parties with which the Executive can negotiate.[3] Party weakness in Congress forces the Executive to seek individual support from legislators in order to secure ad-hoc majorities for key projects. Typically, the currency to build coalitions is the distribution of pork,[4] which makes the process quite costly and difficult.

Furthermore, clientelism is one of the salient features of Colombian politics. As suggested by Archer and Shugart (1997), clientelism reduces the incentives of members of Congress to get involved in the policy process and to engage in national policy debates. In spite of the 2003 reform, electoral politics revolve mainly around individuals—not parties—and politicians owe their success to their ability to cultivate a personal vote rather than to the use of the party label. As a result, members of Congress are more interested in securing pork and projects for their constituencies than to debate policies.

The cabinet

To understand the characteristics of the cabinet, it is important to consider the structure of the Executive in Colombia. The current organization of the Executive is depicted in Figure 7.1.

Office of the presidency. This office in Colombia has a long history. Originally created in 1898, it has evolved to become a complex and institutionalized agency. During the first decades of its existence, the office of the presidency was extremely simple. Gradually, the presidential office grew in complexity and developed two distinct areas. The administrative area is in charge of public and media relations, logistics, traveling, human resources, budget of the presidential office and the president's security detail. In turn, the core functional area is formed by a set of advisors who are responsible for providing assistance to the president about his legal and constitutional mandates. As we show below, presidents create these types of offices—sometimes with flamboyant names such as High Councilor, High Commissioner, anti-Corruption Czar, etc.—as a strategy to monitor policy areas of portfolios that have been conceded to coalition partners (Mejía Guinand *et al.* 2017).

Office of the vice-presidency. An important caveat is in order concerning the vice-presidency: it does not have as much power as suggested by Figure 7.1. The Constitution does not assign the vice-president any specific functions and it simply states that the president will define his or her functions. Thus, the visibility and role played by the vice-president depends on the power and functions delegated by the president. In practice, however, the main function of the vice-president has been an electoral one. The figure of the vice-presidency allows presidential candidates to present a more appealing ticket to voters, as candidates typically include charismatic figures or someone who represents a sector for which the original candidate is not an obvious choice. Once elected, vice-presidents have little to do. Their functions are as vague as they are enigmatic, and may include things such as being the head of the Intersectoral Commission for Oceans and Space.

Ministries. The president appoints and dismisses his ministers without formal control from other institutions or actors. This gives the president wide berth to use cabinet appointments to pursue his agenda. Ministers are responsible for the

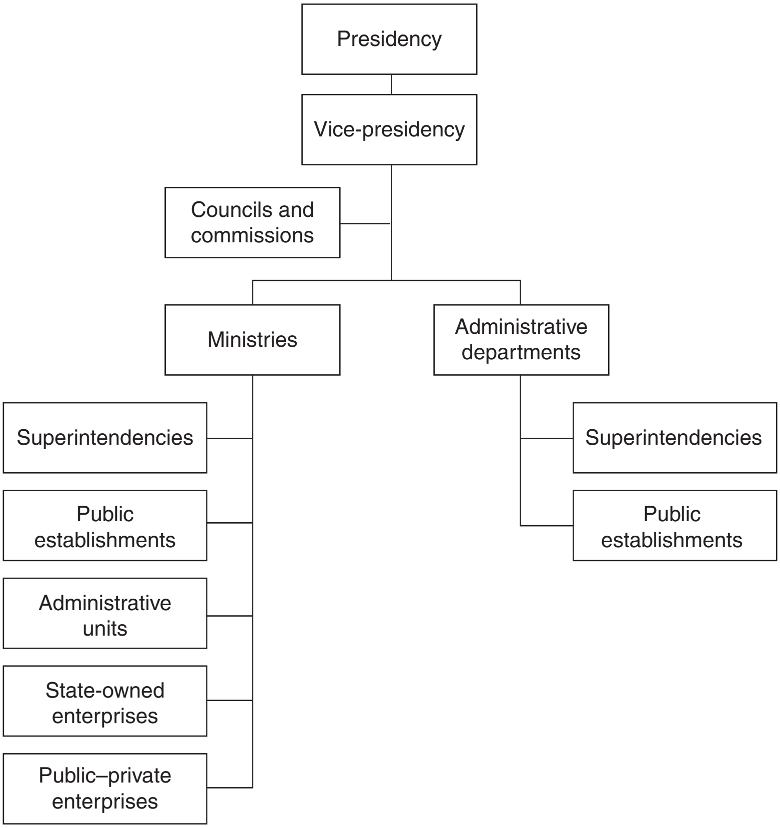

Figure 7.1 The structure of the executive power in Colombia (2017).

Source: own elaboration based on Law 489 of 1998 (state administration structure law).

regulation of the policy area of their portfolio and are constitutionally required to be the liaisons between the president and Congress. In this context, they are responsible for preparing and submitting bills in their policy area. Additionally, they must attend committee or floor hearings at the request of the Legislature. As of August 2017, there are sixteen ministries.

Even though the majority of ministries remain almost unchanged since their creation, it is common for each incoming president to reorganize the structure of the executive branch. This typically entails the transformation, fusion or suppression of ministries.

Administrative departments. These are bodies responsible for directing, coordinating and implementing technical support to other agencies of the Executive. Their importance within the Colombian state organization is equivalent to ministries. Currently, there are seven administrative departments.

Administrative departments and ministries have a utilitarian relationship, with the exception of the National Planning Department (NPD). Administrative departments produce information (statistics, target measurements, economic trends, employment structures, etc.) that ministries use in their day-to-day public policy process. The NPD has a more hierarchical structure because it directs and coordinates certain functions that ministries need to carry out in order to put in place the Executive's policy agenda. The NPD allocates the investment budget of the ministries, coordinates the implementation of the National Development Plan (NDP), and evaluates the performance and results of ministries vis-à-vis the execution of the country's investment budget.

The policymaking process in Colombia is coordinated by the president and has at its helm both the NPD and the Ministry of Finance. The NDP provides the formal and legal instruments through which the Executive sets policy objectives for the four-year term.[5] The NDP also includes the multi-annual budgets for major public-funded programs and projects. As dictated by the Constitution, the NDP must be presented and discussed in Congress and once approved it becomes law (Nieto-Parra *et al.* 2013).

The Ministry of Finance is responsible for consolidating and preparing the annual budget and presents it to Congress during the first ten days of each legislative period. If Congress does not approve the proposal, the president can decree into law the previous year's budget adjusted by inflation (Cárdenas *et al.* 2010).

Furthermore, the National Council of Economic and Social Policy (CONPES for its Spanish acronym) plays an important role in the policymaking process. The CONPES is the highest national planning authority and serves as an advisory body to the Government on all aspects of economic and social development. The Council is directed by the president and includes the full cabinet and directors of administrative departments. The core function of the Council is to analyze and approve policies, and to coordinate the implementation by the appropriate agencies.

Using portfolio allocation and design (PAD) strategies

As we have described, Colombian presidents enjoy great freedom to form their cabinet given that the constitution grants them the power to appoint and dismiss ministers at will. Their choices, however, are subject to some informal restrictions. Naturally, presidents' choices will reflect their goals and political agenda. Nevertheless, Colombian presidents conform to the theoretical expectations related to the use of unilateral or collective strategies. As we will show, partisan powers are determinant in the choice of portfolio allocation strategy. Concretely, when the president achieves a majority in Congress or when his levels of popularity are high, he resorts to a unilateral strategy. When there is the need for a coalition, presidents budge and bring different parties into the cabinet.

PAD at government formation

Presidents have used different strategies to form their governments. In every case the government results from informal collective agreements that take place during the electoral campaign and continue throughout the election up to the inauguration. Naturally, the promise of cabinet posts is a good strategy to get electoral support from parties that invest energy and resources in a candidate with the hope of obtaining handsome rewards, should the candidate become president. Nevertheless, the crux of negotiations takes place in the months between election and inauguration, when the president elect defines his new team. In what follows, we offer a chronological description of the politics behind the inaugural cabinets during the period under study.

Between 1958 and 1974, the composition of presidential cabinets was determined according to an intra-elite pact signed by *Partido Liberal* (PL) and *Partido Conservador* (PC) known as the National Front. This agreement was signed after a period of internecine partisan conflict in the 1950s that took around 200,000 lives and led to a period of military rule. In order to avoid potential exclusion of one party by the other in the future, the arrangement included a constitutional amendment that guaranteed power-sharing over four consecutive presidential terms. The presidency was to be alternated between the PL and PC and the Executive, the legislative and even the judiciary were to be split evenly between the two parties. Thus, between 1958 and 1974 each president appointed cabinets with a balanced composition of PL and PC members. Given that there were thirteen portfolios, each party was to receive six and the remaining office was granted to the military. This measure not only kept the balance between PC and PL in the cabinet, but also served to appease the armed forces and to ease civilian-military relations in the face of democratic transition. Therefore, in strict terms, National Front presidents had little strategic leverage in allocating their cabinet posts because the cabinet's composition was predetermined.

After his election in 1978, President Turbay (PL) broke away with the tradition of parity and appointed a mostly Liberal cabinet. Despite having won the presidential race by a mere 3 percent of the vote, Turbay took advantage of his majority status in Congress and formed a cabinet with eight members of his party, four Conservatives and a military officer.

In 1982, Betancur (PC) won comfortably, yet his party failed to get a majority status in either house. As a result, Betancur's inaugural cabinet was cooperative in nature, with six members from the PC, four from the PL, two without party affiliation and a military.

President Barco (PL) came into power in 1986 after winning the election in a landslide with 58 percent of the vote and securing a majority in both houses in the legislative election. Thus, Barco was prepared to act unilaterally and intended to put an end to a constitutional provision in place since 1978 that required the incumbent government to offer "adequate and fair" participation for the losing party. In a bold move, Barco offered a token three portfolios to the PC, which they rejected in protest. As a result, Barco's inaugural cabinet was mostly

Liberal. Aside from his ten partisan ministers, it included only one Conservative, one independent and a military.

President Gaviria (PL) won the 1990 election with almost 48 percent of the vote and his party garnered 58 percent of the seats in Congress. Thus, Gaviria did not require much negotiation when forming his inaugural cabinet, so he gave six portfolios to members of his party, three to members of PC, three to non-partisans and the remaining post to the ADM-19 party.[6]

Even though Samper (PL) won the 1994 presidency by a slight margin of a little over 2 percent in the run-off election, the PL obtained a majority in both houses. Samper formed an inaugural team that was overwhelmingly PL, with eleven out of fifteen portfolios given to members of his own party.[7] The remaining four were conceded to the PC, possibly to help with the strained relationship between the two parties. Shortly after the election, Pastrana (PC)—the losing candidate—accused Samper's campaign of receiving copious funding from drug kingpins, a scandal that affected the entirety of his term despite the fact that Congress eventually acquitted him of all charges.[8]

Pastrana's antics paid off in the 1998 election, as he won the presidency for the PC under an anti-corruption banner that received the support of multiple sectors. Post 1991 politics in Colombia slowly but surely broke off with the bipartisan past of Conservative and Liberal dominance. Fear of an eventual victory of PL's candidate—a close ally of Samper and thus marred by the scandal—galvanized the fragmented opposition, which coalesced around Pastrana's anti-corruption cries and formed the Great Alliance for Change. Pastrana won by a narrow margin and had to use cabinet posts as currency to pay the support of factions of his coalition. Therefore, Pastrana's inaugural cabinet had nine PC ministers, five PL and two independents.

President Uribe arrived in office in 2002 through a rather unusual path, which allowed him to appoint an inaugural cabinet composed primarily of loyalists. Despite being a figure with national prominence in the PL, Uribe lacked the clout to secure the party's nomination. Uribe broke off the PL and ran as an independent on a hawkish platform that promised a tough stance against the FARC guerrilla, a position that capitalized on the hopelessness that resulted from the frustrated peace negotiations conducted by President Pastrana. Uribe won in the first round without the need for a run-off election. His electoral strength allowed him to disregard his minority status in Congress, and as a result, Uribe populated his inaugural cabinet primarily with loyal independent politicians or newcomers. The great majority of them came from parties different than the electoral vehicle that Uribe had used to get elected (Primero Colombia).

Uribe won his reelection bid rather easily in 2006 greatly because he became a mass phenomenon. His popularity and successful first term in office provided Uribe with the leeway needed to act unilaterally in the design of his cabinet yet again. In fact, Uribe kept in office two ministers appointed originally for his first cabinet in 2002. The political landscape had also changed, something that was reflected in Uribe's portfolio. A group of defectors from PC and PL created the *Partido Social de Unidad Nacional* (PSUN) in 2005 to profit from Uribe's popularity.[9] As a result, Uribe chose an inaugural cabinet for 2006 formed by seven unaffiliated ministers—yet loyal to him, three from PC, two from PSUN and one independent.

Juan Manuel Santos (PSUN) ran on Uribe's coattails to attain a comfortable victory in the 2010 run-off election. Santos' party history is also fluid. His career began with the PL, and he served as minister under Gaviria (PL), Pastrana (PC) and Uribe (Primero Colombia). Furthermore, Santos was one of the leading forces behind the creation of PSUN. Santos was aware that political fragmentation could affect his own governability. Thus, Santos promoted the "Social Unity" coalition and was able to get the support of several parties including PC, PL, *Cambio Radical* (CR) and other minor parties, which allowed him to achieve majority status in Congress. As a result, the thirteen members of his inaugural cabinet included representatives of different parties present in the coalition: four members of PC, three members of PL, two members of PSUN, one member of CR, one independent and two unaffiliated ministers.

Santos' second attempt to win the presidency in 2014 was considerably more eventful than his first one. Not long after taking power, Santos announced that his government and FARC would start a peace process. Although the news was well received, the process received criticism. The main source of these criticisms was Uribe himself, who disagreed with a negotiated solution to the conflict. Uribe's mounting criticism led him to create yet another political party—*Centro Democrático* (CD)—to compete against Santos for the presidency and PSUN in Congress. The differing views about how to end the armed conflict, polarized public opinion and made the 2014 election a toss-up. Santos eventually won in a run-off election, but had a minority in Congress. The need for a coalition was very much required. Therefore, Santos' inaugural cabinet was a mixture of politicians including four PSUN and two independents, and the remaining portfolios allocated to other parties in the coalition, with five members of PL, two members of PC, two members of CR, and one unaffiliated minister. The prior description of the evolution of partisan composition during the last fourteen presidential administrations is detailed in Figure 7.2.

Throughout the period under study, partisan ministers have been the exception rather than the norm, as depicted in Figure 7.3. Of the 203 ministers in inaugural cabinets, 77 (45 percent) do not conform to any of the profiles, thus classed as "others," 54 (27 percent) are experts, 41 (20 percent) are partisans and the remaining 31 (15 percent) are hybrids—that is, ministers that belong in more than one of the categories.

Over time, Colombian presidents seem to include more ministers outside their area of influence (other ministers) as opposed to those within their area of influence (own ministers). This is particularly the case in the Uribe and Santos administrations. As the previous narrative suggests, changes in the partisan dynamics have made it more difficult for a president to achieve the majorities needed to act unilaterally.

Colombian presidents have been rather reluctant to change the structure of the cabinet. In fact, for over three decades (1958–1990) presidents kept the same

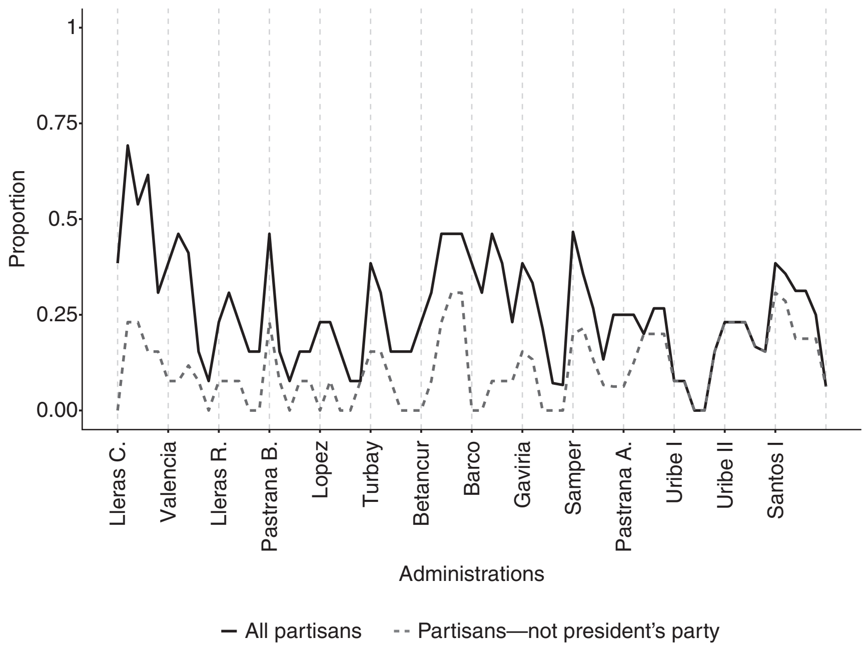

Figure 7.2 Cabinet membership by party (Colombia 1958–2014).

thirteen ministries. Beginning in 1990, presidents have made important changes to the number and composition of ministries. Table 7.2 details the evolution of ministries during the last seven presidential administrations. As shown, President Gaviria created two new ministries, Environmental Affairs and Foreign Trade. Samper created the minister of Cultural Affairs, while Pastrana made no changes—other than changing the name of the Ministry of Government to Ministry of Interior. Uribe and Santos made important changes during their first terms in office, respectively. Uribe used an economic argument to merge various ministries, something that allegedly would save state resources by streamlining the public sector. Thus, he fused the Foreign Trade and Economic Development ministries into the new Ministry of Trade, Industry and Tourism. Similarly, the Government and Interior ministries were collapsed into a single ministerial office. These changes were short-lived because Santos reversed them upon taking office. Additionally, Santos created the Ministry of Housing, City and Territory. These changes respond primarily to policy-oriented decisions, as we show below.

As we have suggested, Colombian presidents resort to cooperative or unilateral strategies depending on the need they have to form coalitions that help governability. From the narrative presented above, it appears that presidents that have majority support in the Legislature would rather form cabinets with friendly

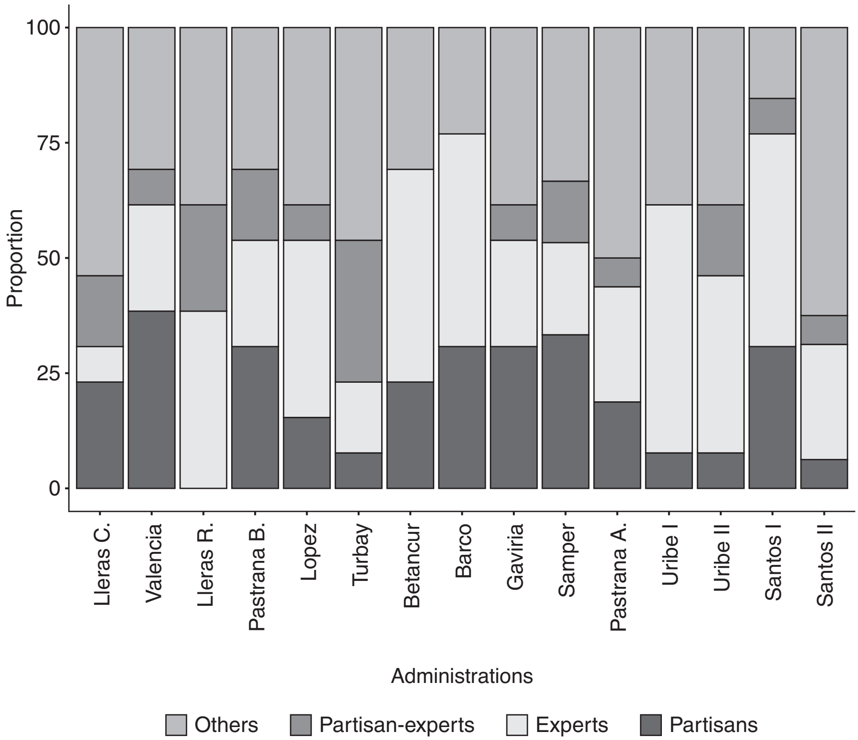

Figure 7.3 Minister profiles at inauguration (Colombia 1958–2014).

ministers mostly. However, as depicted in Figure 7.4, majorities are hard to come by and cooperative strategies are required.

PAD during the government

Portfolio allocation has definitively changed over time in Colombia. First, the National Front imposed a cooperative scheme that was binding for presidents. As described earlier, the agreements required presidents to allocate 50 percent of their cabinets to the other party. It was an important accord for a weak democracy whose main actors had recently been engaged in a bloody civil war. Given the lack of trust between parties, this "forced cooperation" was a useful strategy that allowed parties to work together and institutionalize democracy. After the National Front was over, party cooperation has varied widely, as mentioned earlier.

Excluding the National Front period, the average cabinet has had 37.3 percent of ministers from parties other than the president's, ranging from nought (Barco) to 53.8 percent (Santos I). Thus, Colombian presidents seem to favor cooperative

Table 7.2 Evolution of ministerial offices (Colombia 1990–2014)

Gaviria (1990–1994)	*Samper (1994–1998)*	*Pastrana (1998–2002)*	*Uribe I (2002–2006)*	*Uribe II (2006–2010)*	*Santos I (2010–2014)*	*Santos II (2014–)*
Agriculture and Livestock	Agriculture and Rural Development[*]	Agriculture and Rural Development	Agriculture and Rural Development	Agriculture and Rural Development	Agriculture and Rural Development	Agriculture and Rural Development
Communications	Communications	Communications	Communications	Communications	Information Technology and Communications[*]	Information Technology and Communications
	Cultural Affairs[†]	Cultural Affairs	Cultural Affairs	Cultural Affairs	Cultural Affairs	Cultural Affairs
Defense	Defense	Defense	Defense	Defense	Defense	Defense
Economic Development	Economic Development	Economic Development				
Education	Education	Education	Education	Education	Education	Education
Environmental Affairs†	Environmental Affairs	Environmental Affairs	Environment, Housing and Territorial Development[*]	Environment, Housing and Territorial Development	Environment and Sustainable Development[*]	Environment and Sustainable Development
Finance and Public Credit	Finance and Public Credit	Finance and Public Credit	Finance and Public Credit	Finance and Public Credit	Finance and Public Credit	Finance and Public Credit
Foreign Trade[†]	Foreign Trade	Foreign Trade	Trade, Industry and Tourism[‡]	Trade, Industry and Tourism	Trade, Industry and Tourism	Trade, Industry and Tourism
Foreign Affairs	Foreign Affairs	Foreign Affairs	Foreign Affairs	Foreign Affairs	Foreign Affairs	Foreign Affairs
Government	Government	Interior[*]	Interior and Justice[§]	Interior and Justice	Interior[¶]	Interior
Justice	Justice	Justice			Justice[¶]	Justice
					Housing, City and Territory[†]	Housing, City and Territory
Labor and Social Security	Labor and Social Security	Labor and Social Security	Social Protection[|]	Social Protection	Labor[**]	Labor
Mines and Energy	Mines and Energy	Mines and Energy	Mines and Energy	Mines and Energy	Mines and Energy	Mines and Energy
Public Health	Public Health	Public Health			Health and Social Protection[**]	Health and Social Protection
Public Works and Transportation[*]	Transportation	Transportation	Transportation	Transportation	Transportation	Transportation

Notes

* Name change, portfolio remains virtually the same.

† New portfolio.

‡ Fusion of Foreign Trade and Economic Development Ministries.

§ Fusion of Interior (formerly Government) and Justice Ministries.

| Fusion of Health and Labor Ministries.

¶ Separation of the Interior and Justice Ministry into two separate ones: Interior Ministry and Justice Ministry (reversion of Uribe's fusion).

** Separation of the Social Protection Ministry into two separate ones: Labor Ministry and Health and Social Protection Ministry (reversion of Uribe's fusion).

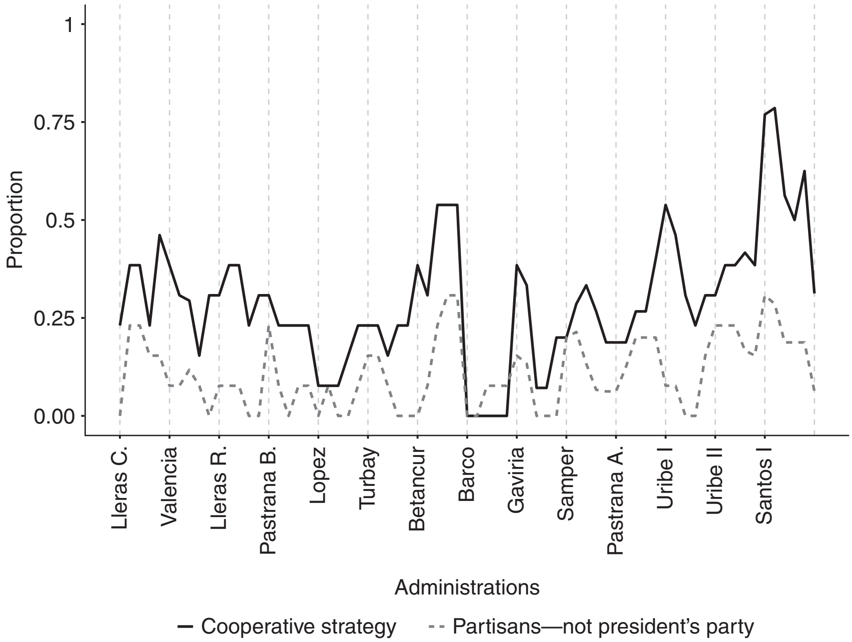

Figure 7.4 Portfolio allocation strategy (Colombia 1958–2014).

strategies. However, cooperation with other parties declines when presidents are unable to secure majorities in the Legislature. Partisan dynamics in Colombia have also evolved in recent years. For most of the democratic period, Colombia had a two-party system, with the PC and PL as the main actors—third parties being discouraged by legal and illegal ways.[10] However, party fragmentation that started as a consequence of the National Front agreements, increased over time until it reached critical levels by the end of the 1990s. As mentioned, the 2003 electoral reform changed the rules of party competition, something that has led to the multiparty system currently in place. With about five to six parties competing in the Legislature, it becomes increasingly difficult for a single party to obtain a majority in Congress. Thus, in the future, we are more likely to see minority governments, and cooperative strategies may become the norm.

As described earlier, Colombian presidents appoint a majority of partisan ministers to their cabinets. The average cabinet includes a little more than ten partisan ministers—about 80 percent. However, there is a relation between cooperative strategies and the appointment of expert or loyal ministers. As the proportion of ministers from other parties increases in the cabinet, the greater the participation of expert or loyal ministers ($\rho = 0.73$, significant at the $\alpha = 0.05$ level).

As underscored in the first chapter of this book, not all ministers are created equal. Beyond issues of partisanship, presidents also rely on their ministers to implement policies. Thus, the formation of the cabinet reflects a "tradeoff between the need for political support, expertise and loyalty" (Chapter 1, p. 14). Over time, presidents included in their cabinets different combinations of minister profiles, and circulated an important number of people in the portfolios. On average, twenty-three ministers left their post during the government, with a high of forty-seven ministers during the Lleras C. administration (1958–1962) and a low of eight ministers during the second Santos administration (2014–to date). Figure 7.5 shows that instability seems to be decreasing. Compared with the administrations between 1982 (Betancur) and 1998 (Pastrana), the past four governments have witnessed a higher number of ministers that retain their posts for a longer period of time. However, turnover is still relatively high: Colombian ministers stayed in their posts for 519 days, that is, a little over a year and a half.

Overall, there were 539 ministers in this period. The great majority were ministers with no clear profile (40 percent)—that is, people who belonged to more than one category—followed by experts (25 percent), partisans (21 percent) and hybrids (14 percent). Figure 7.6 shows the summary statistics of ministerial turnover for each of these minister profiles. As can be seen, expert ministers stay in their posts about 575 days on average, followed by hybrids (536 days), ministers without profile (532 days) and partisans (431 days).

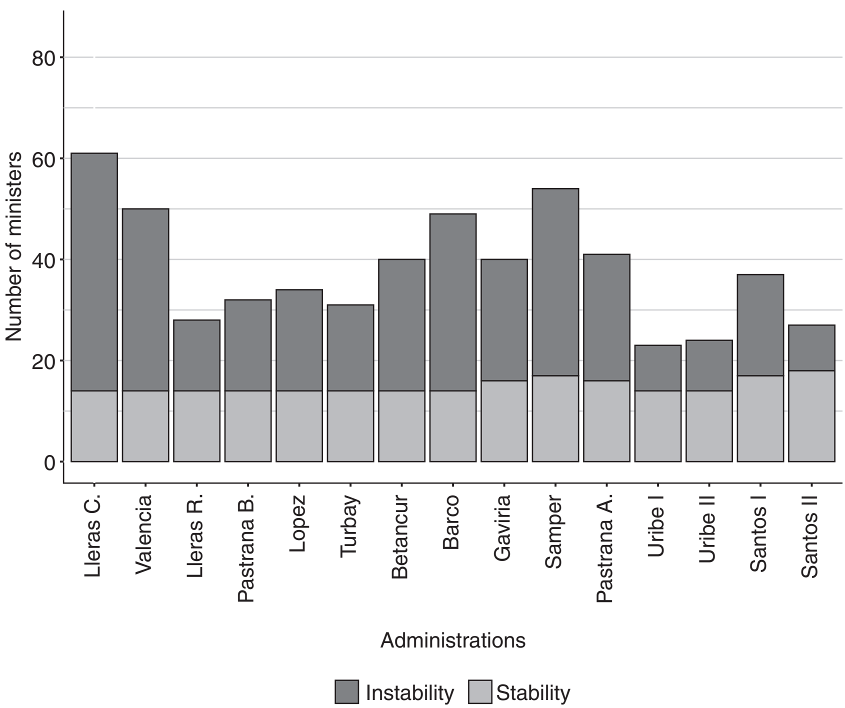

Figure 7.5 Minister turnover by type of exit (Colombia 1958–2014).

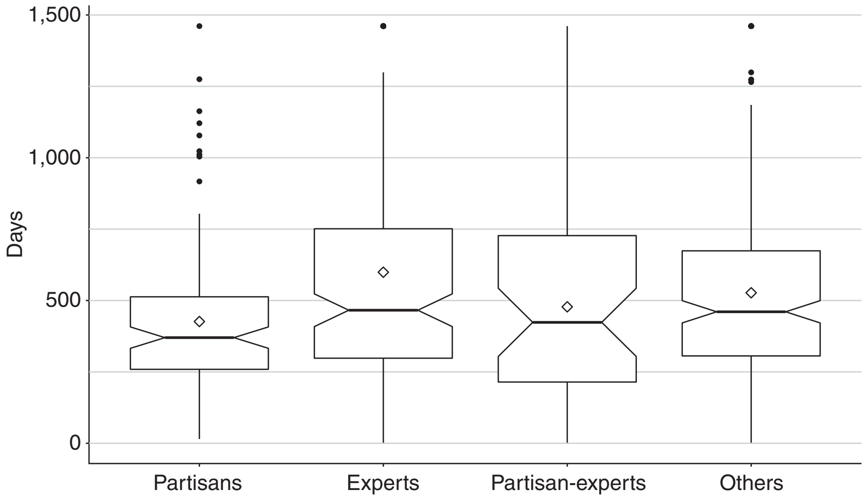

Figure 7.6 Minister duration by profile (Colombia 1958–2014).

As mentioned earlier, Colombian presidents enjoy great flexibility to allocate, and reallocate, portfolios. Of course, each decision to appoint or remove a minister is the result of a political calculus about how that appointment/dismissal helps the Executive attain its goals. Nonetheless, presidents do exercise this power and rotate their ministers rather frequently. As mentioned, the mean duration of Colombian ministers is 575 days, with a standard deviation of 176 days.

During the Lleras C. (1958–1962) and Valencia (1962–1966) administrations, ministers stayed in their post slightly over a year. On the other extreme, Uribe's ministers (2002–2010) lasted over 850 days in office—or almost two years and four months. We also consider the average rotation in each administration—total number of individuals who took office in a given administration divided by the total number of portfolios available. During the Lleras C. administration thirteen portfolios were occupied by sixty ministers, for an average rotation of 4.62 individuals per portfolio. On the other hand, during Uribe's first administration (2002–2006), there were twenty-two ministers in the thirteen portfolios available, for an average rotation of 1.69 individuals per portfolio.

Presidents are free to replace any number of ministers at any point during their term. Although no one has replaced his entire cabinet at once, both Lleras C. (1958–1962) and Valencia (1962–1966) came pretty close with "ministerial crises" in which they replaced ten of their thirteen ministers at once. Other presidents also changed large blocks of ministers simultaneously, replacing between two and eight ministers. Uribe (2002–2010) is also an outlier here, as he never changed more than one minister at any given point during both his administrations. This, combined with the abundant single-minister replacements, shows a political use of the cabinet composition as a tool to balance political equilibria at different points in time during an administration. The relationship with Congress may change from favorable to unfavorable for a number of reasons. In such scenarios, presidents may rearrange the composition of the cabinet to restore a positive environment for their preferred policies.

PAD at government termination

Ever since its return to democracy in 1958, Colombia's governments have been remarkably stable and institutionalized. Salient issues may question the quality of democracy, including the armed conflict, human rights violations, rampant poverty and mounting inequality. However, fairly free elections are a regular occurrence. In this sense, ministerial politics reflect a similar degree of stability and predictability.

As mentioned earlier, presidents change the composition of the cabinet for various reasons. In the most extreme of cases, nearly all ministers were replaced at once. However, it is difficult to speak of different "governments" within a single administration in Colombia. Presidents appoint and dismiss at will and negotiations are rather subtle and informal. Cabinet composition undoubtedly reflects different political equilibria as portfolios are useful currency to maintain coalitions and help define policies. However, this situation is not particularly different towards the government termination time than it is during any given moment during a presidential term.

Explaining PAD: parallel offices and agency loss

Previously, we showed that the Colombian Executive has constitutional powers that favor the use of unilateral strategies for the administration of their cabinets. In particular, the perquisite to freely appoint and dismiss ministers allows presidents to avoid costly negotiations with other parties. However, Congress must ultimately approve the president's agenda, and portfolio allocation is an effective tool at the president's disposal to secure support for his projects. Furthermore, we have shown that the general argument of the book explains well the behavior of Colombian presidents. Strong presidents—those with congressional majorities or high levels of popularity—tend to act unilaterally and give fewer portfolios to members of other parties. Conversely, weak presidents must give valuable cabinet seats to other parties in order to earn their support. However, Colombian presidents also have an additional tool that allows them to offer cabinet positions to members of the opposition while at the same time preventing the loss of agency that comes with the trade-off between support and loyalty. This tool is the president's ability to modify the structure of public administration, particularly that of the Presidential Office (*Departamento Administrativo de la Presidencia de la República*, DAPRE).

In 1991, Colombia enacted a new Constitution that sought to reduce the dominance of the traditional Conservative and Liberal parties and allow for the participation of third parties that had been historically excluded or underrepresented.

The inability of presidents to secure majorities in Congress was an unforeseen result of this process. Fragmentation of traditional parties and the entrance of new ones meant that the old two-party system morphed into a multiparty system. Therefore, no political party has been able to obtain more than 25 percent of the vote since. As a result, presidents require coalitions to secure the needed support for their policy agendas. Our data show that the strategy materializes in portfolios given to other parties. And when presidents do so, they risk losing control of the policy agenda in the portfolios under the command of ministers that are more loyal to their parties than to the president himself. To avoid such loss, presidents engage in a kind of reactive “bait and switch” by creating offices in DAPRE that supersede the functions of some portfolios and regain control of key policy areas.[11]

Indeed, DAPRE has been transformed 389 times between 1931 and 2015. The internal structure of DAPRE has an average duration of 6.4 years, or about 2.5 presidential periods. This entails that practically each incoming president accommodates the internal structure of DAPRE to his needs.[12] The manipulation of DAPRE is a response to potential loss of agency due to compromises that require the president to concede portfolios to parties other than his own, and the size of his legislative contingent (Mejía Guinand *et al.* 2017). Other authors have also suggested that when presidents allocate their portfolios, they try to maximize the survival of their supporting legislative coalitions (Neto 2006; Martínez-Gallardo 2010). According to Neto (2006), the larger the number of seats in the Congress of a party, the larger the number of said party’s seats in the cabinet. However, these ministers have a double allegiance: they are agents of the president and of their parties. Arana Araya (2013) shows that despite working for the president who appointed them, ministers often have greater loyalties to the political party to which they owe their position in the cabinet. It was the party’s cajoling that got them there in the first place.

Concluding remarks

We have shown the evolution of portfolio allocation strategies in Colombia over the past six decades. What we have witnessed is the interplay between the party dynamics and how it is expressed in executive-legislative relationships. Patterns of cooperation and conflict between political parties are reflected in the composition of the cabinet in a way that accommodates the theory in this book. That is, presidents seem more likely to act unilaterally when they have a majority government or when highly popular. However, the evolution of the party system itself affects the possibility that the president’s party—or any party for that matter—attains a majority in Congress. This has led to the interesting developments we have seen in recent years related to the transformation of the presidential office as a response to problems of agency loss that appear with coalition government.

During the National Front, PC and PL presidents were required to share their cabinet with members of the other party in equal proportions. After the agreements ended, presidents formed their cabinets more candidly and resorted to their majority status to implement unilateral strategies. However, PC and PL began to lose their monopoly over the political arena. Not only did new parties emerge—primarily after 1991—but the traditional parties fragmented internally. By the early 2000s, the system was decidedly multiparty and no single party has the ability to obtain a majority of the seats in Congress.

In general, we showed that Colombian presidents appoint their portfolios with careful regard to the parties in their governing coalition. Presidents with majorities in Congress tended to assign a majority of their cabinet to politicians of their own party, while minority presidents appointed more diverse cabinets. The partisan composition of the cabinet appears related to an effort by presidents to increase governability and to ease the approval of key bills in Congress.

Of course, there are nuances to these generalizations. On the one hand, portfolio allocation is not homogeneous for all portfolios. Historically, the appointment of finance ministers—both in *Ministerio de Hacienda* and *Departamento Nacional de Planeación*—obeys technical criteria rather than political calculus. This seems to be the case also with portfolios that handle issues that become critical at certain points in time, such as health: politicians are replaced by technocrats.

Presidents make their portfolio decisions with great care. They are keenly aware that politicians from parties other than their own may be more loyal to their party than to the government under which they serve. When this is the case, presidents use the structure of the presidential office as insurance against the loss of agency that comes with having ministers whose loyalties may be questionable. This has been the case particularly in the last four administrations—those of Uribe and Santos.

Future research is needed. Our agenda includes a detailed study by sector to inquire if there are some portfolios likelier to be assigned to other parties. Similarly, we would like to explore if there is a relation between portfolio allocation and the creation of parallel offices within the presidency.

Notes

1 We are most grateful to Angélica María Solano Oliveros, Daniel Ramón and Mariángela Chávez Chamorro for their superb research assistance in the construction of the database used in this project.

2 To this date, no woman has ever served as president of Colombia. Therefore, the use of the masculine possessive noun is intentional to underscore the gender bias of Colombian politics.

3 It should be noted that the scope of the electoral reform was not to produce disciplined parties. Obviously, internal party dynamics fall in the realm of each party and cannot be mandated by law.

4 Not even President Uribe, at the peak of his ever-high popularity, was able to secure a stable majority. A case in point is the approval of the constitutional amendment that allowed his reelection. A political scandal revealed that two of Uribe's ministers offered bribes to at least two House Representatives in exchange for their votes. The Supreme Court took the case and found guilty those involved. Representatives

Teodolindo Avendaño and Yidis Medina were sentenced to eight and four years respectively, and former ministers Sabas Pretelt (Minister of Justice) and Diego Palacios (Minister of Social Protection) both received sentences of over six years and steep fines.

5 Law 152 of 1994 establishes the Organic Law of the Development Plan. This law includes the general principles of planning, defines the authorities and institutions of the planning process, and specifies the steps to adopt, implement and evaluate the National Development Plan.

6 The ADM-19 party was formed as a result of demobilization of the M-19 guerrilla movement. The appointment was a gesture of good faith for the success of the peace, and as a sign that that the political establishment was open to new parties. This was the first time since 1958 that someone outside PC and PL had held a cabinet post.

7 A caveat is in order about Gaviria and Samper's portfolio allocation strategies. Despite the fact that PL was a majority in Congress, the party was extremely fragmented. The electoral system allowed multiple party lists to compete in the same district, something that fostered personalism and eroded party cohesion (Carey and Shugart 1995). The party system evolved into a de facto multiparty system with a plethora of micro-parties grouped under the traditional PC and PL banners (Botero *et al.* 2016). Not surprisingly, parties were neither disciplined nor organized and politicians appeared to be more preoccupied with securing resources for pork and patronage (Archer and Shugart 1997). Thus, the majority status in Congress did not guarantee unconditional support for the policy proposals emanating from the Palacio de Nariño.

8 A week after the election, defeated PC candidate, Andrés Pastrana, released some audio tapes that revealed that the Samper campaign had received money from the drug lords. These very serious accusations were even direr at a time when Colombia was at the height of a violent drug war. Pablo Escobar had been recently killed and attention had turned now to his rival Cali Cartel—the purveyor of the illegal funds that made it into Samper's campaign treasury.

9 Popularly known as *Partido de la U*, the "U" actually refers to Uribe.

10 The *Unión Patriótica* is a case in point. The UP was formed in the mid-1980s by the FARC guerrilla movement and the Communist Party as a result of peace talks with President Betancur. The party was the target of systematic political violence from right-wing paramilitaries and members of the Armed Forces. It is estimated that 2,000–3,000 UP militants were assassinated, something that led to the virtual extinction of the party.

11 We explore this in greater detail in Mejía Guinand *et al.* (2017).

12 The discussion that follows draws extensively from Mejía Guinand and Botero (forthcoming).

8 Cooperative but non-partisan

Portfolio allocation in Peru (1980–2016)

Sofia Vera and Miguel Carreras[1]

Why do presidents in Peru form cabinets that are composed of a large proportion of non-partisan ministers? Despite their lack of political support, weak presidents in Peru often opt to appoint expert ministers without political affiliation rather than selecting members of other parties who could help them form legislative majorities in the congress. We argue that this particular cooperative strategy directed towards the inclusion of the economic elites in the government—through the appointment of experts and independent professionals from the private sector—responds to the presidents' goal of ensuring the proper design and implementation of their political agenda in the Peruvian context of weak political parties and low bureaucratic capacity.

This chapter describes and analyzes the shift in portfolio allocation strategies in Peru before and after the collapse of the party system. In the period prior to the collapse of the party system, presidents in a position of relative strength opted for unilateral strategies of portfolio allocation, which led to the appointment of individuals in their inner political circle. After the collapse of the party system, weaker presidents chose more cooperative strategies, opting to reach out to experts and businessmen. We also demonstrate that presidents in the aftermath of the democratic transition have maintained the tendency, established under the competitive authoritarian regime of Fujimori, of appointing a large proportion of non-partisan ministers to their cabinets.

The cooperative but non-partisan strategy of portfolio allocation in Peru is important to understand the persistence of liberal economic policies throughout the 2000s and 2010s, even though the authoritarian regime that introduced them collapsed. The presidential style of governing with technocratic and economic groups has delivered positive results in poverty reduction and economic growth, but it has not created channels of communication with unrepresented social groups that are affected by the economic policies of natural resource extraction and foreign investment promotion. Moreover, it has made the state permeable to economic interests failing to strengthen institutional checks, as the recent revelations of widespread corruption at the highest levels of government indicates. The paradox of a cooperative but non-partisan strategy of cabinet appointments is that the government becomes more efficient but also more vulnerable to economic downturns and public opinion crises.

Institutional background

This section presents the main characteristics of political institutions in Peru, focusing in particular on the executive branch and the cabinet.

The political system

Although democratic elections have been held uninterruptedly since 1980, the process of democratic consolidation faced immense challenges. The political system in Peru has experienced repeated instability, due in particular to the authoritarian excesses of the Fujimori administration and to the collapse of the party system in the early 1990s.

The evolution of the political system in Peru in the post-transition era is marked by three important periods. The *first period* corresponds to the first decade after the transition and the presidencies of Fernando Belaúnde (AP, or *Acción Popular*) and Alan García (APRA, or *Alianza Popular Revolucionaria Americana*). During this period, Peru appeared to be consolidating a party system organized along programmatic lines. The first two democratically elected presidents governed in a rather centralized fashion, but largely respected the democratic rules of the game. However, these parties were unable to address effectively the two crises which threatened the sociopolitical stability of the country: the security crisis with the rapid rise of the Shining Path guerrilla movement and the severe economic crisis.

The *second period* corresponds to the Fujimori decade (1990–2000). Fujimori was elected in the 1990 presidential elections as a political outsider as a result of the disenchantment of the population with established political parties. The Fujimori administration constitutes an important break with the past for two important reasons. First, the election of an outsider president accelerated a process of decay of the Peruvian party system (Tanaka, 2006). Second, Fujimori governed in an authoritarian way bypassing other political institutions and silencing the opposition media.

The *third period* starts with the resignation of Fujimori in November 2000 following a corruption scandal. Three democratic presidential elections took place during this period. In 2001, an independent technocratic candidate (Alejandro Toledo) was elected. In 2006, the long-standing leader of APRA (Alan García) was elected once again. Finally, in 2011 another politically inexperienced candidate running with a new political party (*Partido Nacionalista Peruano*) was elected president: Ollanta Humala.

This third period has been characterized by a return to democratic practices. The worst abuses of the Fujimori regime against the media and other political institutions came to an end. However, the party system remains very weakly institutionalized. Traditional political parties continue to be highly discredited. In this context, Peruvian presidents struggle to maintain popular support and often govern with very low approval rates. Table 8.1 presents an institutional background of all the administrations that have governed Peru since the democratic transition in 1979.

Table 8.1 Institutional background in Peru (1980–2016)

President	*Starts*	*Ends*	*President's party*	*Other parties in government*	*Cabinet size*	*Total ministers*	*President's legislative support*	*Type of government**	*President selection*	*President mandate*
F. Belaúnde	1980	1985	AP	PPC	17	65	Majority	Majority coalition	Elected	Completed
A. García I	1985	1990	APRA	IU	18	72	Majority	Majority coalition	Elected	Completed
A. Fujimori I	1990	(1993)	C90	FREDEMO	15	63	Minority	Minority single-party	Elected	(…)
	(1993)	1995	C90-NM	–	15	70	Majority	Majority single-party	(…)	Completed
A. Fujimori II	1995	2000	C90-NM	–	16	16	Majority	Majority single-party	Elected	Completed
A. Fujimori III	2000	2000	Peru 2000	–	16	18	Minority	Minority single-party	Elected	Interrupted
V. Paniagua	2000	2001	AP	–	16	76	Minority	Majority coalition	Appointed	Completed
A.Toledo	2001	2006	PP	FIM	16	67	Minority	Minority coalition**	Elected	Completed
A. García II	2006	2011	APRA	UN	18	51	Minority	Minority coalition***	Elected	Completed
O. Humala	2011	2016	GP	PP	–	–	Minority	Minority coalition****	Elected	Completed
P. Kuczynski	2016	2021	PPK	–	19	–	Minority	Minority single party	Elected	In course

Notes

* Based on the number of seats reported at the start of the legislative term. Later changes of parties and coalitions are not taken into account here.

** *Perú Posible* had 45 legislators and FIM 11 legislators, which represented 46.7 percent of the legislature.

*** APRA had 36 legislators and UN 15 legislators, which represented 42 percent of the legislature.

**** *Gana Peru* had 33 legislators and *Perú Posible* had 11 legislators, which represented 33.8 percent of the legislature.

The executive

The Peruvian constitution has some institutions typical of parliamentary regimes (prime minister, censure, interpellation, dissolution). Some scholars even classify Peru as a semi-presidential system (Elgie, 2013; Shugart, 2015). However, the president remains the dominant figure in the political system, with important decree authority and other institutional prerogatives.

The 1993 Peruvian constitution gives constitutional decree authority (Carey and Shugart, 1995) to the president to decide and implement economic policies.[2] Article 118 of the constitution allows the president to "dictate extraordinary measures dealing with economic and financial matters when the national interest so requires." This prerogative (*decretos de urgencia*) is used extensively by Peruvian presidents given the weak support they have in the legislature since the Fujimori administration. Peruvian presidents can also issue legislative decrees when the legislature delegates powers to the president on specific matters and for a limited amount of time (*decretos legislativos*),[3] and resolutions to regulate existing laws (*decretos supremos y resoluciones supremas*);[4] and they have the prerogative to initiate laws in the legislature and demand that they are given priority in the legislative agenda.

The powers of the Peruvian president are magnified by the characteristics of the party system. Until 1990, political parties were very personalized and Peruvian presidents were the undisputed leaders of their parties. After the emergence of Fujimori, the collapse of the party system led to even more personalized political movements. As a result, Peruvian presidents are not really accountable to other party bodies, which accentuates their institutional dominance.

The cabinet

The second most relevant actor in the executive branch is the cabinet.[5] Despite the institutional instability in the country, the formal organization of the cabinet has not changed significantly since 1980. Collectively, the ministers form the "council of ministers" (*Consejo de Ministros*) that meets regularly to deliberate on issues of public interest and coordinate the implementation of public policies. The council of ministers also approves the bills that the president sends to the congress, as well as legislative and urgent decrees.

An interesting feature of the Peruvian executive is the existence of a "premier" who presides over the council of ministers. The premier is appointed by the president and ratified by the legislature,[6] and is in charge of coordinating the policies, actions, and functions of all the other ministers. However, the "premier" is clearly subordinate to the policy directions and initiatives of the president.

The way the council of ministers functions is influenced by the political style and the preferences of the different presidents and premiers. For instance, Fujimori preferred to establish a personal relationship with his ministers, and the council of ministers met less regularly than under the previous administrations of García and Belaúnde.[7] The actual work that takes place in the council of ministers also evolves. Some premiers prefer very short councils which only allow time for formalities, while other premiers favor longer meetings in which there is more time for deliberation of government policies and coordination of the different policy areas.[8]

The relation between the cabinet and the legislative branch also has some parliamentary characteristics. In fact, the congress can force the cabinet to resign if they lose confidence in the council of ministers (through a censure motion or a non-confidence vote). Moreover, new "premiers" have to go to the congress along with the other ministers within 30 days of their appointment to get a confidence vote on the government's policy plan.[9] The legislature can also question individual ministers and force them to resign through a non-confidence vote. Thus, presidents always need to consider the possible reactions of the legislature when they make executive appointments.

Portfolios are divided in vice-ministries that have responsibility over narrower policy areas.[10] Although vice-ministers are accountable to the ministers, they tend to keep their positions for a much longer time (Vergara and Encinas, 2016). As a result, ministers often rely quite heavily on the guidance provided by vice-ministers, especially when they are politically inexperienced (Carreras, 2013). Each cabinet portfolio is subdivided into a large number of units (*direcciones* and *subdirecciones*) that are responsible for specific policy areas within the competence of the ministry. Another important sub-unit in all the portfolios is the General Secretariat, which has responsibility for all the administrative operations of the portfolio.[11] Figure 8.1 presents the structure of the executive power in Peru in more detail.

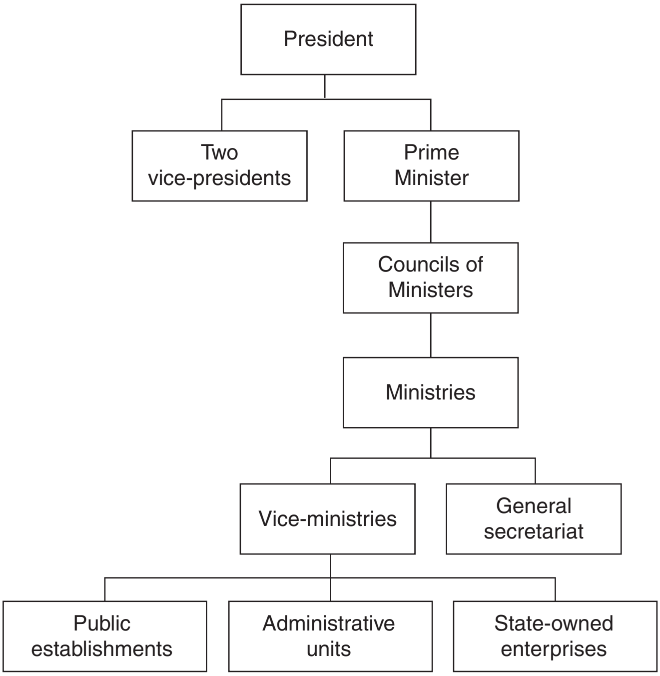

Figure 8.1 The structure of the executive power in Peru (2017).

The Ministry of Economy and Finance (MEF) is in a clear position of dominance within the cabinet, a legacy of the technocratic approach to policy-making of the Fujimori administration.[12] The MEF reviews all proposed policy initiatives and has the last word on all public services projects.[13] The MEF also dominates the meetings and the agenda of the council of ministers. Before bringing a topic to the council of ministers, ministers often have to meet one on one with the officials of the MEF.[14] Since many of the ministers in Peru are political neophytes, they lack the political resources to counteract the influence of the MEF.[15] The Ministers of Economy and Finance tend to be more influential and to stay longer in their positions than the premiers.

Using portfolio allocation and design (PAD) strategies

In this section we discuss portfolio allocation in three stages: government formation, during government, and government termination. We argue that the nature of governmental coalitions in Peru is one of agreements that are subject to constant reconsideration throughout a president's administration. In spite of their fluidity, these agreements can be studied as coalitions that reflect presidents' cooperative strategy. Given the extremely fragmented party system in Peru, most presidents lack a majority in the legislature,[16] and tend to pursue alliances with other political and economic actors to govern effectively. To include independent professionals, experts, businessmen, and members of other political parties in the cabinet, is a tool that weak presidents use to garner political support.

PAD at government formation

Timing and nature of government crafting. Members of the inaugural cabinet are selected between the day of the electoral results and the day of the presidential inauguration, generally between June and August. Even though some negotiations take place as soon as April, right after the first round of voting, because defeated candidates can offer their endorsement to one of the two frontrunners in exchange for cabinet positions, the talks only become relevant once a candidate has won the runoff election.[17]

Some of the ministers, such as the Minister of Economics and Finance and the president of the council of ministers, are announced earlier than other ministers, because of their importance in setting the tone for the new government. For example, elected president Alejandro Toledo, appointed one month prior to his inauguration two key members of his cabinet, after his travel to the U.S. where he met with President George W. Bush and high officials of international financial institutions in Washington. Upon his return, he appointed Roberto Dañino—at the time a corporate lawyer living in the U.S.—as his prime minister, and Pedro Pablo Kuczynski—at the time an economist associated with the finance world in Wall Street—as Minister of Economics and Finance. In contrast, other ministerial positions are only announced on the day of the inauguration.

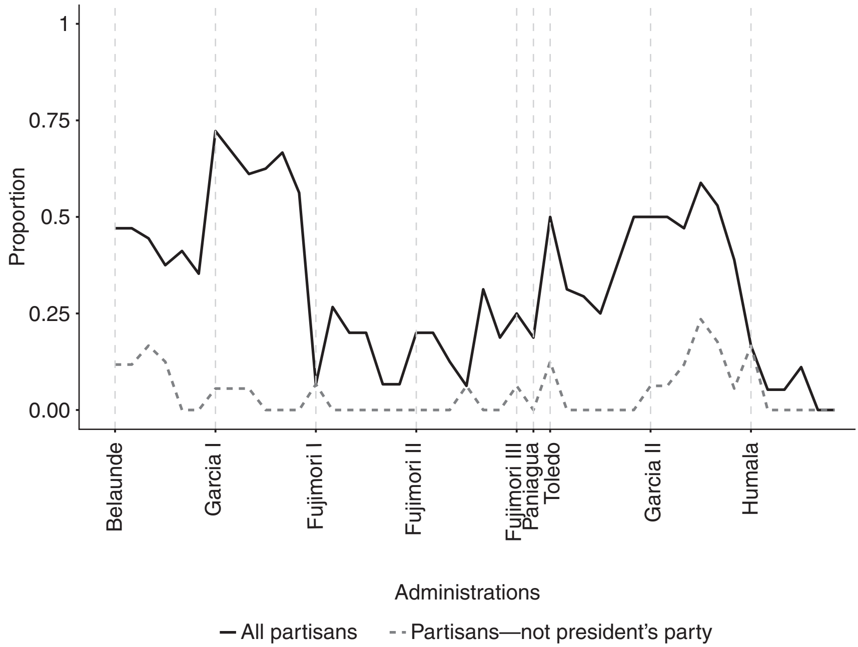

Figure 8.2 Cabinet membership by party (Peru 1980–2016).

Coalitions are informal and short-lived. In case an agreement between the president and another political party is reached, it usually takes an informal form and is subject to reconsideration during the government. Figure 8.2 shows that the proportions of non-president partisans in inaugural cabinets are generally low. However, there are three famous instances of explicit and formal partisan agreements in Peru during the 1980–2014 period. The first explicit coalition occurred under Fernando Belaúnde's administration (1980–1985), which marked the return to democracy after 12 years of military dictatorship. The conservative *Partido Popular Cristiano* (PPC) supported Belaúnde's center-right party *Acción Popular* (AP) and together they formed a right-leaning majority coalition in the legislature. The second agreement happened under Alejandro Toledo's administration (2001–2006) between *Perú Posible* (PP) and *Frente Independiente Moralizador* (FIM). And the most recent formal coalition at government formation occurred under Ollanta Humala's administration (2006–2011) between his party *Gana Peru* and Toledo's *Perú Posible*.

In these three cases, bargaining took place mainly around the appointment of single ministers rather than groupings of ministries. In the case of the AP-PPC alliance, for example, President Belaúnde (AP) appointed two PPC members to his inaugural cabinet (Roberto Rotondo to the Ministry of Industry and Felipe Osterling to the Ministry of Justice).[18] In the PP-FIM alliance, the most significant appointment was that of FIM's leader Fernando Olivera to the Ministry of Justice (2001–2002) in Alejandro Toledo's inaugural cabinet. Olivera had had an important role in exposing corruption under Fujimori's rule, which made him a natural ally of Toledo, the then main electoral challenger of Fujimori.[19] In the case of the GP-PP alliance, Humala appointed two members of *Perú Posible* to his inaugural cabinet, Daniel Mora to the Ministry of Defense and Rudecindo Vega to the Ministry of Labor. Alejandro Toledo, leader of PP, endorsed Ollanta Humala in an effort to help him win the runoff election against Keiko Fujimori in 2011.

Examples of rather implicit agreements include that of APRA and *Unidad Nacional* during the first years of the second administration of Alan García (2006–2011). In this case, García appointed Rafael Rey Rey (RN) in 2006, and later in 2009 Antero Flores Aráoz (PPC), two members of the parties composing the electoral alliance of *Unidad Nacional* led by Lourdes Flores Nano.[20] Even though the actors involved did not admit the agreement publicly, APRA is well known for forming political alliances with electoral adversaries.[21] In other cases, implicit agreements took place around the appointment of non-partisan ministers. For example, the controversial understanding between García and *Fujimoristas* did not lead to the appointment of members of *Fuerza Popular* to the cabinet. Instead, some scholars argue, *Fujimoristas* supported García's government in key legislative votes (e.g., preventing the censure of ministers or blocking congressional investigations about irregularities in current or past governments), in exchange for the appointment of neoliberal technocrats to key economic portfolios (Levitsky and Roberts, 2011).[22] Even though this agreement remains unverified, the low approval rates of presidents and the discredit of political parties in Peru suggest that bargaining around the appointment of partisan ministers entails higher reputational costs than the appointment of expert ministers.[23] This form of "ghost coalition" allows the opposition party to retain an image of political independence, and the government to capitalize on the experts' public approval.[24]

Management of political resources at government formation. Non-partisan ministers abound in inaugural cabinets. According to their partisan profile, 45.58 percent of all ministers appointed to inaugural cabinets are non-partisans, 19.05 percent are part-partisans, and 35.37 percent are strict-partisans. Also, a majority of strict-partisan ministers come from the president's party (75 percent of the 52 strict-partisans).[25] As we can see in Figure 8.3, García I (1985–1990) appointed more partisan ministers without expertise than any other president (55.56 percent). And the governments with the greatest proportions of expert and party-expert ministers were Fujimori's in the 1990s. This finding confirms that Fujimori's anti-establishment electoral movement translated into non-partisan cabinet appointments.

Even though the proportion of partisan appointments in inaugural cabinets recovered slightly in the 2000s under García II and Toledo, experts and other ministers predominate inaugural cabinets and deserve a closer look. For example, more than 73 percent of ministers appointed during the 1980–2014 period were

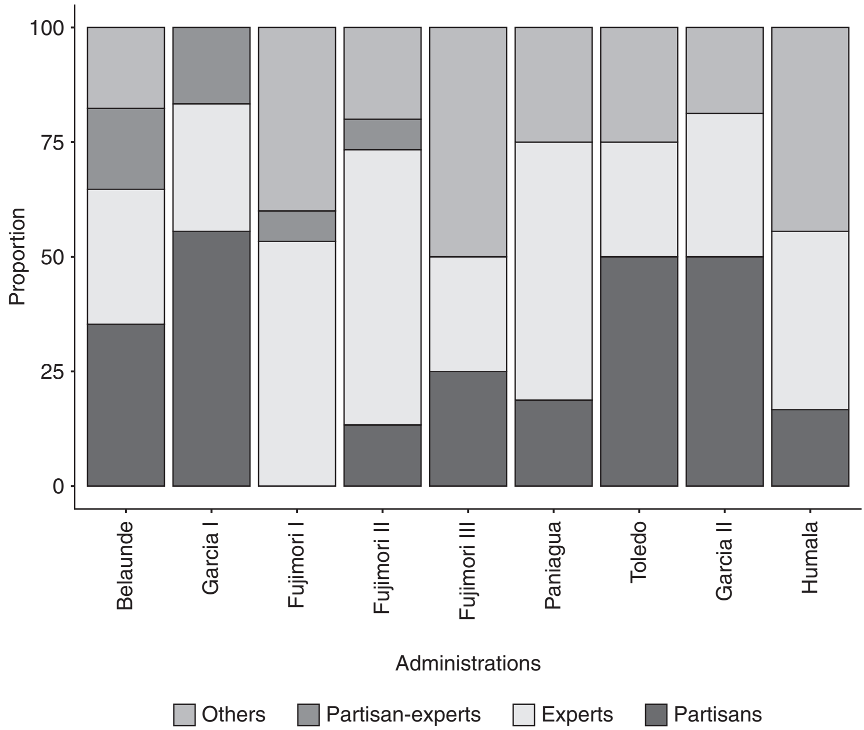

Figure 8.3 Minister profiles at inauguration (Peru 1980–2016).

experts or had at least some level of expertise.[26] More importantly, taking into account ministers' affiliations to economic, military, or religious groups, we find that a large proportion of appointments (59.18 percent) are neither pure experts nor pure partisans.[27] Most ministers bring some form of group membership to the cabinet, and the most common profiles after pure experts and pure partisans are "pure group" (15.65 percent), "party-group" (14.29 percent), and "group-expert" (12.93 percent), where "group" most frequently represents a connection with economic groups. The tendency to appoint more experts and group ministers is more apparent in Humala's government.

Regarding the closeness to the president, we find that, at government formation, presidents opted for a combination of individuals in and out of their area of influence. For all governments since 1980, the proportion of ministers close to the president's area of influence in inaugural cabinets was about one-half (53.71 percent). This proportion was the largest in the government of Fujimori I (80.00 percent) and the smallest in the government of Belaúnde (35.29 percent). Also, among all *own* ministers in inaugural cabinets the most common profiles are pure partisans (26.42 percent) and the party-groups (28.30 percent), whereas among the ministers outside the area of influence of the president, the most common profiles are pure experts (35.29 percent) and group-experts (23.53 percent). This evidence suggests that presidents reaching out of their area of influence, who are perhaps willing to form broader coalitions, tend to appoint individuals that bring expertise rather than partisan support.

Portfolio design at government formation. The size of the cabinet rarely changed at the beginning of the government. In 1980, the Ministry of Justice was reactivated after the military dictatorship deactivated it in 1968, and in 1981 it changed names from “Ministry of Justice and Religious Affairs” to “Ministry of Justice.” It kept that name until 2011, when the newly elected Ollanta Humala renamed it “Ministry of Justice and Human Rights,” creating the vice-ministry of Human Rights. Similarly, the Ministry of Development and Social Inclusion was created at the beginning of Humala’s government as a way to respond to his electoral promise of combating social inequalities. The newly created ministry’s goal was to centralize all social programs into a more efficient and technocratic ministry, for which they took up some competencies from the Women Affairs’ Ministry. Except for these cases, we did not find any other instances of creation and elimination of portfolios at the beginning of a government. Table 8.2 summarizes the evolution of ministerial offices for the 1990–2016 period.

Cooperative strategy at government formation. Figure 8.4 shows that cooperative strategies in the stage of government formation (dashed vertical lines) were infrequent. Cooperative strategies are those in which the president

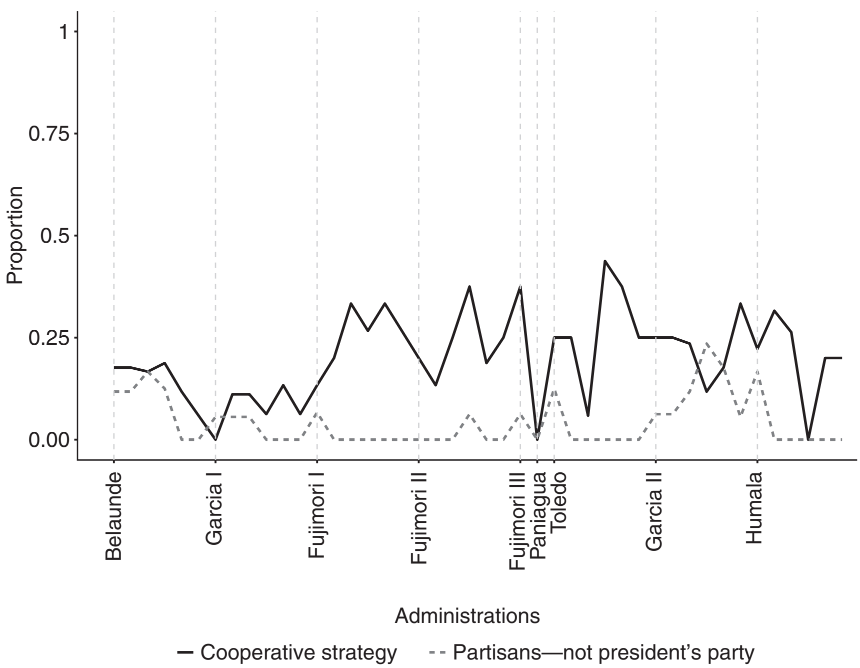

Figure 8.4 Portfolio allocation strategy (Peru 1980–2016).

Table 8.2 Evolution of ministerial offices (Peru 1990–2016)

Fujimori I (1990–1995)	*Fujimori II (1995–2000)*	*Fujimori III (2000)*	*Toledo (2001–2006)*	*Garcia (2006–2011)*	*Humala (2011–2016)*
Agriculture	Agriculture	Agriculture	Agriculture	Agriculture	Agriculture
				Culture*	
Defense	Defense	Defense	Defense	Defense	Defense
					Development and Social Inclusion†
Economy and Finance	Economy and Finance	Economy and Finance	Economy and Finance	Economy and Finance	Economy and Finance
Education	Education	Education	Education	Education	Education
Energy and Mining	Energy and Mining	Energy and Mining	Energy and Mining	Energy and Mining	Energy and Mining
Fisheries	Fisheries	Fisheries	Production‡	Production	Production
Foreign Affairs	Foreign Affairs	Foreign Affairs	Foreign Affairs	Foreign Affairs	Foreign Affairs
Health	Health	Health	Health	Health	Health
Industry, Tourism, Integration, and International Trade	Industry, Tourism, Integration, and International Trade	Industry, Tourism, Integration, and International Trade	International Trade and Tourism§	International Trade and Tourism	International Trade and Tourism
Justice	Justice	Justice	Justice	Justice	Justice and Human Rights**
	Women Promotion and Human Development††	Women Promotion and Human Development	Women Affairs and Social Development‡‡	Women Affairs and Social Development	Women Affairs and Vulnerable Populations§§
Presidency	Presidency	Presidency	Presidency***		
Labor and Social Promotion	Labor and Social Promotion	Labor and Social Promotion	Labor and Job Promotion†††	Labor and Job Promotion	Labor and Job Promotion
Transportation and Communication	Transportation, Communication, Housing, and Infrastructure‡‡‡	Transportation, Communication, Housing, and Infrastructure	Transportation and Communication§§§	Transportation and Communication	Transportation and Communication
				Environment****	Environment
Interior	Interior	Interior	Interior	Interior	Interior
President of Council of Ministers	President of Council of Ministers	President of Council of Ministers	President of Council of Ministers	President of Council of Ministers	President of Council of Ministers

Notes
- * Created in July 2010.
- † Created in October 2011.
- ‡ Created in 2002, by merging the Ministry of Fisheries and the competencies in industry from the old Ministry of "Industry, Tourism, Integration, and International Trade."
- § Changed name in July 2002 (split from the old "Ministry of Industry, Tourism, Integration, and International Trade").
- ** Changed name in December 2011.
- †† Created in 1996.
- ‡‡ Changed name in July 2002.
- §§ Changed name in December 2011.
- *** Eliminated in 2002.
- ††† Changed name in 2002.
- ‡‡‡ The Ministry of Transportation and Communications merged with the Ministry of Housing and Infrastructure (May 1992).
- §§§ The ministries split back into a Ministry of Transportation and Communications and a Ministry of Housing and Infrastructure in July 2002.
- **** Created in May 2008.

appoints ministers that are either outside of his area of influence or are non-president partisans and belong to some economic, military, or religious organization. We find that a majority of appointed ministers to inaugural cabinets had preexisting ties with the president, as 83.22 percent of ministerial appointments were individuals within the personal and professional network of the president. For example, García in 1980 and Fujimori in 1995 appointed 100 percent of unilateral ministers to their opening cabinets. Interestingly, the same individuals were more cooperative in subsequent governments; García in his second presidency in 2006 appointed 25 percent cooperative ministers, and Fujimori in his third term in office in 2000 appointed 43 percent cooperative ministers. This evidence indicates that presidents opt for more cooperation when the contextual pressures demand it, not merely because of personal preferences. As we can see in Figure 8.4, cooperative ministers are generally scarce, reaching only one-quarter of appointments in the most cooperative inaugural cabinets, but they have also increased in more recent years. There has been a trend towards greater cooperative strategies for presidents after the collapse of the party system in the early 1990s.

PAD during the government

In this section we describe the PAD strategies during the life of governments in Peru, excluding inaugural cabinets. We find that cabinet instability has been very high for all governments since 1980, as a majority of ministers appointed during the government leave the cabinet before the end of the presidential term. As can be observed in Figure 8.5, the number of departures occurring before the end of the administration is about 52 per president (excluding Fujimori III and Paniagua), with the exception of Toledo and Fujimori II that had 60 and 61 premature departures.

Ministerial turnover for these two presidents is remarkable even after taking into account the size of the cabinets. Toledo appointed on average 3.19 ministers to each portfolio during his government and Fujimori II appointed 3.20 ministers. Also, Toledo appointed more “party-groups,” which tend to stay in their portfolios for relatively short periods, as we will see in the next section. Fujimori II, instead, appointed more experts and “group-experts,” which tend to be more durable.

Management of political resources during the government. On average, all ministers are very short-lived in Peru (417 days), but partisan ministers are replaced more frequently than expert ministers. As we can see in Figure 8.6, across all administrations, pure partisan ministers last two months less than pure expert ministers (372 days versus 456 days). Ministers who bring two kinds of resources to the cabinet, like partisan affiliation and expertise (i.e., “party-expert”), remain in office for 446 days.

Not only are partisan ministers less durable, they are also underrepresented in Peruvian cabinets. In line with what we observed for inaugural cabinets, partisan ministers represent about one-half of all appointments. Of all ministers appointed

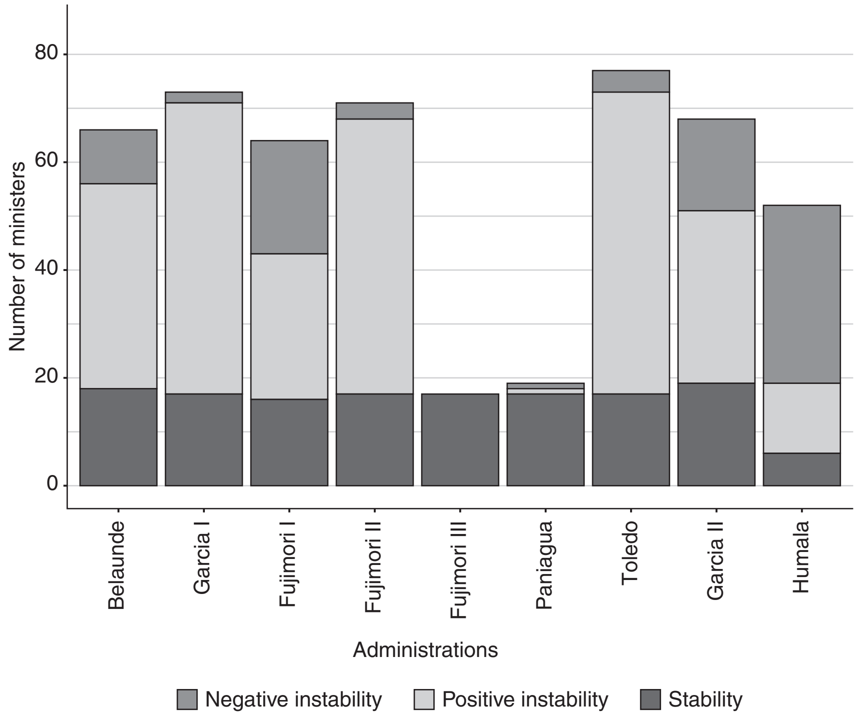

Figure 8.5 Minister turnover by type of exit (Peru 1980–2016).

during the government, 48.30 percent are non-partisans, 15.06 percent are partly-partisans, and 36.65 percent are strict-partisans. Unsurprisingly, García I and García II, the leader of one of the oldest traditional political parties in Peru, had the largest proportion of partisan appointments, with 74.07 percent and 62.75 percent respectively, whereas Fujimori I, the leader of a new political movement who rose to power as an outsider, had one of the largest proportions of non-partisan appointments (66.67 percent), only surpassed by Humala (72.73 percent).[28]

Again, in line with the trend at government formation, we find that the most common type of appointment during government was a minister with at least some expertise (71.02 percent),[29] and that comparing all governments since 1980 the president with the largest proportion of expert ministers was Humala (2011–2016). Now, taking into account group affiliations, the most frequent profiles after pure experts and pure partisans are "pure groups" (14.77 percent), "group-experts" (14.49 percent), and "party-groups" (13.07 percent). The highest proportions of "group-expert" and "party-group" appointments occurred under the government of García II, mainly due to ministers with ties to economic groups. This evidence confirms that there is a similar tendency to appoint ministers with expertise and group membership during government and at government

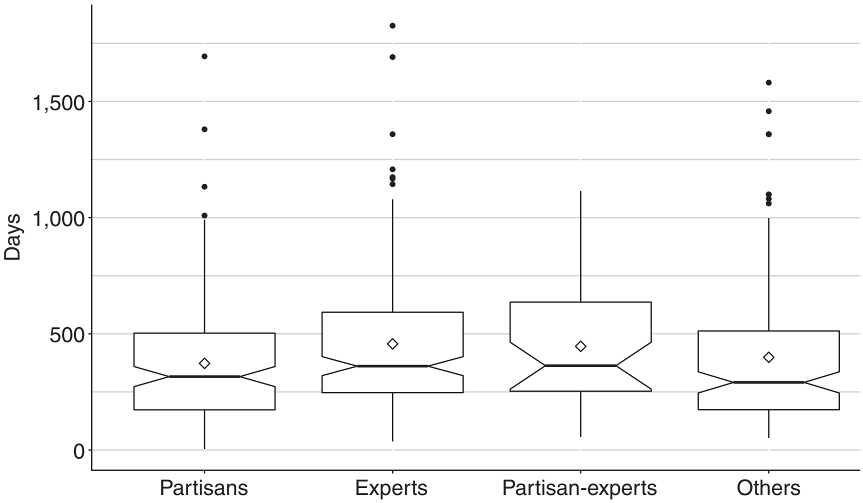

Figure 8.6 Minister duration by profile (Peru 1980–2016).

formation, and that this tendency is more acute for the period following the collapse of the party system.

Portfolio design during the government. The changes to cabinet size and organization are more common during government than at the beginning of government. Alan García, in April 1987, merged the Ministry of War, the Ministry of the Navy, the Air Forces, and the Joint Command of the Armed Forces into one single Ministry of Defense in order to better coordinate national security policies. Fujimori, after the *autogolpe* in 1992, reactivated the Ministry of the Presidency in order to administrate the social policies of his government more closely, and merged the Ministry of Transportation and Communication with the Ministry of Housing and Infrastructure into one single Ministry of Transportation, Communication, Housing, and Infrastructure.. Both measures ensured him greater control over social policies. In his second government, he created the Ministry of Women Promotion and Human Development in 1996.

Another important set of changes in the size and organization of the cabinet occurred under Toledo, as the country transitioned away from the competitive authoritarian government of Fujimori, and the new president sought to undo some of Fujimori's reforms and set a path for the modernization of the state. First, Toledo permanently eliminated the Ministry of the Presidency, which Fujimori used to channel funds from the government to his electoral campaign. Then, he split the two social ministries that Fujimori had combined and created an independent Ministry of Housing and a Ministry of Transport. Also, in 2002, he changed the names and mandates of the Ministry of Labor and Promotion of Employment and the Ministry of Women and Social Affairs. The new Ministry of Labor received a mandate to emphasize job creation, and the new Ministry of

Women Affairs received broader responsibility to work on social policy. Finally, the Ministry of Fisheries became a vice-ministry in the newly created Ministry of Production in 2002, taking over some of the competencies on industry from the old Ministry of Industry, Tourism, Integration, and International Trade, which was renamed Ministry of International Trade and Tourism.

Cooperative/unilateral strategy. Regarding portfolio allocation strategies, we find that in the period studied a cooperative strategy is more common than a unilateral one, with President Toledo being the most cooperative of all presidents (in his fourth year of government), closely ahead of Fujimori II (also in his fourth year), or Humala in his second year.

The evidence that the most cooperative presidents, Toledo and Fujimori II, were also the ones facing the greater levels of instability, indicate that there is a relationship between cooperative strategies and ministerial turnover. It is possible that cooperative strategies made the governments unstable, or that instability forced greater cooperation. Perhaps, once presidents engage in cooperation, appointing individuals far from their inner circle raises the attention of other political actors wanting to obtain a seat at the table too. Once the pool of likely ministers is enlarged in this way, more political actors may feel enabled to pressure the government for ministerial positions or other political concessions. It seems that presidents face greater difficulties retaining their ministers when they make more cooperative appointments. One trend is clear though; most presidents start with a somewhat unilateral strategy, but relatively quickly (around their second year of government) they switch to a more cooperative strategy to try to navigate the hazards of worsening levels of public approval and weak legislative support.

PAD at government termination

One very common trend in the recent governments of Toledo, García, and Humala in the 2000s and 2010s is that presidents become very unpopular halfway through their mandate. Coalitions quickly deteriorate when the reputational costs of supporting an unpopular government rise. Thus, presidents opt to reach out to non-partisan appointments that can bring political resources to the government, in particular expertise and connections with economic groups. The turbulent social context, coupled with weak legislative support, forces presidents to look for external backing and engage in non-partisan cooperative strategies.

For instance, before completing his first year in office, President Toledo faced intense social protests against the privatization of public firms in the southern region of Arequipa. These widespread protests (known as "Arequipazo") forced the dismissal of Prime Minister Roberto Dañino in 2002, and led to the recomposition of the cabinet, this time including more technocrats. Another serious political crisis in Toledo's government came with the censure of Fernando Rospigliosi, Minister of the Interior, amid the lynching of Ilave's major. Similarly, social protests triggered by government attempts to open communal Amazon lands for oil exploitation and logging, produced the "Baguazo" protests and political crisis in 2009 during García's government. After the security forces clashed with indigenous groups the conflict escalated and several ministers had to be replaced. To overcome political turmoil presidents reach out beyond their inner circle of political trustees and rely on technocratic actors and the business sector for the new ministerial appointments.

Explaining portfolio allocation and design strategies

This section takes stock of the evidence presented so far, and discusses how the general argument of the book applies to the Peruvian country case. We find qualified support for the theoretical expectations laid out in the introduction to this volume. In particular, we observe a shift in portfolio allocation strategies in a more cooperative direction over time as presidents lost most of their partisan powers.

The presidents

In this section we discuss the varying strength of Peruvian presidents from 1980 to 2016. Certainly, Fujimori was the strongest president in this period, since he employed unconstitutional means first, and illegal side payments later, to impose his dominance. However, the exercise of presidential authority during the competitive authoritarian period of Fujimori does not contrast hugely with the practices observed during the democratic periods. Some patterns of presidential authority preexisted Fujimori and have reemerged under García's second administration, especially with regard to the role of the president in the legislative process.

Formally, presidents in Peru are only moderately strong, given the parliamentary features of the Peruvian political system mentioned in the first section of this chapter. In practice, however, they tend to abuse their power, in particular their constitutional decree authority. Even though the two decree powers of the Peruvian presidents are comparatively limited (Carey and Shugart, 1995), the presidents tend to use them as a regular lawmaking device. The first type, legislative decree, is restricted to the delegated authority on certain issues for a specific amount of time. The second type, urgency decree, is restricted to the emergencies related to economic and financial matters. However, the presidents take advantage of the vagueness of the concept of "economic and financial matters," and the loose regulations over the specificity of the matters on which they can obtain authority to legislate, as well as the frequency by which they can require it from the congress, to advance their policy agenda without a legislative majority.

Moreover, even though the congress can formally overrule the presidential decrees, it is a weakly professionalized body and the legislators have short political careers, which lessens their willingness to engage in activities that would strengthen the legislative institution vis-à-vis the executive branch. As a result, Peruvian presidents dominate the legislative process. This is by no means a practice inaugurated by Fujimori's authoritarian rule. Belaúnde and García in the 1980s had already established a pattern in which the president superseded the amount of legislation produced by the legislative branch (Blume 2011).

After the collapse of Fujimori's competitive authoritarian regime, multiple reforms were passed to regulate the use of decrees by presidents, in order to prevent an extreme centralization of power.[30] Even though there was a significant decrease in the use of decrees during the post-democratic transition government of Toledo (who produced only 15 percent of laws by decree), García in his second administration (2006–2011) restored the practice of presidential hegemony in the legislative process (issuing 43 percent of the total legislative production). He enacted 525 decrees (legislative and urgency decrees) while the congress only approved 672 laws.[31] Thus, the dominance of the legislative role by the executive branch in Peru cannot be portrayed as a specific trait of the authoritarian period, as it is also observed in democratic presidents.

It is worth noting that the presidents who used the most decrees are also the ones that built legislative majorities (i.e., Fujimori, García I and II, and Belaúnde). Why are decrees preferred to the regular procedure of introducing bills to the legislative agenda? On the one hand, the low level of professionalization of the congress decreases the capacity of this body to take over their legislative role on the numerous matters deemed arbitrarily "urgent" by the president. On the other hand, the amateurism of politicians and the lack of party discipline makes it difficult to solve the coordination problem in executive-legislative relations. In sum, legislative delegation on the executive branch is not only evidence of presidential abuse, but also of the low capacity of the congress.

Moreover, Peruvian presidents often lack partisan powers. The low discipline of parties is one of the reasons why presidents often prefer to enact policies unilaterally rather than cooperatively. Even though some presidents have been successful at building ad hoc legislative majorities—especially in the occasions a president had a solid political party to rely on (e.g., Belaúnde's *Acción Popular* or García's APRA)—the combination of low party discipline and low presidential approval rates generates a fragile equilibrium in which presidents become very sensitive to public opinion. As a result, when social and economic pressures increase, the presidents are forced to signal that they are responsive. These signals often materialize in the replacement of ministers, which explains the remarkably high ministerial turnover in Peru.

The social context has been turbulent in the post-democratic transition period (2000s–2010s). The upsurge in social protests associated with environmental matters and the impact of the commodity boom in Peru has challenged the presidents' ability to negotiate with multiple political and social sectors, especially in the absence of solid parties serving as political interlocutors (Arce, 2010). On the one hand, Peruvian presidents need to pay attention to the demands of powerful and influential business groups who benefit from the international investment in mining and gas exploitation. On the other hand, local communities affected by the socioeconomic and environmental changes often organize massive protests that generate significant sociopolitical instability.

For example, Humala replaced his first prime minister (Salomón Lerner) four months after his presidential inauguration, amidst protests against the gold mining of the Yanacocha project in Cajamarca (Dargent and Muñoz, 2012).[32] Alejandro Toledo (2001–2006) and Alan García (2006–2011) also faced strong social protests and declining popularity, in spite of the privileged economic context, with constant 5–11 percent of economic growth per year between 2004 and 2014.[33] For instance, García faced social protests in Bagua against his intention to open communal Amazon lands for oil exploitation and logging. The crisis escalated when the security forces clashed with the indigenous groups and killed 32 persons. As a result, García's presidential approval dropped to 21 percent (Meléndez and León, 2010), his cabinet suffered and several ministers were replaced, and the congress overturned the presidential decrees that incited the protests.

Testing the PAD argument

The main argument put forward in this volume is that presidential strength conditions the ways in which rulers employ portfolio allocation. From a formal point of view, presidents in Peru are relatively powerful because the use (or abuse) of decrees allows them to legislate in a number of key areas. However, Peruvian presidents have had weak partisan powers since the collapse of the party system in the early 1990s. With the exception of Alan García, presidents have come to power representing newly created parties (or electoral movements) that have very weak support in the legislature. Moreover, because of the widespread public disenchantment with the political establishment, presidents very quickly lose popular support. Despite their institutional prerogatives, Peruvian presidents in the last 15 years have often found themselves in a difficult situation with very low approval ratings and limited legislative support. Given these political and institutional realities, are portfolio allocation patterns in Peru consistent with the argument of this volume?

The evidence presented in this chapter offers qualified support for the arguments presented in the first chapter to this volume. The first two administrations included in this analysis (Belaúnde 1980–1985 and García 1985–1990) corresponded to a period in which presidents were strong. Belaúnde and García not only had important formal powers, but they also had strong support in the legislature. In line with the expectations of this volume, Belaúnde and García primarily used unilateral strategies of portfolio allocation. Most of the ministers appointed during this period belonged to the presidential parties (*Acción Popular* between 1980 and 1985; and APRA between 1985 and 1990). Since Belaúnde and García had strong support in the legislature, they did not need to enter into large partisan agreements with other parties.[34] Hence, they preferred to secure political support from more loyal and ideologically closer ministers from their own parties.

However, Belaúnde and García pursued a dual strategy in portfolio allocation as they also sought ministers that could provide technical competence to the cabinet. A substantial share of cabinet ministers during this period was made of technocrats with limited political experience. This also provides support for the statement that strong presidents tend to appoint technocrats because they are critical to sustain the successful policies that reinforce presidential strength. This was particularly critical in Peru in the 1980s for several reasons. First, Peru was in a period of democratic consolidation after a long authoritarian regime, and successful policies were considered important to strengthen fragile democratic institutions. Second, Peru faced a very severe sociopolitical and economic crisis during this period which made it crucial to obtain rapid policy results improving the economic situation and providing public security. Third, Peru lacked a young democratic political class after more than a decade of military regime. Many political careers were interrupted by the military coup in 1968, so presidents were forced to look elsewhere after the democratic transition in order to recruit the talent and technical expertise required to govern.

The low share of cooperative ministers during the period between 1980 and 1990 (which can be observed in Figure 8.4 above) is also consistent with the argument put forward in this volume. Belaúnde and García did not need to recruit cronies or personal friends to insure loyalty because all ministers had incentives to align with their preferences. Partisan ministers wanted to contribute to the political success of the leader of their parties, while technocrats owed most of their political capital to the president.

The collapse of the party system and the election of Fujimori transformed considerably the dynamics of portfolio allocation in Peru. Peruvian presidents in this post-collapse era can be considered as much weaker than the presidents that governed Peru during the 1980s. This weakness is relative because presidents retained important reactive and proactive institutional powers. However, heads of government in Peru lost extensive partisan powers in the wake of the party system collapse. Presidents such as Fujimori and Humala were elected with very little support in the legislature. Moreover, Peruvian presidents come to power with highly personalized electoral movements that are often nothing more than ad hoc vehicles for their presidential ambitions. Therefore, heads of government often cannot rely on members of their own parties to obtain the necessary political support and technical expertise they need to govern effectively. The presidents of the post-collapse era also suffered from another liability, i.e., their low approval rates. With the exception of Fujimori, all presidents since 1990 finished their terms with very low popular support which also contributed to their relative weakness.

The argument presented in the first chapter to this volume suggests that weak presidents engage in more cooperative strategies than strong presidents. The post-collapse era in Peru offers a good opportunity to test this expectation. The evidence presented in this chapter shows that Peruvian presidents since Fujimori pursued more cooperative strategies, but not the type of cooperative strategies suggested. The most common strategy used by heads of government (both in presidential and in parliamentary systems) when they are in a position of minority in the legislature is to enter into programmatic agreements with other parties, which leads to the appointment of ministers from other political parties. The collapse of the party system in Peru made it unviable for presidents to obtain political support by appointing members of other political parties to the cabinet. Political parties in Peru are not programmatic and are weakly institutionalized. Party discipline, which is essential for stable partisan agreements, cannot be guaranteed by party leaders. Moreover, the appointment of partisan ministers is often an unpopular move in a country where public disenchantment with the political establishment is very deep. In sum, Peruvian presidents in the last 25 years have not looked for political support through the involvement of other parties in the cabinet.

However, the evidence presented in this chapter shows that Peruvian presidents do engage in cooperative strategies of a different kind in order to obtain the external backing they need to govern effectively. As can be observed in Figure 8.4, there was an increase in cooperative appointments after the rise to power of Alberto Fujimori in 1990. The collapse of the party system and the legitimacy crisis suffered by the political class left a political vacuum that was rapidly occupied by business elites and other organized economic interests. The power of these economic groups has gone hand in hand with the implementation of neoliberal policies since the election of Alberto Fujimori. In the context of a weakly institutionalized political system and a distrusting public, the support of organized economic interests became essential for governability. Peruvian presidents in the post-collapse period often chose to appoint non-partisan ministers with technical expertise gained in the private sector in order to obtain the support of these key organized groups. Given the low capacity of the Peruvian bureaucracy and the low institutionalization (and fragmentation) of the party system, the appointment of technocrats also appeared as the only viable option to presidents concerned with delivering successful policy outcomes. Several technical portfolios have been consistently allocated to independent ministers with expertise in those areas. In particular, the Ministry of Economy and Finance has almost always been occupied by technocrats with a long career in the private sector during the last 25 years.

Another expectation is that weak presidents might also decide to appoint and protect outsider ministers in order to keep certain areas under presidential control within the cabinet. This strategy might be necessary to counterbalance cooperative concessions in other portfolios. The evidence presented in this chapter shows that two presidents (Fujimori and Humala) appointed a substantial number of outsiders from their personal and professional networks. These two presidents were elected as political outsiders themselves and had very weak support in the legislature. They obtained the support of key organized economic sectors by appointing technocratic ministers, but they maintained control over certain policy areas by appointing their "own" people to occupy key portfolios. The best example is the first term of Alberto Fujimori. During the first years of his administration, Fujimori was able to maintain control over the cabinet by appointing members of the Japanese community and former colleagues at the *Universidad Agraria La Molina*. These ministers owed all their political capital to the president and responded directly to him, which made it easier for Fujimori to control their actions.

Concluding remarks

The Peruvian case provides a good opportunity to test the arguments advanced in this book. During the period covered in the analysis, Peru experienced a severe crisis of representation that ultimately led to the collapse of a party system that appeared to be consolidating during the 1980s. The erosion of the party system also had an impact on the power of Peruvian presidents. Although they retained considerable formal powers, heads of government in the post-collapse era found themselves in a position of relative weakness because they often governed with very weak support in the legislature and low approval rates.

In line with the arguments of this book, we observe a shift in portfolio allocation strategies over time as presidents lost most of their partisan powers. In the pre-collapse era, Belaúnde and García I preferred a unilateral strategy and appointed a large number of ministers from their own parties (AP and APRA). They also sought to consolidate their political power by appointing independent technocrats who could deliver policy results during the difficult period that followed the democratic transition in the 1980s.

After the rise of Fujimori and the collapse of the party system, presidents favored a more cooperative strategy in order to reinforce presidential strength and obtain political support. Interestingly, however, heads of government did not recruit members of other political parties, which is the most common way presidents attempt to obtain political support when they do not have legislative majorities. In Peru, this option was unviable given the low discipline and institutionalization of political parties, the fragmentation of the party system, and the popular disenchantment with the political class. As a result, presidents in the post-collapse era have resorted to an alternative cooperative strategy by appointing technocratic experts from the private world in order to obtain the support of powerful organized economic interests. These economic elites have amassed considerable power in Peru since the implementation of neoliberal policies by Fujimori (which were left almost untouched by the presidents that followed). To a large extent, these organized economic interests have filled the political vacuum left by a discredited political establishment. By recruiting technocrats, outsider presidents with weak legislative support (e.g., Fujimori, Toledo, and Humala) obtain two key resources they need to govern effectively: policy expertise and external support (to compensate for their weak political support).

Finally, the Peruvian case alerts us to the importance of the political and institutional context for understanding portfolio allocation and design. In addition to paying attention to the formal strength of presidents, we found that in the Peruvian case it is also essential to take into account the institutionalization of the party system to explain the strategies used by different presidents since the democratic transition in 1979. Weak presidents tend to use cooperative strategies of portfolio allocation, but the exact nature of these cooperative strategies largely depends on the political and institutional contexts that they face.

Notes

1 The authors would like to thank the research assistance of Yamile Guibert and Felix Puemape.
2 This is not a new feature of the 1993 constitution. The 1979 constitution included a similar authorization for the president to issue decrees.
3 These decrees are very frequently used. For example, in June 2015 the congress delegated legislative faculties to the executive branch to legislate on matters of "citizens' security" and "administrative, economic, and financial" matters for 90 days. A few years earlier, in June 2013, the congress delegated legislative faculties to the executive branch on matters related to the "strengthening of the health system."
4 According to the Organic Law of the Executive Power (Law 29158 of December 20, 2007) the *decretos supremos* are rules that regulate the existing laws or the activity of national agencies, and *resoluciones supremas* are specific decisions of the president that are endorsed by the minister of the sector they regulate.
5 The president of the council of ministers, which we will describe in detail in the following section, was usually also a minister in another portfolio, but since 1998, the prime ministers have been ministers "sin cartera" (without portfolio).
6 The council of ministers is presided over by Peru's president when he takes part in the meetings.
7 Interview with Víctor Paredes, Lima, November 16, 2012.
8 Interview with Carolina Trivelli, Lima, August 11, 2014.
9 Art. 132 of the Constitution states:

> Congress makes effective the political liability of the Cabinet or of each minister individually through a vote of no confidence or by defeating a vote of confidence.… A censured Cabinet or minister must resign. The President accepts the resignation within the subsequent 72 hours.

10 Most portfolios are divided in two vice-ministries in a very straightforward way. For instance, the Ministry of Energy and Mining is divided in the Vice-ministry of Energy and the Vice-ministry of Mining. Vice-ministries are led by vice-ministers who are responsible for policy design and implementation within their more limited spheres of competence.
11 The activities of the different offices include planning, budgeting, archiving, logistics, informatics, and human resources.
12 On the entrenchment of economic technocrats in MEF during Fujimori's first administration see Dargent (2014).
13 The National System of Public Investment (SNIP) was created in 2000, and serves under the authority of the Ministry of Economy and Finance (MEF). It is in charge of establishing the priorities of public spending, approving large projects of infrastructure and public services, and monitoring the efficiency of spending of all subnational governments and independent agencies of the executive.
14 Interview with Carolina Trivelli, Lima, August 11, 2014.
15 Interview with Juan Sheput, Lima, August 8, 2014.
16 Except for Belaúnde and García in the period prior to the collapse of the party system, and for Fujimori who manufactured legislative majorities by means of unconstitutional intervention in the legislative branch or illegal side payments, all the remaining presidencies since the democratic transition of 1980 lacked a majority in the legislature (i.e., Toledo 2001–2006, García 2006–2011, and Humala 2011–2016).

17 Peru has a system of runoff elections. In the event that no candidate receives the absolute majority of votes, a second round of voting takes place between the two frontrunners. All presidents since 1990 have been elected in a runoff election, except for Fujimori in 1995 who obtained 64 percent of the votes in the first round.
18 Around four more PPC members were appointed during Belaúnde's government, among them: Gonzalo de la Puente to the Ministry of Industry, and Armando Buendía and Ernesto Alayza to the Ministry of Justice.
19 Only three additional members of FIM were appointed during the Toledo administration: Eduardo Iriarte to the Ministry of Production (2002–2003) and the Ministry of Transport (2003–2004), Fausto Alvarado to the Ministry of Justice (2002–2004), and Carlos Gamarra to the Ministry of Justice (2004–2005).
20 Even though Alan García met Lourdes Flores (leader of *Unidad Nacional*) a few days before his inauguration, the two leaders publicly denied any negotiation over portfolio allocation.
21 UNO in the 1960s is the most famous partner of APRA. In the case of the implicit agreement with UN, the approximation between Lourdes Flores (UN) and Alan Garcia (APRA) became more apparent in the 2016 presidential election, when they ran together in an electoral alliance.
22 Because of the extreme public discredit of political parties in Peru and the high levels of party indiscipline in the congress, the benefits that coalition partners could obtain from the government do not necessarily materialize into ministerial appointments. Although parties could be interested in a ministerial position, on occasion it was in their interest to demand the appointment of neoliberal technocrats (Levitsky and Roberts, 2011).
23 On the debate about the existence of an alliance between APRA and *Fujimorismo* and possible bargaining currencies see Tanaka (2007).
24 On the concept of "ghost coalition," see Mejía Acosta (2009).
25 Non-partisans are individuals with no political party affiliation; partly-partisans are those with declared or known preference for a specific party but not active in the party, or recently affiliated to it; strict-partisans are those active in a political party.
26 Non-experts predominate in the governments of García I (44.44 percent) and Toledo (43.75 percent), and experts predominate in the government of Humala (88.89 percent) and Fujimori I (93.33 percent).
27 A pure expert is someone with expertise but no strong partisan or group membership; a pure partisan is someone with partisanship but no strong expertise or group membership. Group ministers are all those that are known members of an economic, military, religious, or organized group.
28 Based on data until 2014.
29 Ministers with some expertise are individuals with low specific experience in the portfolio area or specific academic formation but not experience. This proportion includes also the fully experts, who are individuals with long experience on the portfolio area.
30 For example, since 2002 presidents have not been able to issue decrees on taxes.
31 Moreover, from these 672 about 40–50 percent were bills initiated by the executive branch and approved through the regular legislative process in the congress.
32 As we mentioned earlier, not all prime ministerial replacements lead to a change in the balance of political forces within the cabinet. In this case, Óscar Valdés, the then interior minister, replaced Salomón Lerner and kept nine ministers from the previous cabinet.
33 According to the World Bank, Peru is one of Latin America's fastest-growing economies.
34 As discussed above, the only exception to this pattern is the agreement between *Acción Popular* and the *Partido Popular Cristiano* during the Belaúnde administration, which resulted in the allocation of two portfolios (Justice and Industry) to the PPC.

9 Unilateral, against all odds

Portfolio allocation in Ecuador (1979–2015)

Santiago Basabe-Serrano, John Polga-Hecimovich and Andrés Mejía Acosta

Ecuador is a country consistently beset by some of the highest cabinet turnover rates in Latin America. Yet, it does not conform to most explanations of cabinet instability offered by the scholarly literature. The Ecuadorian case deviates from the conventional wisdom in at least two important ways. First, chief executives have almost exclusively adopted strong unilateral strategies to manage their cabinets—staffing without input from political actors outside the president's own party or circle of confidence—and regardless of variation in their institutional power, partisan power, or public approval ratings. This may be expected of presidents who, like President Rafael Correa (2007–2017), enjoyed the support of a majority coalition or a single government party, benefitted from abundant fiscal revenues, and maintained high levels of public opinion support. However, unilateral strategies were not expected from many of Ecuador's post-transition (1979–2007) presidents, who lacked the support of a reliable legislative majority and needed to assemble multiparty coalitions to govern, who governed under times of economic distress, and endured low approval ratings. We argue that this is a peculiar feature of coalitional presidentialism in Ecuador. Given that potential coalition parties were reluctant to publicly align themselves with unpopular governments, cabinet positions were not the preferred means of political exchange. Instead, coalition partners preferred other types of exchanges including policy concessions, government appointments, or selective benefits.[1]

The second paradox is that Ecuador featured high levels of cabinet volatility, both during the period of fragmented politics and minority governments, as well as during the period of presidential stability and single-party or coalition majorities. We show that political or economic crisis, changes in the governing legislative coalition, and even a minister's personal characteristics all fail to effectively predict cabinet turnover. This finding challenges the conventional wisdom that executives who enjoy legislative support from a majority party or majority coalition or who govern in stable political economic environments should be able to ensure cabinet and policy stability. We speculate that cabinet volatility in this context may result from the heterogeneous nature of the president's political base of support and his need to reconcile competing factions within the party.

The rest of the chapter is divided into four parts. The first part offers an overview of the Ecuadorian political system and its institutional features since democratization. The second part analyzes executives' strategies for cabinet formation, as well as ministers' party affiliations, professional expertise, and loyalty to the president. We underscore the predominance of unilateral strategies for portfolio allocation. The third section discusses some explanations for the recurrent use of unilateral strategies by Ecuadorian presidents. The fourth part addresses the applicability of this volume's theoretical expectations to PAD in Ecuador and sets some pending themes for future research in the study of cabinet formation in presidential regimes.

Institutional background

Two principal periods have characterized the Ecuadorian political system since re-democratization: from 1979 to 2007, when presidents governed with constitutions that gave them fewer institutional powers, and they endured minority legislative support and suboptimal economic conditions, and from 2007 to 2015, when the president governed with a constitution granting him greater legislative powers, enjoyed majority party support in congress, and benefitted from a relative economic bonanza.

The political system

Ecuador was one of Latin America's first third wave democracies, re-adopting civilian rule in 1979. Unlike Argentina or Chile, the armed forces played a leading role in the transition back to democracy. However, despite more than 35 years of civilian rule democratic consolidation has been elusive and the country has experienced a good share of political instability. During this democratic period the country has adopted three constitutions and six constitutional reforms—including a 2015 amendment allowing, among other things, the indefinite re-election by popular vote of any elected authority—and three of the eight elected presidents in the period have been removed by the legislature (with a fourth perishing in an airplane crash). Perhaps most surprising, the party system evolved during this time from one of the most highly fragmented in the world to one in which the ruling *Alianza Patria Altiva I Soberana* (*Alianza PAIS* or Country Alliance) controlled more than 70 percent of legislative seats (Pachano, 2008).

During the 1979–2007 period, coalition governments were generally temporary and public policy unstable due to the large number of political veto players and the absence of governments with sufficient legislative representation (Mejía Acosta, 2009; Mejia Acosta and Polga-Hecimovich, 2011). In addition, public policies were developed in the context of endemic corruption and largely based on clientelistic criteria (Jones, 2010: 44). Furthermore, actors with informal veto powers, such as social organizations and the national indigenous confederation (*Confederación de Nacionalidades Indígenas del Ecuador*, CONAIE), created a context in which uncertainty, social unrest, and a lack of long-term agreements marked the political system. The increasingly limited independence of both supreme and constitutional court judges (Basabe-Serrano, 2012; Conaghan, 2012; Basabe-Serrano and Llanos Escobar, 2014), and the historical disrespect for the rule of law conspired to produce an environment where moments of great political tension were resolved through unconstitutional agreements.[2] Table 9.1 summarizes this variation in the Ecuadorian political system.

The executive

Even within the context of strong Latin American presidents, Ecuadorian chief executives stand out. Shugart and Carey (1992: 19) identify a variant of presidentialism they termed "pure presidentialism," in which chief executives possess ample freedom to designate senior government officials, including ministers. Mainwaring and Shugart (2002) argued that, under pure presidentialism, the executive not only has ample powers to appoint but can also disregard legislative dismissal attempts and retain ministers in their posts. Following these definitions, Ecuador would be a case of pure presidentialism between 1998 and 2007, and slightly diminished presidential power over the cabinet after the 2008 constitutional reform.

The 1978 Constitution empowered the National Congress to dismiss ministers through censure (*censura*), establishing a minimum threshold of votes necessary to impeach them and effectively remove them from office. The 1998 Constitution, however, significantly weakened this power. Although congress could still vote to dismiss ministers through censure (with a low 25 percent vote threshold), the power to actually *remove* them was left up to the president. The 2008 Constitution then reinstated the legislature's power to remove ministers through censure—although requiring a favorable vote of two-thirds of the members of the National Assembly.

The effects of the aforementioned constitutional changes are reflected in ministerial impeachment proceedings. While there were 34 ministerial impeachment trials between 1979 and 1998 (1.7 per year), this number was drastically reduced to five between 1998 and 2008 (0.5 per year). The influence of constitutional design is clearest in these two periods since many other variables related to the political system, such as high party fragmentation and the absence of a majority government, remained constant (Sánchez, 2008; Mejía Acosta, 2009). Although the legislature was again empowered to dismiss ministers since 2008, no impeachment has yet taken place. This is partly due to the legislative pluralities or majorities supporting President Correa since coming to office (2007–2009: 61.53 percent; 2009–2013: 47.58 percent; 2013–2017: 72.99 percent).[3]

At the administrative level, there are no further legal provisions governing the organization of the cabinet. Each president has the power to increase or decrease the number of ministries according to the needs of his or her government. Variation in the requirements for ministerial appointment has been minimal. The 1978 Constitution established that potential ministers be at least 30 years of age, enjoy full citizenship, and be Ecuadorian by birth. The following constitutions (1998 and 2008) retained the citizenship requirement but widened the pool of potential ministers to include persons who were declared citizens by a "competent authority." The

Table 9.1 Institutional background in Ecuador (1979–2017)

President	*Starts*	*Ends*	*President's party*	*Other parties in government*	*Cabinet size*	*Total ministers*	*President's legislative support*	*Type of government*	*President selection*	*President mandate*
Roldós	1979	1981	CFP	–	12	21	Minority	Minority coalition	Elected	Interrupted
Hurtado	1981	1984	DP	–	12	33	Minority	Minority coalition	Succession	Completed
Febres-Cordero	1984	1988	PSC	–	12	34	Minority	Minority single-party	Elected	Completed
Borja	1988	1992	ID	–	12	25	Minority	Minority single-party	Elected	Completed
Durán-Ballén	1992	1996	PUR	–	14	39	Minority	Minority coalition	Elected	Completed
Bucaram	1996	1997	PRE	–	14	16	Minority	Minority single-party	Elected	Interrupted
Alarcón	1997	1998	FRA	–	16	24	Minority	Minority single-party	Appointed	Completed
Mahuad	1998	2000	DP	–	15	25	Minority	Minority single-party	Elected	Interrupted
Noboa	2000	2003	Independent	–	15	31	Minority	Minority single-party	Succession	Completed
Gutiérrez	2003	2005	PSP	Pachakutik, MPD	15	47	Minority	Minority single-party	Elected	Interrupted
Palacio	2005	2007	Independent	–	16	39	Minority	Minority single-party	Appointed	Completed
Correa I	2007	2009	AP	–	28	65	Minority	Majority coalition	Elected	Completed
Correa II	2009	2013	AP	–	29	55	Minority	Majority coalition	Elected	Completed
Correa III	2013	2017	AP	–	29	24	Majority	Majority single-party	Elected	Completed
Moreno	2017	2021	AP	–	23		Majority	Majority single-party	Elected	In course

1998 Constitution maintained the minimum age of 30 years, while the 2008 Constitution eliminated the age restriction. In general, ministers' obligations include (1) advising the president, (2) management of minister's affairs, and (3) providing accountability via reports, hearings, or impeachment proceedings before the legislature.[4]

Presidents in Ecuador have adopted different, informal approaches to cabinet management. Some opt for biweekly meetings with the cabinet while others prioritize informal conversations with individual ministers or groups of ministers as a function of the country's political, social, or economic situation. President Correa held weekly meetings with the cabinet in the country's capital, and also had ministers accompany his weekly national radio and TV program, *Enlace Ciudadano* ("Citizens Outreach"). Additionally, Correa moved meetings with his cabinet to different parts of the country, for one Friday and Saturday of each month. These "traveling cabinets" (*gabinetes itinerantes*) also included managers of public institutions, the provincial governor, and other officials that the president may appoint for the occasion. The provincial prefect, mayors of the cantons of the province, and representatives of civil society could also attend. This "travelling" nature of cabinet management is also a good metaphor to illustrate that generally, the resulting public policies closely reflected the preferences of the chief executive and not necessarily the institutional legacies of each cabinet portfolio. With a few exceptions (Alberto Dahik [1992–1996] and Jorge Glas [2013–2017]), vice presidents have generally not played prominent roles in shaping or managing Ecuadorian cabinets.[5]

The cabinet

Cabinet ministers in Ecuador are subservient to the president in both theory and practice. Their formal influence is manifested in "ministerial agreements" (*acuerdos ministeriales*), legal edicts applicable to the bureaucracy that allow ministers to design public policy in the same way presidents possess decree powers and legislatures lawmaking powers. In this regard, the ministers' regulatory capacity can be as decisive as an executive decree or law that serves as legal support. Informally, as is the case in most political systems, ministers may provide advice and counsel to the president in their corresponding policy domains. Still ministers are often simply tasked with carrying out the dictates of the chief executive.

Ecuador's extended cabinet has traditionally been made up of ministers (*ministros secretarios* or *ministros*) and other officials that presidents have considered especially important in the management of the state. Usually these officials who are part of the executive branch, include the Secretary General of the Public Administration (*Secretaria General de la Administración Pública*), a de facto chief of staff, the National Secretary of Communication (*Secretaria Nacional de Comunicación*), and personal advisers to the president.[6] When the cabinet's agenda involves technical matters, the president may invite other public officials to participate, such as the president of the Central Bank, any regulatory superintendents, or, before the adoption of dollarization in 2000, the president of the Monetary Board. Under President Correa, one official with a strong presence in the cabinet was the Secretary of the National Secretariat of Planning and Development (SENPLADES) (Andrade, 2012; Sánchez and Polga-Hecimovich, 2015).

In general, ministries have been bureaucratically organized around the leadership of the minister and a small group of secretaries (*secretarías*) in charge of areas within the ministry; in 2007, President Correa also included the figure of the vice president at this level. In 1998, Jamil Mahuad's government created so-called "super ministries" whose role was to coordinate the work of the ministers belonging to similar sectors. This structure disappeared with the departure of President Mahuad in 2000, before reappearing as "coordinating ministries" in the successive governments of Rafael Correa.[7] During this period the coordinating ministers gained notoriety in the public eye and greater relevance within the cabinets.[8] Along with those coordinating ministries, historically the most politically "important" ministries have been those of policy, economics, foreign relations, and defense. In the second tier of importance are the ministries of agriculture, public works, health, education, and social welfare. Ministries of tertiary importance include those of tourism, sports, culture, and environment affairs, among others.[9]

The degree of ministers' influence on executive decisions depends on the electoral strength of the ruling party and presidential approval. When presidents lack a specific party affiliation or hold a legislative minority (e.g., Durán-Ballén, Alarcón, Noboa, Palacio), their ministers enjoy greater decision-making and political maneuvering power. On the other hand, for presidents whose parties have greater electoral support (e.g., Roldós, Febres-Cordero, Bucaram, Mahuad, Gutiérrez), the influence of ministers is selective and depends on the policy domain and political context. Finally, when the president has a broad legislative majority, as is the case with President Correa, the incidence of ministerial decision-making is marginal. From this perspective, there are ministers that exercise greater influence on the decisions of the executive as well as those limited to executing and implementing provisions directly from the president.

Still, it is challenging to determine which ministers act as pure agents of the president and which exercise more autonomy, by, for example, examining patterns of cabinet departure. With the exception of the (very few) cases of legislative impeachment, it is empirically difficult to distinguish ministerial departures due to legitimate political or policy differences with the president. In most cases, ministers often justify their resignations for "personal reasons."[10]

Using portfolio allocation and design (PAD) strategies

Legislative fragmentation and the challenge of assembling multiparty legislative coalitions have had an adverse impact on the formation of ministerial cabinets in Ecuador. Despite the fact that the literature has noted that presidents often turn to the appointment of ministers as a tool to form coalitions and influence executive

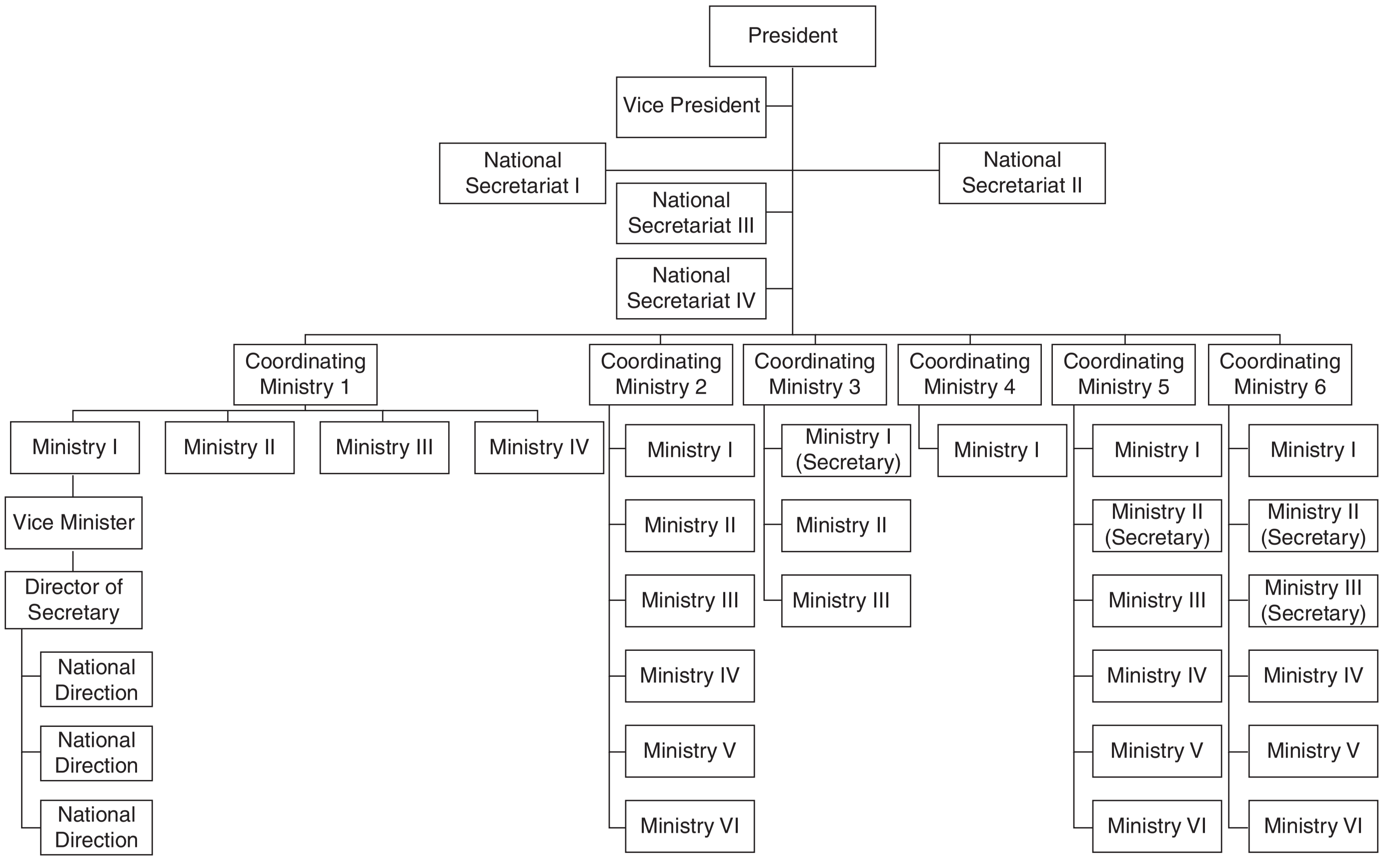

Figure 9.1 The structure of the executive power in Ecuador (2017).

decision-making (Amorim Neto, 2002; Chaisty *et al.*, 2014), the allocation of cabinet portfolios in Ecuador is highly disproportional to—and sometimes altogether ignores—the legislative representation of potential coalition partners. With the exception of a few key ministries such as Public Works or Energy and Mines—which allow the distribution of rents and benefits to interest groups via contracts and concessions—Ecuadorian presidents have generally used other tools to form legislative coalitions.[11]

According to Mejia Acosta (2009), this is partly explained by the unwillingness of non-government parties to publicly collaborate with debilitated presidents and their preference for clandestine agreements or ghost coalitions. Parties were reluctant to publicly cooperate with the president in the context of consistently low approval ratings; prior to 2007, one of the worst stigmas for an Ecuadorian politician was to be identified as "pro-government" (*gobiernista*), and as a result, parties worked hard to avoid the electoral liability of cooperating with unpopular governments. Nevertheless, non-government parties contributed to legislative agreements with the executive in exchange for other types of coalition currencies besides cabinet positions, including policy concessions, patronage, budgetary allocations, and particularistic payments. Coalition anonymity was preserved by the common practice of not recording individual voting records in legislative roll call votes. As a result, parties could support government policies and cash in on currencies, while publicly denying any cooperation (Mejía Acosta, 2009).

Ecuadorian presidents have mostly relied on unilateral strategies when forming their cabinets, regardless of their political strength or partisan support. During the first democratic period (1979–2007), most cabinet ministers were appointed due to their specific policy expertise and loyalty to the president; party affiliation was a less important—or not public—selection criteria. Although this tendency has not changed, the president has appointed a greater proportion of loyalists than policy experts during the second and third Correa administrations (2009–2017). We argue that the president did this to increase his own influence on policymaking, as well as a way to manage such a large, ideologically heterogeneous party.

PAD at government formation

In Ecuador, government coalitions have primarily been formed prior to the new president's election. Since legislative elections coincided with the first round of presidential elections between 1979 and 2008, parties preferred to leverage their share of legislative seats and sought to reach agreements with the new president during the second round runoff.[12] Except in isolated cases, such as the 1984 government alliance between the ruling Democratic Left (*Izquierda Democrática*, ID) and Popular Democracy (*Democracia Popular*, DP) and the 2003 pre-electoral coalition between the Patriotic Society Party (*Partido Sociedad Patriótica*, PSP) and the indigenous Pachakutik, these agreements have generally been informal arrangements, with undisclosed terms of negotiation.

Exceptions follow predictable patterns. To begin, 37 of the 42 ministers who assumed their portfolios *after* presidents took office did so under interim presidents (Alarcón, Noboa, and Palacio). In these cases, the provisional presidents replaced democratically elected ones during crises of succession. In all three examples, the interim presidents were those who quickly and successfully negotiated with congress, military leaders, and others. Given the political context, they did not have the luxury of figuring out their cabinets until after assuming office. Likewise, 37 of the 40 ministers who controlled a portfolio *before* the president assumed office came from two administrations—the Hurtado government and second Correa government—where there was no break in the governing coalition. Hurtado, for instance, assumed office after the death of President Roldós in a tragic plane crash, and kept many of his predecessor's ministers, while Correa, who was re-elected, kept on ministers he had appointed during his first term.

As previously mentioned, until recently, party system fragmentation in Ecuador was one of the highest in the world (Pachano, 2008).[13] As a result, government coalitions were often composed of multiple political parties. However, as described above, non-government parties have been reluctant to publicly ally themselves with presidents for fear of electoral reprisal, resulting in so-called "ghost coalitions." And since the core tools Ecuadorian presidents used to form coalitions were not ministerial portfolios but budget allocations and appointments in key supervisory bodies, embassies, courts, and public institutions (Mejia Acosta, 2009; Basabe-Serrano, 2011), *cabinet composition rarely reflects the partisan composition of the government coalition*.

Instead, as shown in Figure 9.2, the vast majority of initial cabinet appointments were composed of self-proclaimed "independent" deputies and technocrats. This is due in part to the fluidity of party identification and affiliation in Ecuador, as well as unwillingness by ministers to be identified with any one (potentially unpopular) party. Surprisingly, only the first two years of the Borja administration featured more partisan than independent ministers in the period between 1979 and 2009, partly due to the formalized government coalition between the ID and DP-UDC. The tendency to appoint experts instead of partisans is even more acute during the interim administrations, where provisional presidents either came from a minuscule party (e.g., Alarcón) or were independents themselves and therefore avoided the need to appoint partisans to their cabinets (e.g., Noboa, Palacio). In these cases, only two of 43 ministers named at the outset of these administrations were partisans.

Unaffiliated or independent ministers are so common that overall, only 38.39 percent of all ministers were affiliated with the president's party—with 37 of the 60 coming during the first and second Correa administrations (Figure 9.2). Moreover, ministers affiliated to other parties are even rarer, accounting for just 12 of 194 ministers at the point of government formation. Members of this small group include Frank Vargas of the Ecuadorian Popular Revolutionary Action Party (*Acción Popular Revolucionaria Ecuatoriana*, APRE) under President Abdalá Bucaram (1996–1997), and Ramiro González (AVANZA) and Érika Silva

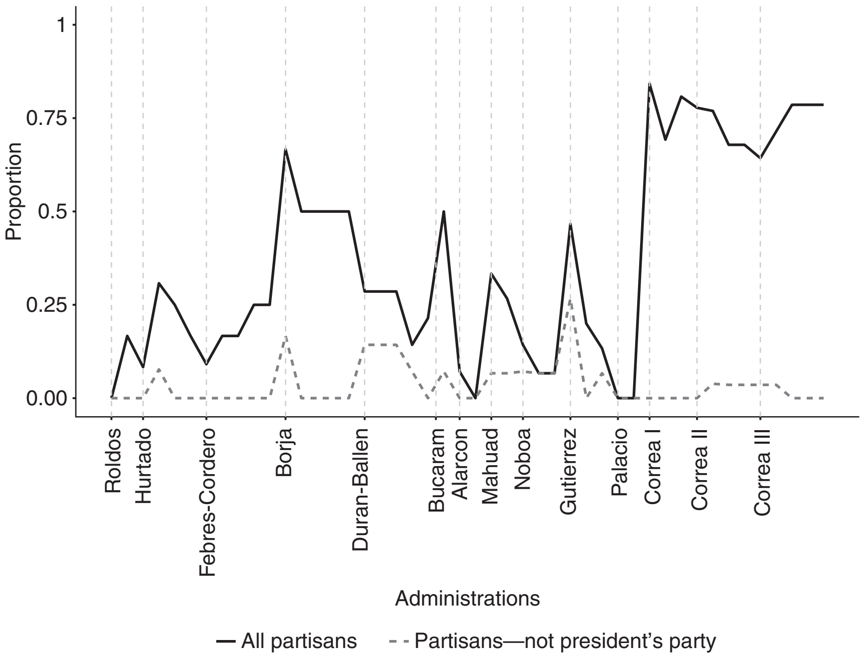

Figure 9.2 Cabinet membership by party (Ecuador 1979–2017).

(PS-FA) under Correa. These ministers tended to be ideological allies of the president in question, while their inclusion neither made nor broke the government coalition.

As a result of this peculiar form of coalition formation and management that rarely relied on cabinet appointments, an overwhelming majority of appointees can be classified as "strictly experts" or a diminished form of expert (e.g., "group-experts," "partisan-experts") instead of strict partisans or loyalists in terms of their thematic specialization. In fact, we find that 63.5 percent of all ministers held expertise in either the private or public sectors related to the primary policy domain of the ministry. This is clearest in fields such as economics, foreign affairs, and national defense. As Figure 9.3 captures, there are three exceptions to this general pattern across administrations: (1) the Borja government, with only three strict experts, and which as mentioned, relied on partisans to forge a public coalition with another center-left party; (2) the Gutiérrez administration, which entered office through an electoral coalition with the indigenous Pachakutik, and appointed three members of that party to its initial cabinet; and (3) the Correa government, which enjoyed majority legislative status and overcame the logic of ghost coalitions and non-partisan experts, relying nearly exclusively on strict partisans and their diminished subtypes. In short, given the fickle nature of coalition politics in Ecuador, ministers appointed

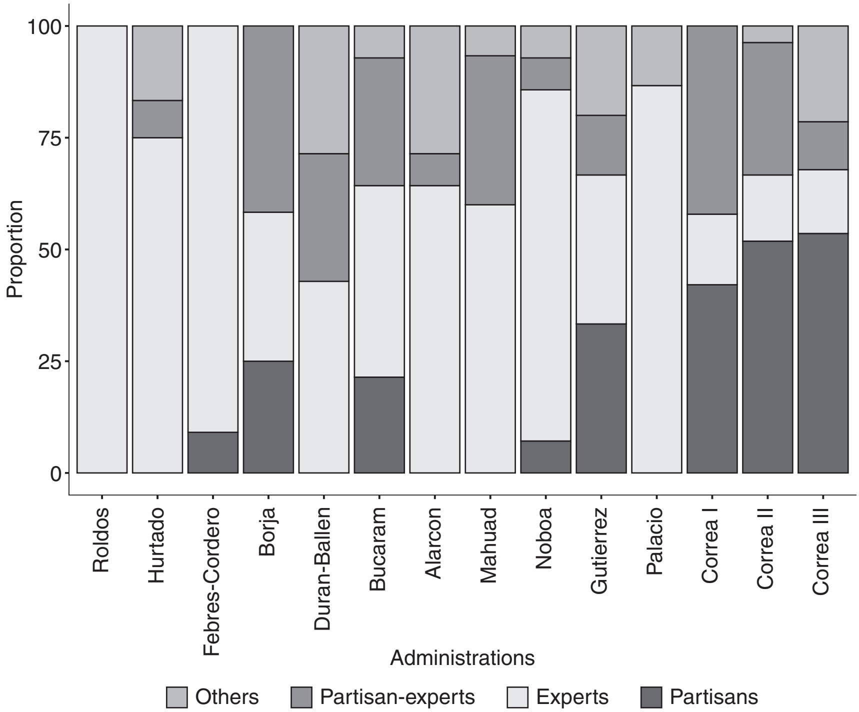

Figure 9.3 Minister profiles at inauguration (Ecuador 1979–2017).

prior to 2007 tended to be experts who were neither partisans nor loyalists. Under single-party government, however, loyalty and government stability became more valued.

In terms of portfolio design, the cabinet has grown precipitously since 2007 (see Table 9.2). From 1979 to 2007, the number of portfolios varied between 12 and 15. However, upon taking office in 2007, Correa nearly doubled the size of the cabinet, expanding it to 28—and at times 29—portfolios. Given the profound changes to the Ecuadorian political system since 2007, this increase does not reflect an attempt to create opportunities for government allies, but to pursue post-neoliberalism by expanding the role of the state and its involvement in different spheres of public life (Burbano de Lara, 2015; Conaghan, 2015; Sánchez and Polga-Hecimovich, 2015). To do this, the president created ministries from scratch (the coordinating ministries, the Ministry of Justice) and elevated other public agencies or undersecretariats to ministerial status (the Ministry of Culture, the Ministry of Sports). Although there is clear variation in the absolute size of the cabinet between the 1979–2007 and 2007–2015 periods, the (high) turnover rate of ministers has remained relatively unchanged throughout the democratic period (see above).

Table 9.2a Evolution of ministerial offices (Ecuador 1979–2000)

Roldós (1979–1981)	*Hurtado (1981–1984)*	*Febres-Cordero (1984–1988)*	*Borja (1988–1992)*	*Durán-Ballén (1992–1996)*	*Bucaram (1996–1997)*	*Alarcón (1997–1998)*	*Mahuad (1998–2000)*
Agriculture and Livestock	Agriculture and Livestock	Agriculture and Livestock	Agriculture and Livestock	Agriculture and Livestock	Agriculture and Livestock	Agriculture and Livestock	Agriculture and Livestock
Social Welfare	Social Welfare	Social Welfare	Social Welfare	Social Welfare	Social Welfare	Social Welfare	Social Welfare
Defense	Defense	Defense	Defense	Defense	Defense	Defense	Defense
Economy and Finance	Economy and Finance	Economy and Finance	Economy and Finance	Economy and Finance	Economy and Finance	Economy and Finance	Economy and Finance
Education and Culture	Education and Culture	Education and Culture	Education and Culture	Education and Culture	Education and Culture	Education and Culture	Education and Culture
Energy and Mines	Energy and Mines	Energy and Mines	Energy and Mines	Energy and Mines	Energy and Mines	Energy and Mines	Energy and Mines
Foreign Trade	Foreign Trade	Industry, Commerce, Integration, and Fishing	Industry, Commerce, Integration, and Fishing	Industry, Commerce, Integration, and Fishing	Foreign Trade, Industrialization, and Fishing	Foreign Trade, Industrialization, and Fishing	Foreign Trade, Industrialization, Fishing, and Tourism
Government	Government	Government	Government	Government	Government	Government	Government
Public Works	Public Works	Public Works	Public Works	Public Works	Public Works	Public Works	Public Works
Foreign Relations	Foreign Relations	Foreign Relations	Foreign Relations	Foreign Relations	Foreign Relations	Foreign Relations	Foreign Relations
Health	Health	Health	Health	Health	Health	Health	Health
Labor and Human Resources	Labor and Human Resources	Labor and Human Resources	Labor and Human Resources	Labor and Human Resources	Labor and Human Resources	Labor and Human Resources	Labor and Human Resources
				Urban Development and Housing	Urban Development and Housing	Urban Development and Housing	Urban Development and Housing
				Tourism	Tourism	Tourism	Tourism
						Environment	Environment
						Communication	

Table 9.2b Evolution of ministerial offices (Ecuador 2000–2017)

Noboa (2000–2003)	*Gutiérrez (2003–2005)*	*Palacio (2005–2007)*	*Correa I (2007–2009)*	*Correa II (2009–2013)*	*Correa III (2013–2017)*	*Moreno (2017–)*
Agriculture and Livestock	Agriculture and Livestock	Agriculture and Livestock	Agriculture, Livestock, Aquaculture, and Fishing	Agriculture, Livestock, Aquaculture, and Fishing	Agriculture, Livestock, Aquaculture, and Fishing	Agriculture and Livestock
						Aquaculture and Fishing
Social Welfare	Social Welfare	Social Welfare	Social Welfare	Economic and Social Inclusion	Economic and Social Inclusion	Economic and Social Inclusion
Defense	Defense	Defense	Defense	Defense	Defense	Defense
Economy and Finance	Economy and Finance	Economy and Finance	Economy and Finance	Finance	Finance	Economy and Finance
Education, Culture, Sport, and Recreation	Education, Culture, Sport, and Recreation	Education, Culture, Sport, and Recreation	Education	Education	Education	Education
			Culture	Culture	Culture and Patrimony	Culture and Patrimony
			Sport	Sport	Sport	Sport
Energy and Mines	Energy and Mines	Energy and Mines	Mining and Petroleum (2007)	Non-Renewable Natural Resources	Hydrocarbons (2015)	Hydrocarbons
					Mining (2015)	Mining
			Electricity and Renewable Energy (2007)	Electricity and Renewable Energy	Electricity and Renewable Energy	Electricity and Renewable Energy
Foreign Trade, Industrialization, Fishing, and Competitivity	Foreign Trade, Industrialization, Fishing, and Competitivity	Industry and Competitivity	Industry and Productivity	Industry and Productivity	Industry and Productivity	Industry and Productivity
					Foreign Trade	Foreign Trade
Government	Government	Government	Government	Interior (2010)	Interior	Interior
Public Works	Public Works	Public Works	Transportation and Public Works	Transportation and Public Works	Transportation and Public Works	Transportation and Public Works
Foreign Relations	Foreign Relations	Foreign Relations	Foreign Relations, Commerce, and Integration	Foreign Relations, Commerce, and Integration	Foreign Relations and Human Mobility (2015)	Foreign Relations
Health	Health	Health	Public Health	Public Health	Public Health	Public Health
Labor and Human Resources	Labor and Human Resources	Labor and Human Resources	Labor Relations	Labor Relations	Labor (2015)	Labor
Urban Development and Housing	Urban Development and Housing	Urban Development and Housing	Urban Development and Housing	Urban Development and Housing	Urban Development and Housing	Urban Development and Housing
Tourism	Tourism	Tourism	Tourism	Tourism	Tourism	Tourism

Environment	Environment	Environment	Environment	Environment	Environment	Environment
			Justice, Human Rights, and Religion (2007)	Justice, Human Rights, and Religion	Justice, Human Rights, and Religion	Justice, Human Rights, and Religion
				Telecommunications and Information Society	Telecommunications and Information Society	Telecommunications and Information Society
			Coast	Coast		
			Coordinator of Internal and External Security	Coordinator of Internal and External Security	Coordinator of Internal and External Security	
			Coordinator of Production, Employment, and Competitivity	Coordinator of Production, Employment, and Competitivity	Coordinator of Production, Employment, and Competitivity	
			Coordinator of Social Development	Coordinator of Social Development	Coordinator of Social Development	
			Coordinator of Politics	Coordinator of Politics and Autonomous Decentralized Governments (2010)		
			Coordinator of Political Economy	Coordinator of Political Economy	Coordinator of Political Economy	
			Coordinator of Strategic Sectors	Coordinator of Strategic Sectors	Coordinator of Strategic Sectors	
			Coordinator of Natural and Cultural Patrimony	Coordinator of Natural and Cultural Patrimony		
				Coordinator of Knowledge and Human Talent (2012)	Coordinator of Knowledge and Human Talent	

Despite depending on coalitions to govern during the 1979–2007 period, Ecuadorian presidents relied overwhelmingly on “unilateral” cabinet management strategies. The proportion of ministers outside the president’s inner circle has remained quite low for the duration of the democratic period. The first four presidencies formed highly unilateral cabinets, with an overwhelming number of portfolios assigned to unaffiliated technocrats who were nonetheless close to the president. The strategy became more cooperative in 1992 at the beginning of the Durán-Ballén administration. The new president, who had founded the Social Christian Party (PSC) before later breaking off to create the small Republican Unity Party (PUR), co-governed with the PSC (Mejía Acosta, 2009; Mejía Acosta and Polga-Hecimovich, 2011). Still, since this coalition was largely hidden from public view, only three of Durán-Ballén’s 14 ministers came from outside his inner circle—marking an unusual instance of a coalition government defined by unilateral cabinet building. In fact, Ecuadorian cabinet management is particularly unusual since all presidents between 1992 and 2005 followed this strategy of coalition formation and cabinet building.

The most cooperative PAD at government formation during this period was Lucio Gutiérrez (PSP), who ran for office in a leftist electoral coalition with the indigenous Pachakutik party and the leftist MPD. Upon assuming office, Gutiérrez distributed cabinet portfolios to Luis Macas, Nina Pacari, and Doris Soliz (Pachakutik), Édgar Isch (MPD), and three additional politicians unaffiliated to

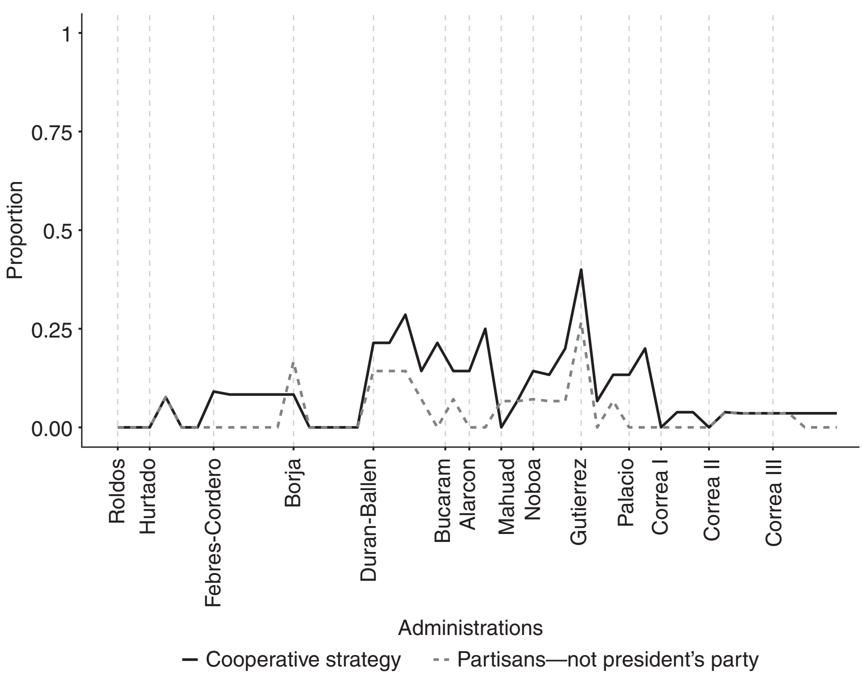

Figure 9.4 Portfolio allocation strategy (Ecuador 1979–2017).

the president. However, Gutiérrez immediately pursued neoliberal economic policies, and the pre-electoral arrangement lasted less than a year, after which point Gutiérrez's cabinet took on a unilateral veneer. On the other hand, unilateral cabinet management reached its apex under Rafael Correa, who did not have to rely on coalitions to govern in his second and third terms.

PAD during the government

Ecuador's rate of ministerial removal has long been, and continues to be, one of the highest in Latin America (Martínez Gallardo, 2010, 2012). As seen in Figure 9.5, the average minister's duration has varied little between 1979 and 2017, despite myriad political, economic, and social changes, and regardless of the background and political profile of the ministers. Instead, the most notable change in portfolio allocation and distribution concerns the mode of cabinet change, with President Correa relying on ministerial *rotation* rather than removal to an unprecedented degree since 2007.

Throughout the period of study there were no major differences in the mean duration of ministers when disaggregated into "partisans"—ministers with a party affiliation or militancy—or "experts"—those with prior expertise in the

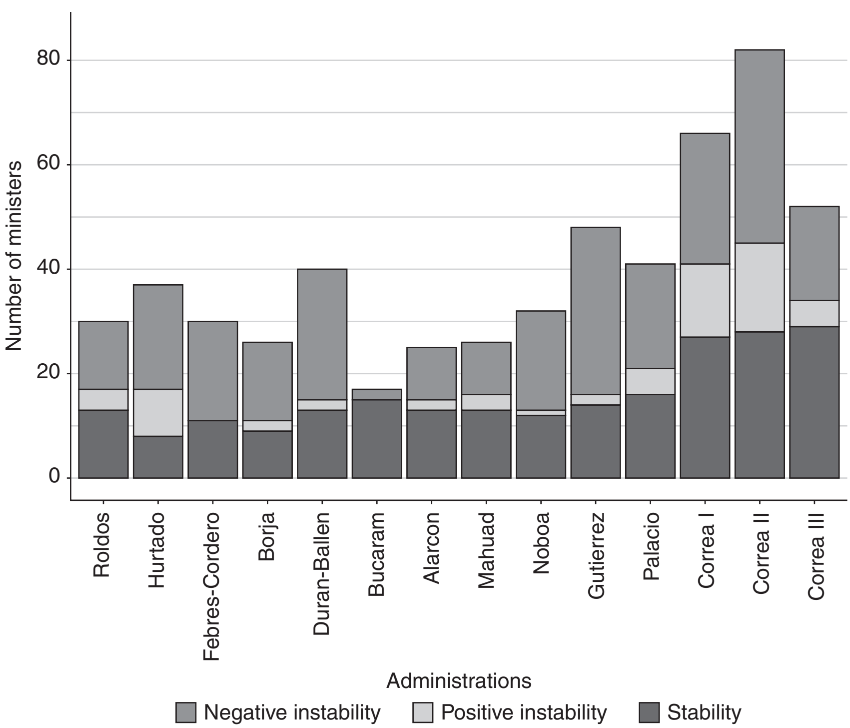

Figure 9.5 Minister turnover by type of exit (Ecuador 1979–2017).

area of his or her portfolio. As the boxplots in Figure 9.6 show, the average duration of "partisan-expert" ministers—those with party affiliation and policy expertise—is slightly higher than that of their strict partisan and strict expert counterparts, although these differences are not significant. More strikingly, mean duration slightly increased to become right skewed within the groups as the profiles move from "non-partisan" to "weak partisan" to "strict partisan" and from "no expertise" to "some expertise" to "expert." In other words, the more a minister adopts a strict partisan or expert profile, instead of a weak one, the longer he or she is likely to endure.

The relative lack of variation in the duration of these types of ministers makes it difficult to identify political, economic, or social variables that would explain the slight differences between them. This is even more striking when noting the similarities in ministerial duration between the 1979–2007 and 2007–2015 periods, despite the substantial political differences between these two. One personal characteristic that appears to have a significant positive impact on increasing ministerial survival is having a military background (an average duration of around 550 days versus 400 for all other ministers). However, of the 541 ministers in the dataset, only 24 served in the armed forces, and of these, 18 served as Minister of Defense, meaning that their duration may reflect the comparative stability of the portfolio rather than unique personal characteristics.

Interestingly, the strategy of ministerial rotation—transferring ministers from one portfolio to another—has increased over time. The rate of ministerial reshuffling was generally low, but increased considerably during the first two Correa administrations. Before Correa, the maximum number of reshuffled ministers in any administration was two, but it climbed to eight under the first Correa administration and was five in the second. This is perhaps a function of the president's

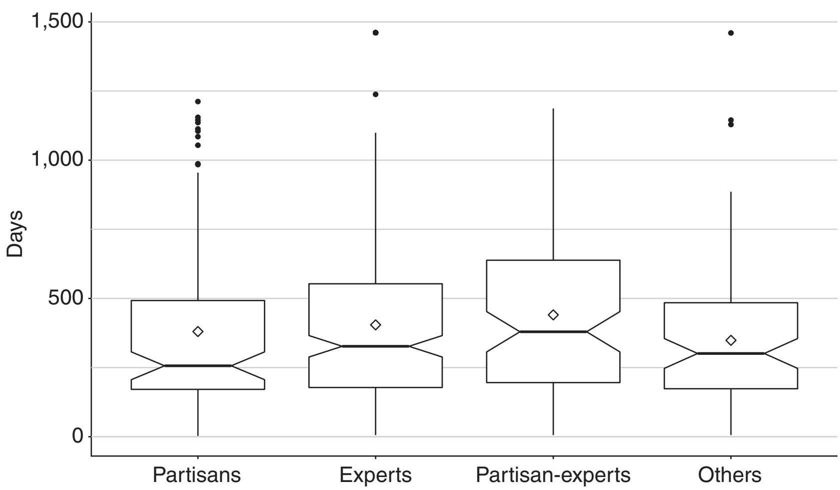

Figure 9.6 Ministerial duration by profile (Ecuador 1979–2017).

reliance on "own" ministers in such a large cabinet: given a finite number of trusted advisors and partisans among so many portfolios, transferring allies from one portfolio to another allowed the president to maintain loyalty in key positions while still changing the policies at the top of different ministries. Aside from these instances of rotation, once a minister leaves office, he or she tends to return to his or her previous professional activities in the private sector. The only exceptions to this trend are partisan ministers, who are more likely to continue their political career in another area of the public sector.

With the important exception of President Correa, Ecuadorian presidents appointed few partisan loyalists who were not experts.[14] Until 2003, no administration featured more than three non-experts, and in no administration did the number of non-experts and semi-experts surpass the total of experts. By contrast, under Correa, 30 of the 65 ministers in the first presidential administration were non-experts or semi-experts, while semi-experts became the modal category during the second and third Correa governments and non-experts and semi-experts accounting for more than double the number of experts. This change probably reflects at least two differences between the Correa government and previous ones. First, given the doubling of cabinet portfolios, it might have become more difficult for the president to surround himself solely by loyalists who were also experts in their corresponding policy domains. Second, as Correa enjoyed strong political capital and unprecedented popular support during his time in office, his policies showed less willingness to compromise. Accordingly, he may have preferred delegating these policies to a loyalist unwilling to alter policy than an expert more prone to intervene with their own expertise and policy preferences.

Indeed, unilaterialism remains the dominant feature of government PAD in Ecuador. As we mention above, although there were sometimes ministries allocated to parties involved in government coalitions or actors belonging to the president's own party, the presence of such ministers was rare from the 1979–2007 period. In fact, during the interim administrations of Alarcón (1997–1998), Noboa (2000–2003), and Palacio (2005–2007)—all leaders who assumed office after the resignation or impeachment of the elected president—there were virtually no partisan ministers.[15] This pattern changed slightly with the arrival of Rafael Correa and the rearrangement of the national political scene. Although the ministers belonging to the government party in Correa's administrations increased to maintain internal cohesion, the quota of other political parties in the cabinet was low.

A lack of declared partisanship, however, does not imply that the ministers were apolitical technocrats. Instead, cabinets were often composed of formally unaffiliated individuals with expertise who were also loyal to the president. Referring back to the "cooperative index" in Figure 9.4, there is a consistently higher share of ministers close to the president compared to those outside of the president's sphere of influence. Unilateral strategies employed at the beginning of administrations endured throughout. What is more, even the high point of cooperation in the democratic period, at the beginning of President Gutiérrez's term, was followed by the rapid dissolution of that public alliance between parties and the return of a highly unilateral PAD after the president's first nine months in office. In short, Ecuadorian presidents exercised high levels of discretion and control over their cabinets throughout their time in office, resulting in high levels of turnover and the near exclusive appointment of loyalists.

PAD at government termination

Since government coalitions in Ecuador were often clandestine "ghost" coalitions formed outside public scrutiny, termination followed a similar logic. In general, analysts were able to infer the beginning and end of alliances through civil service appointments (although not necessarily ministers) and journalistic reports.[16] In general, these volatile (ghost) coalitions ended for a number of reasons. The first was the failure of governments to deliver monetary rewards like sequential budgetary items to provincial prefects or municipal authorities associated with the coalition's member parties, or when the delivery of funds to legislators themselves decreased (Mejía Acosta, 2009). Likewise, approaching elections and poor government performance, reflected in things like decreases in approval rating, increases in social protest, and rising economic inflation, all exercised a statistically significant effect on the likelihood of coalitions unraveling in Ecuador (Mejía Acosta and Polga-Hecimovich, 2011).

Consequently, no government coalition from 1979 to 2007 endured the entirety of a presidency or—if formed in the middle of the presidency—until elections, and new governments were created before the end of the administration. In fact, the construction and erosion of ghost coalitions was so common that Mejía Acosta and Polga-Hecimovich (2011) find that from 1988 to 1996, the average coalition lasted only 12 months, before decreasing to just 3.32 months from 1996 to 2007. Meanwhile, the average number of coalitions per year grew from 0.63 per year before 1996 to 1.73 per year after. However, Correa's arrival in 2007 radically changed these dynamics. Since the ruling bloc in the legislature grew significantly, ultimately giving the president a legislative majority, the need for agreements with other political parties became unnecessary.

Since ministerial appointments were not a prime coalition formation tool, ministerial departures and appointments rarely coincided with the formation and erosion of these governments. Instead, it was the arrival of new presidents—including interim presidents—that triggered an almost complete restructuring of the cabinet. It was exceptionally rare for ministers to remain in charge of a given portfolio when a new president took office. Two deviations from this rule include former Minister of Foreign Relations Galo Leoro, who was appointed under the Durán-Ballén administration and remained at the head of the portfolio under the arrival of Abdalá Bucaram, and Minister of Education Raúl Vallejo, who was appointed under the Palacio government and retained under Rafael Correa. The reason for near-complete cabinet turnover with the change of administrations is the high level of unilateralism enjoyed by presidents; each president surrounded himself with his "own" ministers when coming to office.

Yet, despite this practice and a generally high overall rate of ministerial turnover, once a president began his duties, cabinet changes were often staggered—occurring at different moments throughout the term—and not simultaneous, as would be the case with turnover in places depending on cabinet coalitions to govern. Despite the informal practice of ministers presenting their resignations to the president at the end of the year as a way to give the chief executive additional flexibility, changes are generally made on a case-by-case basis, rather than as part of a broader wave of administrative turnover. Further, beginning in 2007 pure ministerial exit has been replaced with a combination of both removal and rotation, with the president relocating many loyal ex-ministers to other ministries, embassies, and public institutions.

Explaining portfolio allocation and design (PAD) strategies

Contrary to established knowledge (e.g., Martínez-Gallardo, 2012), Ecuadorian presidents have nearly always pursued unilateral strategies in the design and formation of their cabinets regardless of their institutional strength and public standing. We argue that this is due in part to (1) the nature of legislative coalitions in Ecuador and the types of (non-portfolio allocation) exchange that presidents pursued to forge these coalitions, and (2) high levels of institutional power enjoyed by the president in the non-coalition era since 2007 (Basabe-Serrano, 2017). Additionally, we find no convincing evidence to support existing arguments that presidents' PAD or ministerial duration will vary by ministerial profile and presidential approval (e.g., Camerlo and Pérez-Liñán, 2015a) or the incidence of economic and political shocks (e.g., Camerlo and Pérez-Liñán, 2015b). Instead, with cabinet changes in over 40 percent of months under study, PAD in Ecuador reflects change in both tumultuous and uneventful times.

Presidents and their environments

The central contention of this book is that presidents with greater institutional political power have fewer incentives to promote collaborative strategies in the formation of their cabinet, while weaker presidents will tend to rely more heavily on collaborative strategies. Ecuador presents an interesting case with which to test this hypothesis, since presidents have possessed a great deal of variation in their institutional powers, partisan powers, and public approval ratings. On one hand, presidents in the 1979–2007 period were weaker in terms of both formal tools to govern, their partisan powers, and economic context, yet they mostly resorted to unilateral strategies to build their cabinets. Meanwhile, Rafael Correa accumulated much more institutional and partisan power—as well as a more favorable macroeconomic environment and higher public approval—in the 2007–2017 period, but continued to pursue a unilateral strategy in his cabinet appointments. In short, Ecuadorian presidents have prioritized unilateral strategies in their PAD regardless of their political and institutional strength, and regardless of the prevailing economic and political environment.

Both the 1998 and 2008 political constitutions increased Ecuadorian presidents' institutional powers, giving them more tools for generating and executing their government agenda (Basabe-Serrano, 2017). The 1998 Constitution gave greater discretion to the president to manage the budget, eliminated the ability of the National Congress to dismiss ministers after an impeachment, and eliminated other legislative powers perceived by the public to be corrupt (Basabe-Serrano *et al.*, 2010).[17] However, government coalitions lasted less time than in the 1979–1996 period, the bill approval rate by the legislature remained low, and the cabinet turnover rate did not change (Mejía Acosta and Polga-Hecimovich, 2011).

Furthermore, the pervasive practice of legislators supporting the presidential agenda in exchange for positions in public institutions or embassies, or the direct allocation of financial resources, remained intact. As we have argued, although presidents did include a few select ministries in cabinet formation negotiations (essentially those with financial resources and the ability to generate patronage), agreements generally did not involve greater participation from coalition partners in deciding cabinet formation. In addition, governing parties held minority legislative blocs and, outside of the months they took office, positive presidential approval—the percentage of respondents who gave the president a favorable rating—was consistently between a middling 30 percent and 55 percent (see Carlin *et al.*, 2016). In sum, although Ecuadorian presidents from 1979 to 2007 were often politically weak, they nearly always utilized unilateral strategies for PAD.

This scenario changed dramatically with the arrival of President Correa in 2007. At an institutional level, the 2008 Constitution promulgated by Correa increased certain executive powers at the expense of some key powers of the legislature, such as the appointments of Supreme Court judges, the Federal Prosecutor, and the General Comptroller. Correa also had strong public support, enjoying a positive approval rating of 65–80 percent for much of his time in office, buttressed by a legislative majority in the National Assembly (and one that surpassed a supermajority in 2013). Additionally, between 2007 and 2013 the international price of oil—Ecuador's primary source of export earnings—reached unprecedented heights, creating a favorable economic situation for the president and giving him access to an influx of government revenue. In these ways, Correa's political, social, and economic context was diametrically opposed to that of his predecessors.

As a result, Correa did not have the need to promote political agreements with other actors. Consistent with Martínez-Gallardo (2012), the representation of other political parties or sectors in Correa's cabinets was inversely proportional to the size of the legislative government party. While Correa's cabinet during the first months of 2007 included individuals from smaller political parties, such quotas were reduced over time until there were no ministers who did not belong to the governing *Alianza PAIS* by mid-2015.

In addition to a reliance on a unilateral cabinet management and "own" ministers in both the 1979–2007 and 2007–2017 periods, presidents' PAD strategies do not appear to be driven by political or economic crisis—a notable deviation from Camerlo and Pérez-Liñán's (2015b) findings. Instead, portfolio volatility has been nearly constant in the democratic period; to wit, there were cabinet changes in more than 40 percent of months (167 of 408) between 1979 and 2013. Of the months with turnover, the modal category of changes was a single portfolio, which occurred 55 percent of the time (92 of 167 months). What is more, with the exception of alternation in presidential administration, which always generated full or near-full cabinet replacement, monthly turnover involved less than half the number of total cabinet portfolios. In fact, between 1979 and 2003, the monthly total of ministerial changes never exceeded five, and it reached seven only in 2012, when the total number of portfolios had grown to 28.

The steady incidence of ministerial change combined with limited numbers of monthly changes make it difficult to ascertain whether PAD in Ecuador is related to changes in macroeconomic indicators or specific political crises and conflicts faced by each president. There are some anecdotal cases where political or economic crisis was followed by a change in four or five ministers (e.g., the dissolution of Lucio Gutiérrez's coalition with Pachakutik in 2003), but when viewed systematically, political-economic environment and cabinet turnover appear independent of one another. This may be partially due to the fact that cabinet portfolios were not a relevant coalition-building tool for the majority of the period studied, and therefore the cabinet was not the central arena of recalibration of political strengths and weaknesses to confront crisis. Instead, presidents tended to respond to political or economic difficulty by altering the conditions or composition of their (ghost) coalitions (Mejía Acosta and Polga-Hecimovich, 2011) or, as a result of pressures from the legislature, such as changes in the composition of the Supreme Court (Basabe-Serrano and Polga-Hecimovich, 2013).

Testing the PAD argument

This book argues that presidents who are institutionally stronger and enjoy favorable political, social, and economic contexts are able to avoid cooperative strategies and instead utilize unilateral ones to build their cabinets. Conversely, weak presidents or those governing during times of crisis should be more likely to engage in cooperative strategies with other parties. However, as we have argued throughout this chapter, the empirical data from Ecuador support this assertion only from 2007 onwards. What is more, these unilateral strategies involved naming formally independent or unaffiliated politicians close to the president to cabinet positions instead of ones with strong partisan affiliations. Figure 9.3 shows that the highest percentage of partisan ministers—those belonging to the ruling party who do not necessarily possess a high level of policy expertise—occurred during the three Correa administrations. On the other hand, the presence of expert ministers has been relatively constant throughout the democratic period. In this regard, Correa is the president that has employed the fewest ministers with specialized expertise in a given policy domain, preferring to prioritize both those who are members of his party as well as those loyal to his political project.

The second part of the argument states that presidents who are institutionally weak and govern in unfavorable political, social, and economic contexts tend to use cooperative strategies to construct their cabinets. However, this does not appear to be the case in Ecuador. The empirical findings place the country as an outlier, given that institutionally weak presidents before 2007 still tended towards unilateral appointment strategies even under unfavorable circumstances.

Moreover, despite the unstable political, economic, and social environment that plagued many Ecuadorian governments between 1979 and 2007, the duration of ministerial experts did not vary considerably in comparison to their partisan colleagues. Instead, rates of portfolio turnover between the 1979–2007 and 2007–2017 periods are roughly similar.

Concluding remarks

Ultimately, this book's approach as well as the conventional wisdom are insufficient to explain PAD in Ecuador. Contrary to what this book proposes, we show that Ecuadorian presidents resorted almost exclusively to strongly unilateral strategies in their cabinet management despite varying levels of institutional power, partisan power, and public approval. This is due in large part to the fact that the formation of government coalitions between the executive and legislature, known as "ghost coalitions," did not generally involve the formal exchange of ministerial portfolios, but other appointed positions, budgetary provisions, and other private exchanges. The import of this peculiarity to the theoretical arguments of this edited volume cannot be overstated. To the contrary, this mode of coalition building unfortunately undermines many of the contributions this book hopes to make, including proposing a more precise mode of counting coalitions.

Ecuador's PAD dynamics do, however, align with the book's main arguments with the arrival of President Correa in 2007. For the first time since democratization the ruling party enjoyed a legislative majority, economic bonanza aided by the rise in commodity prices, and unprecedented levels of popular approval. President Correa pursued a predictable cabinet formation strategy: he called upon very few actors from other political parties and prioritized individuals who were loyal to his government project and those affiliated to the governing party. In fact, the second and third Correa administrations exhibited a marked increase in the distribution of cabinet portfolios to strict partisan ministers at the expense of strict experts. Although this provides evidence of a unilateral appointment strategy under favorable political, economic, and social contexts, it may also be an indication of the cabinet's secondary role in political decision-making under the president.

Beyond PAD strategies, we have shown that Ecuadorian ministers have suffered a high rate of turnover since 1979. However, across the universe of cases, ministers' backgrounds (e.g., ex-military, ex-business, religious leader) were not correlated with significant differences in duration in office, nor were differences in being a strict partisan, strict expert, or partisan-expert. During the 1979–2007 period, it is possible that high volatility corresponded to changes in the political environment, leading presidents to make cabinet changes in order to obtain support from different political or social sectors. Given the decline in party system fragmentation and multipartyism in the 2007–2015 period we suggest that continued changes in the cabinet may be related to rearrangements of existing political factions within the ruling Alianza PAIS. In both scenarios, a detailed study of the ministerial volatility rate in Ecuador is a phenomenon that merits future investigation.

One of the most relevant aspects of the volume's theoretical framework to the Ecuadorian case is in the way it distinguishes cooperative from unilateral PAD strategies. The scholarly literature classifies this according to whether the president appoints partisans from other parties or not. By contrast, this book distinguishes cooperative from unilateral strategies according to whether the president appoints ministers who are personally or professionally close or not—regardless of formal political affiliation. This is quite useful in Ecuador, where technocrats' unwillingness to be affiliated to a political party for much of the democratic period meant that even cabinets that reflected presidents' use of "own" ministers—those in the president's inner circle—depended to a high degree on formally non-partisan individuals. This is a helpful approach to understand Ecuadorian unilateralism.

Finally, this work takes a first step towards helping determine ministers' real political influence on presidents and understanding the relationship between ministers' previous political careers and the institutional performance of ministries. As mentioned at the beginning of the chapter, although research on the president's distinct political roles in Latin America has advanced considerably, there is much to explore about how presidents structure policymaking within the executive branch in presidential regimes.

Notes

1 This in turn was facilitated by the lack of recorded roll call votes in the National Congress, affording coalition partners plausible deniability of collaborating with the president or the president's agenda when questioned by the press.
2 The justification for the removals of presidents Bucaram, Mahuad, and Gutierrez all relied, to some degree, on extra constitutional mechanisms.
3 In July 2007, when Presidente Correa lacked a legislative bloc, then Minister of Economy Ricardo Patiño faced impeachment proceedings.
4 The constitutions of 1998 and 2008 further show that in the temporary absence of the president and vice president, the president will appoint a minister to represent the executive branch.
5 Alberto Dahik was vice president during the Sixto Durán-Ballén government (1992–1996). For a detailed description, see Mejía Acosta (2006). Cornejo (1996) presents a valuable work of investigative journalism on the topic. From mid-2013, President Correa appointed Jorge Glas to coordinate the strategic sectors, basic industry, and productivity. For more details, see Executive Decree No. 15, June 2, 2013.
6 During the Correa government, one key official with decision-making capacity higher than even that of the ministers is the National Judicial Secretary of the presidency (*Secretario Jurídico de la Presidencia de la República*), Alexis Mera.

7 In the 2013–2017 governing period, there were six coordinating ministries: Social Development; Production, Employment, and Competivity; Human Knowledge and Talent; Political Economy; Energy; and Security. Until May 2013 there was also a coordinating Ministry of Patrimony.

8 In one of his first acts of government upon taking office on May 24, 2017, President Lenín Moreno eliminated these coordinating ministries.

9 This classification of ministries is based on the parameters of notoriety, resource management, and the importance of the issues addressed used by Escobar-Lemmon and Taylor-Robinson (2005) and Krook and O'Brien (2012).

10 One exceptional case is that of Fausto Ortiz, former finance minister to President Correa, who after resigning acknowledged that the real reason for his departure was his refusal to sign records from the Deposit Guarantee Agency that contained previously undisclosed information. According to Ortiz, President Correa gave him an ultimatum to sign the records or resign; Ortiz opted to resign.

11 Legislative coalitions in Ecuador were essentially formed through the exchange of votes for budget allocations to the provinces, positions in institutions of control such as the Ecuadorian Institute of Electrification (*Instituto Ecuatoriano de Electrificación*) or the state oil company, Petroecuador, or through cash payments (Mejía Acosta, 2009).

12 The only instance in which legislative elections were held at the same time as the runoff presidential election was in 1979, when Jaime Roldós faced off against Sixto Durán-Ballén in the second round.

13 Our analysis here excludes Correa's 2013–2017 term, in which the president enjoyed a legislative majority and, therefore, did not require coalitions to govern. Although the Socialist-Broad Front Party (*Partido Socialista-Frente Amplio*, PS-FA) and AVANZA movement vote with the government bloc in the legislature, their support is not necessary for the president to pursue his political agenda.

14 We obtained background information and ministers' expertise through interviews with key political actors and the main print media in the country (*Diario Hoy*, *El Universo*, and *El Comercio*).

15 Neither Noboa nor Palacio was affiliated to any political party.

16 Basabe-Serrano and Polga-Hecimovich (2013) identify 15 different coalitions in Ecuador between 1999 and 2007.

17 One of these powers was that lawmakers could manage budget items for their respective provinces. This often resulted in negotiations that led to exchanges of budget items for votes.

10 Portfolio allocation in the Americas

A recap

Cecilia Martínez-Gallardo and Marcelo Camerlo

In writing this book, we had two main motivations, one theoretical and one practical. In the last years, our understanding of portfolio allocation in presidential democracies has improved substantially. However, as we argued in Chapter 1, one of the main goals of this book has been to identify and try to overcome what we see as basic theoretical limitations in this literature. First, we wanted to revise what we call the "partisan expectation" or the expectation that government coalitions express specific legislative coalitions. The assumption that presidents make decisions about the allocation of cabinet portfolios based on their legislative goals lies at the center of most theories of portfolio allocation in presidential systems. One implication of this assumption for research has been a disproportionate focus on the partisan dimension of ministerial appointments. In this book, however, we have argued for relaxing the partisan assumption and recognizing that portfolio allocation allows presidents to manage not only the need for legislative support, but also the need for technical expertise and political loyalty.

A related, theoretical motivation for the book came from the observation that to achieve their strategic goals, presidents name individuals with a range of profiles. The traditional focus on partisanship as the central consideration in portfolio allocation has obscured, in our opinion, the appointment of individuals with a variety of profiles, who bring to the cabinet not only the support of their party in the legislature, but also the support of other social groups, their political capital, or technical expertise. In this book, we contribute to the existing literature on portfolio allocation by expanding the focus on presidents' legislative strategy to include the concept of *cooperative strategies*, which we take to include not only the inclusion of ministers from parties different from the president's own party but also other individuals, associated with a wide range of social groups supportive of the president's agenda.

A more practical motivation for writing this book came from the observation that one of the limiting factors in our understanding of portfolio allocation is not theoretical development but rather a lack of systematic, accurate data on cabinet formation in presidential systems. In launching this project, we wanted to create a database that would allow systematic comparisons between countries and make it possible to rigorously test some of our arguments. Based on our own data-gathering efforts in the past, we wanted data collection to be locally informed and the resulting database to be open and transparent. Recruiting researchers with expertise in each of the eight countries in our study was central to this effort and the result is a wealth of detailed data on portfolio allocation that is now available for others to use in their own research. In the paragraphs that follow we use this data to show some of the main patterns in portfolio allocation in the presidential countries of the Americas.

Portfolio allocation across the Americas

In this section, we describe the dataset created by all the country teams that participated in this project. The dataset contains information on 2284 individual ministers that occupied portfolios in 82 administrations across the eight countries in our study, in the years between the last transition to democracy and the most recent administration (see Table 10.1).[1] Since we are interested in the dynamics of portfolio appointments, each observation in the dataset is a *spell* in the cabinet (N=3160), rather than an individual minister. This means that individuals are included in the dataset as many times as they occupied a position in the cabinet. Fernando Cepeda Ulloa, for example, joined Colombian president Virgilio Barco's cabinet in August 1986 as Minister of Government, and was subsequently named Communications Minister in May 1987; these are two separate observations in our dataset. Others, like Aluizio Alves in Brazil, occupied positions during different administrations (Presidents Sarney and Franco in this case), and also have an entry for each time they participated in the government. Where a minister's appointment spanned two administrations, we counted participation in each government as a separate observation.

The size of presidents' cabinets varies both across and within countries. Figure 10.1 shows summary statistics for inaugural cabinets in the eight countries in this study. As the figure shows, cabinets are smallest, on average, in the United States (11.6), Uruguay (12.4) and Colombia (13.5), and largest in Chile (20.6) and Brazil (25.1). Brazil and Ecuador are the countries with the largest standard deviation in cabinet size (8.7 and 5.9, respectively); in Brazil, for

Table 10.1 Ministers by country

Country	*No. ministers*	*No. spells*	*Years*
Brazil	315	458	1985–2016
Chile	178	237	1990–2014
Colombia	433	571	1958–2016
Costa Rica	227	304	1978–2014
Ecuador	384	552	1979–2017
Peru	368	507	1980–2016
United States	181	269	1969–2013
Uruguay	198	262	1967–2015
Total	2284	3160	

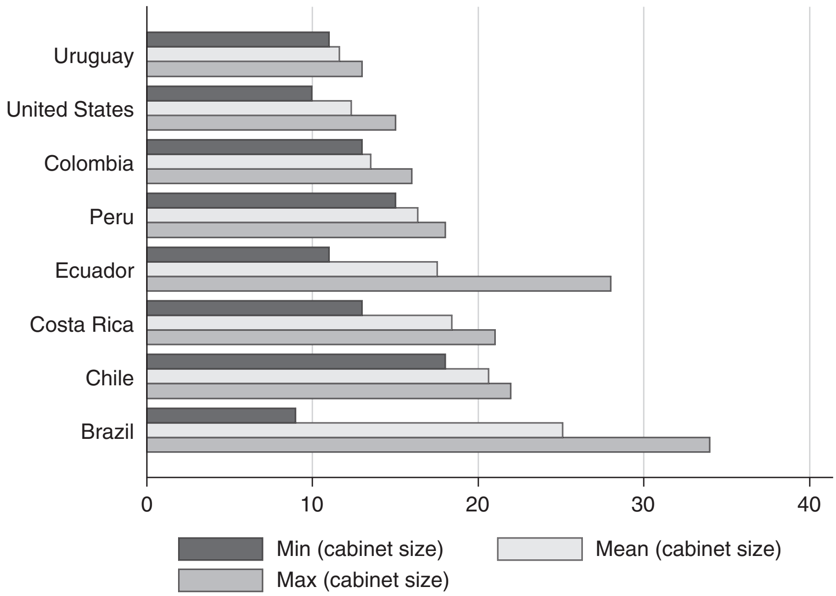

Figure 10.1 Cabinet size.

example, cabinets grew to over 30 ministers in the two administrations of president Dilma Rousseff. In Ecuador, cabinets were small in the 1980s (around 12 ministers) but grew to include almost 30 ministers during President Correa's term (2007–2017). While Brazilian presidents—especially Lula and Rousseff from the PT (*Partido dos Trabalhadores* or Workers' Party)—have used cabinet expansion as a tool for coalition management (Inácio, Chapter 6 in this volume), Basabe-Serrano *et al.* (Chapter 9, in this volume) argue that the increase in cabinet size in Ecuador reflects the expansion of the state under President Correa.

The stability of these inaugural cabinets also varies widely. Although there are many ways to measure the stability of the cabinet, Figure 10.2 shows the total number of ministers that occupied a position in an administration, divided by the size of the inaugural cabinet—which we take here to be a good proxy for cabinet size more generally. The most stable cabinets are found in the United States and Costa Rica, while Peru has the highest average turnover of ministers, with a rate of 2.9. We find a similar pattern if we use the average duration of ministers in each country (measured in months): on average, ministers in the United States, Costa Rica and Chile tend to last much longer in their posts than ministers in Ecuador or Peru (see Figure 10.3). In Peru, Vera and Carreras (Chapter 8 in this volume) note that turnover is higher under presidents that use cooperative strategies and for partisan ministers, compared to other minister types. In Ecuador, by contrast, Basabe-Serrano *et al.* (Chapter 9 in this volume)

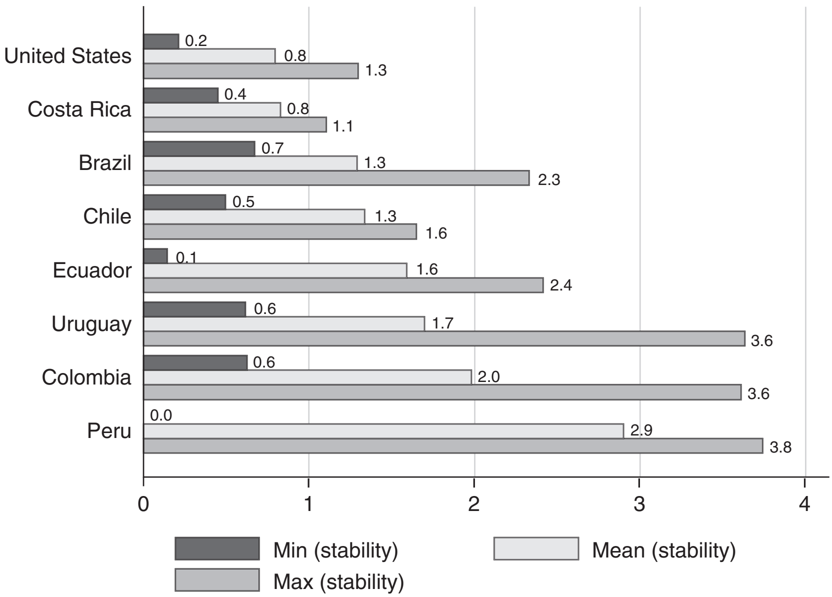

Figure 10.2 Cabinet stability.

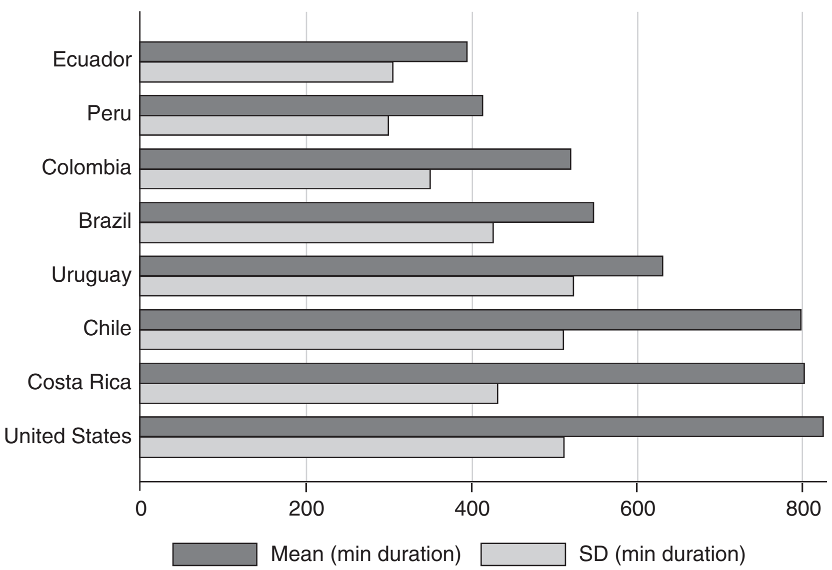

Figure 10.3 Minister duration.

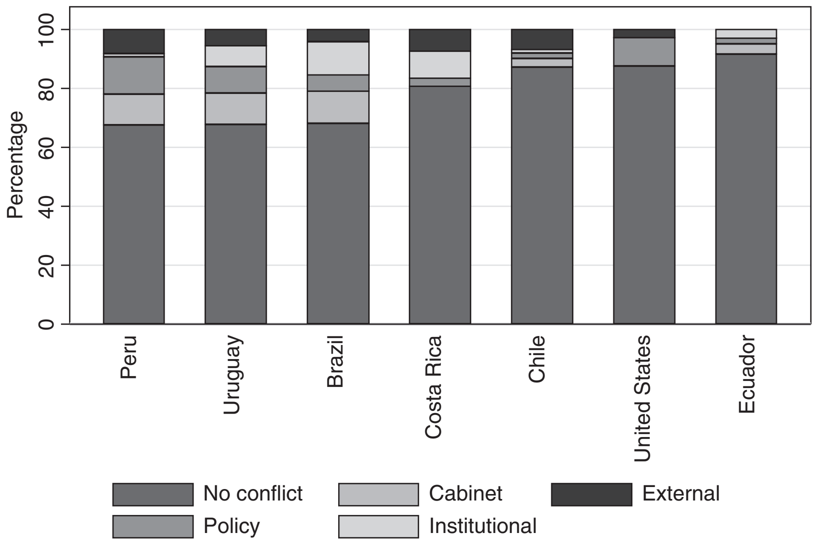

Figure 10.4 Cause of exit from cabinet.

argue that ministerial turnover results from internal party politics, as presidents try to reconcile the different factions of their party.

Finally, the dataset also records the date of appointment of ministers, the date of exit from the portfolio, as well as the reason and the "direction" of the minister's exit; that is, whether the minister was promoted, demoted, given a position of similar rank, or left the cabinet altogether. Figure 10.4 shows that the vast majority of exits appear not to be rooted in conflict. However, where conflict was at the center of a ministerial resignation, the cause of the conflict varies quite markedly from country to country. In the United States, most exits from the cabinet were based on a policy disagreement between ministers or between a minister and the president. By contrast, in that country resignations did not typically follow disagreements between the Executive and Congress or the Judiciary, as they often did in Brazil, Costa Rica or Uruguay. Obviously, cabinet disagreements between government parties were most common in countries where coalitions are the norm like Brazil or Uruguay, and non-existent in countries where single-party governments are most common, like the United States and Costa Rica.

Managing political resources

The dominant argument in the literature on portfolio allocation in presidential democracies is that presidents recruit ministers from other parties to build legislative coalitions; in exchange for the spoils of office, coalition partners are assumed to help presidents get their agenda through congress (e.g., Amorim Neto 2006, Martínez-Gallardo 2014). While we agree that presidents have a strong legislative motivation for naming members of other parties to their cabinet, in this book we expand on the existing literature by thinking of portfolio allocation as a strategic tool that presidents use not only to manage the legislative support that they need to build a majority, but also other political resources such as the technical skills they need to design and implement policies in a complex environment, and the internal alignment or loyalty that protects them from political challenges. Portfolio allocation, we have argued, allows presidents to form a cabinet that combines ministers with different attributes and reflects a trade-off between the need for political support, expertise and loyalty.

Thinking of portfolio allocation as a trade-off between these goals highlights the importance of going beyond the partisan/non-partisan dichotomy that has dominated the literature to date. As the chapters in this volume show, a strict dichotomy based on partisanship misses a great deal of variation in the attributes that ministers bring to their job in the cabinet, as well as the variation in the sources of political support and leverage that they offer the president. Figure 10.5 combines data from all the chapters in the book to compare the modal distribution of minister profiles across inaugural cabinets in eight presidential countries in the Americas. The first thing to note is the variation in the distribution of profiles across countries; inaugural cabinets reflect differences in the priority that presidents in different countries give to the appointment of ministers with technical expertise, partisan expertise, a combination of partisanship and expertise, and other attributes, often related to membership in a social group such as labor or business.

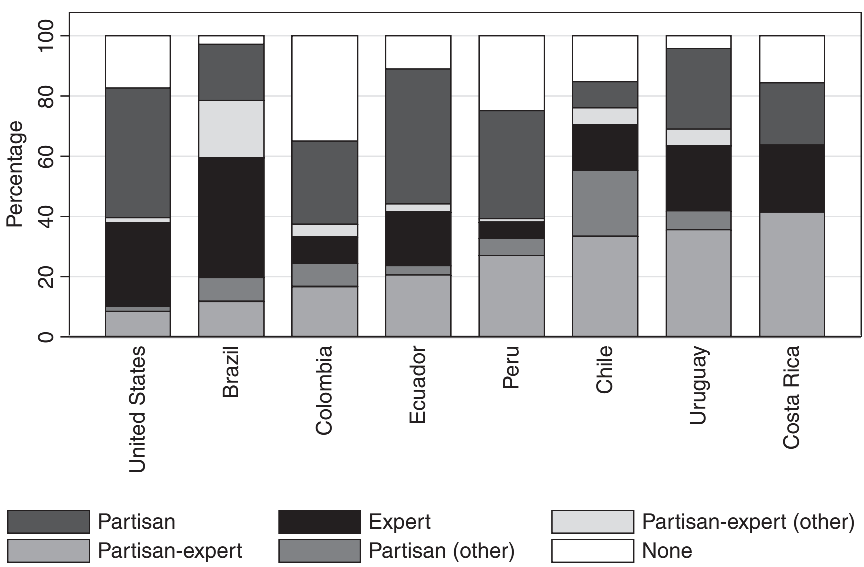

Figure 10.5 Minister profiles at inauguration.

Looking at partisan affiliation first, it is notable that in most countries well under half of ministers are in the government based strictly on their affiliation with a political party. Among these ministers, most belong to the president's own party, although in countries where coalitions are common (Chile and Brazil, for example) we find strict partisans that belong to other parties as well. The proportion of strict experts, on the other hand, also varies widely, from a low of around 5 percent on average in Chile to a high of around 40 percent in Ecuador and the United States. In Ecuador, Basabe-Serrano *et al.* (Chapter 9 in this volume) find that nearly two-thirds of all ministers have expertise in the policy domain of their ministry. This was especially true before Rafael Correa took power in 2007; the authors speculate that high political capital and a single-party government gave President Correa the leverage he needed to favor the appointment of loyalists over policy experts. In the United States cabinet ministers are expected to have some professional or academic expertise in the area of their ministry and experts have traditionally outnumbered ministers with other profiles (Escobar-Lemmon *et al.*, Chapter 2 in this volume), including strictly partisan ministers.

In every country, authors note an additional group of ministers that combine an affiliation to a political party with some policy expertise. Brazil stands out for having both the largest share of partisan experts in general, and the largest percentage of partisan experts belonging to a party other than the president's. On the other end of the spectrum, in Colombia and Peru, ministers with a hybrid profile are on average the smallest group in the cabinet. However, if we consider these hybrid ministers as partisan, on average between 40 percent (Colombia) and 80 percent (Brazil) of ministers have some affiliation to a political party. Importantly, the wide variation in the extent to which the appointment of these individuals can be explained in strictly partisan terms or in terms of expertise highlights our argument that the usefulness of theories of portfolio allocation based strictly on partisanship varies significantly across countries.

We have also argued in this book that beyond the legislative imperative that dominates the literature, executives may rely on support from groups other than political parties to enact their agenda. Indeed, research by country experts confirms the importance of membership in issue communities, especially in countries with "weak political parties and low bureaucratic capacity" like Peru (Vera and Carreras, Chapter 8 in this volume), where over 20 percent of appointments have gone to members of economic, religious or military groups. Weak partisanship might also play a part in the high percentage (around 30 percent) of ministers belonging to "other" social and economic groups in Colombian cabinets.

Partisanship and portfolio allocation strategies

To reflect the significant variation in the profiles of cabinet ministers across presidential countries in the Americas, we extend the traditional party-centered approach to portfolio allocation in two important directions. First, we look at ministers' partisanship more carefully. Most work on government formation in the Americas views government formation as a process in which presidents decide whether to govern "alone"—that is, with only members of their own party—or to form a governing coalition with members of other parties. This view assumes that once appointed, partisan ministers respond to and are supported by their legislative party. As we argue in Chapter 1, however, in presidential systems the link between partisan ministers and their legislative parties is much weaker than in parliamentary systems. As a consequence, the literature has tended to overestimate the level of partisanship of ministers. Often, ministers that join the cabinet have only loose ties with a political party, or they might switch parties as they see fit. Importantly, it is often unclear whether these partisan ties reflect a strong alliance between the cabinet minister and her party in the legislature.

Figure 10.6 shows data on partisanship that takes into account not only *membership* in a political party, but also the *degree* to which individual ministers have strong ties with their party in congress. Ministers are defined as *partisan* when country experts find evidence of a declared or known preference for a specific party but ministers have just recently been affiliated to the party or there is no evidence of active membership in the party. *Strict partisan* ministers are those for whom there is clear evidence of a close, active relationship with the party. Not surprisingly, Chile—the most highly institutionalized party system among the cases described in this book—has the highest proportion of strictly partisan ministers. On the other end of the scale, Peru, the United States and Ecuador

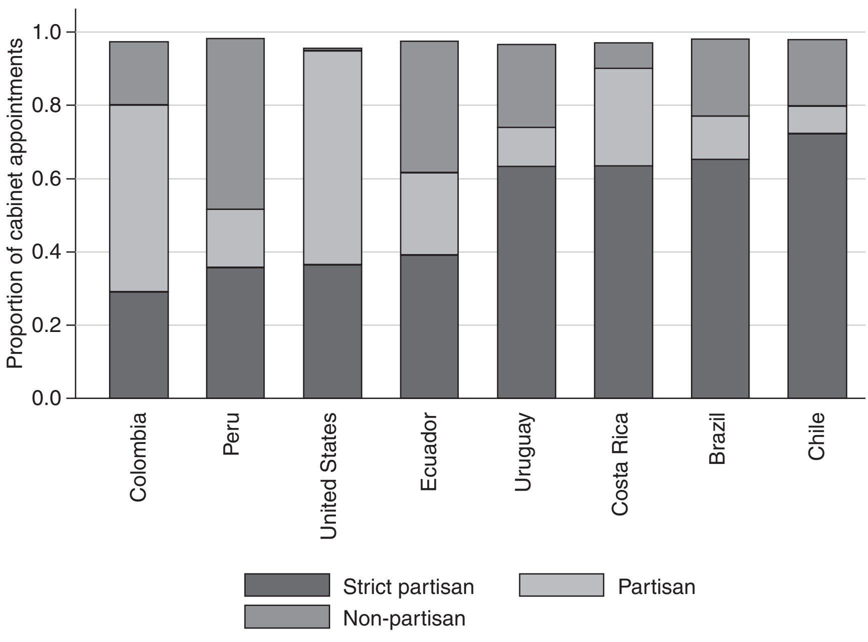

Figure 10.6 Party membership.

have similar proportions of strict partisan ministers (around 0.4), but differ substantially in the number of partisan and non-party ministers in the cabinet. In the United States, for example, few ministers are not affiliated to a political party, and instead most have loose ties with either the Democratic or Republican party. By contrast, in Peru and Ecuador, a much larger proportion of ministers have no ties to established political parties and are instead non-party experts, independent professionals or loyal cronies (see chapters in this volume).

In Figure 10.7, we contrast the definition of strict partisanship we have argued for in this book, to the broader definition of partisanship common in the literature on government formation. As Figure 10.7 shows, decisions about how to define partisanship are consequential for our theories of portfolio allocation. In the absence of formal coalition agreements, studies of coalition fomation in the presidential systems of the Americas have mostly relied on the partisanship of ministers to determine whether a governing coalition has been formed or not. But if as we show here, these studies have overestimated the degree of partisanship in cabinets, we might be misjudging the degree to which the presence of ministers from other parties actually represents a formal political alliance between political parties. If we look at this same data by partisan profile (Figure 10.8), we can see that although on average the problem is particularly pronounced with respect to the president's own partisans, it is significant also when we try to determine the degree to which members of the cabinet from other parties are actually active members—and thus reliable agents—of their party.

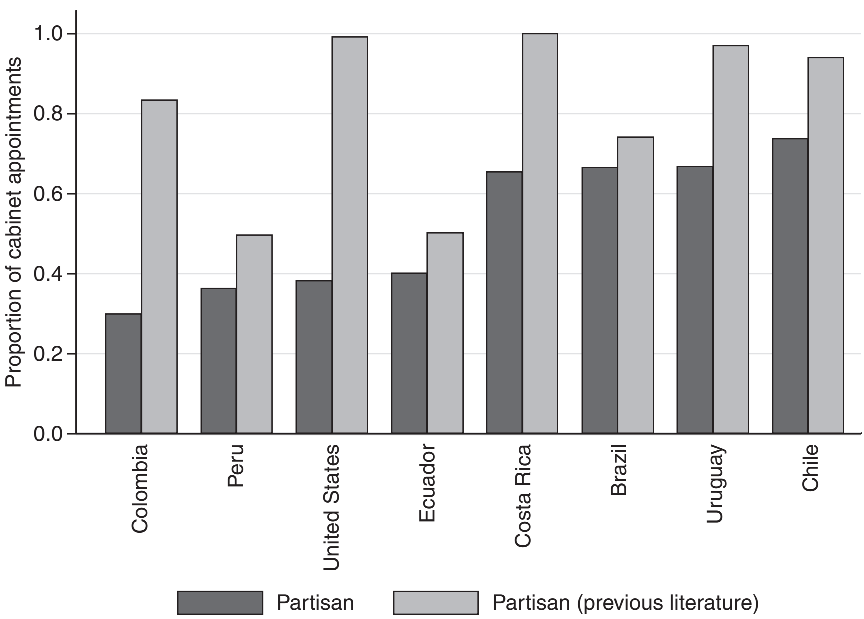

Figure 10.7 Definitions of partisanship.

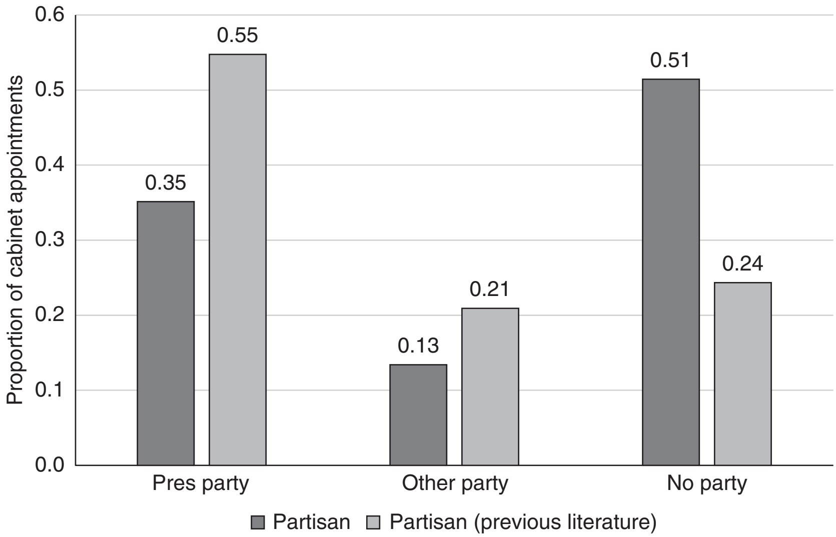

Figure 10.8 Partisanship by party profile.

A second contribution of this book to the discussion on partisanship and government formation has been to expand the analysis of portfolio allocation strategies to include not only those based on partisanship. We consider a president's appointment strategy to be *cooperative* when it is oriented towards the inclusion of "other" individuals, parties or social actors in the cabinet; *unilateral* strategies, by contrast, are oriented towards the inclusion of the chief executive's "own" people. As the chapters in this book illustrate, there is substantial variation across countries, and within them, in the types and nature of groups or social actors that are included in the cabinet, and thus can be defined as "own" or "other." In the U.S., for example, Escobar-Lemmon *et al.* note in Chapter 2 that although presidents' appointment strategies are mostly unilateral, Republican presidents are more likely to court business groups, while Democratic presidents are closer to labor unions and more likely to include their representatives in the government. In Peru, Vera and Carreras (Chapter 8) note that the collapse of the party system left a vacuum that was filled by business elites and other organized economic interests. In Brazil, President Collor ran as an anti-establishment candidate and once in office filled his cabinet with experts and cronies.

Figure 10.9 illustrates the cross-country variation in the portfolio strategies of presidents. Most notably, this variation does not seem to be connected only to the modal type of government in each country. Brazil and the United States provide an interesting contrast. Although in both countries 60 percent of cabinet appointments on average go to individuals considered "close" to the president, the United States has had single-party governments throughout its history, while Brazil has had coalition governments for most of its democratic history. Despite

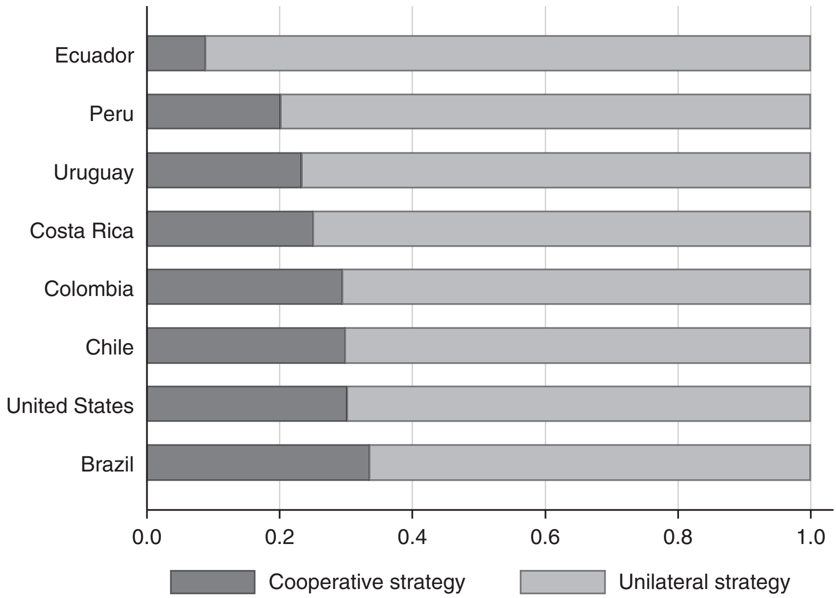

Figure 10.9 Portfolio allocation strategy (average over period).

some variation over time, Brazilian presidents have appointed cabinets composed mainly of members of their own party, and of ministers that are personally loyal or have close personal ties to the president. Importantly, "other" appointments have mostly gone to coalition partners. By contrast, in the United States, where most appointments also go to members of the president's party and individuals with close ties to the president, "other" appointments have typically gone not to other parties but to experts and representatives of interest groups.

Looking at data across countries is complicated by the fact that we have stressed in this volume that data be gathered in a context-specific way. That is, each country team has defined which appointments can be considered "close to the president" in their specific country. On one hand, this approach takes advantage of researchers' local knowledge to produce better data. But on the other hand, of course, it also makes comparing countries less straightforward. Overall, it is clear that in every country unilateral strategies are dominant, although country chapters show that there is substantial variation over time. It is also clear that, as we have argued, cooperative strategies of portfolio allocation go beyond including other parties in government, and extend to interest groups and social actors outside government as well.

In sum, throughout this book we have revised and expanded the notion of partisanship that has been at the center of theories of portfolio allocation in presidentialism. We have not argued that these theories are wrong; in fact, we agree that partisanship is a central consideration for presidents as they form their cabinet. But we have argued that it is important, first, to look outside political parties to study the alliances that presidents make with a wide array of political actors (economic elites, unions, environmental groups) in order to get their agenda implemented. Second, the dataset constructed for this book provides a more precise definition of partisanship that seeks to avoid overestimating the degree to which ministers are loyal agents of their party in congress. Third, we have presented information about the profiles of ministers that goes beyond their party affiliation and includes other resources they bring to the government such as technical expertise and loyalty.

Explaining portfolio allocation strategies

Although the main goal of this book has been to characterize portfolio allocation in the Americas, in Chapter 1 we suggested some possible correlates of presidents' choice of portfolio allocation strategy. In line with previous work on government formation and change, we suggested strong presidents should be more likely to pursue unilateral strategies and weak presidents should choose cooperative strategies more often. Most of the work that has argued that a connection exists between political and institutional strength and government formation strategies has been based on cross-country comparisons (e.g., Amorim Neto 2006; Martínez-Gallardo 2014). However, support for this link among the case studies in this book is decisively mixed.

In Uruguay, Brazil, Colombia and Peru, authors find some evidence that presidential strength and portfolio allocation strategies are indeed linked. Uruguay is perhaps the best example of this pattern; in this country, presidents with more legislative support have tended to choose a more unilateral strategy of portfolio allocation. The same is true for presidents that rule under good economic times and those with higher rates of popularity. Similarly, in Brazil minority presidents have dealt with the challenge of getting their agenda through congress by building multiparty coalitions. Balancing unilateral and cooperative strategies has been key for presidents in a context of multiple parties and low party discipline, where presidents need the support of other parties to build legislative support for their policies.

In Colombia and Peru, the authors find evidence that presidential strength conditions portfolio allocation. However, in each case, presidents have found alternative or complementary strategies that allow them to overcome specific institutional and political challenges. In the case of Colombia, strong presidents do "tend to act unilaterally and give fewer portfolios to members of other parties." However, Mejía Guinand and Botero (Chapter 7) note that Colombian presidents are sometimes able to reduce the agency loss intrinsic to awarding cabinet positions to other parties through the creation of parallel offices that limit the scope of action of cabinet ministers. In Peru, especially after the collapse of the party system in the 1990s, the lack of discipline and institutionalization of political parties has "made it unviable for presidents to obtain support by appointing members of other parties to the cabinet." Instead, presidents have used a cooperative strategy of portfolio allocation directed not at partisan supporters but at business elites and other organized economic interests.

By contrast, in Ecuador, the U.S., Costa Rica and Chile, portfolio allocation does not seem to be contingent on the strength of presidents. In the U.S., presidents have overwhelmingly used unilateral strategies of portfolio allocation, regardless of their legislative strength or the economic context. Instead of building long-term governing coalitions, presidents have typically relied on temporary legislative coalitions built around specific pieces of legislation. Like their counterparts in the U.S., presidents in Costa Rica have always presided over single-party cabinets. However, appointments in Costa Rica have tended to be much more partisan than in the United States, where just a small minority of ministers have been nominated solely on account of their party affiliation. The case of Chile also defies the idea that unilateral portfolio allocation strategies are more common for presidents who lack political and/or institutional strength. Despite changes in presidential strength and in the economic context, presidents have always built governing coalitions and in Chapter 5, Avendaño and Dávila argue that presidents decide the allocation of portfolios based on long-standing rules that guarantee balance between coalition parties.

In Chapter 9, Basabe-Serrano *et al.* argue that Ecuadorian presidents have preferred unilateral strategies of portfolio allocation "regardless of their institutional strength and public standing." This was particularly true before the arrival of President Correa in 2007. At the heart of portfolio allocation strategies in this country is a deep-seated distrust of political parties, and a system that rewards political support with "positions in public institutions or embassies, or the direct allocation of financial resources"—and not necessarily a position in the cabinet.

The notion that politically strong presidents are less likely to delegate ministerial authority to other parties is well established in the literature (e.g., Amorim Neto 2006; Martínez-Gallardo 2014), but looking at country-specific evidence, in this book we find mixed evidence for the idea that strong presidents are more likely to use more *cooperative* portfolio allocation strategies. Clearly, more research is needed to control for confounding factors. But the research presented in this book does highlight the importance of looking beyond partisanship to other criteria for inclusion in the cabinet.

Looking ahead

In the last decades we have learned a lot about government formation in presidential regimes. In this book we have sought to contribute to this literature by refining and rethinking some of the basic premises that have guided this research. Most centrally, we have questioned the predominance of party membership in studies of portfolio allocation, at the expense of other important criteria such as expertise and loyalty. To be sure, we agree that partisanship is key in understanding presidents' portfolio allocation strategies—a point most country cases in this book have highlighted. But we believe it is important to expand our understanding of portfolio allocation to include the appointment of ministers with different profiles that bring to the cabinet their policy expertise, their connections with other groups or social actors, and/or their allegiance to the president, and not only their association with a political party.

Moreover, we have also stressed the importance of going beyond simple dichotomous definitions of partisanship that obscure variation in the degree to which individual ministers are actually agents of their party in the legislature. We have distinguished first between the president's "own" people, those close to the president by partisanship or allegiance, and those that might share the president's party membership, but do not form part of his or her closest circle of allies. Second, we also distinguished between partisans and *strict* partisans. This distinction is key in thinking about whether cabinet appointments provide the president with legislative support or not. We argue here that in order to judge whether a minister will be able to deliver the legislative support of her party, it is necessary to account for the extent to which a minister is actually a reliable agent of his or her party in congress.

In some ways, this book opens up more questions than it answers. Most obviously, given the mixed evidence from country cases, the question remains: Which contextual, political and institutional factors explain variations across time and across countries in presidents' choice of portfolio allocation strategy? Are there systematic differences in the profile of cabinets across countries or over time? Are there systematic differences between countries in the role partisanship plays in portfolio allocation? By providing a new perspective and new detailed data on portfolio allocation in the Americas, we are hoping this project helps researchers answer some of these questions in their future work.

Note

1 The dataset contains information for 66 individual presidents. During the period under study, 12 presidents were reelected once: Cardoso, Silva, Rousseff, Uribe, Santos, Arias, Garcia, Nixon, Reagan, Clinton, G.W. Bush and Sanguinetti. Two presidents were reelected twice: Correa and Fujimori.

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